



SUPREME COURT REPORTS

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Fortnightly

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E-mail: editorial@sci.nic.in

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B. Yerraji & Ors.

A1: B. Yerraji
A2: J. Appa Rao
A3: N. Srinivasa Rao
A4: Ch. Sriramulu
A5: S. Kanakaraju
A6: M. Yellaji Rao
A7: N. Thatarao
A8: S. Appayamma
A9: D. Venkata Rathnam
A10: G. Appalaraju
A11: G. Appala Raju
A12: B. Kanaka Raju
A13: N. Appa Rao
A14: M. Gandhi
A15: J. Konda Babu

v.

The State of Andhra Pradesh & Ors.

R1: The State of Andhra Pradesh *Rep.* by Its Secretary
R2: The Visakhapatnam Municipal Corporation
R3: B. Bhaskar Rao
R4: M. Pentayya
R5: D. Demudu
R6: L. Bhaskar Rao
R7: K. Appanna
R8: N. Appala Naidu
R9: R. Srinivasa Rao
R10: V. Rama Rao

(Civil Appeal No. 7371 of 2026)

08 May 2026

[Ahsanuddin Amanullah* and Vipul M Pancholi, JJ.]

Issue for Consideration

Issue arose as regards the appellant-Grade-IV employees who had not been granted the / benefit of minimum of the regular scale after being in service for a long number of years despite having an Order in their favour; whether in the absence of liberty to file afresh in the writ petition, the instant writ petition could have at all

* Author

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been filed; and whether non-disclosure of the earlier/connected litigation amounted to suppression of a material fact.

Headnotes[†]

Service law – Denial of service benefits to the employee – Appellants-Grade-IV employees granted the benefit of minimum of the regular scale after being in service for a long number of years by the tribunal – However, the relief granted to them remained unimplemented, and the appellants filed contempt petition which dismissed being beyond limitation period – Later they filed application for condonation of delay in filing execution petition – Tribunal condoned the delay, subject to the condition stated, and on non-compliance, the application would be dismissed – Thereagainst, the appellants filed writ petition, which was dismissed as withdrawn – Thereafter, the appellants filed the instant writ petition without disclosing the above facts – High Court allowed the petition directing the respondents to take action as per the orders passed by the tribunal – Said order remained uncomplied, as such the appellants filed Contempt Case – Respondents filed Review application submitting suppression of facts by the appellants – Review was allowed, and the order directing the respondents to take action as per the orders passed by the Tribunal was set aside and the instant writ petition was restored to file for hearing – Contempt Case was dismissed – Division Bench of the High Court dismissed the restored writ petition – Correctness:

Held: Appellants have made out a case for interdicting the impugned order – No cavil with the proposition of law noted by the High Court apropos suppression or concealment of facts before a judicial forum – Non-grant of liberty to file a fresh petition would not come in the way of filing the instant Writ Petition – It was the duty of the appellants and their counsel to place on record all facts germane to or connected with the litigation before the Court – It is for the Court concerned to decide and rule as to what, in a given set of facts, constitutes a ‘material fact’ – Such leeway has to be given to the Court so that a litigant does not pick-and-choose what to disclose – Incredulous stance taken before the High Court by the appellants to justify non-disclosure as being ‘considered not relevant or necessary’ is surprising – Earlier/connected proceedings did require the appellants to make full disclosure thereof, which they failed to do so – Approach of the High Court, is incapable of being

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faulted – Appellants do have an Order in their favour passed by the tribunal – Same has attained finality and, notably, was never, at any point of time, subjected to any challenge by the respondents no.1 and 2-‘State’ within the meaning of Art. 12 – Being so, the said respondents required to act as and be model employers – It would not lie in their mouths to take a stand that because a party does not get an Order passed by a competent judicial forum executed, it would not comply with or honour the same – State cannot be heard espousing such contention and is, clearly estopped from so doing – To allow the State to do so would tantamount to permitting a party to take advantage of its own wrong, being non-implementation of the tribunal’s order – Underlying grievance/cause of action is alive for the simple reason that payments were to be made on a monthly basis, and failure to do so, would, for every such month of non-payment, give rise to a fresh cause of action – Delay in granting relief, insofar as it is attributable to the ‘system’, cannot act to the appellants’ detriment – Thus, this Court cannot and would not permit respondents no.1 and 2 to deny the appellants the benefit of an Order passed in their favour, which was never challenged by the said respondents, on the mere ground of delay in invoking/taking recourse to the appropriate judicial machinery in seeking directions for implementation – It cannot be held that the tribunal’s order would lose its force by efflux of time – Despite the failings in the appellants’ conduct, in the ultimate eventuate, impugned order set aside – Respondents to comply with the order passed by the tribunal and make all required payments to the appellants, within the stipulated period. [Paras 6.1, 7.1, 7.2, 8-10]

Case Law Cited

S J S Enterprises (P) Ltd v. State of Bihar [2004] 3 SCR 56 : (2004) 7 SCC 166; *Arunima Baruah v. Union of India* [2007] 5 SCR 904 : (2007) 6 SCC 120; *Government of NCT of Delhi v. BSK Realtors LLP* [2024] 5 SCR 1159 : (2024) 7 SCC 370; *Kusheshwar Prasad Singh v. State of Bihar* [2007] 4 SCR 95 : (2007) 11 SCC 447; *Machhindranath v. Ramchandra Gangadhar Dhamne* [2025] 7 SCR 307 : (2025) 7 SCC 450; *Union Territory of Ladakh v. Jammu and Kashmir National Conference* [2023] 12 SCR 68 : (2024) 18 SCC 643 – referred to.

List of Acts

Constitution of India.

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List of Keywords

Grade-IV employees; Benefit of minimum of the regular scale after being in service for a long number of years; Absence of liberty to file afresh; Non-disclosure of the earlier/connected litigation; Suppression of material fact; Denial of service benefits to the employee; Beyond limitation period; Application for condonation of delay in filing execution petition; Suppression of facts; Contempt Case.

Case Arising From

CIVIL APPELLATE JURISDICTION: Civil Appeal No. 7371 of 2026
From the Judgment and Order dated 25.06.2018 of the erstwhile High Court of Judicature at Hyderabad for the State of Telangana and the State of Andhra Pradesh in WP No. 14705 of 2018

Appearances for Parties

Advs. for the Appellant(s):

V. Chitambaresh, Sr. Adv., Ch. Leela Sarveswar, M. A. Chinnasamy, Saurabh Gupta, Kakani Sridhar, T. Meikandan, Guntur Pramod Kumar, Byrapaneni Suyodhan, Ms. Tatini Basu, Ms. Obulapuram Keerthi, Kumar Shashank.

Advs. for the Respondent(s):

L. Narasimha Reddy, Sr. Adv., Ch. Leela Sarveswar, Saurabh Gupta, Mrs. C. Rubavathi, C. Raghavendren, M. A. Chinnasamy, Kakani Sridhar, T. Meikandan, Galla Sateesh, Nandi Kiran Kumar, Uppala Peddanna, Somanatha Padhan, Akash Kakade, N. Rajaraman, Ms. Prerna Singh, Guntur Pramod Kumar, Keshav Singh, Ms. Rakshita Rana, Sateesh Galla, H. Gouri Senkar, S. Pradhan.

Caveator-in-person.

Judgment / Order of the Supreme Court

Judgment

Ahsanuddin Amanullah, J.

Heard Mr. V. Chitambaresh, learned senior counsel for the appellants; Ms. Prerna Singh, learned counsel for respondent no.1-State of Andhra Pradesh, and; Mr. Sateesh Galla, learned counsel for respondent no.2-Visakhapatnam Municipal Corporation.

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2. Leave granted.

2.1 The *lis* before us is, at the core, simply one of many, wherein despite an order in its favour that has long attained finality, the successful party is yet to reap the benefits thereof. While nestled in the service law category, this appeal concerns implementation, rather than adjudication.

BACKGROUND:

3. The appellants are aggrieved by the dismissal of Writ Petition No.44392 of 2018 preferred by them before the High Court of Andhra Pradesh at Amaravati (hereinafter referred to as the 'High Court') *vide* Order dated 25.02.2025 (hereinafter referred to as the 'Impugned Order') passed by a learned Division Bench [**2025 SCC OnLine AP 1329**]. By way of the said Writ Petition, the appellants had sought implementation of the Order dated 20.07.2012 passed by the learned (erstwhile) Andhra Pradesh Administrative Tribunal, Hyderabad (hereinafter referred to as the 'Tribunal') in O. A. No.5971 of 2012. The relief granted to the appellants by the Tribunal having remained unimplemented, the appellants invoked contempt jurisdiction before the Tribunal, which petitions came to be dismissed on the ground that it was filed beyond limitation i.e., after the lapse of more than one year of the date when the cause of action had accrued. Thereafter, the appellants moved the High Court through the Writ Petition adverted to *supra*.

3.1 There is a chequered aspect to the litigative history of this case, which the High Court has duly narrated as under:

'9. Initially, the petitioners filed C.A.No.1986 of 2013 in O.A.No.5971 of 2012, which was dismissed as barred by limitation, by order dated 10.09.2015. The petitioners, later on filed M.A. No. 1835 of 2016, in E.A.SR No.9013 of 2016 in O.A., for condonation of delay in filing execution petition, after a delay of about four years. The M.A., was allowed, by order dated 11.01.2017, on the condition, that each petitioner pays a sum of Rs. 1,000/- to the Andhra Pradesh Legal Services Authority within eight weeks, and in the event of non-compliance, the M.A., shall stand dismissed and E.A.SR., shall stand automatically rejected.

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10. The order dated 11.01.2027 reads as under:-

“In the circumstances stated in the Miscellaneous Application, the delay of four years, four months and ten days shall stand condoned on condition of the applicants 1 to 27 paying at the rate of Rs. 1,000/- each to Andhra Pradesh State Legal Services Authority, Hyderabad, within a period of eight weeks from today; and in default, this Miscellaneous Application shall stand dismissed and the EASR shall stand rejected automatically.”

11. Challenging the order dated 11.01.2017, the petitioner filed W.P.No.32682 of 2017 before this Court. The Writ Petition was dismissed as withdrawn by the petitioners, vide order dated 22.09.2017 after the petitioners’ counsel made such request, though he had presented arguments at some length.

12. The order dated 22.09.2017 reads as under:-

“This Writ Petition is filed for the following substantive relief:

“... to issue Writ, Order or Direction, more particularly one in the nature of Writ of Mandamus by calling for the records in relating to orders passed in MA No.1835/2016 in EASR No.9013/2016 in OA No.5971/2012 dt. 11.01.2017 of the Andhra Pradesh Administrative Tribunal at Hyderabad and aside the same by declaring as illegal, arbitrary and set contrary to the rules and consequently, to direct the IGH COL respondents to release, the periodical increments to the petitioner from the date of release of time scale as it was done in the cases of similarly situated persons”

After arguing the case, Mr. P.Suresh Reddy, counsel representing Mr. B.Bhaskar Reddy learned counsel for the petitioners, seeks permission of the Court to withdraw the Writ Petition. The Writ Petition is, accordingly, dismissed as withdrawn. As sequel, WPMP.No.40642 of 2017 is dismissed as infructuous.”

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13. The petitioners without disclosing the above facts filed the present W.P.No.44392 of 2018. It was previously allowed vide order dated 16.09.2019, directing the respondents to take action as per the orders passed by the Tribunal in O.A.No.5971 of 2012, within a period of three (03) months from the date of receipt of a copy of that order.

14. The order dated 16.09.2019 remained uncomplied, so the petitioners filed Contempt Case No.401 of 2020.

15. The respondents herein filed Review I.A.No.1 of 2021, interalia submitting suppression of facts by the petitioners and no opportunity to file counter affidavit in W.P.No.44392 of 2018. The Review I.A.No.1 of 2021 was allowed by order dated 23.08.2024. The order dated 16.09.2019 was set aside and the present W.P.No.44392 of 2018 was restored to file for hearing.

16. The Contempt Case No.401 of 2020 was dismissed, however, leaving it open to take fresh steps if occasion so arose, if the writ petition allowed.’ (sic)

SUBMISSIONS:

4. Learned senior counsel for the appellants submitted that the appellants are Grade-IV employees and had been granted the benefit of minimum of the regular scale after being in service for a long number of years and even that benefit had not been granted to them despite having an Order in their favour. It was contended that the respondents did not prefer any appeal before the High Court challenging the Tribunal’s Order dated 20.07.2012 and the same having attained finality, payments ought to have been made to the appellants.
- 4.1 It was contended, in addition, that the same learned counsel for the appellants had appeared before the Tribunal and the High Court. Referring to such fact, it was urged that one of the grounds recorded in the Impugned Order, while dismissing the Writ Petition, was that the appellants had suppressed the fact that earlier, they had moved the Tribunal in contempt proceedings, which resulted in dismissal. It was further

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contended that when the same learned counsel was present in both fora, there was nothing for the clients (appellants herein) to further brief their advocates inasmuch as the (same) learned counsel was already aware of the filing of the contempt petition before the Tribunal and thereafter the Writ Petition in the High Court. Any omission in this behalf, submitted the learned senior counsel, ought not to and, cannot fasten liability on the clients-appellants.¹

- 4.2 In the above circumstances, it was urged that the appeal deserved to be allowed.
5. Learned counsel for respondents no.1 and 2 jointly submitted that due to passage of time, the appellants cannot be granted any relief at such belated stage. It was also canvassed that the appellants having not been vigilant about their rights, they cannot now seek benefits which they otherwise claim to be entitled to.

5.1 Attention was drawn to the High Court's view:

'19. We have gone through the order dated 22.09.2017 passed in W.P.No.32682 of 2017, which was got dismissed as withdrawn, after arguing at some length. This Court did not grant any liberty to file fresh writ petition. The proper course for the petitioners would have been, after dismissal of their W.P.No.32682 of 2017, to have complied with the order of the Tribunal dated 11.01.2017 in E.A.SR.No.9013 of 2016. But, they had chosen to file another writ petition, the present one, and that too, suppressing all the previous proceedings including dismissal of their W.P.No.32682 of 2017. They also succeeded, as the present writ petition was initially allowed, which order however was subsequently reviewed, restoring this writ petition for hearing fresh.' (sic)

- 5.2 Learned counsel, thus, supported the Impugned Order and stated that the appeal deserved dismissal.

¹ The stand of the appellants (petitioners before the High Court) was that they do 'not dispute the above facts, but tried to justify non-disclosure submitting that it was considered not relevant or necessary.'

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6. The relevant discussion from the Impugned Order can be culled out as under:

‘18. We are not satisfied with the aforesaid explanation or justification stated and we observe it is a very sorry state of affairs, to say the least.

xxx

*21. In **Ramjas Foundation and Another** (supra), cited by the learned counsel for the respondents, the Hon’ble Apex Court reiterated that the applicant must state fully and fairly the facts, and the penalty by which the Court enforces that obligation is that if it finds that the facts have not been fully and fairly stated to it, the Court will set aside any action which it has taken on the faith of the imperfect statement. ...*

*22. In **Thatipamula Naresh Kumar** (supra), the High Court of Telangana observed that the applicant, who does not come with candid facts and clean freest cannot hold a writ of the Court with ‘soiled hands’. ...*

*23. Recently, in **Kusha Duruka Vs. State of Odisha**, the Hon’ble Apex Court referred to its previous pronouncements in **K.D.Sharma Vs. Sail**, in which, it was laid down ...*

24. The petitioners have abused the process of this Court. They did not approach this Court with clean hands and clean mind. They deliberately suppressed the material facts. Liberty was not granted to file fresh writ petition in dismissal of the previous writ petition. They are not entitled to invoke the writ jurisdiction under Article 226 of the Constitution of India.

25. The Writ Petition is also not maintainable, in view of dismissal of previous W.P.No.32682 of 2017, without any liberty granted to file fresh.

26. The Writ Petition is dismissed.’² (sic)

(emphasis supplied)

² For brevity, the extracts of the pronouncements referred to are not extracted herein.

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- 6.1 Having considered the matter from various angles, we find that the appellants have made out a case for interdicting the Impugned Order. There is no cavil with the proposition of law noted by the High Court apropos suppression or concealment of facts before a judicial forum. We may, however, gainfully refer to **S J S Enterprises (P) Ltd. v State of Bihar, (2004) 7 SCC 166**:

'12. The principal basis on which the Single Judge and the only ground on which the Division Bench of the High Court refused relief to the appellant was because they found that the appellant was guilty of suppression of a material fact viz. the filing of the suit prior to approaching the Court under Article 226.

13. As a general rule, suppression of a material fact by a litigant disqualifies such litigant from obtaining any relief. This rule has been evolved out of the need of the courts to deter a litigant from abusing the process of court by deceiving it. But the suppressed fact must be a material one in the sense that had it not been suppressed it would have had an effect on the merits of the case. It must be a matter which was material for the consideration of the court, whatever view the court may have taken [R. v. General Comms. for the purposes of the Income Tax Act for the District of Kensington, (1917) 1 KB 486 : 86 LJKB 257 : 116 LT 136 (CA)]. Thus when the liability to income tax was questioned by an applicant on the ground of her non-residence, the fact that she had purchased and was maintaining a house in the country was held to be a material fact, the suppression of which disentitled her to the relief claimed [Ibid.]. Again when in earlier proceedings before this Court, the appellant had undertaken that it would not carry on the manufacture of liquor at its distillery and the proceedings before this Court were concluded on that basis, a subsequent writ petition for renewal of the licence to manufacture liquor at the same distillery before the High Court was held to have been initiated for oblique and ulterior purposes

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and the interim order passed by the High Court in such subsequent application was set aside by this Court [State of Haryana v. Karnal Distillery Co. Ltd., (1977) 2 SCC 431 : AIR 1977 SC 781]. Similarly, a challenge to an order fixing the price was rejected because the petitioners had suppressed the fact that an agreement had been entered into between the petitioners and the Government relating to the fixation of price and that the impugned order had been replaced by another order [Welcom Hotel v. State of A.P., (1983) 4 SCC 575 : 1983 SCC (Cri) 872 : AIR 1983 SC 1015].

14. *Assuming that the explanation given by the appellant that the suit had been filed by one of the Directors of the Company without the knowledge of the Director who almost simultaneously approached the High Court under Article 226 is unbelievable (sic), the question still remains whether the filing of the suit can be said to be a fact material to the disposal of the writ petition on merits. We think not. The existence of an adequate or suitable alternative remedy available to a litigant is merely a factor which a court entertaining an application under Article 226 will consider for exercising the discretion to issue a writ under Article 226 [A.N. Venkateswaran v. Ramchand Sobhraj Wadhvani, AIR 1961 SC 1506]. But the existence of such remedy does not impinge upon the jurisdiction of the High Court to deal with the matter itself if it is in a position to do so on the basis of the affidavits filed. If, however, a party has already availed of the alternative remedy while invoking the jurisdiction under Article 226, it would not be appropriate for the court to entertain the writ petition. The rule is based on public policy but the motivating factor is the existence of a parallel jurisdiction in another court. But this Court has also held in Chandra Bhan Gosain v. State of Orissa [(1963) 14 STC 766, 918 : (1964) 2 SCR 879] that even when an alternative*

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remedy has been availed of by a party but not pursued that the party could prosecute proceedings under Article 226 for the same relief. This Court has also held that when a party has already moved the High Court under Article 226 and failed to obtain relief and then moved an application under Article 32 before this Court for the same relief, normally the Court will not entertain the application under Article 32. But where in the parallel jurisdiction, the order is not a speaking one or the matter has been disposed of on some other ground, this Court has, in a suitable case, entertained the application under Article 32 [Tilokchand Motichand v. H.B. Munshi, (1969) 1 SCC 110 : AIR 1970 SC 898]. Instead of dismissing the writ petition on the ground that the alternative remedy had been availed of, the Court may call upon the party to elect whether it will proceed with the alternative remedy or with the application under Article 226 [K.S. Rashid and Son v. Income Tax Investigation Commission, AIR 1954 SC 207]. Therefore, the fact that a suit had already been filed by the appellant was not such a fact the suppression of which could have affected the final disposal of the writ petition on merits.

15. In this case, admittedly, the appellant has withdrawn the suit two weeks after the suit had been filed. In other words, the appellant elected to pursue its remedies only under Article 226. The pleadings were also complete before the High Court. No doubt, the interim order which was passed by the High Court was obtained when the suit was pending. But by the time the writ petition was heard the suit had already been withdrawn a year earlier. Although the appellant could not, on the High Court's reasoning, take advantage of the interim order, it was not correct in rejecting the writ petition itself when the suit had admittedly been withdrawn, especially when the matter was ripe for hearing and all the facts necessary for determining the writ petition on merits were before the Court,

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and when the Court was not of the view that the writ petition was otherwise not maintainable.’

(emphasis supplied)

7. At the outset, thus, we are called upon to determine upon two facets:

- (a) Whether in the absence of liberty to file afresh in W.P. No.32682/2017, W.P. No.44392/2018 could have at all been filed?
- (b) Whether non-disclosure of the earlier/connected litigation amounted to suppression of a material fact?

7.1 On (a), it can be seen that W.P. No.32682/2017, which was dismissed as withdrawn on 22.09.2017, had prayed for ‘calling for the records in relating to orders passed in MA No.1835/2016 in EASR No.9013/2016 in OA No.5971/2012 dt. 11.01.2017 of the Andhra Pradesh Administrative Tribunal at Hyderabad and aside the same by declaring as illegal, arbitrary and set contrary to the rules and consequently, to direct the IGH COL respondents to release, the periodical increments to the petitioner from the date of release of time scale as it was done in the cases of similarly situated persons’. By its Order dated 11.01.2017, the Tribunal had agreed to condone the delay of four years, four months and ten days in filing execution petition subject to ‘applicants 1 to 27 paying at the rate of Rs.1,000/- each to Andhra Pradesh State Legal Services Authority, Hyderabad, within a period of eight weeks from today; and in default, this Miscellaneous Application shall stand dismissed and the EASR shall stand rejected automatically.’ It can be seen, thus, that notwithstanding the expansive nature of relief canvassed for in W.P. No.32682/2017, essentially, what had been sought, practically, was the setting aside of the Tribunal’s Order dated 11.01.2017 to the extent it imposed costs of Rs.1000 each on the 27 applicants. *Arguendo*, if such relief was granted, it would have entailed the hearing of the execution petition by the Tribunal. Unfortunately, the parties seem unaware as to what finally befell the execution petition i.e., whether the Tribunal heard the same upon payment of the costs ordered, or whether the same came to be dismissed for non-payment of costs. As the appellants subsequently filed W.P. No.44392/2018, it is not

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illogical to presume that, in whatever scenario, the appellants did not get any relief in the execution petition before the Tribunal. Regrettably, the appellants have not filed a copy of W.P. No.44392/2018 before this Court. We avoid any comment hereon except to note that the same ought to have been placed before this Court. Notwithstanding the same, looking to the nature of the reliefs prayed for in both Writ Petitions, we are of the view that, in the obtaining facts herein, non-grant of liberty to file a fresh petition would not come in the way of filing Writ Petition No.44392/2018.

- 7.2 *Qua* (b), we are of the unambiguous opinion that it was not for the appellants to contend as to what was necessary and what was not. It was the duty of the appellants and their learned counsel to place on record all facts germane to or connected with the litigation before the Court. It is for the Court concerned to decide and rule as to what, in a given set of facts, constitutes a 'material fact'. Such leeway has to be given to the Court so that a litigant does not pick-and-choose what to disclose. We are very surprised at the incredulous stance taken before the High Court by the appellants to justify non-disclosure as being '*considered not relevant or necessary*'. To our minds, hence, the earlier/connected proceedings did require the appellants to make full disclosure thereof, which they failed to do so. The approach of the High Court, in this backdrop, is incapable of being faulted. Yet, we are not forgetful of ***Arunima Baruah v Union of India*, (2007) 6 SCC 120**:

'11. The court's jurisdiction to determine the lis between the parties, therefore, may be viewed from the human rights concept of access to justice. The same, however, would not mean that the court will have no jurisdiction to deny equitable relief when the complainant does not approach the court with a pair of clean hands; but to what extent such relief should be denied is the question.'

'12. It is trite law that so as to enable the court to refuse to exercise its discretionary jurisdiction suppression must be of material fact. What would be a material fact, suppression whereof would disentitle the appellant to

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obtain a discretionary relief, would depend upon the facts and circumstances of each case. Material fact would mean material for the purpose of determination of the lis, the logical corollary whereof would be that whether the same was material for grant or denial of the relief. If the fact suppressed is not material for determination of the lis between the parties, the court may not refuse to exercise its discretionary jurisdiction. It is also trite that a person invoking the discretionary jurisdiction of the court cannot be allowed to approach it with a pair of dirty hands. But even if the said dirt is removed and the hands become clean, whether the relief would still be denied is the question.'

(emphasis supplied)

- 7.3 In **Government of NCT of Delhi v BSK Realtors LLP, (2024) 7 SCC 370**, a 3-Judge Bench of this Court, after taking note of **S J S Business Enterprises (P) Ltd.** (*supra*) and **Arunima Baruah** (*supra*) [both 2-Judge Bench decisions], held:

'37. Law is well settled that the fact suppressed must be material in the sense that it would have an effect on the merits of the case. The concept of suppression or non-disclosure of facts transcends mere concealment; it necessitates the deliberate withholding of material facts—those of such critical import that their absence would render any decision unjust. Material facts, in this context, refer to those facts that possess the potential to significantly influence the decision-making process or alter its trajectory. This principle is not intended to arm one party with a weapon of technicality over its adversary but rather serves as a crucial safeguard against the abuse of the judicial process.'

(emphasis supplied)

8. Bearing the above in mind, we are still persuaded to interfere with the Impugned Order for reasons *infra*:

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- (i) *Firstly*, the fact remains that the appellants do have an Order in their favour passed by the Tribunal. The same has attained finality and, notably, was never, at any point of time, subjected to any challenge by the respondents no.1 and 2.
 - (ii) *Secondly*, we are mindful that the respondents no.1 and 2 are 'State' within the meaning of Article 12 of the Constitution of India. Being so, the said respondents are required to act as and be model employers. It would not lie in their mouths to take a stand that because a party does not get an Order passed by a competent judicial forum executed, it would not comply with or honour the same. The State cannot be heard espousing such contention and is, to our minds, clearly estopped from so doing. To allow the State to do so would tantamount to permitting a party to take advantage of its own wrong, being non-implementation of the Tribunal's Order dated 20.07.2012. *Ex injuria sua nemo habere debet* (no party can take advantage of his/her own wrong) as espoused in **Kusheshwar Prasad Singh v State of Bihar, (2007) 11 SCC 447** and restated in **Machhindranath v Ramchandra Gangadhar Dhamne, (2025) 7 SCC 450** would be attracted.
 - (iii) *Thirdly*, another aspect of the matter is that in the present case, the underlying grievance/cause of action is alive for the simple reason that payments were to be made on a monthly basis, and failure to do so, would, for every such month of non-payment, give rise to a fresh cause of action.
 - (iv) *Fourthly*, delay in granting relief, insofar as it is attributable to the 'system', cannot act to the appellants' detriment. In **Union Territory of Ladakh v Jammu and Kashmir National Conference, (2024) 18 SCC 643**, it was expressed that '*... no litigant should have even an iota of doubt or an impression (rather, a misimpression) that just because of systemic delay or the matter not being taken up by the courts resulting in efflux of time the cause would be defeated, and the Court would be rendered helpless to ensure justice to the party concerned.*'
9. For reasons aforesaid, this Court cannot and would not permit respondents no.1 and 2 to deny the appellants the benefit of an Order passed in their favour, which was never challenged by the said respondents, on the mere ground of delay in invoking/taking

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recourse to the appropriate judicial machinery in seeking directions for implementation. Needless to state, it cannot be held that the Tribunal's Order dated 20.07.2012 would lose its force by efflux of time. Despite the failings in the appellants' conduct, in the ultimate eventuate, we do hereby set aside the Impugned Order.

10. Accordingly, the appeal is allowed. The concerned respondents are directed to comply with the Order dated 20.07.2012 passed by the Tribunal in O. A. No.5971/2012 and make all required payments to the appellants, within four months from today. We propose no order for payment of interest on these amounts, which should suffice as deterrence for the non-disclosures.
11. I.A. No.7174/2026, seeking exemption from filing a Certified Copy of the Impugned Order/Judgment, is allowed.

Result of the case: Appeal allowed.

[†]Headnotes prepared by: Nidhi Jain

Marietta D'Silva
v.
Rudolf Clothan Lacerda & Ors.

(Civil Appeal No. 7897 of 2026)

15 May 2026

[Manoj Misra and Manmohan,* JJ.]

Issue for Consideration

Whether the Appellant, being the co-owner of the suit building fell within the statutory definition of 'landlord' under the Bombay Rents, Hotel and Lodging House Rates Control Act, 1947; what constitutes a pleading; what is the distinction between the pleading and proof; whether the tests of pleading and proof stand satisfied in the present case.

Headnotes[†]

Bombay Rents, Hotel and Lodging House Rates Control Act, 1947 – s.5(3) – “landlord” – Small Causes Court decreed the eviction suit in favour of Appellant-Plaintiff No.1 (a co-landlord as well as co-owner of the suit building) holding that she had established her *bona fide* requirement and that alternative accommodation was available to the respondent-tenant; issue of comparative hardship was also decided in favour of the Appellant – Appeal thereagainst by tenants was dismissed by Appellate Court – High Court set aside the concurrent decrees of the Courts below and directed restoration of possession of the Suit Premises to Respondent-tenant – Interference with:

Held: Appellant conclusively proved that, at the time of filing the suit, she was a holder of the share certificates, had an interest in the land and was a co-owner of the Suit Building – s.5(3) of the Act defines landlord as ‘any person who is for the time being, receiving, or entitled to receive, rent in respect of any premises whether on his own account or on account, or on behalf, or for the benefit of any other person or....’ – Appellant, being the co-owner of the suit building was entitled to receive rent and thus fell squarely within the statutory definition of ‘landlord’ under the Act – Also, the Appellant in her cross-examination had

* Author

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deposed that the Appellant was receiving rent on behalf of her mother – Thus, at the time of filing of the suit, the Appellant was a co-landlord as well as co-owner of the suit building and even if there was deficiency in the pleadings, parties knew the case and they proceeded to trial by producing evidence – On facts, Appellant has successfully proved her *bona fide* need – Furthermore, in light of the tenants' acquisition of alternative accommodation, greater hardship would be caused to the Appellant if eviction were denied – Appellant, despite being the landlord and in *bona fide* need of accommodation for herself and her family, would otherwise be compelled to purchase or rent another premises – Impugned judgment set aside – Judgment and decree of the Small Causes Court restored. [Paras 44-46, 53, 60, 61]

Code of Civil Procedure, 1908 – Order VI Rule 1, 2 – Pleadings:

Held: 'Pleading' denotes a formal document in which a party to a legal proceeding sets forth or responds to allegations, claims, denials or defenses – Every pleading must contain and contain only a statement in a summary form of the material facts on which the party pleading relies for his claim or defence, as the case may be, but not the evidence by which they are to be proved and the statement must be as brief as the nature of the case admits – The rules governing pleadings are not rigid absolutes but guiding principles designed to ensure clarity and precision in framing the case – The object of pleadings is to assist the Court and the parties in the adjudication of disputes – The intent is to provide fair notice of the opponent's case, to ascertain with precision the points of agreement and divergence and thereby to bring the parties to definite issues – Accordingly, pleadings of the parties form the foundation of their case as they are the statement of facts in writing drawn up and filed in a Court by each party stating therein what his/her contention shall be at the trial – Consequently, the requisites of a good and sufficient pleading are that it should contain (1) a statement of facts, not law, (2) material facts only, (3) facts, not evidence and (4) facts stated in a summary form. [Paras 26, 29-31]

Code of Civil Procedure, 1908 – Order VI Rule 2 – Pleading and proof – Distinction:

Held: Pleading and proof represent distinct stages in legal proceedings – Pleading is the formal assertion of material facts with the intent to define the case, whereas proof, by contrast, is

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the evidence adduced to establish those facts as true – Every pleading must contain material facts but not the evidence by which those facts are to be proved – The material facts on which a party relies are called *Facta Probanda*, i.e. the facts to be proved and they are required to be stated in the pleadings – The evidence or facts by which *Facta Probanda* are to be proved are called *Facta Probandia* and these are not to be included in the pleadings – *Facta Probanda* are not the facts in issue rather, they are the relevant facts which, when proved at trial, establish the facts in issue – No evidence can be led on a plea not raised in the pleadings and no amount of evidence can cure a defect in pleadings, yet it is equally well settled that facts which are merely evidence of material facts should not themselves be pleaded. [Paras 32-34]

Pleading and Proof – Whether the tests of pleading and proof stand satisfied in the present case:

Held: Yes – Nature and extent of pleading required in a case depends on the essence of the claim or to put it differently the type of proceeding – In a suit for eviction under the State Rent Act, the plaintiff has to plead and prove the existence of a landlord-tenant relationship between the parties and the statutory ground for eviction under the Rent Act – In the present case, the plaint did contain the necessary and material facts essential to the Appellant's cause of action, asserting both her status as co-landlord and the statutory grounds for eviction – Further, to prove the facts pleaded, the Appellant adduced evidence by way of affidavit, placing on record the requirements of her family, her own need, the family arrangement and the share certificates – These documents and averments constituted evidence to establish the material facts pleaded and were not required to be set out in the plaint itself – In the present case, both the tests of pleading and proof stand satisfied. [Paras 35, 36, 39, 40]

Bombay Rents, Hotel and Lodging House Rates Control Act, 1947 – s.13(2) – *bona fide* need:

Held: A tenant cannot dictate to the landlord the suitability of the tenanted premises, nor insist that the landlord utilise some other property – Appellant-Plaintiff No.1's temporary co-occupation of flats No. 5 & 6 during the pendency of the eviction suit and after passing away of her father in 1994 cannot negate her *bona fide* need for the Suit Premises – The said flats were insufficient to accommodate the

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entire family of the Appellant and those of her brothers, particularly in light of the family arrangement/settlement. [Paras 52, 53]

Relief – Subsequent events, consideration of – Courts can in certain circumstances take into account subsequent events:

Held: Right to relief is normally to be judged as on the date the proceeding is instituted, yet it is equally well settled that the Court can take cautious cognisance of events and developments subsequent to the institution of the proceedings, provided the rules of fairness to both sides are scrupulously observed. [Para 47]

Transfer of Property Act, 1882 – s.8 – Share certificate is of both land and building:

Held: s.8 stipulates that upon transfer of property all the interest passes to the transferee which the transferor is then capable of passing in the property and in the legal incidents thereof, and where the property is land it would include all things attached to earth – Things attached to the earth means things embedded in earth, as in the case of walls or buildings – Consequently, unless a contrary intention appears in the instrument of transfer, an interest in land necessarily implies an interest in the building situated thereon – It was not the defendants' case that the Suit Building was constructed or owned by a third party – On the contrary, DW-1, in his examination-in-chief, unequivocally admitted that the Suit Building had been constructed by the father of the Appellant – Admittedly, the share certificates for the land stand in the names of all co-owners, including the Appellant – In her examination-in-chief, the Appellant deposed that the certificates were originally issued in the names of her parents and were subsequently transferred, on 5th July 1987, in favour of the Appellant and her siblings – This part of her deposition remained unchallenged in cross-examination – Thus, the Appellant has conclusively proved that, at the time of filing the suit, she was a holder of the share certificates, had an interest in the land and was a co-owner of the Suit Building. [Paras 42-44]

Oral family arrangement/settlement – Reliance upon, when justified:

Held: A family arrangement can be entered into even by way of an unregistered oral agreement and such family settlements are enforced by Courts as they are governed by special equity

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principles – In the present case, the Appellant is entitled to rely upon the oral family arrangement/settlement, as deposed in her affidavit of examination-in-chief even in absence of a decree of partition between herself and her siblings, as it represents a subsequent development. [Paras 49, 50]

Pleadings – Issue of deficiency in pleadings when cannot be raised for the first time in appeal – Stated. [Para 41]

Case Law Cited

B.R. Mehta v. Atma Devi [1987] 3 SCR 1184 : (1987) 4 SCC 183 – held not applicable.

Bachhaj Nahar v. Nilima Mandal [2008] 14 SCR 62 : (2008) 17 SCC 491; *Virender Nath Gautam v. Satpal Singh & Ors.* [2006] Supp. 10 SCR 413 : (2007) 3 SCC 617; *Maria Margarida Sequeira Fernandes & Ors. v. Erasmo Jack De Sequeira (Dead) Thr. Lrs.* [2012] 3 SCR 841 : (2012) 5 SCC 370; *Kanaklata Das & Ors. v. Naba Kumar Das & Ors.* [2018] 1 SCR 806 : (2018) 2 SCC 352; *Bharat Singh & Ors. v. State of Haryana & Ors.* [1988] Supp. 2 SCR 1050 : (1988) 4 SCC 534; *Ram Sarup Gupta (Dead) By Lrs. v. Bishun Narain Inter College & Ors.* [1987] 2 SCR 805 : (1987) 2 SCC 555; *Pasupuleti Venkateswarlu v. The Motor & General Traders* [1975] 3 SCR 958 : (1975) 1 SCC 770; *Vinay Raghunath Deshmukh v. Natwarlal Shamji Gada & Anr.*, 2026 INSC 416; *Kale & Ors. v. Deputy Director of Consolidation & Ors.* [1976] 3 SCR 202 : (1976) 3 SCC 119; *Hari Shankar Singhania & Ors. v. Gaur Hari Singhania & Ors.*, [2006] 3 SCR 726 : (2006) 4 SCC 658; *K.K. Modi v. K.N. Modi & Ors.* [1998] 1 SCR 601 : (1998) 3 SCC 573 – referred to.

Suresh @ Suryakant Ramchandra Chonkar v. Bhikaji Bhagwat Redkar, 2008 SCC OnLine Bom 1156 – referred to.

Books and Periodicals Cited

Black's Law Dictionary Ninth Edition; Halsbury's Laws of England, Fourth Edition Reissue Volume 36(1) 1999

List of Acts

Bombay Rents, Hotel and Lodging House Rates Control Act, 1947; Code of Civil Procedure 1908; Constitution of India; Transfer of Property Act, 1882.

Marietta D'Silva v. Rudolf Clothan Lacerda & Ors.**List of Keywords**

Section 5(3), Bombay Rents, Hotel and Lodging House Rates Control Act, 1947; "landlord"; Co-landlord; Co-owner; Co-landlord of suit building; Co-owner of suit building; *Bona fide* requirement of landlord; Alternative accommodation; Availability of alternative accommodation to tenants; Tenants acquired alternative accommodation; Greater hardship to landlord; Comparative hardship; Pleading; Distinction between pleading and proof; Tests of pleading and proof; Section 13(2), Bombay Rents, Hotel and Lodging House Rates Control Act, 1947; Section 13(1)(I), Bombay Rents, Hotel and Lodging House Rates Control Act, 1947; *Facta Probanda*; Deficiency in pleadings; Oral family arrangement/settlement; Subsequent events; Holder of share certificates.

Case Arising From

CIVIL APPELLATE JURISDICTION: Civil Appeal No. 7897 of 2026

From the Judgment and Order dated 23.06.2025 of the High Court of Judicature at Bombay in CRA No. 308 of 2019.

Appearances for Parties

Advvs. for the Appellant(s):

Siddharth Bhatnagar, Sr. Adv., Ms. Pritha Srikumar Iyer, Arun Srikumar, Nadeem Afroz, Ritwik Gupta.

Advvs. for the Respondent(s):

Upendra Mahadik, M/s Juristrust Law Offices, Prashant Shrikant Kenjale, Naveen Hegde.

Judgment / Order of the Supreme Court**Judgment**

Manmohan, J.

1. Leave granted.
2. Present appeal has been filed challenging the impugned judgment and order dated 23rd June 2025 passed by the High Court of Bombay in Civil Revision Application No. 308 of 2019 whereby the High Court allowed the revision application filed by Respondent No.1 and set aside concurrent findings in the judgment dated 14th September, 2007

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passed by Small Causes Court at Bombay in Rent and Eviction Suit No. 411/861 of 1996 as also judgment and order dated 25th July 2017 passed by the Appellate Bench of Small Causes Court at Bombay in Appeal No. 677 of 2007. By virtue of the impugned judgment and order passed by the High Court, the suit filed by the Appellant-Plaintiff No. 1 seeking eviction of Respondent No.1 was dismissed and Appellant/Plaintiff No. 1 was directed to restore possession of the premises in question to Respondent No.1.

FACTUAL BACKGROUND

3. Briefly stated, the material facts are that a 99-year lease of land was granted by the St. Anthony's Homes Cooperative Society Ltd. in favour of the parents of Appellant-Plaintiff No.1. Upon the leased land, the parents constructed the Memore Building ("Suit Building") situated at 16th Road, Chembur, Bombay – 400071 comprising six flats (flat Nos.1-6). Five share certificates dated 6th June 1959 were issued by the Cooperative Society to the parents of the Appellant.
4. A sub-tenancy agreement dated 6th June 1962 was executed for flat No.2 ("Suit Premises") by the father of the Appellant in favour of one Mr. Augustine Lacerda (father of Defendant Nos.1-3 and grandfather of Respondent No.1 herein, who is the son of deceased Defendant No.1). Upon the death of Mr. Augustine Lacerda on 7th December 1969, the subtenancy devolved upon his widow, Mrs. Virginia Lacerda.
5. Subsequently, on 5th July 1987, the five share certificates were transferred in favour of the joint names of Appellant-Plaintiff No.1 as well as her sister Respondent No.2-Plaintiff No.2 and their family members—Defendant Nos.4-8.
6. Three months after the death of Mrs. Virginia Lacerda, an eviction suit (later numbered as R.A.E. Suit No. 411/861 of 1996) was filed in July 1993 with regard to the Suit Premises by Appellant-Plaintiff No.1 and Respondent No.2-Plaintiff No.2 against the legal heirs of Mrs. Virginia Lacerda (i.e. Defendant Nos.1-3). The suit was founded on grounds under Section 13(1)(g) read with Section 13(2) [*bona fide need of the landlord, coupled with greater hardship*]; Section 13(1)(l) [*acquisition of alternative accommodation by the tenant*]; and Section 13(1)(k) [*change of user*] of Bombay Rents, Hotel and Lodging House Rates Control Act, 1947 ("the Act").

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7. According to the Appellant-Plaintiff No.1, at the time of filing of the suit, flat Nos.5-6 (which were the only flats available to the co-landlords) were occupied by the parents of the Appellant-Plaintiff No.1. Appellant's father passed away on 24th February 1994 i.e. subsequent to the institution of the suit. It is the case of the Appellant-Plaintiff No.1 that pursuant to an oral family arrangement between the Appellant and her siblings all the five children were to co-own all units as well as jointly contribute to the maintenance and up-keep of the whole building, with flat Nos. 5 & 6 earmarked for the exclusive use of the two sons only (Defendant Nos.6 and 8/Respondent No. 4 & 6 herein), while Appellant/Plaintiff No.1 was to get exclusive use of flat No.2/ Suit Premises upon eviction of the tenants.
8. During the pendency of the suit in 1996, the Appellant shifted to Mumbai and temporarily resided with her mother in flat Nos.5 and 6, having no other accommodation in the city.
9. By judgment and decree dated 14th September 2007, the Small Causes Court decreed the eviction suit in favour of Appellant-Plaintiff No.1, holding that she had established her bona fide requirement and that alternative accommodation was available to the tenants. The issue of comparative hardship was also decided in favour of the Appellant. However, the claim of Respondent No.2-Plaintiff No.2 was rejected on the ground that she was residing in Goa, which finding was not challenged by her. The plea of change of user was likewise rejected. The relevant portion of the Trial Court's judgment is extracted hereinbelow:

"14. ...However, so far as the plaintiff No.1 is concerned, the defendant Nos. 1 and 2 unable to produce any material before the court which could positively indicate the fact that the plaintiff No.1 has her own premises in Mumbai. Similarly, the evidence relating to frequent transfer of the plaintiff No.1's husband also not destroyed by the defendant Nos. 1 and 2. The fact of other brothers are residing at Canada and USA does not necessarily mean that they will not come to India whenever they intend to pay visit to India. They could have also resided in their own premises and therefore, the story put up by the plaintiff No. 1 relating to this particular fact is certainly believable. The fact of the plaintiff No.1 residence in the suit premises is not at

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all denied by the defendants and therefore, the plaintiff No.1's need is sincere and honest. In this connection, it has to be mentioned that in such a situation even the minor need of the landlord is sufficient to pass the decree when the defendants have acquired alternate suitable accommodation in Mumbai. The defendant No.1 was selling his own premises during the pendency of the suit and this fact has not at all denied by the defendants. If this being the position, it can hardly be said that the plaintiff No.1's need is not sincere and honest...

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17... it has fairly been admitted by the defendant No.2 that he is the owner of flat No. F-129 at Madhuwana Society, Andheri (East), Mumbai-400058. The said flat consists of hall, kitchen, bed room, w.c. and bath room and it admeasures 450 sq.ft. Similarly, on page No.44 of the notes of evidence this witness conceded the fact that the defendant No.3 is residing on the address of flat No.606, 6th floor, Ritik Rishi Complex, Holy Cross Road, IC Colony, Borivali. These two admissions are itself sufficient to conceive the fact that the defendant Nos.1 to 3 are not at all residing in the suit premises and as such their hardship assumes no importance. The question remains only in respect of the defendant No.2's hardship...

...According to the plaintiffs, the defendant No.2 acquired alternate accommodation on the address of D-82, Madhuwana Society, Andheri (E), Mumbai 400 058 and the plaintiffs visited the said premises. The evidence led by the plaintiff so far as this residence is concerned appears to be rather conceivable particularly in view of evidence led by the defendant No.2 in his cross examination...

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19. His (Defendant No.2) evidence further shows that his sister, defendant No.3 was occupying the said flat.....

...His evidence further shows that he has entered with an agreement with Mr. Lancelot C. D'Souza with regard to flat No. D-82 in Madhuwana Society. He signed the said

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agreement dated 29.11.2002 (Ex.D) in the office of the society and the said agreement has been admitted by defendant No.2...

...This particular transfer made in favour of Mr. Lancelot during the pendency of this suit itself sufficient to conceive the fact that the said transfer in respect of flat No. D-82 was made by the defendant No.2 only with a view to defeat the present suit and nothing else. As a matter of fact, instead of searching other accommodation, the defendant No.2 sold the said premises. Even apart from this fact, the consideration of Rs. 12 lakhs could have been used or utilised for the purpose of purchasing other accommodation, but the same was not done. Therefore, the fact remains that the defendant No.2 received Rs.12 lakhs out of said transaction.

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23. ...As a matter of fact, once the bona-fide need is proved, the question of relative hardship become rather academic...

... But so far as the plaintiff No. 1 is concerned, it has been held that the defendants unable to produce any material before the court which could positively show that the plaintiff No.1 has her own premises in Mumbai..... Therefore, in my view, relative hardship certainly tilts towards the plaintiff No.1 and not in favour of the defendants.

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25. In view of above reasoning. I hold that, the plaintiff-No.1 succeeded in proving that she requires the suit premises for her own use and occupation and greater hardship would be caused to her in the event of decree being refused. I therefore answer these issues accordingly.

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28... Therefore, it is amply established before this court that the defendant Nos. 1 to 3 have acquired alternate suitable accommodation and they are not at all in need of the suit premises.

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10. The tenants aggrieved by the judgment and decree passed by the Small Causes Court preferred an appeal bearing no. 677/2017 before the Appellate Bench of the Small Causes Court in October 2007. The said appeal was dismissed vide judgment dated 25th July 2017.
11. Thereafter, Respondent No.1 instituted Civil Revision Application (ST) No. 28304 of 2017 before the High Court of Bombay on 3rd October 2017, assailing the judgment dated 25th July 2017 of the Appellate Bench. By the impugned judgment dated 23rd June 2025, the High Court set aside the concurrent decrees of the Courts below and directed restoration of possession of the Suit Premises to Respondent No.1—tenant.
12. Aggrieved thereby, Appellant-Plaintiff No.1 has approached this Court by way of the present appeal.

SUBMISSIONS ON BEHALF OF THE APPELLANT

13. Mr. Siddharth Bhatnagar, learned senior counsel appearing for Appellant–Plaintiff No.1, submitted that the Appellant was a co-landlord of the Suit Premises at the time of institution of the eviction suit, her name being jointly reflected in the five share certificates of the Suit Building. He invited the attention of this Court to the plaint, wherein the Appellant had specifically averred as follows:-
 - “1. *The Plaintiffs, along with Defendants Nos.4 to 8 are the landlords of the building known as Memorare, situated at 16th Road, Chembur, Bombay 400071.*
 2. *Mr. A. Cyprian O Lacerda was the tenant of Flat No.2 on the Ground Floor of the aforesaid property of the Plaintiffs.....*
 4. *The Plaintiffs seek to recover, from Defendant Nos.1-3, peaceful and vacant possession of the suit premises on the following grounds:*
 - a. *The suit premises are reasonably and Bonafide required by the Plaintiffs for their own use and occupation.....”*
14. It was urged that the Appellant was able to record her evidence only in 2004, by which time her father had passed away in 1994. In the intervening period, she had joined her mother in flat Nos.5 and 6,

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owing to want of alternative accommodation in Mumbai and the necessity of educating her children in the city, despite the protracted progress of the eviction suit. In her affidavit of evidence, she explained that flat Nos.5 and 6 had since been allotted to her brothers, who, though residing abroad, were expected to return to India and occupy those flats. Thus, while the death of her father created temporary space for her to reside with her mother, it did not defeat the bona fide requirement pleaded in the plaint.

15. Learned senior counsel further contended that the Appellant had, in her examination-in-chief, established both her status as co-landlord and her entitlement to eviction under Section 13(1)(g) read with Section 13(2) and Section 13(1)(l) of the Act. The relevant portion of her affidavit of examination-in-chief is reproduced hereinbelow:-

“3. We, Plaintiffs Nos. 1 and 2 and Defendants Nos. 4 to 8 are the landlords of the suit building known as Memorare which is situated on 16th Road, Chembur, Mumbai 400071. I have the share certificate issued by St. Anthony's Homes Co-operative Society Ltd., which is a co-operative society duly registered under the Co-operative Societies Act (II of 1912). There are 5 share certificates bearing Nos. 526 to 530 issued by St. Anthony's Homes Co-operative Society Ltd. These share certificates pertain to the suit property. These share certificates, which stood in the names of my parents, Leo Clement Pinto and Muriel Marie Teresa Pinto, stand in the names of Leo Clement Pinto, Muriel M.T. Pinto, Gerard F. Pinto, Marietta M. D'Silva, Melanie M. Pinto, Gregory J. Pinto and Melinda M. Pinto since 5th July 1987. I tender the said five share certificates; the same are true and correct. The same have been issued by the society as per the rules and regulations of the Co-operative Societies Act. The same are duly signed by the members of the Managing Committee and the Honorary Secretary. The same may be marked as Exhibit A colly; and the true xerox copies thereof be marked as Exhibit A-1. The original share certificates may be ordered to be returned to me on the usual undertaking.

4. The suit premises is Flat No.2, situated on the ground floor of the suit building. Shri Cypriano Lacerda was the

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tenant in respect of the suit premises. He expired on or about 17th December 1969 leaving behind his widow, Virginia, and children, as his heirs and legal representatives.

5. The tenancy of the suit premises was then transferred from the name of Cypriano Lacerda to the name of his widow, Virginia, on the joint request of Mrs. Virgini Lacerda and other heirs and legal representatives of Mr. Cypriano Lacerda.

6. Mrs. Virginia Lacerda expired in Bombay on or about 18th March 1993, leaving behind Defendants Nos. 1, 2 and 3 her heirs and legal representatives, were residing with her in the suit premises as members of her family.

7. I say that possession of the suit premises is sought to be recovered from the Defendants as the same are reasonably and bonafide required for the use and Occupation of Plaintiffs Nos.1 and 2 and their respective families.

8. I say that my family consists of myself, my husband and two sons, viz., Christopher and Craig, aged 20 and 17 years respectively. Both my sons are studying. The flat on the second floor where I am residing is of my brother, Gerard, and he has permitted me to occupy the same temporarily. I say that the two flats on the second floor of the suit building are of my two brothers. Flat No.5 is of Gerard and Flat No.6 is of Gregory. Both Gerard and Gregory are at present out of Mumbai. Gerard is at Canada and is likely to come back to Mumbai, and as such I and my family would compelled to remove ourselves from the said premises.

9. I say that after my marriage in the year 1983, my husband and I went to reside at Ambala. I say that I could not reside on the second floor with my parents as there was disagreement with my parents and as such my husband and I could not reside with them. I say that from the year 1983 till March 2001 my husband, who was in the Indian Air Force was posted in various places, viz., Hyderabad, Udhampur near Jammu, and also at Gandhinagar near Ahmedabad when he took premature retirement in March

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2001. I further say that on the return of my two brothers, or either of them, to the suit building, the accommodation of Flat 5 and 6 would also be insufficient for the families to reside thereat.....

14. I require the suit premises for my own use and occupation and that of my family. The premises where I am residing is of my mother and my two brothers, Gerard and Gregory. Gerard, who is at present at Canada, is likely to come back to Mumbai from Canada and as such I am my family would be compelled to remove ourselves from the premises. Even otherwise, I and my family are unable to reside on the second floor due to quarrels between my brother, Gerard, on the one hand and my husband on the other. My brother, Gerard, has also been insisting that I should not stay in the premises. I accordingly require the suit premises for my own use and occupation and that of my family.

15. I further say that the Defendants are also liable to be evicted from the suit premises as the Defendants have suitable other residences. Defendants Nos.1, 2 and 3 have each built, acquired or have been allotted a suitable residence. The First Defendant has acquired a suitable residence, viz., a Flat bearing No.F-129 in the building known as Madhuwana situated next to Indian Oil Nagar, Andheri-Versova Road, Andheri (West), Mumbai 400 058. The Second Defendant has also acquired a suitable residence/premises, viz., Flat No.D-82 in the said Madhuwana building. Defendant No.3 has also acquired a flat in the said Madhuwana building. All these flats acquired by these Defendants are suitable residential premises. I tender photographs together with the negatives thereof, showing that the Defendants have acquired premises at Madhuwana building. The photographs are true and correct and I request that the same be marked as Exhibits.

16. I also state that the Defendants have changed the user of the suit premises to one of business. The Defendants are running tuition classes in the suit premises.

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17. I say that no hardship would be caused to the Defendants for, as set out hereinabove, each of the Defendants have acquired suitable other residential residences/premises. I say that I and my family would continue to suffer great hardship and inconvenience if a decree is refused to be passed against the Defendants. I also say and submit that Plaintiff No.2 and her family would suffer great hardship and inconvenience for she has no accommodation in Mumbai for her residence.

18. I therefore pray that a decree in eviction be passed against the Defendants.”

16. Learned senior counsel submitted that the High Court erred in interfering with concurrent findings on the wholly misconceived assumption that the Appellant’s case was premised upon a ‘family partition’ whereby flat Nos.5 and 6 were allotted to her brothers and flat No.2 to her share. He argued that no such case was ever set up. The Appellant had merely alluded in her evidence to an amicable living arrangement among the co-landlords following the demise of their parents. Such an arrangement did not amount to a partition, nor was any such plea advanced.
17. He emphasised that under the family arrangement, flat Nos.5 and 6 were understood to be earmarked for the exclusive use of the Appellant’s two brothers, while the Suit Premises was understood to be available for the Appellant’s exclusive use upon conclusion of the eviction proceedings. Nevertheless, all six flats continued to be jointly owned by the Appellant and her siblings. No division or partition had taken place and no exclusive title vested in any individual sibling.
18. It was further submitted that the said arrangement could not have been pleaded in 1993, when the suit was instituted, as it had not then come into existence. In any event, the arrangement was an internal understanding among the co-landlords and did not concern Respondent No.1 or the other tenants. The eviction decreed by the Courts below could not, therefore, have been set aside by the High Court on that basis.

SUBMISSIONS ON BEHALF OF THE RESPONDENTS

19. *Per contra*, Mr. Prashant Shrikant Kenjale, learned counsel for the Respondents, contended that there was a fundamental jurisdictional

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defect in the Appellant's case. He submitted that the plaintiff did not contain any clear or specific pleading establishing how the Appellant had acquired the status of landlord of the Suit Premises at the time of filing the suit. He pointed out that the written statement categorically denied the relationship of landlord and tenant and raised a jurisdictional objection under Section 28 of the Act. Despite this, the Appellant sought to build her case through her affidavit of evidence by introducing an alleged family arrangement, reliance on share certificates and other material not pleaded in the plaintiff. Such a course, he argued, was impermissible in law.

20. Learned counsel submitted that the Appellant's locus as landlord was a threshold issue. Once the defendants specifically denied the relationship and title, the burden lay upon the Appellant to plead and prove clearly and specifically, her entitlement to sue as landlord and to receive rent. The plaintiff, however, contained only a general assertion of landlordship, without pleading any family arrangement, division of the building or transfer of the right to receive rent in her favour. The suit, therefore, rested upon an unpleaded and unproved assumption of landlordship.
21. Learned counsel submitted that the legal position is well settled that evidence cannot be looked into unless it is supported by corresponding pleadings. A party cannot be permitted to travel beyond the case pleaded in the plaintiff, nor can relief be granted on the basis of a narrative introduced for the first time in evidence. Reliance was placed on ***Bachhaj Nahar vs. Nilima Mandal, (2008) 17 SCC 491***, wherein this Court held that a case not pleaded cannot be made out by evidence or submissions and relief cannot be granted on an unpleaded foundation. Accordingly, it was contended that the Appellant's reliance on family arrangement, sharebased allocation and derived landlordship was impermissible, as none of these were pleaded.
22. He further submitted that the Appellant's own cross-examination undermined the oral theory of family arrangement as it was admitted by the Appellant that *'the share certificates disclose names of the co-owners and not the flat owners.'* Thus, the share certificates pertained to the land and not to individual flats in the building and could not establish exclusive landlordship of the Suit Premises.
23. Learned counsel argued that the Appellant's reliance on subsequent developments was equally untenable. Even if the father's death in

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1994 created certain factual changes, such subsequent events could not retrospectively confer landlordship in a suit filed in 1993 unless the pleadings were amended and the change in status properly brought on record. A later event cannot be used to manufacture original locus as the suit must stand or fall on the pleadings and rights asserted at the time of institution.

24. On the test of bona fide requirement, it was submitted that mere preference of the landlord is insufficient. The need must be pleaded and proved as real as well as existing necessity and a manufactured or subsequently improved case does not satisfy the statutory standard. In the present case, the Appellant's own admissions revealed that she was already in occupation of the second floor, comprising two flats and that no decree of partition existed among the family members. In such circumstances, the finding of the Trial Court and Appellate Court that she alone required the Suit Premises was not based on proper pleadings and proof, but on an unpleaded narrative. It was further contended that each statutory ingredient under Section 13(1)(l) of the Act had not been clearly pleaded and proved. Lastly, reliance was placed on ***B.R. Mehta vs. Atma Devi, (1987) 4 SCC 183***, wherein this Court emphasised that alternate accommodation under the Rent Act is effective only if the tenant himself has acquired or been allotted suitable premises. Allotment to a spouse or family member is insufficient unless the tenant has a legal right thereto.

ISSUES

25. Having heard learned counsel for the parties, this Court is of the view that apart from questions of facts, substantial questions of law arise for consideration in the present appeal namely what constitutes a pleading, what is the distinction between the pleading and proof and as to whether the tests of pleading and proof stand satisfied in the present case?

REASONING

WHAT CONSTITUTES A PLEADING?

26. '*Pleading*' denotes a formal document in which a party to a legal proceeding sets forth or responds to allegations, claims, denials or

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defenses¹. Every pleading must contain and contain only a statement in a summary form of the material facts on which the party pleading relies for his claim or defence, as the case may be, but not the evidence by which they are to be proved and the statement must be as brief as the nature of the case admits². The rules governing pleadings are not rigid absolutes but guiding principles designed to ensure clarity and precision in framing the case.

27. Order VI Rule 1 of the Code of Civil Procedure states that pleading means '*Plaint or Written Statement*'. A plaint is the statement of claim in which the plaintiff sets out his cause of action with all requisite particulars. A written statement, on the other hand, is the defendant's response, wherein he deals with each material fact alleged by the plaintiff and sets out any new facts in his favour, together with such objections as he wishes to raise to the claim.
28. Order VI Rule 2(1) of the Code of Civil Procedure stipulates that:
 - (i) Pleadings must state facts and not law;
 - (ii) They must state all material facts and material facts alone i.e. facts essential to the plaintiff's cause of action or to the defendant's defence;
 - (iii) They must state only the facts relied upon not the evidence by which they are to be proved; and
 - (iv) They must state such facts concisely with precision and certainty so as to maintain brevity and clarity.
29. The object of pleadings is to assist the Court and the parties in the adjudication of disputes. The intent is to provide fair notice of the opponent's case, to ascertain with precision the points of agreement and divergence and thereby to bring the parties to definite issues.
30. Accordingly, pleadings of the parties form the foundation of their case as they are the statement of facts in writing drawn up and filed in a Court by each party stating therein what his/her contention shall be at the trial.

1 Black's Law Dictionary Ninth Edition

2 Halsbury's Laws of England, Fourth Edition Reissue Volume 36(1) 1999

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31. Consequently, the requisites of a good and sufficient pleading are that it should contain (1) a statement of facts, not law, (2) material facts only, (3) facts, not evidence and (4) facts stated in a summary form.

DISTINCTION BETWEEN PLEADING AND PROOF

32. Another fundamental rule of pleading as laid down by Order VI Rule 2 of the Code of Civil Procedure is that every pleading must contain material facts but not the evidence by which those facts are to be proved. The material facts on which a party relies are called *Facta Prabanda*, i.e. the facts to be proved and they are required to be stated in the pleadings. The evidence or facts by which *Facta Probanda* are to be proved are called *Facta Probandia* and these are not to be included in the pleadings. *Facta Probanda* are not the facts in issue rather, they are the relevant facts which, when proved at trial, establish the facts in issue. In ***Virender Nath Gautam vs. Satpal Singh & Ors.*, (2007) 3 SCC 617**, this Court has held as under:-

“50. There is distinction between facta probanda (the facts required to be proved i.e. material facts) and facta probantia (the facts by means of which they are proved i.e. particulars or evidence). It is settled law that pleadings must contain only facta probanda and not facta probantia. The material facts on which the party relies for his claim are called facta probanda and they must be stated in the pleadings. But the facts or facts by means of which facta probanda (material facts) are proved and which are in the nature of facta probantia (particulars or evidence) need not be set out in the pleadings. They are not facts in issue, but only relevant facts required to be proved at the trial in order to establish the fact in issue.

33. Though it is settled law that no evidence can be led on a plea not raised in the pleadings and no amount of evidence can cure a defect in pleadings, yet it is equally well settled that facts which are merely evidence of material facts should not themselves be pleaded.
34. Pleading and proof thus represent distinct stages in legal proceedings. Pleading is the formal assertion of material facts with the intent to define the case, whereas proof, by contrast, is the evidence adduced to establish those facts as true.

Marietta D'Silva v. Rudolf Clothan Lacerda & Ors.**BOTH PLEADING AND PROOF ARE SUFFICIENT IN THE PRESENT SUIT FOR EVICTION**

35. This Court reiterates that the nature and extent of pleading required in a case depends on the essence of the claim or to put it differently the type of proceeding. For instance, there is a distinction between a pleading in a suit for possession and eviction³ as well as in a proceeding filed under the Code of Civil Procedure and a writ petition under Article 226 of the Constitution⁴. Similarly, where allegations of misrepresentation, fraud, breach of trust, wilful default, or undue influence are made, full particulars must necessarily be set out in the pleadings⁵.
36. It is settled law that in a suit for eviction under the State Rent Act, the plaintiff has to plead and prove the existence of a landlord-tenant relationship between the parties and the statutory ground for eviction under the Rent Act⁶.
37. In the plaint numbered as Rent and Eviction Suit No. 411/861 of 1996, Appellant-Plaintiff No.1 has averred that she is a co-landlord along with her parents and siblings. Further, the Appellant-Plaintiff No.1 in the plaint sought for recovery of possession of the Suit Premises from Defendant Nos.1-3 on the grounds mentioned in the Act, namely, bona fide need, relative hardship and the availability of alternative accommodation to the tenants.
38. Upon completion of pleadings, Appellant-Plaintiff No.1 filed her affidavit of examination-in-chief, wherein she deposed in detail as

3 See: *Maria Margarida Sequeira Fernandes & Ors. v. Erasmo Jack De Sequeira (Dead) Thr. LRs.*, (2012) 5 SCC 370 and *Kanaklata Das & Ors. v. Naba Kumar Das & Ors.*, (2018) 2 SCC 352

4 In *Bharat Singh & Ors v. State of Haryana & Ors.* (1988) 4 SCC 534, it has been held, ".....there is a distinction between a pleading under the Code of Civil Procedure and a writ petition or a counter-affidavit. While in a pleading i.e. a plaint or a written statement, the facts and not evidence are required to be pleaded, in a writ petition or in the counter-affidavit, not only the facts but also the evidence in proof of such facts have to be pleaded and annexed to it."

5 Order VI Rule 4, Code of Civil Procedure, 1908.

6 In *Kanaklata Das & Ors. v. Naba Kumar Das & Ors.*, (2018) 2 SCC 352, it has been held, "There are some well-settled principles of law on the question involved in this appeal, which need to be taken into consideration while deciding the question which arose in this appeal. These principles are mentioned infra:....."

11.2. Second, the landlord (plaintiff) in such suit is required to plead and prove only two things to enable him to claim a decree for eviction against his tenant from the tenanted suit premises. First, there exists a relationship of the landlord and tenant between the plaintiff and the defendant and second, the ground(s) on which the plaintiff landlord has sought defendant tenant's eviction under the Rent Act exists. When these two things are proved, the eviction suit succeeds."

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to her status as co-landlord and her entitlement to eviction under Section 13(1)(l) and Section 13(1)(g) read with Section 13(2) of the Act.

39. Accordingly, this Court is of the view that the plaint did contain the necessary and material facts essential to the Appellant's cause of action, asserting both her status as co-landlord and the statutory grounds for eviction.
40. Further, to prove the facts pleaded, the Appellant adduced evidence by way of affidavit, placing on record the requirements of her family, her own need, the family arrangement and the share certificates. These documents and averments constituted evidence to establish the material facts pleaded and were not required to be set out in the plaint itself. Consequently, this Court finds that in the present case both the tests of pleading and proof stand satisfied.

WHEN ISSUE OF DEFICIENCY IN PLEADINGS CANNOT BE RAISED IN APPEAL

41. Moreover, this Court in a catena of judgments has held that in certain eventualities issue of deficiency in pleadings cannot be raised for the first time in appeal. In **Ram Sarup Gupta (Dead) By LRs. vs. Bishun Narain Inter College & Ors. (1987) 2 SCC 555**, it has been held, '*whenever the question about lack of pleading is raised the enquiry should not be so much about the form of the pleadings; instead, the Court must find out whether in substance the parties knew the case and the issues upon which they went to trial. Once it is found that in spite of deficiency in the pleadings parties knew the case and they proceeded to trial on those issues by producing evidence, in that event it would not be open to a party to raise the question of absence of pleadings in appeal.*' In a similar vein, this Court in **Bachhaj Nahar vs. Nilima Mandal & Anr., (2008) 17 SCC 491** has reiterated the said principle in the following terms:-

"17. It is thus clear that a case not specifically pleaded can be considered by the court only where the pleadings in substance, though not in specific terms, contain the necessary averments to make out a particular case and the issues framed also generally cover the question involved and the parties proceed on the basis that such case

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was at issue and had led evidence thereon. As the very requirements indicate, this should be only in exceptional cases where the court is fully satisfied that the pleadings and issues generally cover the case subsequently put forward and that the parties being conscious of the issue, had led evidence on such issue. But where the court is not satisfied that such case was at issue, the question of resorting to the exception to the general rule does not arise.....”

SHARE CERTIFICATE IS OF BOTH LAND AND BUILDING

42. Section 8 of the Transfer of Property Act, 1882 stipulates that upon transfer of property all the interest passes to the transferee which the transferor is then capable of passing in the property and in the legal incidents thereof, and where the property is land it would include all things attached to earth.⁷ Things attached to the earth means things embedded in earth, as in the case of walls or buildings.⁸ Consequently, unless a contrary intention appears in the instrument of transfer, an interest in land necessarily implies an interest in the building situated thereon. It was not the defendants' case that the Suit Building was constructed or owned by a third party. On the contrary, DW1, in his examination-in-chief, unequivocally admitted that the Suit Building had been constructed by the father of the Appellant.
43. It is admitted that the share certificates for the land stand in the names of all co-owners, including the Appellant. In her examination-in-chief, the Appellant deposed that the certificates were originally issued in the names of her parents and were subsequently transferred, on 5th July 1987, in favour of the Appellant and her siblings. This part of her deposition remained unchallenged in cross-examination.
44. Consequently, this Court holds that the Appellant has conclusively proved that, at the time of filing the suit, she was a holder of the share certificates, had an interest in the land and was a co-owner of the Suit Building.

⁷ Section 8, Transfer of Property Act, 1882.

⁸ Section 3, Transfer of Property Act, 1882.

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APPELLANT WAS A CO-LANDLORD ON THE DATE OF FILING OF SUIT

45. Section 5(3) of the Act defines landlord as '*any person who is for the time being, receiving, or entitled to receive, rent in respect of any premises whether on his own account or on account, or on behalf, or for the benefit of any other person or....*'
46. In light of this definition, this Court is of the view that the Appellant, being the co-owner of the suit building was entitled to receive rent and thus fell squarely within the statutory definition of 'landlord' under the Act. Also, the Appellant in her cross-examination had deposed that the Appellant is receiving rent on behalf of her mother. Consequently, this Court is of the view that at the time of filing of the suit, the Appellant was a co-landlord as well as co-owner of the suit building and even if there was deficiency in the pleadings, parties knew the case and they proceeded to trial by producing evidence.

COURTS CAN IN CERTAIN CIRCUMSTANCES TAKE INTO ACCOUNT SUBSEQUENT EVENTS

47. Though, the right to relief is normally to be judged as on the date the proceeding is instituted, yet it is equally well settled that the Court can take cautious cognisance of events and developments subsequent to the institution of the proceedings, provided the rules of fairness to both sides are scrupulously observed. Justice Krishna Iyer in his inimitable style in ***Pasupuleti Venkateswarlu Vs. The Motor & General Traders, (1975) 1 SCC 770*** has observed as under:-

.....We affirm the proposition that for making the right or remedy claimed by the party just and meaningful as also legally and factually in accord with the current realities, the Court can, and in many cases must, take cautious cognisance of events and developments subsequent to the institution of the proceeding provided the rules of fairness to both sides are scrupulously obeyed....."

48. Recently a coordinate Bench of this Court in ***Vinay Raghunath Deshmukh vs. Natwarlal Shamji Gada & Anr., 2026 INSC 416*** has reiterated the aforesaid principle.

Marietta D'Silva v. Rudolf Clothan Lacerda & Ors.**ORAL FAMILY ARRANGEMENT/SETTLEMENT CAN BE RELIED UPON**

49. It is further settled law that a family arrangement can be entered into even by way of an unregistered oral agreement⁹ and such family settlements are enforced by Courts as they are governed by special equity principles. This Court in ***Hari Shankar Singhania & Ors. vs. Gaur Hari Singhania & Ors., (2006) 4 SCC 658***, following the judgment in ***K.K. Modi vs. K.N. Modi & Ors.***¹⁰ has held, ‘.... in our opinion, technical considerations should give way to peace and harmony in the enforcement of family arrangements or settlements.’
50. Consequently, the Appellant is entitled to rely upon the oral family arrangement/settlement, as deposed in her affidavit of examination-in-chief even in absence of a decree of partition between herself and her siblings, as it represents a subsequent development.

APPELLANT HAS SUCCESSFULLY PROVED HER BONA FIDE NEED

51. With respect to the Appellant-Plaintiff No.1's bona fide need, Appellant has pleaded and deposed in her examination-in-chief that her parents were occupying flat Nos.5 & 6 available to the family and that her husband did not get along with her parents and that the Appellant/Plaintiff No.1 has no other premise for her use at Mumbai and that her family includes two children whose education was adversely affected by her husband's frequent transfers. Further, the only flats available with the landlord family at the time of filing the suit i.e. flat Nos. 5 and 6 were insufficient to accommodate the Appellant, her husband and two children, her aged parents (both alive at the time of suit), as well as her two brothers with their respective families.
52. It is settled law that a tenant cannot dictate to the landlord the suitability of the tenanted premises, nor insist that the landlord utilise some other property.
53. Additionally, this Court is of the opinion that Appellant-Plaintiff No.1's temporary co-occupation of flats No. 5 & 6 during the pendency of the eviction suit and after passing away of her father in 1994 cannot negate her bona fide need for the Suit Premises. The said flats were

9 *Kale & Ors. vs. Deputy Director of Consolidation & Ors.*, (1976) 3 SCC 119

10 (1998) 3 SCC 573

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insufficient to accommodate the entire family of the Appellant and those of her brothers, particularly in light of the family arrangement/settlement.

COMPARATIVE HARDSHIP

54. It is pertinent to note that the Suit Premises is situated in a building co-owned by the Appellant's family, comprising six flats. At the time of filing the suit, only flat Nos.5 and 6 were available to the landlord family, which then consisted of the Appellant, her four adult siblings, their two aged parents and the spouses and children of each sibling. The remaining four flats, including the Suit Premises, were occupied by tenants.
55. The availability of alternative accommodation could not have been assessed with reference to Mrs. Virginia Lacerda, who had passed away three months prior to the institution of the suit. Her three adult children, Defendant Nos.1 to 3, had succeeded to the tenancy. For the purposes of Section 13(1)(l) of the Act, it was sufficient for the Appellant to establish that these tenants had alternative accommodation available to them (**Suresh @ Suryakant Ramchandra Chonkar v. Bhikaji Bhagwat Redkar, 2008 SCC OnLine Bom 1156**).
56. On the date of filing the suit, alternative accommodations were indeed available to each of the original defendants. Defendant No.1 owned flat No. F129 in Madhuvana Society. Defendant No.2 owned flat No. D82 in the same society since 1976, which was initially occupied by Defendant No.3. In 2002, during the pendency of the suit, Defendant No.2 sold the said flat for Rs.12 lakhs and the proceeds were utilised to purchase another flat in Borivali, Mumbai, which was occupied by Defendant No.3. The contention that alternate accommodation under the Rent Act is effective only if the tenant himself has acquired or been allotted suitable premises is contrary to the facts of the present case. The evidence demonstrates that Defendant No.3 was and continues to be in occupation of one of the flats owned by the defendants. No evidence was led to show that Defendant Nos.1 and 2 could not reside with Defendant No.3. Accordingly, the judgment in **B.R. Mehta** (supra) does not assist the respondents.
57. Additionally, the conduct of Defendant No.2 in selling his alternative accommodation during the pendency of the suit indicates that the sale was effected only to avoid a decree of eviction. Even considering

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subsequent events, the Appellant's hardship is demonstrably greater than that of the respondents. The Appellant continues to have no accommodation in Mumbai, while her brothers (Respondent Nos.4 and 6 herein) have taken exclusive control of flat Nos.5 and 6, rendering them unavailable for her use.

58. Furthermore, the original contesting tenants, Defendant Nos.1 and 2, are no longer alive. Defendant No.2 remained unmarried and left no heirs. Defendant No.3 continues to occupy a separate flat. Respondent No.1, son of Defendant No.1, resides and works in Pune, where he owns property, while his wife resides in Norway. He has no genuine need for a flat in Chembur, Mumbai.
59. In these circumstances, Respondent No.1's assertion that he might apply for a better job in Mumbai if affordable accommodation were available cannot be accepted. He holds stable employment with L&T Infotech in Pune and owns property there, evidencing his longterm intention to remain in Pune.
60. Consequently, this Court holds that, in light of the tenants' acquisition of alternative accommodation, greater hardship would be caused to the Appellant if eviction were denied. The Appellant, despite being the landlord and in bona fide need of accommodation for herself and her family, would otherwise be compelled to purchase or rent another premises.

CONCLUSION

61. Keeping in view the aforesaid, the present appeal is allowed and the impugned judgment and order dated 23rd June 2025 passed by the High Court of Bombay in Civil Revision Application No. 308 of 2019 is set aside and the judgment and decree dated 14th September 2007 passed by Small Causes Court at Bombay in Rent and Eviction Suit No. 411/861 of 1996 is restored.

Pending applications, if any, shall stand disposed of.

Result of the case: Appeal allowed.

New India Assurance Company Limited

v.

Dolly Satish Gandhi & Anr.

(Civil Appeal No. 7938 of 2026)

15 May 2026

[Sanjay Karol* and Vipul M. Pancholi, JJ.]

Issue for Consideration

Whether the amount of money received as Mediciam, in terms of a medicam policy, is deductible from an award passed by a Claims Tribunal or not.

Headnotes[†]

Motor Vehicles Act 1988 – ss.166, 168 – Amount received as medicam/medical insurance not deductible from compensation awarded by Motor Accidents Claims Tribunal (MACT) – High Court by way of the impugned judgment held that the amount received by a claimant by way of his medicam, is not deductible when such a claimant is before the MACT seeking compensation for injuries suffered as a result of an accident – Challenge to, by the appellant-insurer:

Held: Amount received as part of Mediciam/medical insurance is not deductible from compensation as calculated by the concerned Tribunal, adjudicating a claim for compensation under the MVA which may also include compensation under the head of medical expenses, if claimed – These two stand on a different footing – One is statutory while the other is contractual and the latter is only a sequitur of premiums having been paid in the past while the other is an entitlement as a consequence of an accident or death in a motor vehicle accident – A Mediciam policy is a policy purchased by a person, accounting for the uncertainties of life and preparing a financial base for an unfortunate possible eventuality – It doesn't specifically deal with accidental coverage only – Therefore, the contractual benefit of reimbursement of medical expenses as a result of this policy is, independent of any other claim – The provisions of the MVA are only triggered in the unfortunate eventuality if a death or injury arising out of a motor vehicle accident occurs – That in itself, when it does arise,

* Author

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cannot eclipse the contractual benefit to which a person who has paid premiums, is entitled too – Compensation under MVA while it recognizes reimbursement of medical expenses is distinct from the contractual benefit, though it may be with respect to the very same heads – Only because they appear same or similar, they cannot be termed as “double benefit” – Amount received under MVA arises from a beneficial legislation and as guided by just compensation which is intended to put the injured or the claimants (legal representatives of the deceased) in a position, as far as possible, at least monetarily, if the accident in question had not taken place – Naturally, this stands on a higher pedestal not only because it is a statutory entitlement of compensation but also because the nature of the statute is entirely beneficial – Matter remanded to High Court for making a determination consistent with the present opinion. [Paras 9-11, 15, 16]

Ethics – Legal Ethics – Duty of Advocates/Counsels towards Court – To bring to the Court’s notice judgments both that aid their case and also those that do not – Whether the amount received by a claimant by way of his Mediclaim, is deductible when such a claimant is before the MACT seeking compensation for injuries suffered as a result of an accident – Contrary positions of law taken by same High Court, whether it be by the benches of the same strength or by the benches of lesser strength in ignorance of pronouncements made by the benches of higher strength:

Held: When such inconsistencies are left unaddressed, it leads to various problems, primary among them being judicial inconsistency and uncertainty – Counsel appearing in Court to plead the case of a particular party making all effort possible, while balancing ethics and their duty towards the Court, to secure a victory for their clients – It is this duty towards the Court which requires them to bring to the Court’s notice judgments both that aid their case and also those that do not – It is here that the counsel’s awareness of law and grasp on facts are their greatest assets, enabling them to distinguish judgments that may seemingly be against them and still secure a favourable order – This duty is all the more important in the present day because all the Courts are polyvocal – Tens of orders and judgments are pronounced every day across a range of issues and so, the Court before which they are appearing may not be aware of the latest pronouncement – They must disclose

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the same to the Court ensuring consistency – That being so, the entire burden cannot be placed only on counsel – The Court itself has an independent tri-fold duty, to apply correct law even if the counsel does not cite the same, ensure consistency with precedent, and avoid per incuriam decisions – While this duty is one part of reality, a Court hearing nearly hundred matters a day and in some cases across a variety of laws and jurisdictions, having to dictate daily orders, write judgments and so much more, is the other part – So, in essence, both the Bar and the Bench are responsible for minimising the problems that arise in the face of inconsistent judicial opinion – They are both constituents of the justice delivery system, and all actions must be guided by a sense of service to the system, further facilitating reduction of pendency – Justice Delivery System – Role of the Bar and the Bench. [Paras 13, 14]

Motor Accident Claims – Grant of both MACT Compensation and Mediclaim – Distinction between statutory and contractual entitlements – Principle of “double benefit” – Inapplicability:

Held: 1.1 The principle governing “double benefit” in motor accident claims is that there should be no duplication for the same head of loss in respect of the victim/claimant in a claim petition arising out of a motor vehicle accident – A claimant cannot recover compensation twice for the same injury or loss, as that would amount to unjust enrichment – Compensation must be “just compensation” which is meant to fairly make good the loss suffered, not to create a windfall – Therefore, where two payments in relation to the very same claim petition compensate for the same loss, one of them must ordinarily be adjusted or deducted. [Para 7.1]

1.2 What is to be examined is the source and nature of the benefit – The primary consideration in such an analysis is whether the additional benefit is a substitute for the same loss, in which case it is liable to be deducted, or whether it is independent, or an entitlement, in which case it is not – For instance, where the family of a deceased person receives statutory compensation or *ex gratia* payment from the State on account of death, such amount may be deducted from the compensation awarded under MACT as both payments are addressing the same loss – Similarly, where one aspect of compensation directly replaces the same income stream lost due to the accident, and is triggered by that very event, permitting full recovery under both heads would amount to double

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compensation – However, the position is different where the benefit is independent in nature. [Paras 7.2, 7.2.1]

1.3 The contractual benefit of reimbursement of medical expenses as a result of this policy is, therefore, independent of any other claim – The provisions of the MVA are only triggered in the unfortunate eventuality if a death or injury arising out of a motor vehicle accident occurs – If the view of the High Courts that this would amount to “double benefit” is agreed to, a peculiar situation will arise – On the one end, it may save compensation from being affected by double benefit, but on the other, it would denude the claimant of the benefits that arise out of them parting with their hard-earned money in the form of Mediclaim premiums – It would also amount to an undue advantage to the company granting the Mediclaim policy to the claimant if the claimant’s claim is extinguished by the award of the MACT having granted medical expenses for, they would have received the premium but would not be required to pay any amount in the event of medical bills having arisen – Similarly, it may amount to an unjust benefit to the insurer of the offending vehicle if they are not required to compensate under one of the heads of medical expenses solely on account of the fact that the claimant had received the benefit of a policy for which they had been paying premiums for years on end. [Para 10]

1.4 Further, the guiding yardstick in Mediclaim *vis-à-vis* MVA is different – In the former, a Mediclaim policy is taken up to a certain amount and if the claim of the policy holder once found to be holding merit go beyond it, the holder has no option but to foot the bill out of pocket however in the latter, because of its beneficial nature the only guide is the broad principle of just and fair compensation – The compensation that may be awarded thereunder has no strict monetary limits. [Para 10]

Motor Accident Claims – Law on deductions from motor accident claims, discussed. [Paras 8-8.5]

Case Law Cited

Reliance General Insurance Co. Ltd. v. Shashi Sharma [2016] 6 SCR 488 : (2016) 9 SCC 627; *Helen C. Rebello v. Maharashtra SRTC* [1998] Supp. 1 SCR 684 : (1999) 1 SCC 90; *Oriental Insurance Co. Ltd. v. R. Swaminathan*, CA 2715 of 2002; *United India Insurance Co. Ltd. v. Patricia Jean Mahajan* [2002] 3 SCR

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1176 : (2002) 6 SCC 281; Sebastiani Lakra v. National Insurance Co. Ltd. [2018] 13 SCR 1053 : (2019) 17 SCC 465; National Insurance Co. Ltd. v. Pranay Sethi [2017] 13 SCR 100 : (2017) 16 SCC 680 – referred to.

The New India Assurance v. Dineshchandra Shantilal Shah and Ors. **(2013) 09 BOM CK 0240 (First Appeal No.657 of 2013);** *Vrajesh Navnitlal Desai v. K. Bagyam and Anr., 2005 SCC OnLine Bom 156;* *Royal Sundaram Alliance Insurance Co. Ltd. v. Ajit Chandrakant Rakvi, 2019 SCC OnLine Bom 496;* *State of Goa v. Michael Joaquim F.D. Souza, 2022 SCC OnLine Bom 1672;* *United India Insurance Co. Ltd. v. Anjana, 2012 SCC OnLine Bom 129;* *Reliance General Insurance Co. Ltd. v. Aman Sanjay Tak, 2023 SCC OnLine Bom 883;* *Madhya Pradesh State Road Trans. Corpn. v. Priyank, 1999 SCC OnLine MP 18* *Mamta Yadav v. Amrat Singh, 2023 SCC OnLine MP 7166;* *Shaheed Ahmed v. Shankaranarayana Bhat, 2008 SCC OnLine Kar 166 [Kar. HC];* *Royal Sundram General Insurance Co. Ltd. v. Meenakshi Mann, 2019 SCC OnLine P&H 7801 [Punjab & Haryana HC];* *New India Assurance Company Limited v. Bimal Kumar Shah, 2018 SCC OnLine Cal 10368 [Cal. HC];* *National Insurance Co. Ltd. v. Bijumon, 2010 SCC OnLine Ker 4775 [Ker. HC];* *National Insurance Co. Ltd. v. Aman Kapur, 2013 SCC OnLine Del 4891 [Del. HC];* *Jaswant Kaur Sethi v. Tamal Das, MAC. APP. No. 352 of 2006;* *National Insurance Co. Ltd. v. R.K. Jain, 2012 SCC OnLine Del 3303;* *National Insurance Co. v. Deepmala Goel, 2012 SCC OnLine Del 1958;* *IFFCO Tokio General Insurance Co. v. Kisanlal Sharma, 2019 SCC OnLine Del 11091;* *IFFCO Tokio General Insurance Co. Ltd. v. Shambhu Pathak, 2012 SCC OnLine Del 1361;* *National Insurance Co. Ltd. v. Shiela Avinashi, 2012 SCC OnLine Del 532;* *Bajaj Allianz General Insurance Co. Ltd. v. Ganpat Rai Sehgal, 2012 SCC OnLine Del 42;* *UP State Road Transport Corporation v. Rama Chugh, 2019 SCC OnLine Del 11627;* *New India Assurance Co. Ltd. v. Arjun Singh, 2019 SCC OnLine Del 11625;* *Oriental Insurance Co. Ltd. v. Ravi Jain, 2025 SCC OnLine Del 8966;* *National Insurance Company Ltd. v. Akber Badsha, 2015 SCC OnLine Ker 26742;* *Mariamamma James v. Alphones Antony, 2016 SCC OnLine Ker 29226;* *National Insurance Co. Ltd. v. Shashank Bhardwaj, CWP No. 9763 of 2015;* *ICICI Lombard General Insurance Co. v. Harminder Singh Rosha, FAO No. 4755 of 2016;* *United India Insurance Co. Ltd. v. Jaswant Singh, FAO No. 532 of 2014;* *The New India Assurance Co. v. Dineshchandra Shantilal Shah & Ors. First Appeal No.*

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657 of 2013; *Shirkant @ Srikant Kashinath Gaude v. Suryakant Uttam Gaude*. **F.A. No. 64 of 2009**; *S. Sevagi v. State of Express Transport*, **C.M.A. Nos. 3618–3620 of 2013**; *Jitendra v. Rahul*, **MANU/MP/0366/2008** – referred to.

Bradburn v. Great Western Railway Co (1874-80) **All ER Rep 195** – referred to.

List of Acts

Motor Vehicles Act 1988.

List of Keywords

Motor Accident Claims; Mediclaim; Mediclaim policy; Medical insurance; Mediclaim reimbursement; Mediclaim/medical insurance not deductible from compensation; Compensation under MVA; Compensation awarded by MACT; Mediclaim not deductible from award passed by MACT; Statutory entitlement of compensation; Beneficial legislation; Just compensation; Principle of “double benefit; Grant of MACT compensation and Mediclaim; Not double benefit; Contractual benefit; Reimbursement of medical expenses; Contractual benefit; Contractual benefit of reimbursement of medical expenses; MVA beneficial legislation; Legal Ethics; Duty of Advocates/Counsels; Duty of Advocates towards Court; Bring judgments to the Court’s notice; Judicial inconsistency; Judicial uncertainty; Inconsistent judicial opinion; Justice delivery system; Role of Bar and Bench; Deductions from motor accident claims; Mediclaim premiums.

Case Arising From

CIVIL APPELLATE JURISDICTION: Civil Appeal No. 7938 of 2026

From the Judgment and Order dated 28.03.2025 of the High Court of Judicature at Bombay in FA No. 1344 of 2014

Appearances for Parties

Advs. for the Appellant(s):

Aditya Kumar, Ms. Ila Nath, C. George Thomas.

Advs. for the Respondent(s):

Anand Dilip Landge, Mrs. Sangeeta Nenwani, Ms. Revati Pravin Kharde, Shreenivas Patil, Rahul Prakash Pathak.

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Judgment / Order of the Supreme Court

Judgment

Sanjay Karol, J.

Leave Granted.

THE APPEAL

2. 'A' met with an accident. They filed a claim before the jurisdictional Tribunal i.e., Motor Accidents Claims Tribunal¹ seeking compensation in which *inter alia*, loss of income, future prospects, special diet, transportation and medical expenses have been claimed for. Simultaneously, claims set out with insurance under the claim of medical insurance for the very same medical expenses are allowed and money received. Is it legally permissible for the MACT to account for such amounts received, and as such deduct the same or not, is the question involved herein.
3. A Bench of three Judges of the High Court of Judicature at Bombay in deciding a conflict between judgments of the said Court, namely ***The New India Assurance v. Dineshchandra Shantilal Shah and Ors***², on the one hand, and ***Vrajesh Navnitlal Desai v. K. Bagyam and Anr***³, ***Royal Sundaram Alliance Insurance Co. Ltd., Kolkata v. Ajit Chandrakant Rakvi and Anr***⁴, on the other, in terms of the impugned judgment, held that the amount received by a claimant by way of his own Mediclaim, is not deductible when such a claimant is before the jurisdictional MACT seeking compensation for injuries he has suffered as a result of an accident. New India Assurance Co. Ltd., is aggrieved and questions the correctness of such a finding before us, in this appeal.
 - 3.1 We are, therefore, to decide the question of law as to whether the amount of money received as Mediclaim, in terms of a ediclaim policy, is deductible from an award passed by a Claims

1 MACT

2 (2013) 09 BOM CK 0240 (First Appeal No.657 of 2013)

3 2005 SCC OnLine Bom 156

4 2019 SCC OnLine Bom 496

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Tribunal or not. The factual matrix in which this question arises does not have a bearing on the conclusion of this question of law, and hence, is not relevant for the present determination.

ARGUMENTS OF THE PARTIES

4. We heard the learned Counsel for the parties.

4.1 Learned Counsel for the appellant submitted:

4.1.1 It is an admitted position that the respondent-insured has already been reimbursed for medical expenses through a Mediclaim policy. Once such reimbursement has taken place, the loss under that specific head is neutralized and so, awarding the same amount again under the head of medical expenses would go beyond restitution and lead to or result in a duplication of benefit. The appellant-insurer has submitted this position to be inconsistent with the principle of just compensation.

4.1.2 This position, it is argued, has found support in the decision of this Court in **Reliance General Insurance Co. Ltd. v. Shashi Sharma**⁵, where the Court emphasised that double benefits should not be granted while computing compensation in reference to a claim petition arising out of a motor vehicle accident. In that case, amounts received by the claimants by way of *ex gratia* financial assistance have been held liable for deduction from compensation awarded under a corresponding head. The underlying rationale was that overlapping benefits under the same head distort the concept of just compensation.

4.1.3 The appellant-insurer also dealt with the judgment in **Helen C. Rebello v. Maharashtra SRTC**⁶, which held that benefits such as life insurance, provident fund and pension, are not deductible since they accrue independently of the accident and would be payable in any event. However, the appellant-insurer has submitted that the present case stands on a different footing. A

5 (2016) 9 SCC 627

6 (1999) 1 SCC 90

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Mediclaime reimbursement is directly linked to the injury sustained in the accident and has arisen only because of the medical expenses incurred due to that event. Unlike life insurance proceeds, it is not a benefit that accrues irrespective of the accident. Even on the principle articulated in ***Helen Rebello*** (supra) amounts that bear a direct causal connection with the loss in question are liable to be adjusted to avoid duplication.

- 4.1.4 The statutory framework has also supported this position. Under Sections 146 and 147 of the Motor Vehicles Act 1988⁷, insurance against third party risk has been mandatory, and the insurer has been required to indemnify the owner or driver for liability arising from death or bodily injury caused by the use of the vehicle. However, such liability has been premised on the existence of an actual loss. If the medical expenses have already been reimbursed, the question arises is whether any liability survives in respect of that head. The appellant-insurer has submitted that in the absence of a subsisting loss, there can be no corresponding liability to compensate.
- 4.1.5 It has further been submitted that the distinction between statutory and contractual liability, as discussed in ***Helen Rebello*** (supra) has arisen in the context of death cases where certain pecuniary advantages have accrued to the dependents independently of the accident. In contrast, the present matter has involved an injury claim where the reimbursement of medical expenses has been directly and exclusively connected to the accident. This has created a clear overlap between the loss claimed and the amount already received, making it a case where the principle against double recovery applies with full force.
- 4.1.6 The appellant-insurer has also relied on the decision in ***Oriental Insurance Co. Ltd. v. R. Swaminathan***⁸, where this Court has approved the deduction of medical expenses that had already been reimbursed

⁷ MVA

⁸ CA 2715 of 2002

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by the employer. Even though the Court had enhanced compensation under other heads, it consciously did not award medical expenses again, recognizing that such duplication is impermissible.

4.2 *Per contra*, the learned counsel for the respondent – insured contended:

4.2.1 There exists a distinction between statutory and contractual entitlements. Compensation under the MVA is a statutory right that arises upon proof of negligence and resulting injury. It is not contingent upon any prior contribution by the claimant. In contrast, a Mediclaim policy constitutes a contract of insurance, supported by the payment of premiums and governed by agreed terms. The respondent-insured submits that these two entitlements operate in separate domains, and that the statutory right to compensation cannot be diminished by importing considerations arising from a contractual benefit.

4.3 In ***Helen Rebello*** (supra) the Court held that amounts such as provident fund, pension, and life insurance proceeds are not liable to be deducted from compensation under the MVA, as they bear no correlation to the accident. The respondent – insured, submits that the governing principle emerging therefrom is that deductions are permissible only where a direct nexus exists between the receipt and the accident giving rise to the claim.

4.3.1 This principle was reiterated in ***United India Insurance Co. Ltd. v. Patricia Jean Mahajan***⁹, where the Court held that insurance proceeds and other benefits cannot be deducted unless they are directly attributable to the accidental death or injury. The respondent insured submits that a broad interpretation encompassing all post-accident receipts would defeat the object of awarding just compensation and unjustly benefit the wrongdoer.

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- 4.3.2 Further reliance is placed on ***Sebastiani Lakra v. National Insurance Co. Ltd.***¹⁰, where the Court reaffirmed that benefits arising from contractual or service-related entitlements, including insurance, pension, and gratuity, cannot be deducted from compensation. The respondent insured contends that such benefits accrue independently of the accident and cannot be treated as gains arising from the same cause.
- 4.3.3 The respondent-insured also submits that the principle recognised in ***Bradburn v. Great Western Railway Co***¹¹ affirms that damages payable by a wrongdoer are not to be reduced on account of insurance benefits received by the injured party. This ensures that the appellant insurer or the tortfeasor does not derive advantage from the prudence of the claimant in securing insurance coverage.
- 4.3.4 Turning to the statutory framework, the respondent-insured submits that the MVA is a beneficial legislation intended to provide relief to victims of motor accidents. Section 166 confers the right to claim compensation, while Section 168 obligates the Tribunal, to award just compensation based on fairness, reasonableness, and equity. As elucidated in ***National Insurance Co. Ltd. v. Pranay Sethi***¹², the determination of just compensation must strike a balance and reflect a realistic assessment of loss. The respondent insured contends that deducting Mediclaim benefits would undermine this objective and result in inadequate compensation.
- 4.3.5 In response to the contentions of the appellant-insurer, it is submitted that no prejudice or irreparable loss is caused by allowing the respondent-insured to receive both contractual and statutory benefits. The liability under the MVA arises from the wrongful act of the driver, whereas

10 (2019) 17 SCC 465

11 (1874-80) All ER Rep 195

12 (2017) 16 SCC 680

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the liability under the Mediciclaim policy arises from a contract supported by consideration. The respondent-insured submits that these liabilities are distinct and coexist without overlap and that the appellant-insurer retains the ability to adjust premiums in accordance with risk.

- 4.4 It should be noted that in the course of arguments, learned counsel for the appellant pointed out that there were contrarian views galore on this question, and that the question needed to be settled, specifically in the context of Mediciclaim/medical insurance.

ANALYZING DIVERGENT VIEWS

5. We find, somewhat surprisingly, that single judges as also division benches even of the same Court, have taken opposite views across the High Courts. One view is that Mediciclaim, as a claim is independent from a claim under Section 166 MVA and the award received need not be deducted. In a tabular form we further take notice of such a view taken by the High Court(s).

BOMBAY HIGH COURT CASES		
1.	<i>Vrajesh Navnitlal Desai v. K. Bagyam,</i> <i>2005 SCC OnLine Bom 156</i>	1J
2.	<i>Royal Sundaram Alliance Insurance Co. Ltd. v. Ajit Chandrakant Rakvi,</i> <i>2019 SCC OnLine Bom 496</i>	1J
3.	<i>State of Goa v. Michael Joaquim F.D. Souza,</i> <i>2022 SCC OnLine Bom 1672</i>	1J
4.	<i>United India Insurance Co. Ltd. v. Anjana,</i> 2012 <i>SCC OnLine Bom 129</i>	1J
5.	<i>Reliance General Insurance Co. Ltd. v. Aman Sanjay Tak,</i> 2023 <i>SCC OnLine Bom 883</i>	1J
MADHYA PRADESH HIGH COURT CASES		
6.	<i>Madhya Pradesh State Road Trans. Corpn. v. Priyank,</i> 1999 <i>SCC OnLine MP 18</i>	2J
7.	<i>Mamta Yadav v. Amrat Singh,</i> <i>2023 SCC OnLine MP 7166</i>	1J

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OTHER HIGH COURTS CASES		
8.	<i>Shaheed Ahmed v. Shankaranarayana Bhat</i> , 2008 SCC OnLine Kar 166 [Kar. HC]	1J
9.	<i>Royal Sundram General Insurance Co. Ltd. v. Meenakshi Mann</i> , 2019 SCC OnLine P&H 7801 [Punjab & Haryana HC]	1J
10.	<i>New India Assurance Company Limited v. Bimal Kumar Shah</i> , 2018 SCC OnLine Cal 10368 [Cal. HC]	2J
11.	<i>National Insurance Co. Ltd. v. Bijumon</i> , 2010 SCC OnLine Ker 4775 [Ker. HC]	1J
12.	<i>National Insurance Co. Ltd. v. Aman Kapur</i> , 2013 SCC OnLine Del 4891 [Del. HC]	1J

6. The other view is that the amount received from a Mediclaim is in fact deductible from the total compensation, which in a tabular form we indicate the cases as under:-

S. No.	Case Title	Bench Strength
DELHI HIGH COURT CASES		
1.	<i>Jaswant Kaur Sethi v. Tamal Das</i> , MAC. APP. No. 352 of 2006	1J
2.	<i>National Insurance Co. Ltd. v. R.K. Jain</i> , 2012 SCC OnLine Del 3303	1J
3.	<i>National Insurance Co. v. Deepmala Goel</i> , 2012 SCC OnLine Del 1958	1J
4.	<i>IFFCO Tokio General Insurance Co. v. Kisanlal Sharma</i> , 2019 SCC OnLine Del 11091 [Claimant surrendered claim under medical expenses]	1J
5.	<i>IFFCO Tokio General Insurance Co. Ltd. v. Shambhu Pathak</i> , 2012 SCC OnLine Del 1361	1J
6.	<i>National Insurance Co. Ltd. v. Shiela Avinashi</i> , 2012 SCC OnLine Del 532	1J

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7.	<i>Bajaj Allianz General Insurance Co. Ltd. v. Ganpat Rai Sehgal</i> , 2012 SCC OnLine Del 42	1J
8.	<i>UP State Road Transport Corporation v. Rama Chugh</i> , 2019 SCC OnLine Del 11627	1J
9.	<i>New India Assurance Co. Ltd. v. Arjun Singh</i> , 2019 SCC OnLine Del 11625	1J
10.	<i>Oriental Insurance Co. Ltd. v. Ravi Jain</i> , 2025 SCC OnLine Del 8966	1J
KERALA HIGH COURT CASES		
11.	<i>National Insurance Company Ltd. v. Akber Badsha</i> , 2015 SCC OnLine Ker 26742	2J
12.	<i>Mariamamma James v. Alphones Antony</i> , 2016 SCC OnLine Ker 29226	2J
PUNJAB AND HARYANA HIGH COURT CASES		
13.	<i>National Insurance Co. Ltd. v. Shashank Bhardwaj</i> , CWP No. 9763 of 2015	1J
14.	<i>ICICI Lombard General Insurance Co. v. Harminder Singh Rosha</i> , FAO No. 4755 of 2016	1J
15.	<i>United India Insurance Co. Ltd. v. Jaswant Singh</i> , FAO No. 532 of 2014	1J
BOMBAY HIGH COURT CASES		
16.	<i>The New India Assurance Co. v. Dineshchandra Shantilal Shah & Ors.</i> First Appeal No. 657 of 2013	1J
17.	<i>Shirkant @ Srikant Kashinath Gaude v. Suryakant Uttam Gaude.</i> F.A. No. 64 of 2009	1J
MADRAS HIGH COURT CASES		
18.	<i>S. Sevagi v. State of Express Transport</i> , C.M.A. Nos. 3618–3620 of 2013	2J
MADHYA PRADESH HIGH COURT CASES		
19.	<i>Jitendra vs. Rahul</i> , MANU/MP/0366/2008	1J

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OUR CONSIDERATION

7. *Inter-alia*, two opposing reasons come forth from the perusal of the above-mentioned High Court decisions. Those in favor of deduction hold so in view of the principle of “*double benefit*” since the same medical expenses would be compensated from two sources. Those against the deduction posit that the origin of the two methods of compensating the same is different and, therefore, it cannot be said to exclude each other. One is a statutory remedy and the other arises out of a contract. Let us understand the same.
- 7.1 The principle governing “*double benefit*” in motor accident claims is that there should be no duplication for the same head of loss in respect of the victim/claimant in a claim petition arising out of a motor vehicle accident. A claimant cannot recover compensation twice for the same injury or loss, as that would amount to *unjust enrichment*. The unquestionable position is that compensation must be “*just compensation*” which is meant to fairly make good the loss suffered, not to create a windfall. Therefore, where two payments in relation to the very same claim petition compensate for the same loss, one of them must ordinarily be adjusted or deducted.
- 7.2 What is to be examined is the source and nature of the benefit. The primary consideration in such an analysis is whether the additional benefit is a substitute for the same loss, in which case it is liable to be deducted, or whether it is independent, or an entitlement, in which case it is not. For instance, where the family of a deceased person receives statutory compensation or *ex gratia* payment from the State on account of death, such amount may be deducted from the compensation awarded under MACT. The reasoning therefor, is straightforward. Both payments are addressing the same loss. Similarly, where one aspect of compensation directly replaces the same income stream lost due to the accident, and is triggered by that very event, permitting full recovery under both heads would amount to double compensation.
- 7.2.1 However, the position is different where the benefit is independent in nature. It has repeatedly been clarified by this Court that certain payments cannot be deducted merely because they accrue upon death. Employment

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benefits such as provident funds, gratuity, and pension are not deductible, as they arise from the contract of employment and represent deferred earnings or accrued rights. They are not compensation for the accident, but entitlements earned over time.

7.3 Let us now look at the primary reason taken by those who have favoured the grant of both MACT compensation and Mediclaim.

7.3.1 A statutory benefit is an entitlement that exists because a law creates it. Its source is legislation enacted by the State, and not any private agreement between individuals. Meeting the conditions laid down in the statute *ipso facto*, leads to entitlement. There is nothing required further such as negotiation or consent. Such benefits are generally in furtherance/fulfillment of broader public purposes like welfare, regulation, and they can be altered or withdrawn only if the law itself is amended.

7.3.2 A contractual benefit, on the other hand, is in the nature of a private agreement between parties. Its source is the contract itself, and the benefit flows from the parties having mutually agreed to certain terms. These benefits depend on consent and are defined by what the contract provides. They are enforceable under the law of contract and cannot be changed except in accordance with the terms of the agreement.

7.3.3 The distinction, put simply, is that a statutory benefit flows from the authority of law, while a contractual benefit flows from the will and agreement *inter se* parties. Naturally, statutory benefits are available to all persons, provided that they fulfill its prerequisites whereas a contractual benefit is limited *inter se* the parties.

8. Having noticed the crucial distinction, we now move to appreciating the law on deductions from motor accident claims.

8.1 **Helen Rebello**

In this case, the husband of the appellant was gravely injured while travelling on a bus of the Maharashtra State Road Transport Corporation, when it collided with a bus of the Karnataka State Road Transport Corporation, while he was on

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his way from Rathore Badruk to Pune, eventually succumbing to the injuries sustained. The quantum of compensation was not subject matter of challenge before the co-ordinate Bench of this Court. The issue was whether the amount received by the appellant and other legal heirs in the form of the life insurance policy of the deceased was deductible from the compensation received under the 1939 version of the MVA. The Court, speaking through A.P Misra J., discussed a number of English cases and then observed that Section 110, of the 1939 Act made clear that the constitution of the Tribunal was not meant to *“include that which the claimant receives on account of other forms of deaths, which he would have received even apart from accidental death. Thus, such pecuniary advantage would have no correlation to the accidental death for which compensation is computed. Any amount received or receivable not only on account of the accidental death but that which would have come to the claimant even otherwise, could not be construed to be the “pecuniary advantage”, liable for deduction.”* Observations made further ahead are also apposite for the present case:

“How thus an amount earned out of one’s labour or contribution towards one’s wealth, savings, etc. either for himself or for his family which such person knows under the law has to go to his heirs after his death either by succession or under a Will could be said to be the “pecuniary gain” only on account of one’s accidental death. This, of course, is a pecuniary gain but how this is equitable or could be balanced out of the amount to be received as compensation under the Motor Vehicles Act. There is no correlation between the two amounts. Not even remotely. How can an amount of loss and gain of one contract be made applicable to the loss and gain of another contract. Similarly, how an amount receivable under a statute has any correlation with an amount earned by an individual. Principle of loss and gain has to be on the same plane within the same sphere, of course, subject to the contract to the contrary or any provisions of law.”

New India Assurance Company Limited v. Dolly Satish Gandhi & Anr.**8.2 *Patricia Jean Mahajan***

This case concerned the death of an Indian origin, USA-based doctor who died while on a visit to this Country, travelling from Jaipur to Delhi. The Tribunal awarded a sum of Rs. 1.16 crores with 12% interest p.a., as against a claim of Rs. 54 Crores. The appellant challenged the determination before the High Court of Delhi. The compensation was enhanced to Rs. 16.12 crores with the said interest. Still further, the merits of the computation were challenged before this Court. Brijesh Kumar J., writing for the Court recorded agreement with the principle in ***Helen Rebello*** (supra). Considerable discussion was made in regard to transposing absolute numbers in terms of US earnings to India, applying the exchange rate thereto, and awarding compensation, but such a view was not entirely accepted in view of issues such as the possibility of over compensating, and also mechanical use of the multiplier, which would mean high multiplicand and high compensation on account of directly translating USD to its equivalent value in INR. It was observed:

“36. According to the decisions referred to in the earlier part of this judgment, it is clear that the amount on account of social security as may have been received must have a nexus or relation with the accidental injury or death, so far to be deductible from the amount of compensation. There must be some correlation between the amount received and the accidental death or it may be in the same sphere, absence (*sic*) the amount received shall not be deducted from the amount of compensation. Thus, the amount received on account of insurance policy of the deceased cannot be deducted from the amount of compensation though no doubt the receipt of the insurance amount is accelerated due to premature death of the insured. So far as other items in respect of which learned counsel for the Insurance Company has vehemently urged, for example some allowance paid to the children, and Mrs Patricia Mahajan under the social security system, no correlation of those receipts with the accidental death has been shown much less established. Apart

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from the fact that contribution comes from different sources for constituting the fund out of which payment on account of social security system is made, one of the constituents of the fund is tax which is deducted from income for the purpose. We feel that the High Court has rightly disallowed any deduction on account of receipts under the insurance policy and other receipts under the social security system which the claimant would have also otherwise been entitled to receive irrespective of accidental death of Dr Mahajan. If the proposition “receipts from whatever source” is interpreted so widely that it may cover all the receipts, which may come into the hands of the claimants, in view of the mere death of the victim, it would only defeat the purpose of the Act providing for just compensation on account of accidental death. Such gains, maybe on account of savings or other investment etc. made by the deceased, would not go to the benefit of the wrongdoer and the claimant should not be left worse off, if he had never taken an insurance policy or had not made investments for future returns.

(emphasis supplied)

8.3 **Shashi Sharma**

In this matter, the question that concerned the Court was whether compensation under MVA is affected by the grant of compensation under Haryana Compassionate Assistance to Dependents of deceased Government Employees Rules, 2006 issued under Article 309 of the Constitution of India. It was held that since both these grounds of compensation have statutory force, claimants cannot be permitted to set up claims under both scenarios. The relevant discussion of the three-judge Bench is reproduced below:

“**25.** The claimants are legitimately entitled to claim for the loss of “pay and wages” of the deceased government employee against the tortfeasor or insurance company, as the case may be, covered

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by the first part of Rule 5 under the 1988 Act. The claimants or dependants of the deceased government employee (employed by the State of Haryana), however, cannot set up a claim for the same subject falling under the first part of Rule 5—“pay and allowances”, which are receivable by them from employer (the State) under Rule 5(1) of the 2006 Rules. In that, if the deceased employee was to survive the motor accident injury, he would have remained in employment and earned his regular pay and allowances. Any other interpretation of the said Rules would inevitably result in double payment towards the same head of loss of “pay and wages” of the deceased government employee entailing in grant of bonanza, largesse or source of profit to the dependants/claimants. Somewhat similar situation has been spelt out in Section 167 of the Motor Vehicles Act, 1988 which reads thus:

“167. Option regarding claims for compensation in certain cases.—

Notwithstanding anything contained in the Workmen’s Compensation Act, 1923 (8 of 1923) where the death of, or bodily injury to, any person gives rise to a claim for compensation under this Act and also under the Workmen’s Compensation Act, 1923, the person entitled to compensation may without prejudice to the provisions of Chapter X claim such compensation under *either of those Acts but not under both.*”

(emphasis supplied)

26. Indeed, similar statutory exclusion of claim receivable under the 2006 Rules is absent. That, however, does not mean that the Claims Tribunal should remain oblivious to the fact that the claim towards loss of pay and wages of the deceased has already been or will be compensated by the employer in the form of ex gratia financial assistance on compassionate grounds under Rule 5(1). The Claims

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Tribunal has to adjudicate the claim and determine the amount of compensation which appears to it to be just. The amount receivable by the dependants/claimants towards the head of “pay and allowances” in the form of ex gratia financial assistance, therefore, cannot be paid for the second time to the claimants. True it is, that the 2006 Rules would come into play if the government employee dies in harness even due to natural death. At the same time, the 2006 Rules do not expressly enable the dependants of the deceased government employee to claim similar amount from the tortfeasor or insurance company because of the accidental death of the deceased government employee. The harmonious approach for determining a just compensation payable under the 1988 Act, therefore, is to exclude the amount received or receivable by the dependants of the deceased government employee under the 2006 Rules towards the head financial assistance equivalent to “pay and other allowances” that was last drawn by the deceased government employee in the normal course. This is not to say that the amount or payment receivable by the dependants of the deceased government employee under Rule 5(1) of the Rules, is the total entitlement under the head of “loss of income”. So far as the claim towards loss of future escalation of income and other benefits is concerned, if the deceased government employee had survived the accident can still be pursued by them in their claim under the 1988 Act. For, it is not covered by the 2006 Rules...”

8.4 **Sebastiani Lakra**

In this case, the Court while dealing with the total compensation payable to the claimants on account of the death of the 52 year old government servant, the question was whether the amount received by the claimants under the Employees Family Benefit Scheme¹³ being Rs.50,082/- per month should be deducted

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from the compensation as calculated by the Tribunal. The High Court had allowed the deduction, however, did not provide any reasons for having taken such a view. This Court concluded that the case stood on a different footing from **Shashi Sharma** as the benefit herein was not statutory in nature. Further, it was observed that the amount payable under the EFB Scheme happens only once the benefits received by the legal heirs of the deceased are deposited. In other words, amounts of gratuity and all other benefits totaling to Rs.27,43,991/- were deposited and now they were receiving Rs.50,082/- per month till the date of retirement as would have been, of the deceased. The Court noted that this situation was beneficial for the claimants since, if the two amounts are compared, even a 12% interest rate on Rs.28,00,000/- approximately would be about Rs.22000/- less per month. The said amount, therefore, could not be deducted at the time of computation under MVA.

8.5 Swaminathan

In this case, a co-ordinate Bench of this Court allowed an appeal filed by the Insurance Company being aggrieved by the increase of compensation beyond the original claimants ask. While this submission was rejected and it was held that the Court could increase the compensation beyond what had been asked for by the claimants, it was observed that the deduction of medical expenses by the learned Single Judge on account of the fact that the employer had already paid the same, was affirmed. We are, however, of the view that the holding in this case may not aid the appellant insurer herein for the reason that the observation made by this Court arose in a specific fact of the employer having reimbursing medical expenses. Neither reimbursement by the employer a general condition prevalent across cases, nor is it clear from the order of this Court whether the respondent in the said case had a Mediclaim policy to his name.

9. Having considered judgments of this Court as above, we are of the considered opinion that the answer to the question raised in this appeal is not a matter of *Sherlockian* deduction. A Mediclaim policy is a policy that is purchased by a person, accounting for the uncertainties of life and preparing a financial base for an unfortunate

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possible eventuality. The human body is a coming together of intricate systems where there is always a possibility that something may go wrong or may need mending. In today's time when medical expenses are skyrocketing for a variety of reasons, the ability to meet such expenses, suddenly as and when they may arise, is not something that rests with all. It is, as such, a necessary facet of preparation that people undertake. It doesn't specifically deal with accidental coverage only.

10. The contractual benefit of reimbursement of medical expenses as a result of this policy is, therefore, independent of any other claim. The provisions of the MVA are only triggered in the unfortunate eventuality if a death or injury arising out of a motor vehicle accident occurs. That in itself, when it does arise, cannot eclipse the contractual benefit to which a person who has paid premiums, is entitled too. Compensation under MVA while it recognizes reimbursement of medical expenses is distinct from the contractual benefit, though it may be with respect to the very same heads. If the view of the High Courts that this would amount to "*double benefit*" is agreed to by this Court, a peculiar situation will arise. On the one end, it may save compensation from being affected by *double benefit*, if it can be called that, but on the other, it would denude the claimant of the benefits that arise out of them parting with their hard-earned money in the form of Mediclaim premiums. It would also amount to an undue advantage to the company granting the Mediclaim policy to the claimant if the claimant's claim is extinguished by the award of the MACT having granted medical expenses for, they would have received the premium but would not be required to pay any amount in the event of medical bills having arisen. Similarly, it may amount to an unjust benefit to the insurer of the offending vehicle if they are not required to compensate under one of the heads of medical expenses solely on account of the fact that the claimant had received the benefit of a policy for which they had been paying premiums for years on end. There is yet another aspect. The guiding yardstick in Mediclaim *vis a vis* MVA is different. In the former, a Mediclaim policy is taken up to a certain amount and if the claim of the policy holder once found to be holding merit goes beyond it, the holder has no option but to foot the bill out of pocket however in the latter, because of its beneficial nature the only guide is the broad principle of just and

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fair compensation. Put differently, the compensation that may be awarded thereunder has no strict monetary limits.

11. We may also say that looking at these two amounts as “*double benefit*” may not be appropriate since one situation is only the fruit of amounts already paid in the past. Only because they appear same or similar, they cannot be termed as “*double benefit*”. Still further there is another reason why these two amounts stand on a different footing. The amount received under MVA arises from a beneficial legislation and as guided by just compensation which is intended to put the injured or the claimants (*legal representatives of the deceased*) in a position, as far as possible, at least monetarily, if the accident in question had not taken place. Naturally, this stands on a higher pedestal - not only because it is a statutory entitlement of compensation but also because the nature of the statute is entirely beneficial. To equate these two amounts to pulling down the MVA or unnecessarily hyping up the Mediclaim policy.

A SECONDARY, BUT IMPORTANT ISSUE

12. There is one other issue that we must address. The chart that is given in paras 4 and 5 of this judgment reveals something unsettling. There are contrary positions of law being taken by the same High Court, whether it be by the benches of the same strength or by the benches of lesser strength in ignorance of pronouncements made by the benches of higher strength. Some illustrations from the tables above are:

DELHI HIGH COURT CASES				
Sl. No.	Mediclaim Not Granted	Bench Strength	Mediclaim Granted	Bench Strength
1.	Jaswant Kaur Sethi v. Tamal Das , MAC. APP. No. 352 of 2006	1J	National Insurance Co. Ltd. v. Aman Kapur , 2013 SCC OnLine Del 4891	1J
2.	National Insurance Co. Ltd. v. R.K. Jain , 2012 SCC OnLine Del 3303 [<i>Distinguishes Helen Rebello</i>]	1J		
3.	National Insurance Co. v. Deepmala Goel , 2012 SCC OnLine Del 1958	1J		

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4.	IFFCO Tokio General Insurance Co. v. Kisanlal Sharma , 2019 SCC OnLine Del 11091 [Claimant surrendered claim under medical expenses]	1J		
5.	National Insurance Co. Ltd. v. Shiela Avinashi , 2012 SCC OnLine Del 532	1J		
6.	Bajaj Allianz General Insurance Co. Ltd. v. Ganpat Rai Sehgal , 2012 SCC OnLine Del 42	1J		
7.	UP State Road Transport Corporation v. Rama Chugh , 2019 SCC OnLine Del 11627	1J		
8.	New India Assurance Co. Ltd. v. Arjun Singh , 2019 SCC OnLine Del 11625	1J		
9.	Oriental Insurance Co. Ltd. v. Ravi Jain , 2025 SCC OnLine Del 8966	1J		

KERALA HIGH COURT CASES				
10.	National Insurance Company Ltd. v. Akber Badsha , 2015 SCC OnLine Ker 26742	2J	National Insurance Co. Ltd. v. Bijumon , 2010 SCC OnLine Ker 4775	1J
11.	Mariamamma James v. Alphones Antony , 2016 SCC OnLine Ker 29226	2J		

PUNJAB AND HARYANA HIGH COURT CASES				
12.	National Insurance Co. Ltd. v. Shashank Bhardwaj , 2016 SCC OnLine P&H 19393	1J	Royal Sundram General Insurance Co. Ltd. v. Meenakshi Mann , 2019 SCC OnLine P&H 7801	1J

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13.	ICICI Lombard General Insurance Co. v. Harminder Singh Rosha, 2018 SCC OnLine P&H 7738	1J		
14.	United India Insurance Co. Ltd. v. Jaswant Singh, FAO No. 532 of 2014	1J		
15.	Vishal v. Bugga Singh, 2016 SCC OnLine P&H 1338	1J		

BOMBAY HIGH COURT CASES				
16.	The New India Assurance Co. v. Dineshchandra Shantilal Shah & Ors. First Appeal No. 657 of 2013	1J	Vrajesh Navnitlal Desai v. K. Bagyam, 2005 SCC OnLine Bom 156	1J
17.	Shirkant @ Srikant Kashinath Gaude v. Suryakant Uttam Gaude. F.A. No. 64 of 2009	1J	Royal Sundaram Alliance Insurance Co. Ltd. v. Ajit Chandrakant Rakvi, 2019 SCC OnLine Bom 496	1J
18.			State of Goa v. Michael Joaquim F.D. Souza, 2022 SCC OnLine Bom 1672	1J
19.			United India Insurance Co. Ltd. v. Anjana, 2012 SCC OnLine Bom 129	1J
20.			Reliance General Insurance Co. Ltd. v. Aman Sanjay Tak, 2023 SCC OnLine Bom 883	1J

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MADHYA PRADESH HIGH COURT CASES				
21.	<i>Jitendra vs. Rahul</i> , MANU/ MP/0366/2008	1J	<i>Madhya Pradesh State Road Trans. Corpn. v. Priyank</i> , 1999 SCC OnLine MP 18	2J
			<i>Mamta Yadav v. Amrat Singh</i> , 2023 SCC OnLine MP 7166	1J

13. When such inconsistencies are left unaddressed, it leads to various problems, primary among them being that it leads to judicial inconsistency and uncertainty. This creates difficulties for counsel and the Court for, opposing judgments may give clients hope for differing outcomes or even for a Court in the future to have to examine multiple cases with differing opinions on the same point. Till such times the opposing views exist, judicial uncertainty is in play for settled precedents ensure definitive outcomes but if contrary views exist, it becomes a matter of choice to follow one and leave aside the other, and it remains no longer, a matter of law. Connected to this is its direct impact on judicial efficiency for if the law on a point is clear it is a matter of fair ease to follow settled precedents leading to a reduction in future effort thereby saving time. Performing a judicial duty or rendering justice which is certain, just, fair and expeditious.
14. When considering these issues, the roles both the Bar and the Bench must be addressed. Counsel appearing in Court to plead the case of a particular party making all effort possible, while balancing ethics and their duty towards the Court, to secure a victory for their clients. It is this duty towards the Court which requires them to bring to the Court's notice judgments both that aid their case and also those that do not. It is here that the counsel's awareness of law and grasp on facts are their greatest assets, enabling them to distinguish judgments that may seemingly be against them and still secure a favourable order. This duty is all the more important in the present day because all the Courts are polyvocal. Tens of orders and judgments are pronounced every day across a range of issues and so, the Court before which

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they are appearing may not be aware of the latest pronouncement. They must disclose the same to the Court ensuring consistency. That being so, the entire burden cannot be placed only on counsel. The Court itself has an independent tri-fold duty, to apply correct law even if the counsel does not cite the same, ensure consistency with precedent, and avoid *per incuriam* decisions. While this duty is one part of reality, a Court hearing nearly hundred matters a day and in some cases across a variety of laws and jurisdictions, having to dictate daily orders, write judgments and so much more, is the other part. So, *in essence*, both the Bar and the Bench are responsible for minimising the problems that arise in the face of inconsistent judicial opinion. They are both constituents of the justice delivery system, and all actions must be guided by a sense of service to the system, further facilitating reduction of pendency.

CONCLUSION

15. In *fine*, we hold that the amount received as part of Mediciam/ medical insurance is not deductible from compensation as calculated by the concerned Tribunal, adjudicating a claim for compensation under the MVA which may also include compensation under the head of medical expenses, if claimed. These two stand on a different footing - *one* is statutory while the *other* is contractual and the latter is only a *sequitur* of premiums having been paid in the past while the other is an entitlement as a consequence of an accident or death in a motor vehicle accident.
16. The matter is remanded to the High Court for making a determination consistent with this opinion. The appeal is dismissed as meritless. Pending application(s), if any, shall stand disposed of.

Result of the case: Appeal dismissed.

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v.

Bhuvanesh and Others

(Civil Appeal No. 7939 of 2026)

15 May 2026

[Sanjay Karol and Augustine George Masih,* JJ.]

Issue for Consideration

Issues arose whether the second application u/Ord.VII r.11 is barred by the principle of *Res judicata*; whether s.6(5) of the Hindu Succession Act operates as a bar to the institution of a suit, warranting rejection of the plaint u/Ord.VII r.11(d); and whether the appellants have a right u/s.8 of the H.S. Act that is independent of the 2005 Amendment and unaffected by s.6(5).

Headnotes[†]

Code of Civil Procedure, 1908 – Ord.VII r.11(a), (b) & (d), ss.11, 115 – Hindu Succession Act, 1956 – ss.6, 6(5), 8 – Rejection of plaint – *Res judicata* – Interlocutory *res judicata* – Propositus died intestate, survived by three daughters-appellant nos.1 to 3, his widow and four sons-respondents – Defendants-widow and son’s case that the properties of the propositus were divided orally among the sons, money was paid to the daughters, and they endorsed family partition document as consenting witnesses, and recording their no-objection to partition among the brothers – Appellants disputed the nature and validity of these transactions, and filed suit seeking partition of the suit schedule properties and allotment of 1/8th share to each of the legal heirs – Defendant Nos.1 to 3-widow and two sons, filed I.A. u/Ord.VII r.11(d) r/w s.151 thereof, seeking rejection of the plaint on the ground that the suit was barred by the proviso to ss.6(1) and 6A(d) of the Hindu Succession (Karnataka Amendment) Act and s.6(5) of the H.S. Act – Application allowed and the plaint rejected holding that the suit was barred by the statutory provisions – However, the High Court, set aside the order of plaint rejection, and the same attained finality – Eight years later, respondent Nos. 1 and 2-legal representatives of defendant No.4 filed second application u/

^{*} Author

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Ord.VII r.11(a), (b), (d) seeking rejection of plaint – Application dismissed holding that the order of the High Court operated as *res judicata*, and that s.6(5) of the H.S. Act does not create a bar to filing of the suit – Respondent Nos.1 and 2 filed revision petition before the High Court which was allowed setting aside the trial court’s order, allowing the second application and rejected the plaint – Correctness:

Held: Proposition that upon the intestate death of a Hindu male, his property devolves on all Class I heirs u/s.8 including daughters is a settled proposition of law that predates the 2005 Amendment and has remained undisturbed – Suit is, at minimum, maintainable to the extent of the appellants’ claim in the share of the propositus, and the plaint cannot be rejected at the threshold on the ground that s.6(5) saves the registered Partition Deed – Even assuming the partition is valid and is saved u/s.6(5), the daughters’ right in the father’s undivided share, which devolved on them by operation of law in 1985, is not extinguished by the subsequent partition of 2000 – Trial Court’s order dismissing the second application was a reasoned order correctly applying the principle of *res judicata* with reference to the High court’s order and rightly holding that s.6(5) does not bar the suit – In setting aside that order and rejecting the plaint, the High Court surpassed its jurisdiction – Plaint discloses a cause of action that is not barred by any provision of law, and that the rejection of the plaint at the threshold was not warranted – Appellants’ right to have their suit adjudicated on the merits cannot be foreclosed by a second Ord.VII r.11 application that is itself barred by *res judicata* – Thus, the second application u/Ord.VII r.11 is barred by the principle of *res judicata*, inasmuch as the identical issue was directly and substantially in issue in the first Ord. VII r.11 proceedings, was heard and decided by the High Court, and that order attained finality – Legal representatives of defendant No.4 litigate under the same title as defendant Nos.1 to 3 within the meaning of Explanation VI to s.11 CPC, and does not constitute a ‘change in law’ – s.6(5) is a saving clause of narrow and strict application – It does not create a jurisdictional bar to the institution of a suit for partition – Whether a valid partition within the meaning of s.6(5) has been effected, and whether such partition is binding on persons who were not parties to it, are contested questions of fact and law that must be adjudicated at trial – High Court erred in rejecting the plaint at the threshold on the basis of s.6(5) – Appellants have an independent right u/s.8 as Class I heirs

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of the propositus who died intestate in 1985 – This right accrued in 1985 by operation of the proviso to the erstwhile s.6 r/w s.8, is independent of the 2005 Amendment, and is unaffected by s.6(5) – Thus, the High Court erred in allowing the second application u/Ord.VII r.11, which was barred by *res judicata*, in holding that s.6(5) creates a bar to the institution of the suit, and in rejecting the plaint at the threshold without permitting the trial to proceed on the contested questions of fact and law – Impugned judgment and order by the High Court set aside – Order dismissing second application restored – Hindu Succession (Karnataka Amendment) Act. [Paras 65, 67, 70, 71]

Code of Civil Procedure, 1908 – Ord. VII r. 11(d) – Rejection of plaint – Principles governing:

Held: Ord.VII r.11(d) provides that the plaint shall be rejected where the suit appears from the statement in the plaint to be barred by any law – Provision is designed to weed out, at the threshold, suits which are *ex facie* unsustainable – Scope of inquiry under this provision is, however, circumscribed – For deciding an application u/Ord.VII r.11, only the averments in the plaint are relevant and the Court cannot look into the written statement or any other external material – Court cannot reject a plaint u/Ord.VII r.11 if any cause of action is disclosed – Disputed questions of fact cannot be decided u/Ord.VII r.11. [Paras 31-32]

Code of Civil Procedure, 1908 – s.11 – Principle of *res judicata* – ‘Interlocutory *res judicata*’ – Explanation:

Held: Principle of *res judicata* codified in s.11 embodies a rule of conclusiveness that is founded in considerations of public policy – It rests upon the salutary doctrine that there must be a finality to litigation, and that a party which has once succeeded or failed on an issue should not be permitted to re-agitate the same at a subsequent stage – Principle applies not only between two separate suits but also between two stages of the same litigation what is referred to as ‘interlocutory *res judicata*’. [Para 35]

Code of Civil Procedure, 1908 – s.115 – Revisional Jurisdiction – Nature and scope:

Held: Revisional jurisdiction is supervisory in nature and limited in scope; the High Court may interfere only if the subordinate court has exercised a jurisdiction not vested in it by law, or has failed

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to exercise a jurisdiction so vested, or has acted in the exercise of its jurisdiction illegally or with material irregularity. [Para 68]

Hindu Succession Act, 1956 – ss.6(1),(5) – Saving clause – Scope and applicability of pre-20.12.2004 partition – s. 6(5), if creates a jurisdictional bar to institution of suit for partition:

Held: s.6 sub-section (1) confers upon the daughter of a coparcener the status of coparcener by birth, in the same manner as a son – s.6(5) is a saving clause of strict and narrow application – It saves from the retroactive reach of the 2005 Amendment only those partitions that have been effected that is, completed and finalised before 20.12.2004 by a registered deed or a court decree – Proviso to sub-section (1) and sub-section (5) are, in substance, saving provisions, they preserve the validity of completed past transactions from being unsettled by the new coparcenary rights conferred upon daughters – It does not create a jurisdictional bar to the institution of a suit – Distinction between a “bar” and a “saving clause” is legally significant – While a bar prevents the Court from entertaining the suit at all, but a saving clause on the other hand provides a defence on merits that must be proved by the party asserting it – s.6(5), as substituted by the 2005 Amendment, provides that “nothing contained in this section shall apply to a partition, which has been effected before the 20th day of December, 2004” – Words “nothing contained in this section” refer to the substituted s.6, that is, the new coparcenary rights conferred upon daughters by s.6(1) – s.6(5) saves pre-2004 partitions from the retroactive reach of those new coparcenary rights – It does not, and on its plain language cannot, purport to extinguish the pre-existing rights of Class I heirs u/s.8, which accrued independently of the 2005 Amendment by operation of the proviso to the erstwhile s.6 r/w s.8 – Saving clause operates within the four corners of s.6 and it does not override or abrogate the independent devolution that occurs u/s.8 upon the intestate death of a Hindu male – To hold otherwise would be to give s.6(5) a reach far beyond its language and purpose. [Paras 47, 53, 64, 70(ii)]

Case Law Cited

Vineeta Sharma v. Rakesh Sharma and Others [2020] 10 SCR 135 : (2020) 9 SCC 1; *Satyadhyay Ghosal and Others v. Deorajin Debi (Smt) and Another* [1960] 3 SCR 590 : AIR 1960 SC 941; *Mathura Prasad Bajoo Jaiswal and Others v. Dossibai N.B. Jeejeebhoy*

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[1970] 3 SCR 830 : (1970) 1 SCC 613; *Nusli Neville Wadia v. Ivory Properties and Others* [2019] 15 SCR 795 : (2020) 6 SCC 557; *Mayar (H.K.) Ltd. and Others v. Owners & Parties, Vessel M.V. Fortune Express and Others* [2006] 1 SCR 860 : (2006) 3 SCC 100; *T. Arivandandam v. T.V. Satyapal and Another* [1978] 1 SCR 742 : (1977) 4 SCC 467; *Church of Christ Charitable Trust and Educational Charitable Society v. Ponniammam Educational Trust* [2012] 6 SCR 404 : (2012) 8 SCC 706; *Saleem Bhai and Others v. State of Maharashtra and Others* [2002] Supp. 5 SCR 491 : (2003) 1 SCC 557; *Singhai Lal Chand Jain v. Rashtriya Swayamsewak Sangh, Panna and Others* [1996] 2 SCR 739 : (1996) 3 SCC 149; *Ganduri Koteshwaramma and Another v. Chakiri Yanadi and Another* [2011] 12 SCR 968 : (2011) 9 SCC 788; *Prasanta Kumar Sahoo and Others v. Charulata Sahu and Others* [2023] 5 SCR 20 : (2023) 9 SCC 641 – referred to.

List of Acts

Code of Civil Procedure, 1908; Hindu Succession Act, 1956; Hindu Succession (Amendment) Act, 2005; Hindu Succession (Karnataka Amendment) Act, 1990; Hindu Succession (Amendment) Bill, 2004.

List of Keywords

Jurisdictional bar; Registered Partition Deed; Coparcenary rights; Class I heirs; Intestate succession; Rejection of plaint; Notional partition; Devolution by survivorship; Devolution by intestate succession; Daughter of a coparcener; *Res judicata*; 'Interlocutory res judicata'; Revisional Jurisdiction; Jurisdictional bar to institution of suit for partition; Propositus died intestate; Written family partition document; Consenting witnesses.

Case Arising From

CIVIL APPELLATE JURISDICTION: Civil Appeal No. 7939 of 2026

From the Judgment and Order dated 29.08.2024 of the High Court of Karnataka at Bengaluru in CRP No.144 of 2023.

Appearances for Parties

Advs. for the Appellant(s):

Ms. Kiran Suri, Sr. Adv., S.J. Amith, S.Jayadevanna, Ms. Aishwarya Kumar, Dr. Mrs. Vipin Gupta, Krishna Kumar, Ms. Nandani Gupta.

B.S. Lalitha and Others v. Bhuvanesh and Others*Advs. for the Respondent(s):*

S N Bhat, Anand Sanjay M Nuli, Puneet Jain, Sr. Advs., V V Gunjal, Shankar Divate, M/S. Nuli & Nuli, Ms. Akhila Wali, Nanda Kumar K B, Shiva Swaroop, Ms. Christi Jain, Om Sudhir Vidyarthi, Ms. Akriti Sharma, Aditya Jain, Siddharth Jain, Harsh Jain, Ritvik Bharadwaj, Sudhanshu Prakash, Ms. Anisha Agarwal, Ishrafil Ansari.

Judgment / Order of the Supreme Court**Judgment****Augustine George Masih, J.**

1. Leave granted.
2. The present appeal, directed against the judgment and order dated 29.08.2024 of the High Court of Karnataka at Bengaluru in Civil Revision Petition No. 144 of 2023, whereby the revision petition filed by Respondent Nos. 1 and 2 (legal representatives of Defendant No. 4 in the suit), stood allowed setting aside the order dated 15.11.2022 passed by the LXI Additional City Civil and Sessions Judge, Bengaluru in O.S. No. 5352/2007, allowing I.A. No. IV filed under Order VII Rule 11(a), (b) and (d) of the Code of Civil Procedure, 1908 (hereinafter, 'the CPC'), and rejecting the plaint.
3. The central question that arises in this appeal is whether the High Court was justified in allowing a second application under Order VII Rule 11 of the CPC seeking rejection of the plaint in a suit for partition filed by the daughters of a Hindu male who died intestate, when an earlier application under Order VII Rule 11(d) raising substantially the same issue had been dismissed by the High Court itself in Regular First Appeal No. 168 of 2009, and that order had attained finality. The appeal also raises the connected question of whether Section 6(5) of the Hindu Succession Act, 1956 (hereinafter, 'the H.S. Act'), as substituted by the Hindu Succession (Amendment) Act, 2005 (39 of 2005) (hereinafter, 'the 2005 Amendment'), operates as a jurisdictional bar to the institution of a suit for partition, or whether it is in the nature of a saving clause only.
4. Sri B.M. Seenappa (hereinafter, 'the propositus') died intestate on 06.03.1985. He was survived by three daughters, namely, B.S. Lalitha, B.S. Vasanthi, and B.S. Jayanthi (Appellant Nos. 1 to 3 herein, who

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were the plaintiffs in the suit); his widow, Smt. Lakshmiddevamma (Defendant No. 1 in the suit); and four sons, namely, B.S. Subhas (Defendant No. 2), B.S. Jai Prakash (Defendant No. 3), B.S. Ramesh (Defendant No. 4, since deceased, now represented by his sons Bhuvanesh and Venkatesh, being Respondent Nos. 1 and 2 herein), and B.S. Ravindranath (Defendant No. 5). The widow and the sons/legal representatives, are the Respondents before this Court.

5. According to the defendants, the properties of the propositus were divided orally among the sons on 06.09.1985 in the presence of Panchayatdars, pursuant to oral directions given by the propositus before his death. It is further claimed by the defendants that on 25.10.1988, money was paid to the three daughters, and they endorsed a written family partition document (Palupatti) as consenting witnesses, recording their no-objection for the brothers to divide the properties among themselves.
6. The appellants dispute both the nature and validity of these transactions. The plaint does not acknowledge or admit the Palupatti of 1988 or any oral partition; it treats the registered Partition Deed dated 16.06.2000 as the only relevant partition and characterises it as having been done “secretly” on the back of the plaintiffs. This deed was executed among the mother and the four sons whereby the properties of the propositus were divided exclusively amongst the sons and the mother. The three daughters were not parties to this deed and no share whatsoever was allotted to them.
7. On 11.07.2007, the plaintiffs/appellants filed a suit seeking partition of five suit schedule properties and allotment of 1/8th share to each of the eight legal heirs (three daughters, four sons, and the mother). The plaint set up the case that the propositus died intestate and that the three daughters, as co-owners were entitled to a share in the properties.
8. On 25.01.2008, Defendant Nos. 1 to 3 filed I.A. No. 2 under Order VII Rule 11(d) of the CPC read with Section 151 thereof, seeking rejection of the plaint on the ground that the suit was barred by the proviso to Section 6(1), Section 6A(d) of the Hindu Succession (Karnataka Amendment) Act, 1990, and Section 6(5) of the H.S. Act. The reliance was on the registered Partition Deed dated 16.06.2000 to contend that the daughters, having been married prior to the Karnataka Amendment, had no right to seek partition. By judgment

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and order dated 29.11.2008, the XXII Additional City Civil Judge, Bangalore, allowed the application and rejected the plaint, holding that the suit was barred by the statutory provisions.

9. The appellants preferred R.F.A. No. 168 of 2009 before the High Court of Karnataka. The High Court, by its judgment dated 31.01.2013, allowed the appeal and set aside the order of plaint rejection, remanding the matter to the Trial Court for fresh disposal. The operative reasoning of the High Court reads as follows:

“In my opinion, even assuming that there is a partition in 2000 prior to 2004, even assuming that the daughters will not get the share, but it is not disputed that their father had died intestate. If they have a share in the father’s share, still the suit can be maintained. If that is so, the Trial Court could not have rejected the plaint without even considering the scope of Order 7 Rule 11(d) of CPC. It is not for the Trial Court to find out whether the plaintiffs would succeed or not. That is not the ground to reject the plaint. Even assuming that the plaintiffs are likely to fail in the suit, that cannot be a ground to go into the merits and decide the matter under Order 7 Rule 11(d) of CPC. Hence, rejection per se being misconceived, is liable to be set aside.”

10. Two aspects of the 2013 order deserve emphasis. First, the High Court proceeded on the assumption most favourable to the defendants, that the partition of 2000 is valid and that the daughters do not get a coparcenary share and still held the plaint to be maintainable because the father had died intestate and the daughters have a right in the father’s share under Section 8. In other words, the ratio of the 2013 order rested not on the coparcenary rights of daughters under the 2005 Amendment, but on the independent right of daughters as Class I heirs under Section 8 of the Act. Second, this order was not challenged further by any party and attained finality. The matter was remanded to the Trial Court, issues were framed, and the suit was set down for evidence.
11. On 16.12.2021, more than eight years after the 2013 order attained finality, the legal representatives of Defendant No. 4 (Respondent Nos. 1 and 2 herein) filed a second application under Order VII Rule 11(a), (b) and (d) of the CPC, being I.A. No. IV, seeking rejection

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of the plaint. It is pertinent to note that the other defendants did not join this application. The application contended that the suit was barred in view of a 'change in law' brought about by the decision of this Court in *Vineeta Sharma v. Rakesh Sharma and Others*¹, which, it was asserted, had settled that Section 6(5) of the H.S. Act operates as a complete bar to suits seeking reopening of partitions effected before 20.12.2004.

12. The appellants objected, contending that: (a) the application was barred by *res judicata* as the identical issue had been decided by the High Court in R.F.A. No. 168 of 2009; and (b) the appellants claim as daughters of a father, who died intestate, are entitled under Section 8 of the H.S. Act.
13. The LXI Additional City Civil and Sessions Judge, Bengaluru, by order dated 15.11.2022, dismissed I.A. No. IV, holding that the 2013 order of the High Court in R.F.A. No. 168 of 2009 operated as *res judicata*. The Trial Court also held, on the merits, that Section 6(5) of the H.S. Act does not create a bar to the filing of the suit.
14. Respondent Nos. 1 and 2 thereupon filed C.R.P. No. 144 of 2023 before the High Court of Karnataka. It is significant that the other defendants did not challenge the Trial Court's order.
15. The High Court, by its impugned judgment and order dated 29.08.2024, allowed the revision petition, set aside the Trial Court's order dated 15.11.2022, allowed I.A. No. IV, and rejected the plaint.
16. While deciding the matter, the High Court addressed two issues: the first being *res judicata* and the second being the effect of proviso to Section 6(1) and Section 6(5) of the H.S. Act to the present matter. On the question of *res judicata*, it held that the principle does not apply for two reasons: first, the earlier application (I.A. No. 2) was filed by Defendant Nos. 1 to 3, whereas the second application (I.A. No. IV) was filed by the legal representatives of Defendant No. 4, and therefore the earlier order "was not passed on an application filed by Defendant No. 4(a), (b) and (d)"; and second, the decision of this Court in *Vineeta Sharma (supra)* constituted a 'change in law' which rendered the 2013 High Court order inapplicable as *Res judicata*.

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17. On the question of Section 6(5) of the Act, the High Court held that the registered Partition Deed dated 16.06.2000 was saved under the proviso to Section 6(1) and Section 6(5) of the Act. The Court observed that the appellants themselves had admitted in paragraph 5 of the plaint that the defendants had partitioned the suit schedule properties, and that the only partition this could refer to was the registered deed of 16.06.2000. Since the Partition Deed was annexed to the plaint, its contents would have to be read as part and parcel of the plaint. The Court held that the saving does not distinguish between the property of the father and the property partitioned amongst other members; the partition was in respect of all properties, and therefore the question of the appellants claiming any particular right in the share of the father did not arise. The Court further held that since the suit sought partition of the entire suit schedule property and not just the father's share, the Partition Deed was saved and the suit unsustainable.
18. The above decision of the High Court dated 29.08.2024 stands assailed in the present Appeal. On 25.10.2024, this Court issued notice and directed that status quo be maintained with respect to the subject properties. It is in the aforesaid factual backdrop and stand of the parties that the present appeal has been heard.
19. Learned counsel appearing for the appellants submitted that the impugned order is vitiated on three grounds, each of which is independently sufficient to set it aside.
20. *First*, it was submitted that the second application under Order VII Rule 11 (I.A. No. IV) is barred by the principle of *res judicata*, both inter-party and interlocutory. The issue of whether the plaint discloses a cause of action notwithstanding the registered Partition Deed was directly and substantially in issue in the first Order VII Rule 11 proceedings, the same was heard and decided on merits by the High Court in R.F.A. No. 168 of 2009, and that decision became final. Reliance was placed on *Satyadhyan Ghosal and Others v. Deorajin Debi (Smt) and Another*², for the proposition that the principle of *res judicata* applies between two stages of the same litigation. It was further submitted that the High Court's observation that *res judicata* does not apply because the first application was filed by

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Defendant Nos. 1 to 3 and the second by the legal representatives of Defendant No. 4 is untenable, inasmuch as all defendants share a common interest and litigate under the same title within the meaning of Explanation VI to Section 11 of the CPC.

21. It was further submitted that the reliance placed by the High Court on *Vineeta Sharma (supra)* as constituting a 'change in law' which overrides *res judicata* is misplaced. The exception recognised in *Mathura Prasad Bajoo Jaiswal and Others v. Dossibai N.B. Jeejeebhoy*³ that a subsequent change in law can render an earlier decision on a pure question of law ineffective as *res judicata* has no application, because *Vineeta Sharma (supra)* does not alter the settled position that where a Hindu male dies intestate, his property devolves under Section 8 on all Class I heirs including daughters, which was the very basis of the 2013 order.
22. *Second*, it was submitted that Section 6(5) of the H.S. Act is a saving clause, not a jurisdictional bar. It saves valid, completed partitions from the retroactive reach of the 2005 Amendment; it does not, in and of itself, bar the institution of a suit. A daughter can always file a suit for partition, and it is a matter for trial whether a valid partition within the meaning of Section 6(5) had in fact been effected. Even if the registered Partition Deed is 'saved' from being invalidated by the 2005 Amendment, the validity of that partition executed without the knowledge or consent of the daughters and that too without giving them any share is itself a contested question that must be adjudicated at trial. An invalid or illegal partition is not saved merely because it is registered.
23. On the scope of Order VII Rule 11, the learned counsel submitted that the provision permits rejection of the plaint only where the suit appears, from the statement in the plaint, to be barred by any law. Reliance was placed on *Nusli Neville Wadia v. Ivory Properties and Others*⁴, for the proposition that disputed questions of fact cannot be decided under Order VII Rule 11; and on *Mayar (H.K.) Ltd. and Others v. Owners & Parties, Vessel M.V. Fortune Express and Others*⁵, for the proposition that the Court is not required to examine at the

3 (1970) 1 SCC 613

4 (2020) 6 SCC 557 (Para 64)

5 (2006) 3 SCC 100 (Para 11)

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threshold stage whether the plaintiffs will ultimately succeed but only whether a cause of action is disclosed.

24. *Third*, it was contended that even assuming that the daughters are not coparceners and the registered Partition Deed is saved under Section 6(5), the propositus having died intestate on 06.03.1985, his undivided share in the coparcenary property devolved by succession on all Class I heirs including the three daughters by virtue of the proviso to the erstwhile unamended Section 6 read with Section 8 of the H.S. Act. This right is independent of the 2005 Amendment and is wholly unaffected by Section 6(5). The suit is, at minimum, maintainable to the extent of the daughters' share in the father's property.
25. In such circumstances referred to above, the learned counsel prays that the appeal be allowed, the impugned order be set aside, the plaint be restored for trial, and the status quo be maintained.
26. Learned counsel appearing for the respondents submitted that the registered Partition Deed dated 16.06.2000 is a partition "effected" before 20.12.2004 within the meaning of Section 6(5) read with its Explanation, and is therefore saved. It was submitted that the appellants themselves produced this deed with the plaint and admitted that the defendants had partitioned the suit schedule properties. Since the Partition Deed was duly registered, acted upon, and several properties further alienated to third parties who have constructed buildings and are in possession, the proviso to Section 6(1) and Section 6(5) of the amended H.S. Act save this partition from being reopened, and the suit is barred by law. Reliance was placed on the decision in *Vineeta Sharma (supra)*.
27. On *res judicata*, it was contended that *Vineeta Sharma (supra)* constitutes a change in law that overrides the 2013 order of the High Court. It was submitted that the first application was filed by Defendant Nos. 1 to 3 only, and the second by the legal representatives of Defendant No. 4 who were not applicants in the earlier proceedings, and therefore *res judicata* does not strictly apply. The learned counsel further submitted that the two applications were filed under different sub-clauses of Order VII Rule 11, the first being under clause (d) alone while the second under clauses (a), (b) and (d).
28. On merits, it was argued that there was an oral partition in 1985, a Palupatti (family settlement document) in 1988 in which the daughters

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received monetary consideration and endorsed the family partition, which amounts to relinquishment and estoppel. It was also submitted that the appellants have not specifically pleaded a claim under Section 8 in the plaint and cannot be allowed to take advantage of clever drafting. Reliance was placed on *T. Arivandandam v. T.V. Satyapal and Another*⁶, and *Church of Christ Charitable Trust and Educational Charitable Society v. Ponniamman Educational Trust*⁷, for the proposition that frivolous and vexatious plaints are liable to be rejected.

29. We have heard the learned counsel appearing for the parties and have perused the materials on record. The following questions fall for our consideration:
- (i) Whether the second application under Order VII Rule 11 (I.A. No. IV) is barred by the principle of *res judicata*;
 - (ii) Whether Section 6(5) of the H.S. Act operates as a bar to the institution of a suit, warranting rejection of the plaint under Order VII Rule 11(d);
 - (iii) Whether the appellants have a right under Section 8 of the H.S. Act that is independent of the 2005 Amendment and unaffected by Section 6(5).
30. Before adverting to the rival submissions canvassed on either side, it is apposite to briefly advert to the settled principles governing the scope of Order VII Rule 11 of the CPC, as they form the doctrinal backdrop against which each of the three questions must be assessed for decision.
31. Order VII Rule 11(d) of the CPC provides that the plaint shall be rejected where the suit appears from the statement in the plaint to be barred by any law. The provision is designed to weed out, at the threshold, suits which are *ex facie* unsustainable. The scope of inquiry under this provision is, however, circumscribed. In *Saleem Bhai and Others v. State of Maharashtra and Others*⁸, this Court in Para 9 held that for deciding an application under Order VII Rule 11, only the averments in the plaint are relevant and the Court cannot look into the written statement or any other external material.

6 (1977) 4 SCC 467

7 (2012) 8 SCC 706

8 (2003) 1 SCC 557

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32. In *Mayar (H.K.) Ltd. (supra)*, this Court in Para 9 held that the question whether the plaint discloses a cause of action is a question of fact which has to be gathered on the basis of the averments made in the plaint in its entirety, taking those averments as correct. The Court cannot reject a plaint under Order VII Rule 11 if any cause of action is disclosed. In *Nusli Neville Wadia (supra)*, this Court reiterated that disputed questions of fact cannot be decided under Order VII Rule 11.
33. With the aforesaid principles as the touchstone, we proceed to examine the three questions formulated above.
34. The principle of *res judicata* is codified in Section 11 of the CPC. It is convenient, at this stage, to reproduce the provision:

“11. Res judicata.—No Court shall try any suit or issue in which the matter directly and substantially in issue has been directly and substantially in issue in a former suit between the same parties, or between parties under whom they or any of them claim, litigating under the same title, in a Court competent to try such subsequent suit or the suit in which such issue has been subsequently raised, and has been heard and finally decided by such Court.

Explanation I.—The expression ‘former suit’ shall denote a suit which has been decided prior to a suit in question whether or not it was instituted prior thereto.

Explanation II.—For the purposes of this section, the competence of a Court shall be determined irrespective of any provisions as to a right of appeal from the decision of such Court.

Explanation III.—The matter above referred to must in the former suit have been alleged by one party and either denied or admitted, expressly or impliedly, by the other.

Explanation IV.—Any matter which might and ought to have been made ground of defence or attack in such former suit shall be deemed to have been a matter directly and substantially in issue in such suit.

Explanation V.—Any relief claimed in the plaint, which is not expressly granted by the decree, shall for the purposes of this section, be deemed to have been refused.

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Explanation VI.—Where persons litigate bona fide in respect of a public right or of a private right claimed in common for themselves and others, all persons interested in such right shall, for the purposes of this section, be deemed to claim under the persons so litigating.”

35. The provision embodies a rule of conclusiveness that is founded in considerations of public policy. It rests upon the salutary doctrine that there must be a finality to litigation, and that a party which has once succeeded or failed on an issue should not be permitted to re-agitate the same at a subsequent stage. The principle applies not only between two separate suits but also between two stages of the same litigation what is referred to as ‘interlocutory *res judicata*.’ In *Satyadhyan Ghosal (supra)*, a three-Judge Bench of this Court in Para 8 held:

“The principle of res judicata applies also as between two stages in the same litigation to this extent that a court, whether a trial court or a higher court having at an earlier stage decided a matter in one way will not allow the parties to re-agitate the matter again at a subsequent stage of the same proceedings.”

36. The issue that was raised in I.A. No. IV, whether the plaint in O.S. No. 5352/2007 is liable to be rejected on the ground that the suit is barred by Section 6(5) of the Act is the same issue that was raised in I.A. No. 2, heard, and decided by the High Court on 31.01.2013 in R.F.A. No. 168 of 2009. The 2013 order held, in terms, that the plaint cannot be rejected at the threshold; that even assuming there is a partition and even assuming the daughters will not get a coparcenary share, the father having died intestate, the daughters have a right in the father’s share; and that whether the plaintiffs would ultimately succeed is not a ground for rejection under Order VII Rule 11(d). That order became final. No materially different ground is raised in the second application.
37. The High Court, in the impugned order, sought to avoid the application of *res judicata* on the ground that the first application was filed by Defendant Nos. 1 to 3, whereas the second was filed by the legal representatives of Defendant No. 4. This reasoning does not commend itself to us. All defendants are sons (or their legal representatives) of the same propositus. They share a common interest: they defend

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the same Partition Deed, resist the same suit for partition, and assert the same plea that the daughters have no right to the suit properties. They litigate under the same title within the meaning of Explanation VI to Section 11 of the CPC, as reproduced above.

38. In *Singhai Lal Chand Jain v. Rashtriya Swayamsewak Sangh, Panna and Others*⁹, this Court clarified that if litigation was conducted bona fide to protect a common interest, the decision operates as *res judicata* against all persons interested in that right. In the present case, the defendants collectively resisted the suit and participated in the first Order VII Rule 11 proceedings. The legal representatives of Defendant No. 4 cannot be heard to say that the 2013 order does not bind them merely because their predecessor did not file the application that gave rise to that order. The interest asserted is indivisible; the parties litigate under the same title.
39. We may further observe that Explanation IV to Section 11 of the CPC provides that “any matter which might and ought to have been made ground of defence or attack in such former suit shall be deemed to have been a matter directly and substantially in issue in such suit.” The respondents’ submission that the two applications were filed under different sub-clauses of Order VII Rule 11, the first under clause (d) alone and the second under clauses (a), (b) and (d) is of no consequence. The ground that the plaint does not disclose a cause of action [clause (a)] or is defective [clause (b)] could have been, and indeed ought to have been, raised in the first application. The mere invocation of additional sub-clauses in the second application does not take the matter outside the scope of *res judicata*. The substance of the issue, whether the plaint should be rejected on the ground that the suit is barred by Section 6(5) of the H.S. Act, remains the same. A party cannot circumvent the finality of an adverse order by re-framing the same challenge under a different procedural provision.
40. The second limb of the High Court’s reasoning, that *Vineeta Sharma* constitutes a ‘change in law’ which overrides *res judicata* is equally unsustainable. It is true that in *Mathura Prasad Bajoo Jaiswal (supra)*, this Court in Para 9 held that a subsequent change in law

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can render an earlier decision on a pure question of law ineffective as *res judicata*. However, this exception applies only where the legal basis of the earlier decision has been undermined by the subsequent pronouncement.

41. The question, therefore, is whether *Vineeta Sharma* effects any change in the law relevant to the 2013 order. The answer, in our view, is in the negative. The 2013 order proceeded on the basis that even assuming the daughters are not coparceners and the partition is valid, the father died intestate and the daughters have a right in the father's share under Section 8 of the H.S. Act. *Vineeta Sharma (supra)* deals with the scope of the 2005 Amendment vis-à-vis coparcenary rights and the saving clause for pre-2004 partitions. It holds, inter alia, that daughters become coparceners by birth, that the 2005 Amendment is retroactive in nature, and that Section 6(5) saves only partitions effected before 20.12.2004 by registered deed or court decree. What *Vineeta Sharma (supra)* does not do is alter the settled position which was the foundation of the 2013 order, that where a Hindu male dies intestate, his property devolves under Section 8 on all Class I heirs including daughters. The "basis" of the 2013 judgment remains entirely undisturbed by *Vineeta Sharma*. The High Court's reasoning that *Vineeta Sharma (supra)* did away with the basis of the 2013 order is, with respect, erroneous.
42. The second application is a transparent attempt to re-agitate a concluded issue by dressing it in the garb of *Vineeta Sharma (supra)*, which, as we have noted above, has no bearing on the core question decided in 2013. The issue raised in the second application was directly and substantially settled by the 2013 judgment. No different factual or legal ground was raised that takes the second application outside the scope of that settled determination. On this ground alone, the impugned order is liable to be set aside.
43. Though the second application is barred by *res judicata*, but for the sake of clarity and completeness, we consider it appropriate to address the question of whether Section 6(5) of the H.S. Act operates as a bar to the suit. Before doing so, it is necessary to set out in brief the relevant statutory provisions and the legislative history.
44. The erstwhile Section 6 of the H.S. Act, as originally enacted in 1956, read as under:

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“6. Devolution of interest in coparcenary property. — When a male Hindu dies after the commencement of this Act, having at the time of his death an interest in a Mitakshara coparcenary property, his interest in the property shall devolve by survivorship upon the surviving members of the coparcenary and not in accordance with this Act:

Provided that, if the deceased had left him surviving a female relative specified in class I of the Schedule or a male relative specified in that class who claims through such female relative, the interest of the deceased in the Mitakshara coparcenary property shall devolve by testamentary or intestate succession, as the case may be, under this Act and not by survivorship.

Explanation 1. —For the purposes of this section, the interest of a Hindu Mitakshara coparcener shall be deemed to be the share in the property that would have been allotted to him if a partition of the property had taken place immediately before his death, irrespective of whether he was entitled to claim partition or not.

Explanation 2. —Nothing contained in the proviso to this section shall be construed as enabling a person who has separated himself from the coparcenary before the death of the deceased or any of his heirs to claim on intestacy a share in the interest referred to therein.”

45. The proviso to the erstwhile Section 6 is of particular significance to the present case. It provided that where the deceased coparcener left behind a female relative specified in Class I of the Schedule, which includes daughters, his interest in the coparcenary property would devolve by intestate succession under the H.S. Act (that is, under Section 8) and not by survivorship. It is this proviso, read with Section 8, that conferred upon the appellant-daughters a right in the father's share upon the father's intestate death in 1985, well before the 2005 Amendment came into force.
46. The substituted Section 6 of the H.S. Act, as amended by the 2005 Amendment and came in force with effect from 09.09.2005, reads as under:

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“6. Devolution of interest of coparcenary property.—

(1) On and from the commencement of the Hindu Succession (Amendment) Act, 2005, in a Joint Hindu family governed by the Mitakshara law, the daughter of a coparcener shall,—

(a) by birth become a coparcener in her own right in the same manner as the son;

(b) have the same rights in the coparcenary property as she would have had if she had been a son;

(c) be subject to the same liabilities in respect of the said coparcenary property as that of a son, and any reference to a Hindu Mitakshara coparcener shall be deemed to include a reference to a daughter of a coparcener:

Provided that nothing contained in this sub-section shall affect or invalidate any disposition or alienation including any partition or testamentary disposition of property which had taken place before the 20th day of December, 2004.

xxx

xxx

xxx

(5) Nothing contained in this section shall apply to a partition, which has been effected before the 20th day of December, 2004.

Explanation.—For the purposes of this section ‘partition’ means any partition made by execution of a deed of partition duly registered under the Registration Act, 1908 (16 of 1908) or partition effected by a decree of a court.”

47. Two features of the substituted Section 6 merit emphasis. First, sub-section (1) confers upon the daughter of a coparcener the status of coparcener by birth, in the same manner as a son. Second, sub-section (5), read with its Explanation, saves from the reach of the substituted Section 6 only those partitions that have been effected before 20.12.2004 by a registered deed or a court decree. The proviso to sub-section (1) and sub-section (5) are, in substance, saving provisions, they preserve the validity of completed past transactions from being unsettled by the new coparcenary rights conferred upon daughters.

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48. The legislative history illuminates the purpose of these saving provisions. The Hindu Succession (Amendment) Bill, 2004 was introduced in the Rajya Sabha on 20.12.2004. The Statement of Objects and Reasons noted that the retention of the Mitakshara coparcenary without including females “contributes to her discrimination on the ground of gender” and “has led to oppression and negation of her fundamental right of equality guaranteed by the Constitution.” The Bill sought to remove this discrimination by giving equal rights to daughters. The Standing Committee of Parliament recommended, inter alia, that the partition of Hindu family property should be properly defined in the Amendment Act, and suggested that partition for all purposes should be either by registered documents or by decree of court. This recommendation was incorporated in the Explanation to Section 6(5).
49. Before advertng to the decision of this Court in *Vineeta Sharma (supra)*, it is necessary to notice the earlier decision of this Court in *Ganduri Koteshwaramma and Another v. Chakiri Yanadi and Another*¹⁰. The question before the Court was whether a preliminary decree of partition amounts to a “partition effected” within the meaning of Section 6(5). The Court answered in the negative. Reading the Explanation appended to Section 6(5), the Court held that the non-applicability of the section is attracted only where partition has been effected before 20.12.2004 by a registered deed of partition or by a decree of a court. A preliminary decree, the Court reasoned, does no more than determine the rights and interests of the parties and it is the final decree that partitions the immovable property by metes and bounds. The suit for partition remains pending in the interregnum, and if supervening circumstances arise between the preliminary and final decree, there is no impediment to the court amending the preliminary decree or passing a fresh one to reflect the changed situation.
50. This Court, in *Vineeta Sharma (supra)*, settled the law governing the interpretation and scope of the substituted Section 6 of the Act. The Court held that Section 6(1), as substituted by the 2005 Amendment, confers coparcenary status upon the daughter by birth, in the same manner as a son, and that the provision is retroactive in nature, the

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daughter is deemed a coparcener from birth, though the rights are claimable only with effect from 09.09.2005. The Court further held that the father coparcener need not be living as on that date. On the scope of the saving clause, the Court held that Section 6(5), read with its explanation, saves only partitions effected before 20.12.2004 by a registered deed of partition or by a decree of a court; no other form of partition is recognised.

51. The Court in *Vineeta Sharma (supra)* was particularly concerned with the potential for misuse of the saving clause. It held that the special definition of partition in the Explanation to Section 6(5) was deliberately enacted to prevent daughters from being deprived of their coparcenary rights through fraudulent or collusive pleas of oral partition or unregistered memoranda of partition. A plea of oral partition based solely on oral evidence must be rejected outright and only in exceptional cases, where such a plea is supported by public documents and is evinced in the same manner as a partition effected by a court decree, may it be entertained. The Court underscored that the object of the beneficial provisions of the 2005 Amendment to secure the equal rights of daughters as coparceners must be given full effect, and courts must not permit that object to be defeated by the setting up of sham or frivolous defences.
52. In *Prasanta Kumar Sahoo and Others v. Charulata Sahu and Others*¹¹, a two-Judge Bench of this Court reiterated the narrow scope of Section 6(5). The Court held, following *Ganduri Koteshwaramma (supra)*, that a preliminary decree of partition does not constitute a “partition effected” under Section 6(5); only a final decree effects partition by metes and bounds. The Court also held that a settlement under Order XXIII Rule 3 of the CPC without the consent and signatures of all co-sharers cannot be sustained.
53. The import of the foregoing decisions, read together, is that Section 6(5) is a saving clause of strict and narrow application. It saves from the retroactive reach of the 2005 Amendment only those partitions that have been *effected* that is, completed and finalised before 20.12.2004 by a registered deed or a court decree. It does not create a jurisdictional bar to the institution of a suit. The distinction between a “bar” and a “saving clause” is legally significant. While a

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bar prevents the Court from entertaining the suit at all, but a saving clause on the other hand provides a defence on merits that must be proved by the party asserting it.

54. In the present case, the plaint does not admit a concluded and binding partition. It characterises the registered Partition Deed of 2000 as having been executed by the wife and sons on the back of the daughters, without their knowledge or consent. The validity of such a partition executed secretly behind the daughters' backs without giving them any share is quintessentially a contested question of fact and law requiring evidence on the nature of the property, the mode of devolution, and the validity of the alleged partitions (oral, Palupatti, and registered). To treat Section 6(5) as foreclosing this inquiry at the threshold is to conflate the existence of a registered deed with the conclusion that the partition is valid and binding on all persons. That conflation is impermissible at the stage of Order VII Rule 11.
55. The High Court's further reasoning that the saving under Section 6(5) does not distinguish between the property of the father and the property partitioned amongst other members, and that therefore, the question of the appellants claiming any particular right in the share of the father does not arise amounts, in substance, to an adjudication on the merits of the suit at the threshold stage. Whether the properties devolved on the sons by survivorship as coparcenary property, or whether the propositus having died intestate in 1985, his undivided share devolved by succession under Section 8 on all Class I heirs including the daughters, is the central contested question in the suit. This is a mixed question of fact and law. It cannot be resolved by reference to the Partition Deed alone; it requires evidence and adjudication. The High Court, in answering this question against the appellants at the revisional stage, exceeded the permissible scope of inquiry under Order VII Rule 11 and, indeed, the revisional jurisdiction under Section 115 of the CPC.
56. The respondents' reliance on the oral partition of 1985 and the Palupatti of 1988 to argue relinquishment and estoppel on the part of the appellants is, in substance, a defence on the merits. The plaint does not admit these facts. They cannot be adjudicated at the Order VII Rule 11 stage. As this Court has consistently held, the averments in the plaint are to be taken as they stand for the purposes of Order VII Rule 11, and the plaint can be rejected only

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if, taking those averments as correct, the suit is shown to be barred by law. No such bar is disclosed.

57. The respondents' reliance on *T. Arivandandam (supra)* and *Church of Christ Charitable Trust (supra)*, does not assist their case. Those decisions deal with complaints that are palpably frivolous or vexatious or that do not disclose any cause of action whatsoever. The present complaint is not of that character. It sets up a specific case of intestate death of the propositus, claims a right as Class I heirs under Section 8, and challenges the validity of a partition executed without the daughters' knowledge or consent. The complaint discloses a clear cause of action that warrants adjudication at trial.
58. The High Court's reasoning that since the suit sought partition of the "entire" suit schedule properties and not just the father's share, the suit was unsustainable, conflates the scope of the relief claimed with the maintainability of the suit. Even if the appellants claimed a larger relief than they may ultimately be entitled to, that is not a ground to reject the complaint under Order VII Rule 11. A complaint claiming relief in excess of what may be ultimately decreed is not thereby rendered barred by law.
59. There is a further dimension to the matter which fortifies the conclusion that the complaint cannot be rejected at the threshold. To appreciate this, it is necessary to briefly set out the scheme of devolution under the H.S. Act as it stood at the time of the death of the propositus in 1985.
60. Section 8 of the H.S. Act provides for the rules of succession governing the devolution of property of a Hindu male dying intestate. The provision reads:

"8. General rules of succession in the case of males. — The property of a male Hindu dying intestate shall devolve according to the provisions of this Chapter—

(a) firstly, upon the heirs, being the relatives specified in class I of the Schedule;

(b) secondly, if there is no heir of class I, then upon the heirs, being the relatives specified in class II of the Schedule;

(c) thirdly, if there is no heir of any of the two classes, then upon the agnates of the deceased; and

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(d) lastly, if there is no agnate, then upon the cognates of the deceased.”

61. Class I of the Schedule to the Act includes, inter alia, son, daughter, widow, and mother. The daughter is a Class I heir and takes simultaneously with the son and the widow. There is no dispute that the three appellants are Class I heirs of the propositus under Section 8 of the Act.
62. The scheme of devolution under the unamended Act, as it stood in 1985, operated as follows. Under the main part of the erstwhile Section 6, the interest of a male Hindu in Mitakshara coparcenary property devolved, upon his death, by survivorship upon the surviving members of the coparcenary. However, the proviso to the erstwhile Section 6 which we have reproduced in paragraph 44 above, created a statutory exception: if the deceased had left behind a female relative specified in Class I of the Schedule (which includes a daughter), then his interest in the coparcenary property would devolve not by survivorship but by testamentary or intestate succession under the Act. The effect of the proviso was to take the deceased's share out of the survivorship pool and subject it to devolution under Section 8. A notional partition was deemed to take place immediately before the death of the coparcener, under Explanation 1 to the erstwhile Section 6, for the purpose of ascertaining the share of the deceased.
63. Applying this scheme to the facts of the present case: the propositus died intestate on 06.03.1985, leaving behind three daughters (who are Class I heirs) besides others. The proviso to the erstwhile Section 6 of the H.S. Act was thereby attracted. A notional partition was deemed to have taken place immediately before the death of the propositus. His undivided share, as ascertained by such notional partition, devolved by intestate succession under Section 8 on all Class I heirs, including the three daughters. This right of the daughters in the father's share accrued in 1985, under the unamended Act. It is wholly independent of the 2005 Amendment and predates it by two decades.
64. Section 6(5) of the H.S. Act, as substituted by the 2005 Amendment, provides that “nothing contained in this section shall apply to a partition, which has been effected before the 20th day of December, 2004.” The words “nothing contained in this section” refer to the substituted Section 6, that is, the new coparcenary rights conferred

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upon daughters by Section 6(1). Section 6(5) saves pre-2004 partitions from the retroactive reach of those new coparcenary rights. It does not, and on its plain language cannot, purport to extinguish the pre-existing rights of Class I heirs under Section 8, which accrued independently of the 2005 Amendment by operation of the proviso to the erstwhile Section 6 read with Section 8. The saving clause operates within the four corners of Section 6 and it does not override or abrogate the independent devolution that occurs under Section 8 upon the intestate death of a Hindu male. To hold otherwise would be to give Section 6(5) a reach far beyond its language and purpose.

65. The 2013 order of the High Court proceeded on precisely this basis. The operative reasoning of the High Court in R.F.A. No. 168 of 2009 which we have reproduced in paragraph 9 above held that even assuming the daughters are not coparceners and the partition is valid, the father having died intestate, the daughters have a share in the father's share, and the suit can be maintained. *Vineeta Sharma (supra)* does not touch this reasoning rather it deals with the coparcenary rights of daughters under the substituted Section 6(1). It does not address, let alone alter, the independent right of daughters as Class I heirs under Section 8 upon the intestate death of their father. The proposition that upon the intestate death of a Hindu male, his property devolves on all Class I heirs under Section 8 including daughters is a settled proposition of law that predates the 2005 Amendment and has remained undisturbed by any subsequent decision of this Court.
66. The respondents claim that the appellants failed to specifically request a claim under Section 8 and therefore have no right or entitlement is misplaced as the wording of the plaint itself clearly refutes this argument. The plaint sets up the case that the propositus died intestate and that the daughters, as legal heirs, are entitled to a share in his properties. It claims 1/8th share for each of the eight legal heirs. The plaint need not recite the specific section number, it suffices that the bundle of facts pleaded brings the case within the ambit of Section 8. As this Court held in *Mayar (H.K.) Ltd. (supra)*, the question whether the plaint discloses a cause of action is to be gathered on the basis of the averments made in the plaint in its entirety, taking those averments as correct. The rights of the parties are to be determined by the Court on the basis of the facts pleaded, not on the nomenclature of the statutory provision invoked.

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67. The suit is, at minimum, maintainable to the extent of the appellants' claim in the share of the propositus, and the plaint cannot be rejected at the threshold on the ground that Section 6(5) saves the registered Partition Deed. Even assuming the partition is valid and is saved under Section 6(5), a question on which we express no opinion, the daughters' right in the father's undivided share, which devolved on them by operation of law in 1985, is not extinguished by the subsequent partition of 2000. Whether the Partition Deed of 2000 is binding on the daughters, who were not parties to it, in respect of the father's share, is a question for the Trial Court to adjudicate upon evidence.
68. Before concluding, we may advert to a further aspect. The High Court exercised its jurisdiction under Section 115 of the CPC. The revisional jurisdiction is supervisory in nature and limited in scope; the High Court may interfere only if the subordinate court has exercised a jurisdiction not vested in it by law, or has failed to exercise a jurisdiction so vested, or has acted in the exercise of its jurisdiction illegally or with material irregularity. In the present case, the Trial Court's order dismissing I.A. No. IV was a reasoned order correctly applying the principle of *res judicata* with reference to the 2013 order and rightly holding that Section 6(5) does not bar the suit. In setting aside that order and rejecting the plaint, the High Court surpassed its jurisdiction, it not only conducted an independent and *de novo* appraisal of the merits of the dispute, the scope of the Partition Deed but also the rights of the parties under Section 6(5) at the threshold stage. This exceeded the permissible scope of revisional jurisdiction under Section 115 of the CPC.
69. We express no opinion on the merits of the suit, including the validity of the registered Partition Deed, the nature and devolution of the suit properties, the effect of the oral partition or the Palupatti, or the shares of the parties. These are questions for the Trial Court to adjudicate upon evidence adduced by the parties. We observe only that the plaint discloses a cause of action that is not barred by any provision of law, and that the rejection of the plaint at the threshold was not warranted. The appellants' right to have their suit adjudicated on the merits cannot be foreclosed by a second Order VII Rule 11 application that is itself barred by *res judicata*.
70. We may draw our conclusions as under:

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- (i) The second application under Order VII Rule 11 of the CPC (I.A. No. IV, filed 16.12.2021 by the legal representatives of Defendant No. 4) is barred by the principle of *res judicata*, inasmuch as the identical issue was directly and substantially in issue in the first Order VII Rule 11 proceedings, was heard and decided by the High Court in R.F.A. No. 168 of 2009 by its order dated 31.01.2013, and that order attained finality. The legal representatives of Defendant No. 4 litigate under the same title as Defendant Nos. 1 to 3 within the meaning of Explanation VI to Section 11 of the CPC, and the decision of this Court in *Vineeta Sharma (supra)* does not constitute a 'change in law' relevant to the basis of the 2013 order.
 - (ii) Section 6(5) of the H.S. Act is a saving clause of narrow and strict application. It does not create a jurisdictional bar to the institution of a suit for partition. Whether a valid partition within the meaning of Section 6(5) has been effected, and whether such partition is binding on persons who were not parties to it, are contested questions of fact and law that must be adjudicated at trial. The High Court erred in rejecting the plaint at the threshold on the basis of Section 6(5).
 - (iii) The appellants have an independent right under Section 8 of the H.S. Act, 1956 as Class I heirs of the propositus who died intestate on 06.03.1985. This right accrued in 1985 by operation of the proviso to the erstwhile Section 6 read with Section 8, is independent of the 2005 Amendment, and is unaffected by Section 6(5). The suit is maintainable, at minimum, to the extent of the appellants' claim in the share of the propositus.
71. In the light of the foregoing discussion, we are of the considered view that the High Court committed an error in allowing the second application under Order VII Rule 11, which was barred by *res judicata*, in holding that Section 6(5) of the Act creates a bar to the institution of the suit, and in rejecting the plaint at the threshold without permitting the trial to proceed on the contested questions of fact and law. The impugned judgment and order dated 29.08.2024 passed by the High Court of Karnataka in C.R.P. No. 144 of 2023 is accordingly set aside. The order dated 15.11.2022 passed by the LXI Additional City Civil and Sessions Judge, Bengaluru, dismissing I.A. No. IV, is restored. The plaint in O.S. No. 5352/2007 shall stand restored to file.

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72. The status quo with respect to the subject properties, as directed by this Court's order dated 25.10.2024, shall continue to remain in operation until further orders of the Trial Court.
73. The Trial Court shall proceed with the suit expeditiously and endeavour to conclude the trial at an early date.
74. The appeal is allowed in the above terms. No order as to costs.
75. Pending applications, if any, stand disposed of.

Result of the case: Appeal allowed.

[†]Headnotes prepared by: Nidhi Jain

Jennifer Messias

v.

Leonard G Lobo

(Civil Appeal No(s). 7980-7981 of 2026)

18 May 2026

[K.V. Viswanathan and S.V.N. Bhatti,* JJ.]

Issue for Consideration

Whether the Decree in question is a simple Preliminary Decree, or whether the Trial Court, made it both a Preliminary and a Final Decree; whether the same could be put to Execution; whether the High Court erred in interdicting the Execution Proceedings holding that before putting the Decree to Execution, a Final Decree was necessary.

Headnotes[†]

Code of Civil Procedure, 1908 – s.2(2), Or.XX r.18, Or.XX r.12 – Preliminary decree when itself final decree – Appellant filed Suit for partition and separate possession of the Subject Flat – Preliminary Decree passed by Trial Court *inter alia* directing the Advocate Commissioner to work out the division of the subject flat by metes and bounds however, in case such partition cannot be made the Subject Flat be sold, and the sale consideration be divided between the parties – Advocate Commissioner reported that the physical division of the Subject Flat by metes and bounds was not possible – Executing Court directed the public auction of the Subject Flat in terms of the Preliminary Decree – Petition filed by Respondent seeking direction to restrain the Executing Court from proceeding with the Execution – High Court interdicted the Execution Proceedings holding that a preliminary decree cannot be executed directly and the existence of a final decree is *sine qua non* for execution and; that the Appellant was at liberty to approach the trial Court for grant of final decree in terms of preliminary decree – Interference with:

* Author

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Held: High Court proceeded by the nomenclature of the Decree without appreciating that, in certain circumstances, an Order made u/ss.2 to 4 of the Partition Act is also a deemed Decree within the meaning of s.2(2), CPC – Orders impugned do not refer to the clauses in the Decree – The conclusion reached by the High Court is that, before putting the same to Execution, a Final Decree was necessary – The Decree, for all purposes, determined the entitlement or right to possession, *mesne* profits, and the first option regarding the mode and manner of working out the shares, in the event of default in the sale of the Subject Flat – The direction to file a fresh application after the passing of a Final Decree is completely unwanted – In the facts and circumstances of this case, the Decree should be construed as indicated – Termination of Execution Proceedings was an illegal exercise of jurisdiction, set aside – Execution Case restored – Partition Act – ss.2, 4. [Paras 16, 17]

Preliminary Decree; Final Decree – Object, purpose and scope, discussed. [Para 13]

Case Law Cited

Shankar Balwant Lokhande v. Chandrakant Shankar Lokhande [1995] 2 SCR 776 : (1995) 3 SCC 413; *Bimal Kumar v. Shakuntala Debi* [2012] 2 SCR 195 : (2012) 3 SCC 548; *Kattukandi Edathil Krishnan v. Kattukandi Edathil Valsan* [2022] 7 SCR 1120 : (2022) 16 SCC 71 – referred to.

List of Acts

Code of Civil Procedure, 1908; Partition Act.

List of Keywords

Order XX Rule 18 of CPC; Final Decree in a Suit for Partition; Order XX Rule 12 of CPC; Section 2(2) of CPC; “decree”; Preliminary Decree itself final Decree; Not simple Preliminary Decree; Executable portion; Nomenclature of Decree; Decree determined entitlement; Decree determined right to possession; Decree determined *mesne* profits; Sections 2 to 4 of Partition Act; Deemed Decree; Decree for possession and *mesne* profits; Termination of Execution Proceedings illegal; Execution Case restored; Advocate Commissioner; Court Commissioner.

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Case Arising From

CIVIL APPELLATE JURISDICTION: Civil Appeal No(s). 7980-7981 of 2026

From the Judgment and Order dated 27.07.2023 & 20.03.2025 of the High Court of Madhya Pradesh Principal Seat at Jabalpur in MP No. 2005 of 2022 and in RP No. 947 of 2023, respectively.

Appearances for Parties

Advs. for the Appellant(s):

Abhishek Gulatee, Naveen Chaturvedi.

Advs. for the Respondent(s):

Siddharth R. Gupta, Mrigank Prabhakar, Pramod Thakre, Rahul Rawat, Shantanu Sharma, Ms. Surbhi Saxena, Uddaish Palya, Ms. Astha Singh, Aman Agarwal.

Judgment / Order of the Supreme Court

Judgment

S.V.N. Bhatti, J.

1. Leave granted.
2. The Civil Appeals arise from Orders dated 27.07.2023 in Miscellaneous Petition No. 2005 of 2022 and 20.03.2025 in the Review Petition No. 947 of 2023, in the High Court of Madhya Pradesh at Jabalpur. The impugned Orders, in effect, have set aside the Execution Proceedings pending before the IInd Additional Judge, Jabalpur, in Civil Suit No. 7A/2011. The outcome of the adjudication appears simple, but the Civil Appeals exemplify the Comedy of Errors.¹ The polemic, which is the subject of the final adjudication, is whether the Decree dated 13.04.2012 is a Preliminary or a Final Decree in itself, and whether the same could be put to Execution. The narrative sounds interesting to the fraternity. Still, the ordeal the Appellant is undergoing reminds us of the oft-quoted expression that *“the difficulties of a litigant in India begin when he has obtained a decree”*.

¹ An event or series of events made ridiculous by the number of errors that were made throughout. (Merriam Webster Dictionary)

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3. Jennifer/Appellant and Peter Messias were married in 1980. In 1991, the couple purchased Flat No. 101, Amba Apartment, Civil Line, Jabalpur, also referred to as 101-A in the Advocate Commissioner's Report ("Subject Matter") from their combined income. The couple was judicially separated in 2003, which this Court confirmed in 2004. Peter Messias was stated to have possession of the Subject Matter purchased by the couple. On 26.03.2014, Peter Messias died. Leonard G. Lobo/the Respondent, claims to be representing the interests of the deceased Peter Messias on the basis of a registered Will dated 22.03.2014. In the Civil Appeals, we are not examining the relationship or proximity of the respondent to the deceased Peter Messias. The Respondent has remained in possession of the Subject Matter of the Appeals by claiming through the late Peter Messias.
4. Appellant filed Civil Suit No. 7A/2011 for partition and separate possession of the Subject Matter. On 13.04.2012, the Trial Court passed a Preliminary Decree. The clauses relevant in the Preliminary Decree are excerpted:

"(A) It is declared that the plaintiff is entitled to partition of the suit property Flat no. 101, Amba Apartment, Civil Lines, Jabalpur and obtain possession of her one-half share.

(B) The plaintiff is entitled to receive mesne profits of Rs. 1500/- per month in lieu of rent for her share of the suit property from the date of filing the suit till the date of taking possession of her one-half share.

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2. And it is further ordered and decreed be and is hereby appointed as Commissioner to make partition of the said property according to the shares given above.

3. That if the said Commissioner finds that partition cannot be made equal between the parties according their respective rights without prejudice to the rights and interest of some of them he shall report the amount of compensation to be made by the parties for quality of partition."

5. The Appellant, as part of an intentional or unintentional comedy of errors, filed an Execution Application to execute the Decree dated 13.04.2012 in Civil Suit No. 7A/2011. On 07.08.2013, the Execution

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Petition was dismissed. The Appellant was prompted to file an application under Order XX Rule 18 of the Code of Civil Procedure, 1908 ("CPC"), numbered Execution No. EX-A-1600007/14. Peter Messias died on 26.03.2014. On 15.07.2015, the Respondent was brought on record as the legal representative of the deceased Peter Messias in the Execution Petition. On 13.05.2016, the High Court dismissed Civil Revision No. 47 of 2016, challenging the Respondent's impleadment. While dismissing the Revision, it was directed that the Appellant's application under Order XX Rule 18 of the CPC be treated as an Interlocutory Application within the pending civil suit, rather than a separate Execution Proceeding. In terms of the said condition, the Execution Court appointed the Advocate Commissioner, and the Advocate Commissioner's Report, dated 17.04.2019, stated that the Subject Matter, a small portion described as a flat, is not available for division by metes and bounds. The Executing Court, vide Order dated 05.07.2019, directed the public auction of the Subject Matter in terms of the condition to the Decree dated 13.04.2012. The Respondent again moved the High Court in Miscellaneous Petition No. 4893 of 2019, complaining about the steps taken by the court in relation to the sale of the Subject Matter and the apportionment of the sale consideration in terms of the Decree dated 13.04.2012. On 24.09.2019, the High Court again interfered with the steps initiated by the Appellant on 26.03.2014. The operative portion reads thus:

"The Court on receiving the report of Commissioner can pass order for sale of property and distribution of proceeds. Civil Court can also issue further directions under Order 20 Rule 18 of CPC as the Rule stipulates further directions may be issued. This Court in C.R.No.47/2016 has passed the order that application under Order 20 Rule 18 of CPC is to be treated as an interlocutory application in pending civil suit and proceed with the same. Since the report of Commissioner is received, therefore, Court ought to have pass a final decree in the civil suit and thereafter, property ought to have been put to auction. In this case, Executing Court is proceeded ahead for execution of preliminary decree, which is not permissible in law.

Therefore, the impugned order dated 05.07.2019 is set-aside, it is directed to the XV Additional District Judge, Fast-Track Court, Jabalpur to proceed on the report of

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Commissioner in Civil Suit No.7-A/2011 and pass order considering the report of Commissioner as per the provisions under Order 26 Rule 14 of CPC and further pass orders as per Order 20 Rule 18 (2) of CPC and to draw a final decree, which will be executed by the Executing Court.”

6. To comply with partition laws and to allow pre-emptive rights, the Executing Court initiated a bidding process between the parties. The Respondent offered Rs. 12,81,181/- for the Appellant's share. Subsequently, the Appellant submitted a higher sealed bid of Rs. 13,60,000/- for the purchase of the Respondent's share. Before the bidding process could be finalised, the Respondent again filed a Miscellaneous Petition No. 2005 of 2022, praying for a direction to restrain the Executing Court from proceeding with the Execution in Case No. EX-A-1600007/14. Through the impugned Order, the High Court interdicted the Execution Proceedings and left open for consideration of remedies available to the Appellant as follows:

“19. Therefore, the proceedings which have been initiated by the Executing Court if are subjected to scrutiny while keeping in view the provisions of Code of Civil Procedure as stipulated in Section 2(2) CPC as well as Order 20 Rule 18 of CPC and also the pronouncement made by the Apex Court in the aforesaid decision, the trial Court even could not have received the preliminary decree for the purposes of the execution thereof. The existence of a final decree is sine qua non for execution. A preliminary decree cannot be executed directly and in terms of the law laid down by the Apex Court in the case of Hameed Joharan (supra), the Executing Court even cannot receive the preliminary decree.

20. Therefore, the execution proceedings pending before the Court of 2nd Additional District Judge, Jabalpur are set aside. The decree holder is at liberty to approach the trial Court by way of an application for grant of final decree in terms of preliminary decree dated 13.04.2012 (Annexure-P/1), such an application if moved in terms of this order by the plaintiff/decreed holder the same shall be dealt with by the trial Court in accordance with law.”

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7. The Appellant filed a Review Petition, which was dismissed vide order dated 20.03.2025. Hence, the Civil Appeals at the instance of the Plaintiff/Decree Holder.
8. Advocate Abhishek Gulatee for the Appellant argues that the Orders dated 27.07.2023 and 20.03.2025 fail to appreciate the earlier Orders of the Executing Court dated 05.07.2019 and the High Court dated 24.09.2019. The fundamental error in the High Court's appreciation is that it proceeds on the nomenclature assigned to the Decree dated 13.04.2012. The Appellant filed an Execution Application at the 1st instance, which was dismissed on 07.08.2013. The Appellant then filed an Application under Order XX Rule 18 of the CPC, registered as EX-A-1600007/14. Order XX Rule 18 of the CPC speaks of the passing of a Final Decree in a Suit for Partition. The Court Commissioner, given the extent available for Partition and the attendant circumstances of the Report, stated that the Subject Matter cannot be partitioned by metes and bounds. The Executing Court rightly ordered the public auction of the Subject Matter, and there have been bids and counter-bids from both the Appellant and the Respondent. The High Court also interdicted the Execution Proceedings, and a direction has now been issued to file an application for a Final Decree. It is urged that, in view of the Advocate Commissioner's Report dated 17.04.2019, the Subject Matter is unavailable for partition by metes and bounds through a Final Decree. Therefore, the Preliminary Decree itself is final; the auction of the Subject Matter is the only solution; and directing the filing of an Application under Order XX, Rule 18 (2) of the CPC is not even procedural but a purely academic pursuit.
9. Advocate Siddharth R. Gupta for the Respondent argues that the Decree dated 13.04.2012 is a pure and simple Preliminary Decree. In law, a Preliminary Decree is not executed, as it merely determines the rights to which the parties are entitled. The Executable Decree becomes available upon the passing of the Final Decree. In law, there is a clear distinction between a Preliminary Decree and a Final Decree. No Exception could be taken to the impugned Orders. To sum up, it is urged that Execution Proceedings are not maintainable; the previous Orders have attained finality; the determining factor for initiating Execution Proceedings is whether the Decree is Preliminary or Final; the High Court acted well within its jurisdiction; and the Appellant is not entitled to any mesne profits because the delay is attributable to the Appellant.

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10. We have taken note of the submissions and perused the record.
11. Section 2(2) of the CPC defines a “decree” and reads as follows:

“(2) “decree” means the formal expression of an adjudication which, so far as regards the Court expressing it, conclusively determines the rights of the parties with regard to all or any of the matters in controversy in the suit and may be either preliminary or final. It shall be deemed to include the rejection of a plaint and the determination of any question within section 144, but shall not include—

(a) any adjudication from which an appeal lies as an appeal from an order, or

(b) any order of dismissal for default.

Explanation.—A decree is preliminary when further proceedings have to be taken before the suit can be completely disposed of. It is final when such adjudication completely disposes of the suit. It may be partly preliminary and partly final;”

12. Under Order XX Rule 12 of the CPC, a court may pass a Decree for possession and/or mesne profits, and under Order XX Rule 18 of the CPC, the court may pass a Decree in suit for partition of property or for separate possession. The said Rules provide as follows:

Order XX Rule 12 of the CPC

“12. Decree for possession and mesne profits.—(1) Where a suit is for the recovery of possession of immovable property and for rent or mesne profits, the Court may pass a decree—

(a) for the possession of the property;

[(b) for the rents which have accrued on the property during the period prior to the institution of the suit or directing an inquiry as to such rent.

(ba) for the mesne profits or directing an inquiry as to such mesne profits;]

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(c) directing an inquiry as to rent or mesne profits from the institution of the suit until—

(i) the delivery of possession to the decree-holder,

(ii) the relinquishment of possession by the judgment-debtor with notice to the decree-holder through the Court, or

(iii) the expiration of three years from the date of the decree, whichever, event first occurs.

(2) Where an inquiry is directed under clause (b) or clause (c), a final decree in respect of the rent or mesne profits shall be passed in accordance with the result of such inquiry.”

Order XX Rule 18 of the CPC

“18. Decree in suit for partition of property or separate possession of a share therein.—Where the Court passes a decree for the partition of property or for the separate possession of a share therein, then,—

(1) if and in so far as the decree relates to an estate assessed to the payment of revenue to the Government, the decree shall declare the rights of the several parties interested in the property, but shall direct such partition or separation to be made by the Collector, or any gazetted subordinate of the Collector deputed by him in this behalf, in accordance with such declaration and with the provisions of section 54;

(2) if and in so far as such decree relates to any other immovable property or to movable property, the Court may, if the partition or separation cannot be conveniently made without further inquiry, pass a preliminary decree declaring the rights of the several parties interested in the property and giving such further directions as may be required.”

Accordingly, all the steps have been complied with.

13. The Object, purpose and scope of the Preliminary Decree and a Final Decree have been explained in a catena of decisions, and we are not purposing to burden the Judgment with precedents when the position of the law is well established, but we refer to *Shankar*

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*Balwant Lokhande v. Chandrakant Shankar Lokhande*² and *Bimal Kumar v. Shakuntala Deb*³, stating the following:

Shankar Balwant Lokhande v. Chandrakant Shankar Lokhande
(*supra*)

“3. xxx Section 2(2) of CPC defines ‘decree’ to mean “the formal expression of an adjudication which, so far as regards the Court expressing it, conclusively determines the rights of the parties with regard to all or any of the matters in controversy in the suit and may be either preliminary or final”. A preliminary decree is one which declares the rights and liabilities of the parties leaving the actual result to be worked out in further proceedings. Then, as a result of the further inquiries conducted pursuant to the preliminary decree, the rights of the parties are fully determined and a decree is passed in accordance with such determination which is final. Both the decrees are in the same suit. Final decree may be said to become final in two ways: (i) when the time for appeal has expired without any appeal being filed against the preliminary decree or the matter has been decided by the highest Court; (ii) when, as regards the court passing the decree, the same stands completely disposed of. It is in the latter sense the word ‘decree’ is used in Section 2(2) of CPC. The appealability of the decree will, therefore, not affect its character as a final decree. The final decree merely carries into fulfilment the preliminary decree.

4. Order 20, Rule 18 envisages passing of a decree for partition of property or for separate possession of a share therein. Sub-rule (2) is material which provides that “if and insofar as such decree relates to any other immovable property or to moveable property, the Court may, if the partition or separation cannot be conveniently made without further inquiry, pass a preliminary decree declaring the rights of the several parties interested in the property and giving

2 (1995) 3 SCC 413.

3 (2012) 3 SCC 548.

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such further directions as may be required". (emphasis ours) Thus, it could be seen that where the decree relates to any immovable property and the partition or separation cannot be conveniently made without further inquiry, then the court is required to pass a preliminary decree declaring the rights of several parties interested in the property. The court is also empowered to give such further directions as may be required in this behalf. A preliminary decree in a partition action, is a step in the suit which continues until the final decree is passed. In a suit for partition by a coparcener or co-sharer, the court should not give a decree only for the plaintiff's share, it should consider shares of all the heirs after making them parties and then pass a preliminary decree. The words "declaring the rights of the several parties interested in the property" in sub-rule (2) would indicate that shares of the parties, other than the plaintiff(s), have to be taken into account while passing a preliminary decree. Therefore, preliminary decree for partition is only a declaration of the rights of the parties and the shares they have in the joint family or coparcenary property, which is the subject-matter of the suit. The final decree should specify the division by metes and bounds and it needs to be engrossed on stamped paper."

Bimal Kumar v. Shakuntala Debi (*supra*)

"25. In the said case, after referring to Civil Procedure Code by Mulla, this Court in Renu Devi case [(2003) 10 SCC 200 : AIR 2003 SC 1608], while drawing a distinction between the preliminary and the final decree, has stated that a preliminary decree declares the rights or shares of the parties to the partition. Once the shares have been declared and a further inquiry still remains to be done for actually partitioning the property and placing the parties in separate possession of the divided property, then such inquiry shall be held and pursuant to the result of further inquiry, a final decree shall be passed. A preliminary decree is one which declares the rights and liabilities of the parties leaving the actual result to be worked out in further proceedings. Then, as a result of the further inquiries conducted pursuant to the preliminary decree, the

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rights of the parties are finally determined and a decree is passed in accordance with such determination, which is the final decree. Thus, fundamentally, the distinction between preliminary and final decree is that: a preliminary decree merely declares the rights and shares of the parties and leaves room for some further inquiry to be held and conducted pursuant to the directions made in the preliminary decree which inquiry having been conducted and the rights of the parties finally determined a decree incorporating such determination needs to be drawn up which is the final decree.

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32. It is well settled in law that a preliminary decree declares the rights and liabilities, but in a given case, a decree may be both preliminary and final and that apart, a decree may be partly preliminary and partly final. It has been so held in Rachakonda Venkat Rao v. R. Satya Bai [(2003) 7 SCC 452 : AIR 2003 SC 3322]. It is worth noting that what is executable is a final decree and not a preliminary decree unless and until the final decree is a part of the preliminary decree. That apart, a final decree proceeding may be initiated at any point of time. It has been so enunciated in Hasham Abbas Sayyad v. Usman Abbas Sayyad [(2007) 2 SCC 355]."

(Emphasis supplied)

14. Therefore, the crux of the consideration is whether the Decree dated 13.04.2012 is a simple Preliminary Decree, or whether the Trial Court, in its wisdom, has made it both a Preliminary and a Final Decree. This is determined not by Authorities but by the very Decree.
15. The Decree dated 13.04.2012 has the following facets: -
 - A. The Appellant and Peter Messias are entitled to a half share each in the Subject Matter.
 - B. The Appellant is entitled to the possession of the Subject Matter.
 - C. The Appellant is kept out of possession; therefore, fixed mesne profits of Rs. 1500/- are directed to be paid till the date of taking possession of the half share.

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- D. The Advocate Commissioner is directed to work out the division by metes and bounds, and in default, the Subject Matter is sold, and the sale consideration is divided between the parties.
16. We take note of the Trial Court's foresight in incorporating a condition for the appointment of an Advocate Commissioner and the course to be followed if a Final Decree by metes and bounds could not be passed. The Appellant moved an Execution Petition in the first instance, which was dismissed on 07.08.2013. The Appellant then moved an Application under Order XX Rule 18 of the CPC for the passing of a Final Decree. The Advocate Commissioner reported to the Court that the physical division of the Subject Matter by metes and bounds is not possible. This led to a direction to initiate bidding on the Subject Matter between the parties. The Respondent participated and again filed Miscellaneous Petition No. 2005 of 2022 in the High Court to restrain the Executing Court from proceeding further with the matter. This argument was accepted by the High Court, with reference to the Judgment of this Court in *Kattukandi Edathil Krishnan*.⁴ We would have appreciated it if the High Court had juxtaposed the Decree and determined whether the executable portion thereof is being executed. The High Court has proceeded by the nomenclature of the Decree without appreciating that, in certain circumstances, an Order made under Sections 2 to 4 of the Partition Act is also a deemed Decree within the meaning of Section 2(2) of the CPC. The judgments relied on by the High Court are distinguishable and apt in the circumstances considered in those precedents. The very judgment relied on by the High Court observes that there is no need to file an Application under Order 20 Rule 18 of the CPC seeking a Final Decree.⁵ Still, the Appellant is called to file an application. This is another error or Comedy of Errors. The

4 *Kattukandi Edathil Krishnan v. Kattukandi Edathil Valsan*, (2022) 16 SCC 71.

5 *Kattukandi Edathil Krishnan* (*supra*)

"35. We are of the view that once a preliminary decree is passed by the trial court, the court should proceed with the case for drawing up the final decree suo motu. After passing of the preliminary decree, the trial court has to list the matter for taking steps under Order 20 Rule 18CPC. The courts should not adjourn the matter sine die, as has been done in the instant case. There is also no need to file a separate final decree proceedings. In the same suit, the court should allow the party concerned to file an appropriate application for drawing up the final decree. Needless to state that the suit comes to an end only when a final decree is drawn. Therefore, we direct the trial courts to list the matter for taking steps under Order 20 Rule 18CPC soon after passing of the preliminary decree for partition and separate possession of the property, suo motu and without requiring initiation of any separate proceedings."

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Orders impugned do not refer to the clauses in the Decree. The conclusion reached by the High Court is that, before putting the same to Execution, a Final Decree is necessary. The Decree dated 13.04.2012, for all purposes, determined the entitlement or right to possession, mesne profits, and the first option regarding the mode and manner of working out the shares, in the event of default in the sale of the Subject Matter. The direction to file a fresh application after the passing of a Final Decree is completely unwanted. In the facts and circumstances of this case, for the ends of justice to be met, the Decree should be construed as indicated above. The termination of Execution Proceedings No. EX-A-1600007/14 amounts to an illegal exercise of jurisdiction and is set aside.

17. We take note that the Advocate Commissioner's Report dated 17.04.2019 states that the Subject Matter cannot be partitioned by metes and bounds, and that the Trial Court was well within its jurisdiction in proceeding with the bidding of the Subject Matter and apportioning half of the sale consideration between the parties. However, because of the Order of the High Court, the same could not be proceeded with. Hence, we restore the Execution Case No. EX-A-1600007/14 to file, and the Court is directed to entrust the warrant to the same Advocate Commissioner who filed the Report dated 17.04.2019, and if not possible, appoint another Advocate Commissioner for conducting the auction and apportioning the same between the parties. While apportioning, the Trial Court takes into account the condition of the mesne profits and disburses the balance to the Respondent. The parties are permitted to bid along with other participants in the course of the sale of the Subject Matter. We take note that the Appellant is a septuagenarian and direct the Trial Court to complete the proceedings within 2 months of receiving this Order. The Registry of this Court is directed to communicate the Order forthwith.
18. Consequently, the Civil Appeals are allowed. No order as to costs. Pending application(s), if any, stand disposed of accordingly.

Result of the case: Appeals allowed.

Dr. Manoj Kumar Rawat

v.

State of UP & Ors.

(Civil Appeal No. 7996 of 2026)

19 May 2026

[J.K. Maheshwari* and Atul S. Chandurkar, JJ.]

Issue for Consideration

Issue arose whether s.13(4) of the Uttar Pradesh Higher Education Services Commission Act, 1980 can be interpreted to permit fresh recommendation or change in place of posting of a waitlisted candidate, who has already been recommended for appointment elsewhere; and whether, after enforcement of the Uttar Pradesh Education Service Selection Commission Act, 2023, repealing the Old Act, the recommendation dated 13.12.2023 and consequential communications and placement order dated 12.01.2024 and 15.01.2025, issued in favour of the appellant can be sustained within the statutory scheme of the New Act.

Headnotes[†]

Uttar Pradesh Higher Education Services Commission Act, 1980 – Uttar Pradesh Education Service Selection Commission Act, 2023 – s.31 – Repeal and Savings – Effect – Appellant placed in the panel of wait listed candidates for the post of Principal in non-Government Aided Colleges – Thereafter, the Director recommended the name of the appellant for appointment as Principal of P.G College – However, on account of his family circumstances, the appellant did not take any step for joining or to take charge for PG College and requested to be appointed as Principal on the vacant posts in some other college or Meerut college – Director contended that in furtherance to the provisions of the Old Act and the recommendation, the appellant was required to join PG College and that after making such recommendation, there existed no provision for changing the place of posting under the relevant Government instructions or the applicable laws – In the meantime, the New Act came to be notified, thereby repealing the Old Act – After repeal, the Director

* Author

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vide order 13.12.2023 recommended the Management to appoint the appellant as Principal of Meerut College and issue appointment order within thirty days – Respondent no.6, then Officiating Principal of Meerut College filed the writ petition on the ground that once a wait listed candidate has been issued direction for appointment at one place, the scheme of the Old Act doesn't permit any change to the same; that after commencement of the New Act, the Old Act stood repealed and the act done thereunder couldn't have been changed once the New Act was already in force – Single Judge of the High Court set aside the order dated 13.12.2023 as well as recommendation issued by the Director *inter alia* observing that the subsequent order directing the Management to appoint the appellant as Principal of Meerut College wholly without jurisdiction and cannot be sustained – Division Bench upheld the same – Interference with:

Held: Output of the findings of the Single Judge and Division Bench of the High Court correct – Since the outcome is in conformity with the provisions of the Old Act as well as the New Act, interference not warranted – Under the Old Act, the select list of the Commission shall be valid till a new list is prepared in accordance with the provisions of such Act – Management of a college/institution can issue an appointment order within a period of one month only on receiving intimation of a candidate's recommended by the Director – It is only in case a vacancy occurs due to death, resignation, or otherwise, during the period of the validity of the list, the name of a new candidate can be intimated by the Director only – By way of a non obstante clause in sub section (2) of s.31, an act done or action taken under the Old Act shall be deemed to have been done or taken under the New Act – This is not a case where the vacancy arose due to death or resignation – However, it is within the purview of "otherwise during the period of validity of the list" that the appellant claims to be entitled to appointment at an alternate place, as demanded, since the appointment order was not issued to the appellant u/s.13(3) of the Old Act – After the recommendation dated 03.08.2022, if the appellant was not willing to join due to his family circumstances and on finding vacancy at Meerut College, submitted a representation to post him at some other place with the intent to compel the authorities to bring his case within the ambit of s.13(4) of the Old Act, such action will superseding the earlier recommendation and frustrate the purpose

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of s.13(3) of the Old Act – After commencement of the New Act, the validity of the list/panel under the Old Act will automatically lapse and the authorities are duty bound to follow the procedure u/ss.10 and 11 of the New Act to take steps for appointment on the post of Principal – Thus, the concerned authorities could not have issued the letter dated 13.12.2023 on the basis of the list prepared under the Old Act and thereafter, passed the consequential orders on 12.01.2024 and 15.01.2024, to effectively recommend and appoint the appellant on the post of Principal of Meerut College – Thus, the act done, was the recommendation dated 03.08.2022, which could not be implemented – Authorities have clearly intended that after issuance of the recommendation dated 03.08.2022, no subsequent change in the place of posting can be made in terms of the letter dated 17.08.2023 – Thereafter, on 21.08.2023, the New Act came into force – Thus, there was no occasion for the authorities to issue the order dated 13.12.2023 and, consequent recommendation dated 12.01.2024 and order dated 15.01.2024 in favour of the appellant, under the pretext of s.13(4) of the Old Act indicating that the position had otherwise fallen vacant – With the assistance of s.6 of the Uttar Pradesh General Clauses Act, the effect of repeal of the Old Act is clear insofar as it will not revive the previous list or the act done under the Old Act, which is having the effect of repeal – As regards the *locus standi* of the Officiating Principal, to challenge the order and subsequent orders which effectively grant appointment to the appellant as Principal of Meerut College, when the illegality of the authorities is writ large and the act done was completely illegal, the issue of *locus standi* may not be germane to be dealt with in the facts of the case. [Paras 15, 17, 18, 20, 22-25, 28]

Judicial deprecation – Conduct of the officers of the State of Uttar Pradesh:

Held: Duty of the State and its officials while filing their counter-affidavit and arguing the case before the Court is to provide real assistance – Such assistance ought to be based on the facts, and by applying the law applicable to the case at hand – It is not expected from the authorities to support any party contrary to the law or by filing affidavit which does not disclose the facts in conformity with the law – On facts, after commencement of the New Act on 21.08.2023, it was not open to the authorities to act in terms of the list prepared under the Old Act, even after reflecting

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on their intention to not grant appointment to the appellant-a wait listed candidate only four days prior to the commencement of the New Act – Thereafter, there was absolutely no occasion for the Director to get the old list revived and write in favour of the appellant on 13.12.2023 – Chief Secretary of the State of Uttar Pradesh may look into the conduct of the officers who have filed the affidavit taking such unlawful stand before the High Court and even before this Court, which is completely impermissible under the law and contrary to the finding of the High Court – Since the concerned officers not a party to this case, no inclination to issue any adverse direction, however, left it open to the State of Uttar Pradesh to look into the above observations and take the recourse in accordance with the law, if necessary. [Para 26]

Case Law Cited

Kamlesh Kumar Sharma v. Yogesh Kumar Gupta and Others (1998) **3 SCC 45**; *Anand Sharadchandra Oka v University of Mumbai and Others* [2008] **2 SCR 297** : (2008) **5 SCC 217**; *Ayaubkhan Noorkhan Pathan v. State of Maharashtra and Others* [2012] **10 SCR 994** : (2013) **4 SCC 465** – referred to.

List of Acts

Uttar Pradesh Higher Education Services Commission Act, 1980;
Uttar Pradesh Education Service Selection Commission Act, 2023;
Uttar Pradesh General Clauses Act, 1904.

List of Keywords

Fresh recommendation; Change in place of posting of wait listed candidate; Recommended for appointment elsewhere; Repealing Old Act; Statutory scheme of New Act; Repeal and Savings; Post of Principal in Post-Graduate and Under-Graduate Non-Government Aided Colleges in State of Uttar Pradesh; Recommendation of name for appointment as Principal of P.G College; Family circumstances; No provision for changing place of posting.

Case Arising From

CIVIL APPELLATE JURISDICTION: Civil Appeal No. 7996 of 2026

From the Judgment and Order dated 05.05.2025 of the High Court of Judicature at Allahabad in SA No. 117 of 2025

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Appearances for Parties

Advs. for the Appellant(s):

Rahul Kaushik, Sr. Adv., Manish Vashishtha, Upender Thakur, Ms. Sonal Awasthi, Ms. Anchal Khanna, Ms. Deepti Pandey, Ms. Bhawna Piplani, Abhishek Kaushik.

Advs. for the Respondent(s):

Amol Chitale, Nirnimesh Dube, Ms. Shweta Singh Parihar, Mrs. Pragya Baghel, Ms. Sarthak Sharma, Samar Vijay Singh, Manish Kumar, Ms. Sabarni Som, Gaj Singh, Aman Dev Sharma, Keshav Mittal, Vikramaditya Chauhan, Nikhil Jain, Ms. Divya Jain, S.D. Singh, Ms. Shweta Sinha, Ms. Meenu Singh, Ram Kripal Singh, Siddharth Singh.

Judgment / Order of the Supreme Court

Judgment

J.K. Maheshwari, J.

1. Leave granted.
2. The instant appeal has been preferred by the appellant who found place in the panel of waitlisted candidates for the post of Principal in Post-Graduate (in short, '**PG**') and Under-Graduate (in short, '**UG**') non-Government Aided Colleges in the State of Uttar Pradesh. The appellant wishes to derive the benefit of Section 13(4) of the Uttar Pradesh Higher Education Services Commission Act, 1980 (hereinafter '**the old Act**'). The learned Single Judge of the High Court of Judicature of Allahabad (hereinafter '**High Court**') allowed the writ petition filed by the respondent no. 6 i.e., the affected person and then Officiating Principal of Meerut College, Meerut (hereinafter '**Meerut College**') *vide* order dated 17.02.2025¹ by quashing the order dated 13.12.2023 and subsequent orders dated 12.01.2024 and 15.01.2024. On challenging the order of the learned Single Judge, the Division Bench of the High Court *vide* order dated 05.05.2025² (hereinafter '**impugned judgement**') confirmed the same. Hence, the present appeal has been preferred by the appellant.

¹ in Writ-A No. 15433 of 2024.

² in Special Appeal No. 117 of 2025.

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3. In the facts of the present case, following questions fall for our consideration:
- (i) *Whether, in the facts of the case, Section 13(4) of the Old Act can be interpreted to permit fresh recommendation or change in place of posting of a waitlisted candidate, who has already been recommended for appointment elsewhere and such action is consistent with the law laid down by this Court in **Kamlesh Kumar Sharma v. Yogesh Kumar Gupta and others**³?*
 - (ii) *Whether, after enforcement of the Uttar Pradesh Education Service Selection Commission Act, 2023 (hereinafter referred as '**the New Act**'), repealing the Old Act, the recommendation dated 13.12.2023 and consequential communications and placement order dated 12.01.2024 and 15.01.2025, issued in favour of the appellant can be sustained within the statutory scheme of the New Act?*

Factual Matrix

4. An advertisement No.49 of 2019 (hereinafter '**Advertisement**') was issued by respondent no.4 – Uttar Pradesh Higher Education Service Selection Commission (hereinafter '**Commission**') inviting applications for the posts of Principal in PG and UG colleges. In furtherance, the selection proceedings were held by the Commission and final select list of 290 candidates along with 73 waitlisted candidates was published on 05.10.2021. The appellant found place at Sl.No.59 in the list of waitlisted candidates. In furtherance to the said list, one Dr. Sachidanand Sharma (Sl.No.3 in the select list) was selected and appointed as the Principal of Meerut College *vide* letter dated 23.10.2021. After joining the institution and working for on the post for approximately one year and ten months, he submitted his resignation on 28.05.2023. Accordingly, Dr. Sachidanand Sharma was relieved from the post of Principal by letter dated 09.06.2023. After his resignation, one Dr. Anjali Mittal, who was the seniormost teacher in Meerut College was appointed as the Officiating Principal. However, she superannuated on 30.06.2024 and the post of Principal again fell vacant. Thereafter, respondent no. 6 – Yudhveer Singh,

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the next seniormost teacher in Meerut College was appointed as Officiating Principal by order dated 14.06.2024.

5. In the meantime, on 03.08.2022, the name of the appellant came to be recommended for appointment as Principal of Shri Bajrang P.G. College, Dadar Ashram Sikandarpur, Ballia (hereinafter '**PG College, Ballia**') by the Director and a communication in this regard was made to the respondent no. 3 – Secretary/Management of PG College, Ballia (hereinafter '**Management**'). In terms of this communication and in accordance with the provisions of the Old Act, the Management was directed to issue appointment order to the appellant within thirty days of the receipt of the said communication and in case of failure to receive the same, the appellant had to compulsorily approach the Director. However, on account of his family circumstances as revealed from the contents of the representation submitted on 26.06.2023 to the Director, the appellant did not take any step for joining or to take charge for PG College, Ballia and requested to be appointed as Principal on the vacant posts in some other college, which also included Meerut College.
6. The Director, in response to the said representation, submitted its comments on 17.08.2023 to the Special Secretary, Higher Education Section-2, Government of Uttar Pradesh (hereinafter '**Special Secretary**') wherein it was *inter alia* contended that in furtherance to the provisions of the Old Act and the recommendation dated 03.08.2022, compliance had already been made whereby the appellant was required to join PG College, Balia. It was further informed that after making such recommendation, there existed no provision for changing the place of posting under the relevant Government instructions or the applicable laws. In the meantime, the New Act came to be notified and was brought into force on 21.08.2023, thereby repealing the Old Act.
7. After such repeal and without any change in the circumstances, the Director *vide* subsequent order dated 13.12.2023 informed that in view of the family circumstances, marital policy and disability of some Assistant Professors, the seating arrangement of one Principal had been changed under the Advertisement and further information for taking decision in fifteen other cases of change in place of posting was being sent. It was in reference to this letter that the Joint Secretary, Government of Uttar Pradesh issued the consequential

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order dated 12.01.2024 to the Director for change in place of posting of the appellant to Meerut College in exceptional circumstances and in the interest of higher education. In pursuance, the Director recommended the Management *vide* order dated 15.01.2024 to appoint the appellant as Principal of Meerut College and issue appointment order within thirty days.

8. It is after receipt of such letter, respondent no. 6, then Officiating Principal of Meerut College filed the writ petition *inter alia* contending that once a waitlisted candidate has been issued direction for appointment at one place, the scheme of the Old Act doesn't permit any change to the same. It was also contended that after commencement of the New Act, the Old Act stood repealed and the act done thereunder couldn't have been changed once the New Act was already in force. In the said writ petition, the following prayers were made: –

“(i) to issue & writ, order or direction in the nature of certiorari quashing the impugned letter/order dated 15.01.2024 (Annexure-1) passed by the respondent No 2,

(ii) to issue & writ, order or direction in the nature of mandamus commanding the respondents not to interfere in the working of the petitioner as Officiating Principal of the Meerut College, Meerut till the regular appointment is made by the Commission.

(iii) to issue any other suitable writ, order or direction which the Hon'ble Courts may deem fit and proper in the facts and circumstances of the instant case to award costs of this petition to the petitioner.”

9. Learned Single Judge of the High Court allowed the writ petition and set aside the order dated 13.12.2023 as well as recommendation issued by the Director dated 12.01.2024 *inter alia* observing that the subsequent order dated 15.01.2024 directing the Management to appoint the appellant as Principal of Meerut College is wholly without jurisdiction and cannot be sustained. The Special Appeal preferred by the appellant before the Division Bench of the High Court came to be dismissed *vide* the impugned judgement, confirming the findings of the learned Single Judge. It was observed that power of the Director under the Old Act would continue to the extent protected by

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Section 31(2) of the New Act, insofar as the act which was consistent to provisions of the New Act. However, once the New Act did not confer power on the Director for an act done, tracing its source of power under the Old Act, now repealed, the same couldn't have been done or saved under the New Act. Consequently, the order of the learned Single Judge was upheld.

10. Being aggrieved, the appellant has preferred the present appeal, *inter alia* contending that respondent No.6 is only the Officiating Principal of the College and has no locus to challenge the appointment of a regular Principal, who has found place in the select list in terms of the selection process contemplated under the Old Act. It is further his contention that the power of appointment in the present case can be exercised by the Director under Section 13(4) of the Old Act. Therefore, the recommendation, if any, made by the Director in favour of the appellant, which has been directed to be acted upon by the Management, cannot be said to be illegal. It is also urged that the directions issued by the learned Single Judge and the Division Bench of the High Court in allowing the writ petition of the Officiating Principal are not in conformity with law.
11. Learned counsel for respondent No. 6 submitted that the procedure for appointment of teachers, identifying the vacant posts, manner of selection, preparation of list based on recommendations of Commission for appointment to the available vacant post is prescribed under Sections 12, 13 and 14 of the Old Act. In furtherance, the appellant being a waitlisted candidate was recommended on 03.08.2022 to join as Principal of PG College, Ballia. It is in reference to his family circumstances that he submitted the representation indicating that he has not assumed charge despite the recommendation of the Director for his posting at PG College, Ballia and requested for a change in place of posting. In response to such representation, the Director *vide* letter dated 17.08.2023 made correspondence to the Special Secretary that once appointment has already been recommended, there exists no provision for change in place of posting under the provisions of the Old Act. It is urged that only after the New Act came into force on 21.08.2023, the Director passed the order on 13.12.2023 and *vide* letter dated 12.01.2024, recommended appointment of the appellant as Principal of Meerut College. It is his case that after commencement of the New Act, the earlier select list dated 15.10.2021 will lapse and the procedure

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as contemplated under Sections 10 and 11 of the New Act ought to be followed for selection and appointment of teachers. Once the recommendation of the Director dated 03.08.2022 under the Old Act is not fortified and implemented; further order dated 13.12.2023, recommendation dated 12.01.2024 and order 15.01.2024 being after commencement of the New Act do not give any right to appellant to take advantage thereof. As such, the recommendation and the appointment made by the Director and the authorities under the Old Act after commencement of the New Act is completely without jurisdiction which has rightly been duly discussed by the learned Single Judge, affirmed by the Division Bench, therefore, interference is not warranted. Further, on the issue of locus, it is urged by him that once an action taken by the authorities is *ex-facie* illegal and void, the issue of locus in the facts of this case is not germane.

12. Learned counsel appearing for the State contended in specific terms that the order issued by the Director on 13.12.2023 is within his competence. In the past also, the place of posting had been changed for some candidates and similar benefit may be granted to the appellant herein. In reference to the order dated 10.03.2025 passed by the High Court, the Director was asked to file an affidavit on the issue whether the appellant was at fault for not joining PG College, Ballia or was it a case of denial of appointment to him by the Management. In compliance, and after obtaining relevant information from PG College, Ballia and examining the record, it was found that the appellant himself did not contact the Management for issuance of appointment order. An example of another candidate, namely one Dr. Ajay Kumar Singh was given, who did not take charge even on two opportunities after being appointed. It is in this context that though not done, the appointment order ought to have been issued to the appellant within the time specified, however, he tried to convey in so many words that there was no fault of the appellant. In this view and without replying to the contentions as urged on behalf of respondent No.6, the State of Uttar Pradesh tried to support the appellant.

Analysis

13. Having considered the submissions as urged by the learned counsel for the parties and in order to answer the questions framed hereinabove, it is imperative to first appreciate the intent of

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Sections 12, 13 and 14 of the Old Act, which are reproduced for ready reference as under: —

“12. Procedure for Appointment of Teachers:

(1) Every appointment as a teacher of any college shall be made by the management in accordance with the provisions of this Act and every appointment made in contravention thereof shall be void.

(2) The management shall intimate the existing vacancies and the vacancies likely to be caused during the course of the ensuing academic year, to the Director at such time and in such manner, as may be prescribed.

Explanation— The expression “academic year” means the period of 12 months commencing on July 1.

(3) The Director shall notify to the Commission at such time and in such manner as may be prescribed a subject wise consolidated list of vacancies intimated to him from all colleges.

(4) The manner of selection of persons for appointment to the posts of teachers of a college shall be such, as may be determined by regulations :

Provided that the Commission shall with a view to inviting talented persons give wide publicity in the State to the vacancies notified to it under sub-section (3) :

Provided further that the candidates shall be required to indicate their order of preference for the various colleges, vacancies wherein have been advertised.

13. Recommendation of Commission:

(1) The Commission shall, as soon as possible, after the notification of vacancies to it under sub-section (3) of section 12, hold interview (with or without written examination) of the candidates and send to the Director a list recommending such number of names of candidates found most suitable in each subject as may be, so far as practicable, twenty-five per cent more than the number of vacancies in that subject such names shall be arranged in

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order of merit shown in the interview, or in the examination and interview if an examination is held.

(2) The list sent by the Commission shall be valid till the receipt of a new list from the Commission.

(3) The Director shall having due regard in the prescribed manner, to the order of preference if any indicated by the candidates under the second proviso to sub- section (4) of section 12, intimate to the management the name of a candidate from the list referred to in sub-section (1), for being appointed in the vacancy intimated under sub-section (2) of section 12.

(4) Where a vacancy occurs due to death, resignation or otherwise during the period of validity of the list referred to in sub-section (2), and such vacancy has not been notified to the Commission under sub-section (3) of section 12, the Director may intimate to the management the name of a candidate from such list for appointment in such vacancy.

(5) Notwithstanding anything in the preceding provisions, where to abolition of any post of teacher in any college, services of the person substantively appointed to such post is terminated, the State Government may make suitable order for his appointment in suitable vacancy, whether notified under sub- section (3) of section 12 or not, in any other college, and thereupon the Director shall intimate to the management accordingly.

(6) The Director shall send a copy of the intimation made under sub-section (3) or sub-section (4) or sub-section (5) to the candidate concerned.

14. Duty of Management

(1) The management shall, within a period of one month from the date of receipt of intimation under sub-section (3) or sub-section (4) or sub-section (5) of section 13, issue appointment letter to the person whose name has been intimated.

(2) Where the person referred to in sub-section (1) fails to join the post within the time allowed in the appointment

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letter or within such extended time as the management may allow in this behalf, or where such person is otherwise not available for appointment, the Director, shall on the request of the management intimate fresh name from the list sent by the Commission under sub-section (1) of section 13 in the manner prescribed."

14. On perusal of the above-referred sections, it is clear that the appointment of a teacher in any aided college shall be made by the concerned management as per the provisions of the Old Act. The existing and anticipated vacancies for the academic year are required to be notified to the Commission by the said management, after which, the Commission shall conduct interviews of candidates and send a list of recommendations to the Director. Such list must be arranged in order of merit and will remain valid till a new list is received by the Commission. The Director, in furtherance to such recommendations, shall intimate to the management the names of the candidate from the list for appointment on the vacancies so determined. In case a vacancy occurs due to death, resignation or otherwise during the period of validity of the list, and such vacancy has not been notified to the Commission earlier; the Director may intimate the management about the name of a candidate from the list for appointment on such vacancy. It is also the duty of the management to issue an order of appointment to the candidate within one month from the date of receipt of said intimation from the Director. Further, in case a person so recommended fails to join the post within the time allowed in the appointment order or within such extended time, if any, the management is also at liberty to ask the Director to intimate a fresh name from the list sent by the Commission.
15. In view of the above, the intention of the State Legislature is clear. Under the Old Act, the select list of the Commission shall be valid till a new list is prepared in accordance with the provisions of such Act. The management of a college/institution can issue an appointment order only on receiving intimation of a candidate's recommended by the Director. It is only in case a vacancy occurs due to death, resignation or otherwise, during the period of the validity of the list, The name of a new candidate can be intimated by the Director only.
16. The New Act came into force with effect from 21.08.2023. Section 10 of the New Act details the mechanism to determine vacancies,

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their requisition and the process to select persons for appointment on the same. Section 11 of the New Act prescribes the procedure to prepare the panel/list of candidates who may be appointed on the vacancies. These provisions are relevant, hence reproduced as under: –

“10. Determination of Vacancies, Requisition, and Selection Procedure:

(1) For the purpose of making an appointment of a teacher or instructor by direct recruitment, the Appointing Authority or Management or Authorized Officer shall determine the number of vacancies existing or likely to fall vacant during the year of recruitment and, in the case of a post other than the post of head of the institution, also determine the number of vacancies to be reserved for the candidates belonging to the Scheduled Castes, the Scheduled Tribes and Other Backward Classes of citizens in accordance with the Uttar Pradesh Public Services (Reservation for Scheduled Castes, Scheduled Tribes and Other Backward Classes) Act, 1994 (U.P. Act no. 4 of 1994), and persons belonging to economically weaker sections in accordance with the Uttar Pradesh Public Services (Reservation for Economically Weaker Sections) Act, 2020 (U.P. Act no.10 of 2020) and other directions issued by the Government from time to time, and notify the vacancies to the Commission in such manner and through such officer or authority as may be prescribed. The Commission shall decide the eligibility and accordingly advertise the vacancies received in the manner as may be prescribed.

(2) The procedure of selection of candidates for direct recruitment to the posts of teachers or instructors shall be such as may be prescribed.

(3) Regarding appointment in religious and linguistic minority educational institutions for maintaining quality of education, process of selection shall be completed by compulsorily inviting educationist of that particular religion and language (having knowledge of theology and culture) as experts.

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11. Panel/List of Candidates

(1) The Commission shall, as soon as may be, after a vacancy is notified under sub-section (1) of section 10, conduct, wherever necessary, examinations or interviews or conduct the examination and interview of the candidates and prepare a panel/list of those found most suitable for appointment.

(2) The panel referred to in sub-section (1) shall be forwarded to the prescribed officer or Authorized Officer referred to in sub-section (1) of section 10 in such manner as may be prescribed.

(3) After the receipt of the panel under sub-section (2), the prescribed officer or Authorized Officer shall, in the prescribed manner, intimate the Appointing Authority of the names of the selected candidates in respect of the vacancies notified under sub-section (1) of section 10.

(4) The Appointing Authority shall, within a period of thirty days from the date of receipt of such information, issue appointment letters to such selected candidates and facilitate the selected candidate to join the duties in the prescribed manner.

(5) Where such selected candidate fails to join the post of a teacher or instructor in such institution within the time allowed in the appointment letter or within such extended time as the Appointing Authority may allow in this behalf, or where such candidate is otherwise not available for appointment, the Authorized Officer shall, on the request of Management, intimate in the prescribed manner, fresh name or names from the panel/list forwarded by the Commission under sub-section (2). Such time limit shall be up to a maximum of one year after the date of issuing of the appointment letter.”

17. A comparison of the two acts makes it clear that despite the New Act being more exhaustive, it doesn't prescribe a power to the Director akin to Section 13(4) of the Old Act. As per Section 31 of the New Act, it is clear that the Old Act has been repealed on commencement of the New Act. Section 31 is also relevant, hence, reproduced thus: –

Dr. Manoj Kumar Rawat v. State of UP & Ors.***“31. Repeal and Savings:***

(1) The Uttar Pradesh Higher Education Services Commission Act, 1980, the Uttar Pradesh Secondary Education Service Selection Board Act, 1982 and the Uttar Pradesh Education Service Selection Commission Act, 2019 are hereby repealed.

(2) Notwithstanding such repeal, anything done or any action taken under the Acts referred to in sub-section (1) shall be deemed to have been done or taken under this Act, as if the provisions of this Act were in force at all material times.

(3) Save as otherwise provided in this Act, the repeal of the Acts referred to in sub-section (1) shall not have an adverse effect on the general application of section 6 of the Uttar Pradesh General Clauses Act, 1904 (U.P. Act no. 1 of 1904) in relation to the enforcement of provisions.”

After going through this section, it is clear that by way of a non-obstante clause in subsection (2) of Section 31, an act done or action taken under the Old Act shall be deemed to have been done or taken under the New Act. Therefore, it is now required to be looked on facts, as to what act was done by the State of Uttar Pradesh under the Old Act, prior to commencement of the New Act, and whether such an act will be deemed to have been done or taken under the New Act for the purpose of ascertaining the claim of the appellant as espoused in this appeal.

18. In this context, and to answer the said ancillary issue, the facts of the case are required to be recapitulated. The list of the candidates was published on 05.10.2021, wherein the appellant found place at Sl. No.59 of the waitlisted candidates. On 03.08.2022, the Director recommended the name of the appellant to the Management of PG College, Balia for his appointment in the said college. The scheme of the Old Act contemplates that on receipt of such recommendation; the Management is bound to issue appointment order to the recommended person within thirty days. Thus, the Management ought to appoint the recommended candidate within a period of one month and in case, the said candidate fails to join within the time specified in the appointment order, the Director, on request

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of the Management, shall intimate a fresh name from the list. It is surprising that despite having knowledge of the recommendation dated 03.08.2022 and not receiving appointment order from the Management of PG College, Balia, the appellant sat silent and did not take any action for implementation of the provisions contemplated under Section 13(3) of the Old Act while the Management was waiting that the recommended candidate shall contact them to show his intention to work on the post.

19. However, in contradistinction, the appellant did not contact the Management of PG College, Ballia and after about ten and a half months of his initial recommendation, i.e., on 26.06.2023 of his initial recommendation, submitted a representation, *inter alia* contending as under: –

*“It is to be requested that ‘I have been selected for the post of Principal of a non-government aided college of the state at the level of Higher Education Service Commission. **My seat arrangement was made for Principal, Shri Bajrang PG College, Dadar Ashram, Sikanderpur, Ballia by the letter no. Degree Economic-1 (Commission)/332-340/2022-23 dated 03.08.2022 of the Director of Education (Uttar Pradesh), Uttar Pradesh Degree Economic-1 (Commission) Prayagraj. Due to family circumstances, I have not taken charge in the said college.** My candidature for the post of Principal has not been cancelled. It has come to my notice that at present the posts of Principals are vacant in the following colleges”*

From the contents of the representation, it is crystal clear that it is the appellant himself who did not join and take charge of PG College, Balia and asked for appointment on the post of Principal in some other college; indicating some available vacancies in his representation. In the light of the said representation, it is now required to be seen whether the case of the appellant falls within the parameters of “*vacancy occurred due to death, resignation or otherwise during the period of validity of the list*” as contemplated under Section 13(4) of the Old Act.

20. After discussion of the facts in details, it is clear that this is not a case where the vacancy arose due to death or resignation. However,

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it is within the purview of “*otherwise during the period of validity of the list*” that the appellant claims to be entitled to appointment at an alternate place, as demanded, since the appointment order was not issued to the appellant under Section 13(3) of the Old Act. In the facts as narrated, it is clear that the Director initially recommended the name of the appellant for appointment to PG College, Balia, but he has failed to join there. The appellant has also not raised any demand with the Management of P.G. College, Balia for issuing the order of appointment; but has continued to wait till vacancies as stated in his representation have occurred, including the vacancy of the post of Principal in Meerut College. We are clear in our mind that the said action will not fall within the purview of “*otherwise during the period of validity of the list.*” In case such interpretation is permitted, the intention of the State Legislature as contemplated under Section 13(3) of the Old Act will not sustain. Therefore, after the recommendation dated 03.08.2022, if the appellant was not willing to join due to his family circumstances and on finding vacancy at Meerut College, submitted a representation to post him at some other place with the intent to compel the authorities to bring his case within the ambit of Section 13(4) of the Old Act, such action will superseding the earlier recommendation and frustrate the purpose of Section 13(3) of the Old Act.

21. At this stage, it also imperative to refer to the judgement of this Court in ***Kamlesh Kumar Sharma (Supra)*** wherein this Court had the occasion to deal with the interpretation of the word ‘otherwise’ in Section 13(4) of the Old Act. In the said judgement, it was held that if a wider interpretation is given, it would run contrary to the very object of the Old Act and permit filling of vacancy which was never advertised and a person, who did not apply, would inadvertently be absorbed on such vacancy. The relevant portion of the judgement is reproduced as thus: –

“13. We find, after giving our careful consideration that in case the appellant’s argument is accepted by giving wider interpretation to the word “otherwise”, it would thwart the very object of the Act. In other words it would permit the filling of the vacancy occurring which was never advertised and a person in the select list panel, even though not applying for any vacancy, would be absorbed. Hence it would be limiting the sphere of selection in contradiction

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to the object of the provision to draw larger applicants by advertising every vacancy to be filled in. We have no hesitation to say that any appointment to be made on a vacancy occurring in the succeeding year in question for which there is no advertisement under the provisions of sub-section (4) of Section 12, the person on the panel list of preceding academic year in question, cannot be absorbed or be appointed. The word "otherwise" has to be read as ejusdem generis, that is to say, in group similar to death, resignation, long leave vacancy, invalidation, person not joining after being duly selected. In other words, it would be a case of unforeseen vacancies which could not be conceived under Section 12(2). Section 12(2) conceives of a vacancy which is existing on the date the vacancy is to be advertised and which is likely to be caused in future but constricted for a period ending in the ensuing academic year in question. The words "likely to be caused" under Section 12(2) are followed by the words "during the course of the ensuing academic year" that is any person likely to retire by the end of the academic year in question. In other words, such vacancies could be foreseen and not unforeseen. While vacancies under Section 13(4) are unforeseen vacancies which fall under the group, death and/or resignation. Hence the word "otherwise" cannot be given the wide and liberal interpretation which would exclude a large number of expected applicants who could be waiting to apply for the vacancies occurring in the succeeding year in question."

22. In view of the above, it is observed that under the scheme of Old Act, the act done was issuance of recommendation dated 03.08.2022 by the Director. Simultaneously, in response to the appellant's representation dated 26.06.2023, the Director vide letter dated 17.08.2023 to the Special Secretary has unequivocally made it clear that after issuance of the previous recommendation on 03.08.2022 under the government instructions and applicable law, no arrangement for changing the place of posting can be made. In such a scenario, prior to the commencement of the New Act on 21.08.2023, the act done by the authorities was issuing the recommendation dated 03.08.2022, which remained valid and no further action was

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recommended *vide* letter dated 17.08.2023. Therefore, in furtherance to the repeal and saving clause under Section 31(2) of the New Act, the act done will be treated only to the extent indicated above.

23. It is even more surprising that after the letter dated 17.08.2023 and commencement of the New Act, the Joint Secretary, Government of Uttar Pradesh, on his own accord, issued order dated 12.01.2024 recommending the name of the appellant for being posted as Principal of Meerut College. In our view, after commencement of the New Act, the validity of the list/panel under the Old Act will automatically lapse and the authorities are duty bound to follow the procedure under Sections 10 and 11 of the New Act to take steps for appointment on the post of Principal. Thus, the concerned authorities could not have issued the letter dated 13.12.2023 on the basis of the list prepared under the Old Act and thereafter, passed the consequential orders on 12.01.2024 and 15.01.2024, to effectively recommend and appoint the appellant on the post of Principal of Meerut College.
24. At this stage and in to understand the real intent of Section 31 of the New Act, it is necessary to refer Section 6 of the Uttar Pradesh General Clauses Act, 1904 dealing with the 'Effect of repeal', whereby it is clear that in case any Uttar Pradesh Act repeals any enactment hitherto or hereafter, then unless a different intention appears, the repeal shall not revive anything not in force or existing at the time at which the repeal takes effect. Further, it shall not affect anything duly done, suffered or incurred under any enactment so repealed. Therefore, the act done, as also indicated above, was the recommendation dated 03.08.2022, which could not be implemented. The authorities have clearly intended that after issuance of the recommendation dated 03.08.2022, no subsequent change in the place of posting can be made in terms of the letter dated 17.08.2023. Thereafter, on 21.08.2023, the New Act came into force. Thus, there was no occasion for the authorities to issue the order dated 13.12.2023 and, consequent recommendation dated 12.01.2024 and order dated 15.01.2024 in favour of the appellant, under the pretext of Section 13(4) of the Old Act indicating that the position had otherwise fallen vacant. Therefore, with the assistance of Section 6 of the Uttar Pradesh General Clauses Act 1904, the effect of repeal of the Old Act is clear insofar as it will not revive the previous list or the act done under the Old Act, which is having the effect of repeal.

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25. In consequence of the discussion made hereinabove, the inescapable conclusion is that the output of the findings of the learned Single Judge and Division Bench of the High Court is correct, though the reasoning may not be as elaborative as indicated above. Since the outcome is in conformity with the provisions of the Old Act as well as the New Act, interference in this appeal is not warranted.
26. Before parting with the judgment, it is our duty to observe the conduct of the officers of the State of Uttar Pradesh and the contentions raised by them to vociferously support the stand of the appellant. As analysed above, it is clear that after commencement of the New Act on 21.08.2023, it was not open to the authorities to act in terms of the list prepared under the Old Act, even after reflecting on their intention to not grant appointment to the appellant i.e., a waitlisted candidate only four days prior to the commencement of the New Act. Thereafter, there was absolutely no occasion for the Director to get the old list revived and write in favour of the appellant on 13.12.2023. It is suffice to say that the Chief Secretary of the State of Uttar Pradesh may look into the conduct of the officers who have filed the affidavit taking such unlawful stand before the High Court and even before this Court, which is completely impermissible under the law and contrary to the finding of the High Court. It is necessary to observe that the duty of the State and its officials while filing their counter-affidavit and arguing the case before the Court is to provide real assistance. Such assistance ought to be based on the facts, and by applying the law applicable to the case at hand. It is not expected from the authorities to support any party contrary to the law or by filing affidavit which does not disclose the facts in conformity with the law. Since the concerned officers are not a party to this case, therefore, we are not inclined to issue any adverse direction, however, we leave it open to the State of Uttar Pradesh to look into the above observations and take the recourse in accordance with the law, if necessary.
27. Now, we revert to the arguments regarding *locus standi* of the Officiating Principal i.e., respondent No.6, to challenge the order dated 13.12.2023, and subsequent orders dated 12.01.2024 and 15.01.2024 which effectively grant appointment to the appellant as Principal of Meerut College. In this regard and relying on the judgement of this Court in **Kamlesh Kumar Sharma (Supra)**, it is suffice that while interpreting Sections 12, 13 and 14 of the Old Act, this Court found

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that the Officiating Principals have locus to challenge the same. In contradistinction, the learned counsel for the appellant made reference to the judgment in the case of **Anand Sharadchandra Oka v. University of Mumbai and Others**⁴ and **Ayaaubkhan Noorkhan Pathan v. State of Maharashtra and Others**⁵. In our view and in the light of the discussion made hereinabove, when the illegality of the authorities is writ large and the act done was completely illegal, the issue of *locus standi* may not be germane to be dealt with in the facts of this case. Therefore, we leave the said issue open for decision in an appropriate case.

28. In consequence and in our considered opinion, the arguments advanced by the learned counsel for the appellant are completely contrary to the spirit of both, the Old Act as well as New Act. The conclusion drawn by the learned Single Judge and Division Bench of the High Court is correct, with additional reasonings discussed hereinabove. Accordingly, the appeal filed by the appellant stands dismissed in the facts. Parties are directed to bear their own costs.
29. Pending application(s), if any, shall stand disposed of.

Result of the case: Appeal dismissed.

†Headnotes prepared by: Nidhi Jain

4 (2008) 5 SCC 217.

5 (2013) 4 SCC 465.

**Rambalak
v.
State of U.P.**

(Criminal Appeal No. 2647 of 2026)

19 May 2026

[Sanjay Karol* and Prasanna B. Varale, JJ.]

Issue for Consideration

Issue arose whether under the power of s.483 of BNSS 2023, the Court could have issued directions to the trial court to issue summons u/ss.62 and 69 Cr.P.C. and also take coercive measures as against those persons who delay or impede proceedings.

Headnotes[†]

Bharatiya Nagarik Suraksha Sanhita, 2023 – s.483 – Special powers of High Court or Court of Session regarding bail – High Court while exercising bail jurisdiction, undertaking exercise of issuing directions – Power of – High Court dismissed the second bail application in a case u/ss.419, 420, 467, 468 and 471 IPC and directed that the trial court to issue summons u/ss.62 and 69 Cr.P.C. and also take coercive measures as against those persons who delay or impede proceedings – This Court passed an interim order releasing the appellant on bail and posted the matter for considering the issue of the power of the Court to issue directions while exercising bail jurisdiction – Sustainability:

Held: Impugned judgment in so far as it directs following what has been laid in the earlier bail orders, cannot be sustained and is set aside – However, in the interest of justice, the steps that have been taken by the State authorities to remain unaffected and continue to function independent of the orders in which they stood issued – State at liberty to modify the same to be in consonance with the prevalent laws of the land should the need so arise. [Para 8]

Case Law Cited

State of U.P. v. Anurudh [2026] 1 SCR 770 : 2026 SCC OnLine SC 40 – **relied on.**

Bhanwar Singh @ Karamvir v. State of U.P., **CRMBA 16871 of 2023**; *Jitendra v. State of U.P.*, **CRMBA 9126 of 2023** – **referred to.**

* Author

Rambalak v. State of U.P.**List of Acts**

Penal Code 1860; Code of Criminal Procedure, 1973; Bharatiya Nagarik Suraksha Sanhita, 2023; Constitution of India.

List of Keywords

Special powers of High Court or Court of Session regarding bail; High Court while exercising bail jurisdiction, undertaking an exercise of issuing directions; Bail application; Issuance of summons; Coercive measures; Delay or impede proceedings; Bail jurisdiction.

Case Arising From

CRIMINAL APPELLATE JURISDICTION: Criminal Appeal No. 2647 of 2026

From the Judgment and Order dated 01.04.2025 of the High Court of Judicature at Allahabad in CRMBA No. 9700 of 2025

Appearances for Parties

Ms. Akriti Chaubey, *Amicus Curiae*.

Advs. for the Appellant(s):

Uday Prakash Yadav, Ms. Sneha Singh, Manu Shukla, Ashish Sharma, Ashish Kumar Pandey, Ramjee Pandey.

Advs. for the Respondent(s):

Akshay Amritanshu, Ms. Drishti Rawal, Abhay Nair, Sarthak Srivastava, Mayur Goyal.

Judgment / Order of the Supreme Court**Judgment**

Sanjay Karol, J.

Leave Granted.

2. On first blush, this appeal at the instance of the accused was directed against the rejection of his second bail application¹ by the High Court

¹ Order dated 1st April 2025

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of Judicature at Allahabad² in a case arising out of Case Crime No.175/2002 under Sections 419,420.467,468 and 471, Indian Penal Code 1860³ at PS Hamirpur, presents that limited issue, but it is not so. While dismissing the bail application, the Court directed that the Trial Court should issue summons under Section 62 and 69 Cr.P.C. and also take coercive measures as against those persons who delay or impede proceedings. This issue of delay in serving summons for taking coercive measures apparently was considered by the court in ***Bhanwar Singh @ Karamvir v. State of U.P.***⁴ and ***Jitendra v. State of U.P.***⁵. It was directed that the Trial Court was under an obligation to follow the abovesaid judgment as also the directions issued by the Director General of Police and Home Secretary, Government of Uttar Pradesh, in compliance thereof.

3. *Vide* interim order dated 26th November 2025 this Court had released the appellant on bail and then posted the matter for consideration on a subsequent date regarding issue of the power of the Court to issue directions while exercising bail jurisdiction.
4. Since the directions issued by the Court are the mainstay of the appeal, let us discuss the same in detail. In terms of order dated 14th September 2023, in Crl. Misc. Bail Application No. 9126 of 2023 the learned Single Judge observed that the criminal justice system within the State suffered from great difficulties in delay of execution of summons and the production of witnesses. As such, he called for affidavits of the concerned authorities in the following terms:

“In this wake, this Court is forced to call for the personal affidavits of Additional Chief Secretary (Home), Government of Uttar Pradesh, Lucknow as well as Director General of Police, Government of Uttar Pradesh, Lucknow on the following issues:

- I. The current system of departmental accountability of officials nominated by statutes for service of

2 CRMBA 9700 of 2025

3 IPC

4 CRMBA 16871 of 2023

5 CRMBA 9126 of 2023

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summons and execution of coercive measures issued by the trial courts has failed.

- II. To create an efficacious departmental accountability system where officers nominated by the statute (Cr.P.C. as well as Government Orders from time to time) are held accountable for failures to serve summons and execute coercive measures and the inability to compel appearance of witnesses despite orders of the Court. The aforesaid officers nominated by the statute and the government order for the aforesaid purpose are Executive Magistrate, Superintendent of Police of the districts, Commissioner of Police, as well as Inspector General of Police.
- III. The system of accountability in the department will become efficacious only if the performance of officers is also judged on the yardsticks of their ability to serve summons, execute coercive measures issued by the court and compel appearance of witnesses on the dates fixed before the learned trial court.
- IV. Penalty for departmental action/penalty for failure to comply with the orders of the Court if the explanation for the same is not satisfactory is also liable to be included if the statutory schemes of summons and enforcement of coercive measures have to be implemented as per law.
- IV. The Director General of Police as well as Additional Chief Secretary (Home) shall also consider the judgment rendered by this Court in *Bhanwar Singh @ Karamvir* (supra) and the report of the JTRI while filing their affidavits. The Director General of Police as well as Additional Chief Secretary (Home) shall always bear in mind that the efficiency of the departmental system of accountability has a direct bearing on the rule of law and credibility of the criminal law process.”

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The next order i.e., the order dated 20th December 2023 passed in ***Jitendra*** (supra), records the following directions to have been issued by the Principal Secretary (Home), Government of Uttar Pradesh. Similar, were the directions issued by the Director General of Police of the concerned State. By the said order they have been ordered to be treated as directions of the Court. The same are extracted as under:

“Similarly, the relevant paragraphs of the affidavit filed by the Director General of Police, Government of U.P., Lucknow are extracted hereunder:

“5. That in respect of the directions given by Hon’ble High Court from time to time and specially in ‘Bhanwar Singh Case’ regarding timely execution of processes issued by the learned trial courts the Principal Secretary (Home), Govt. of U.P. vide Government Order No. HC-100/6-PO-9-2023 Dated 14.10.2023 has issued the following directions:

- i. A Superintendent of Police rank officer has been appointed as a Nodal officer for effective execution of processes (summons/warrants/notices) issued by learned trial courts, in every police Commissionerate/District. In this respect D.G. police circular dated 10.10.2023 will be strictly complied by every Nodal officer.
- ii. All District Nodal officers will ensure the strict compliance of DG police circular dated 10.10.2023.
- iii. All District Magistrates, Executive Magistrates, District Incharge of police will ensure the compliance of Government Order dated 23.11.2022 issued by Department of Home, Government of Uttar Pradesh, Lucknow.
- iv. Additional Director General (Prosecution) is directed to issue a direction regarding maintainability of witness register with ‘Court Moharrir’, in which name and address, mobile number, Aadhar number of every prosecution

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wintess will be mentioned and a direction is also issued to insert a column in the 'Pairavi Register' of concerned Pairokar of Police Station.

- v. District Nodal officer will ensure that the Public Prosecutor and concerned 'Court Moharrir' will have access to process register of learned trial courts so that police station/summon cell process register could be matched. A direction to learned trial courts to this effect, by Hon'ble High Court, will be required.
- vi. As per provision of Chapter 3 read with Rule 12 of General Rules Criminal as well as circular order C.L. Number 42/98 dated 20.08.98 issued by Hon'ble High Court the name, designation, mobile number of police official who received the court process will be clearly mentioned in the column of process register of learned trial court, so that his responsibility could be fixed. A copy of Government Order No. HC-100/6-PO-9-2023 Dated 14.10.2023 is annexed as Annexure No. 2 to this affidavit.

6. That in respect of the directions given by Hon'ble High Court from time to time and specially in 'Bhawar Singh Case' regarding timely execution of processes issued by the learned trial courts the deponent has issued the following directions.

- i. A central register will be prepared for entering processes received from different trial courts in the office of the Nodal Officer and a Desk will be established for sending the summon/warrants for its execution daily processes will be recorded in central register, policeman will be deployed at the process desk.
- ii. The service receipt received after service of summons/warrants will be entered in the central register by policeman posted at summon desk

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and service report will be communicated to the concerned trial court.

- iii. In compliance with the processes served, the details of the witnesses present and examined in trial courts will also be complied through summon/warrant desk and it will be reviewed from time to time at the competent officer level.
- iv. Nodal officers will weekly examine the Summons/ warrants execution register.
- v. A monthly statement will be prepared in respect of the service of processes and same will be presented before Nodal officer for perusal. The Nodal officer will warn in writing to subordinate Officers and station in charge who are on laxity and after three consecutive months of laxity, so cause notice will be issued against the subordinate Officers and In-charge of Police Station.
- vi. At District level Deputy Superintendent of Police/Additional Superintendent of Police and at Police Commissionerate level Assistant Police Commissioners will monitor the service of processes by the concerned police stations under their local jurisdiction and if any laxity will be found Supervisory officers will be accountable.
- vii. Every Nodal Officer will be responsible for execution of service of processes (summons / warrants/ notices) under their local jurisdiction.
- viii. Work of Nodal Officers will be regularly assessed by Additional Director General of Police (Zonal) and Regional Inspector General of Police / Deputy Inspector General of Police in case of any laxity, he will inform the Headquarter of Director General of Police.

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- ix. As discussed above D.G. Circular no. 30/2023 dated 16.08.2023 has been partially changed as Superintendent of Police will be a Nodal Officer in place of Additional Superintendent of Police. A copy of DG police circular dated 10.10.23 is annexed as Annexure No.3 to this affidavit.”

The Government Orders and the directions issued by the Principal Secretary (Home), Government of U.P., Lucknow as well as Director General of Police, Government of U.P., Lucknow extracted herein earlier from now on shall be treated as orders of this Court for purposes of implementation.

The Director General of Police, Government of U.P., Lucknow and other responsible officials shall ensure strict compliance of the directions extracted earlier”

5. In the impugned order, it is these directions that had been reiterated. The sole question which arises for consideration is whether under the power of Section 483 of BNSS 2023, the Court could have issued such directions. We have heard learned counsel for the appellant, the State and the *amicus curiae*, Ms. Akriti Chaubey. We have also perused the written submission of the parties.
6. Section 483 BNSS reads as under:

“483. Special powers of High Court or Court of Session regarding bail.

- (1) A High Court or Court of Session may direct,-
- (a) that any person accused of an offence and in custody be released on bail, and if the offence is of the nature specified in sub-section (3) of section 480, may impose any condition which it considers necessary for the purposes mentioned in that sub-section;
 - (b) that any condition imposed by a Magistrate when releasing any person on bail be set aside or modified:

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Provided that the High Court or the Court of Session shall, before granting bail to a person who is accused of an offence which is triable exclusively by the Court of Session or which, though not so triable, is punishable with imprisonment for life, give notice of the application for bail to the Public Prosecutor unless it is, for reasons to be recorded in writing, of opinion that it is not practicable to give such notice:

Provided further that the High Court or the Court of Session shall, before granting bail to a person who is accused of an offence triable under section 65 or sub-section (2) of section 70 of the Bharatiya Nyaya Sanhita, 2023, give notice of the application for bail to the Public Prosecutor within a period of fifteen days from the date of receipt of the notice of such application.

- (2) The presence of the informant or any person authorised by him shall be obligatory at the time of hearing of the application for bail to the person under section 65 or sub-section (2) of section 70 of the Bharatiya Nyaya Sanhita, 2023.
 - (3) A High Court or Court of Session may direct that any person who has been released on bail under this Chapter be arrested and commit him to custody.”
7. In a recent case viz., ***State of U.P. v. Anurudh***⁶, also arising from a matter before the Allahabad High Court wherein, similar to the present case, far reaching directions had been issued by the Court under bail jurisdiction, mandating the scientific determination of the age of the victim in cases under the Protection of Children from Sexual Offences Act 2012, in teeth of the scheme of the Juvenile Justice (Care and Protection of Children) Act 2015 which is also applicable to the former, this Court held the same to be impermissible in spite of reference to Article 21 and the assertion of the Court that it is not denuded of its constitutional power even while sitting in bail

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jurisdiction. The relevant discussion is reproduced as under as it squarely covers the issue in the present *lis*:

“11.2. The upshot of the above discussion is that a Court’s jurisdiction, i.e., either the Court of Sessions or the High Court under Section 439CrPC is limited to adjudicating the question of the person concerned being released into society pending trial or whether they should continue to be incarcerated.

11.3. It is unquestionable that High Court is a constitutional Court. However, in the instant case the error of jurisdiction by the High Court was in exercise of a statutory power and not under the Constitution. The powers arising from the Constitution and those flowing from a statute are distinct and separate. A constitutional power is the one which emanates directly from the text and spirit of the Constitution of India, the supreme and fundamental charter of governance, and inheres in those institutions or functionaries whose existence and competence are defined by it. Such powers are self-sustaining; they are not contingent upon any act of the Legislature, nor can they be abridged or extinguished except through a formal amendment under Article 368. For example, the President’s power to dissolve the Lok Sabha under Article 85(2)(b); the Governor’s authority to reserve a bill for the consideration of the President under Article 200, or the jurisdiction of the Supreme Court under Article 32 are all in exercise of constitutional power. These powers represent the apex of the legal hierarchy, deriving their legitimacy not from the will of the people as expressed by Parliament, but from the sovereignty of the Constitution itself.

In contrast, a statutory power is derivative and conditional, drawing its vitality from a law duly enacted by the Parliament or a State Legislature. Such power exists only within the four corners of the enabling statute and is circumscribed by its language, purpose, and legislative intent. Illustratively, the powers conferred upon the Central Government under the Environmental (Protection) Act, 1986, to frame rules,

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issue directions, or regulate industrial operations are purely statutory in nature, as are the regulatory functions vested in the Securities and Exchange Board of India under the SEBI Act, 1992, or those entrusted to the Competition Commission of India under the Competition Act, 2002. The exercise of these powers must conform strictly to the parameters laid down by the statute; any transgression beyond its express or implied authority is rendered *ultra vires* and, therefore, void in the eyes of law.

The essential distinction between these two species of power lies not merely in their origin but also in their constitutional status and susceptibility to control. Constitutional powers are sovereign, foundational, and insulated from the vicissitudes of ordinary legislation; they can neither be curtailed nor expanded by parliamentary enactment. Statutory powers, by contrast, are subordinate and mutable, existing at the pleasure of the Legislature, which may at any time amend, restrict, or repeal them through the ordinary legislative process. Judicial review, while applicable to both, assumes different contours in each case: in relation to constitutional powers, the Courts examine whether their exercise conforms to constitutional limitations including the protection of fundamental rights and the inviolable tenets of the basic structure whereas, in the case of statutory powers, the inquiry is confined to whether the authority has acted within the scope and purpose of the statute from which its power is drawn.

The constitutional power cannot overshadow the statutory power, enlarging its scope beyond what has been envisaged by the statute. In other words, while both powers rest with the High Court, one power cannot usurp the ambit of another, unless otherwise permitted by law.”

8. In view of this short discussion alone, we are of the considered view that the impugned judgment in so far as it directs following what has been laid in the earlier bail orders, cannot be sustained and has to be set aside. Ordered accordingly. However, in the interest of justice we direct that the steps that have been taken by the State authorities

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shall remain unaffected and continue to function independent of the orders in which they stood issued. The State shall be at liberty to modify the same to be in consonance with the prevalent laws of the land should the need so arise. It is further clarified that even though we have set aside the directions on account of jurisdictional error, we have made no comment on the grant or denial of bail, as the case may be, in the earlier orders.

9. The order dated 26th November 2025 is confirmed with the stipulation as mentioned in the said order.

The appeal is allowed. Pending applications, if any, shall stand disposed of.

Result of the case: Appeal allowed.

[†]Headnotes prepared by: Nidhi Jain

**Sri
v.
State Rep. by The Inspector of Police,
Q Branch, Ramanathapuram, Tamil Nadu**

(Criminal Appeal No(s). 5141 of 2025)

20 May 2026

[Vikram Nath, Sandeep Mehta* and Vijay Bishnoi, JJ.]

Issue for Consideration

Whether the appellant was implicated in the present case on the basis of mistaken identity.

Headnotes[†]

Case of Mistaken Identity – FIR was registered u/ss.120B IPC; ss.10(a)(i), 10(a)(iv), 38(1), Unlawful Activities (Prevention) Act, 1967; s.6, Poisons Act, 1919; s.14(c), Foreigners Act, 1946; and s.3 r/w s.12(1)(a), Passport Act, 1967 at Q Branch police station, Trichy, in May, 2015 alleging that a conspiracy was being hatched between A-1, A-5 (named ‘Sri’) and certain other accused persons, to revive the banned Liberation Tigers of Tamil Eelam (LTTE) organization – Appellant-a Sri Lankan national named “Ranjan”, who had come to India in 2009 along with his wife and son holding a legally valid Sri Lankan passport and a valid tourist visa and was registered as non-camp refugee, was arrested in 2021 alleging that his actual name was “Sri” alias “Ranjan” and that he was the absconding accused-A-5 in the aforesaid pending case who allegedly handed over the cyanide capsules and poisonous substances to A-1 in 2015 for purported activities related to the revival of LTTE and for targeting those whom the accused believed to be responsible for the downfall of LTTE – Appellant convicted by Trial Court and sentenced accordingly – Conviction confirmed by High Court – Interference with:

Held: Judgment of the trial Court and the impugned judgment, set aside – Courts below erred in holding that the appellant-Ranjan is the same as the absconding accused “Sri” (A-5), and the conviction based on the flawed identification is unsustainable – The identity of the appellant rests solely on the belated and improved testimonies

* Author

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of PW-8 and PW-9, who admittedly did not disclose the name “Ranjan” in earlier proceedings and introduced it only after the appellant’s arrest – There is no contemporaneous description, no documentary linkage, and no independent corroboration connecting the appellant with the alleged absconding accused “Sri” (A-5) – Absence of reliable identification material and the failure of the prosecution to establish how the appellant came to be implicated in the case by linking him as “Sri” using an alias name renders the case on identity wholly doubtful, making it unsafe to sustain the conviction – Appellant was continuously and openly residing in Trichy and had duly registered himself as a refugee with the K.K. Nagar Police Station, Trichy, a fact also confirmed by appellant’s landlady (PW-25) – It is the prosecution’s own case that the absconding accused “Sri” (A-5) was being sought to be arrested and was being actively searched for since 2016 – Despite this, for more than five years, the investigating agency failed to trace or apprehend the said accused, even though, as per their own case, he was residing openly at a known and registered address under the alias name “Ranjan” – Total lack of effort on the part of the IOs to trace and apprehend the absconding accused “Sri” (A-5), or to establish any credible link between “Sri” and the appellant-Ranjan during this entire period, itself creates a grave doubt regarding the bona fides of the prosecution’s case – Moreover, not only the appellant was residing openly at his known address, but he was also simultaneously engaging with the Switzerland Embassy at New Delhi and local authorities for obtaining a police clearance certificate in order to travel to Switzerland to join his wife and son – On facts, the conduct of the appellant is wholly inconsistent with the prosecution’s case and entirely consistent with that of an innocent person going about his routine life – Appellant was falsely implicated in this case without there being any evidence to connect him with the crime, acquitted. [Paras 43, 56, 58, 59, 62, 63]

Evidence – Material Improvement – When:

Held: Entire case of the prosecution on the question of identity rests solely on the oral testimony of PW-8 and PW-9, whose version is completely unreliable – No Test Identification Parade was conducted after the appellant’s arrest – There is a complete absence of reliable oral or documentary evidence linking the appellant to the accused “Sri” (A-5) – IO (PW-29) himself admitted that only the name “Sri” appears in the earlier proceedings and

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cases, and that the name “Ranjan” does not find mention anywhere in the investigation records – Not a single official record, whether the FIR, Chargesheet, or any other police document, reflects the name “Ranjan” in conjunction with the absconding accused “Sri” prior to the appellant’s arrest – In the absence of any such evidence, the highly belated introduction of the name “Ranjan” as alias of “Sri” post-arrest constitutes a material improvement that seriously undermines the credibility of the prosecution’s case. [Paras 30, 53, 54]

Case Law Cited

Vishwanatha v. State of Karnataka, 2024 INSC 482 : [2024] 7 SCR 50 – relied on.

Abuthagir v. State [2009] 8 SCR 432 : (2009) 17 SCC 208 – held inapplicable.

List of Acts

Penal Code, 1860; Unlawful Activities (Prevention) Act, 1967; Poisons Act, 1919; Foreigners Act, 1946; Passport Act, 1967; Code of Criminal Procedure, 1973.

List of Keywords

Mistaken identity; Implicated on the basis of mistaken identity; Not same as the absconding accused; Absconding accused; Alleged absconding accused; Flawed identification; Falsely implicated; False implication; Doubtful identity; Ranjan; Sri alias Ranjan; Sri; No contemporaneous description; No documentary linkage; No independent corroboration; Absence of reliable identification material; Continuously residing in Trichy; Openly residing in Trichy; Belated and improved testimonies; Belated introduction of name; Belated introduction of name post-arrest; Substantive and material improvement in testimony; Earlier depositions conspicuously silent on very same aspect; Innocent person; Going about routine life; Liberation Tigers of Tamil Eelam (LTTE); Banned organization; Conspiracy to rejuvenate LTTE; Revival of LTTE; Sri Lankan national; Legally valid Sri Lankan passport; Legally valid passport; Valid tourist visa; Non-camp refugee; Cyanide capsules; Material Improvement; Absence of corroborative material; Importance of proper identification; Test Identification Parade (TIP); No Test Identification Parade conducted.

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Q Branch, Ramanathapuram, Tamil Nadu**

Case Arising From

CRIMINAL APPELLATE JURISDICTION: Criminal Appeal No. 5141 of 2025

From the Judgment and Order dated 03.04.2025 of the High Court of Judicature at Madras at Madurai in CRLAMD No. 698 of 2024

Appearances for Parties

Advs. for the Appellant(s):

T.S. Nanda Kumar, S. Jayakumar, S. Rajendra Kumar, T.S. Suresh, N.J. Nakeeran, Dishant Vashisht, Ms. Seema Sindhu, Ms. Kulsum Nisha.

Advs. for the Respondent(s):

Sabarish Subramanian, Vishnu Unnikrishnan, Veshal Tyagi.

Judgment / Order of the Supreme Court

Judgment

Mehta, J.

1. Heard.
2. The appellant herein was arraigned as an accused in connection with FIR being Crime No. 1 of 2015, registered at Q Branch Police Station, Ramanathapuram, Tamil Nadu for the offences punishable under Section 120B of the Indian Penal Code, 1860¹, Sections 10(a)(i), 10(a)(iv) and 38(1) of the Unlawful Activities (Prevention) Act, 1967², Section 6 of the Poisons Act, 1919; Section 14(c) of the Foreigners Act, 1946; and Section 3 read with Section 12(1)(a) of the Passport Act, 1967. He was subjected to trial before the learned Principal Sessions Judge, Ramanathapuram³ in Sessions Case No. 02/2018. *Vide* judgment of conviction and order of sentence dated 18th July, 2024, the appellant was convicted and sentenced as below: -

1 For short, "IPC"

2 For short "UAP Act"

3 Hereinafter, referred to as "trial Court".

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S. No.	Charged Offence	Sentence	Default Sentence
1.	Section 120B of the IPC	Rigorous Imprisonment for 5 (Five) years and to pay a fine of Rs. 10,000/-	15 months Simple Imprisonment
2.	Section 120(B) IPC r/w Sections 10(a)(i) and 10(a)(iv) and 38(1) of the UAP Act	Rigorous Imprisonment for 5 (Five) years and to pay a fine of Rs. 10,000/-	15 months Simple Imprisonment
3.	Section 6 of the Poisons Act, 1919	Rigorous Imprisonment for 3 (Three) months and to pay a fine of Rs. 1,000/-	1 month Simple Imprisonment
4.	Section 120B IPC r/w Section 14(c) of the Foreigners Act, 1946	Rigorous Imprisonment for 3 (Three) years and to pay a fine of Rs. 1,000/-	1 year Simple Imprisonment
5.	Section 120B IPC r/w Section 3 r/w Section 12(1)(a) of the Passport Act, 1967	Rigorous Imprisonment for 2 (Two) years and to pay a fine of Rs. 1,000/-	8 months Simple Imprisonment

3. The appeal being Criminal Appeal (MD) No. 698 of 2024 preferred by the appellant for assailing the judgment of the trial Court stands rejected by the learned Single Judge of the Madurai Bench of the Madras High Court⁴ *vide* judgment dated 3rd April, 2025 which is subjected to challenge in this appeal by special leave.

Brief Facts: -

4. Succinctly stated, facts relevant and essential for disposal of the appeal are noted hereinbelow.
5. The appellant is a Sri Lankan national, who in the year 2009 came to India along with his wife Smt. Archana and his son Pavalan, holding a legally valid Sri Lankan passport issued by the Government of Sri Lanka and a valid tourist visa granted by the Government of India. Before departing from Sri Lanka, the appellant received clearance from the Sri Lankan law enforcement authorities confirming that he

⁴ Hereinafter, referred to as "High Court"

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did not have any criminal antecedents. The name of the appellant as recorded in the passport is Ranjan.

6. Upon arriving in India, the appellant, along with his wife and son registered themselves with the Shankar Nagar Police Station, Chennai, Tamil Nadu as non-camp refugees. In the year 2012, they cancelled their registration with the Shankar Nagar Police Station, Chennai, and re-registered themselves with the K.K. Nagar Police Station at Trichy, Tamil Nadu. The appellant stayed in Trichy for more than a decade without any criminal conduct or complaint against his name.
7. In the intervening period, the wife of the appellant, and his son were granted a visa by the Government of Switzerland in the year 2014. Both of them accordingly left for Switzerland where they sought asylum and were granted citizenship. The appellant also applied for a Swiss visa through his wife, which was granted to him by the Switzerland Embassy at New Delhi *vide* letter dated 14th July, 2021, subject to police clearance in Tamil Nadu, India.
8. The appellant claims that while he was waiting for police clearance, to his utter shock and surprise, he came to be arrested by the Q Branch Officers of Ramanathapuram on 16th December, 2021 with the allegation that his actual name was “Sri” alias “Ranjan” and that he was an accused in a pending case on the file of the learned Principal District and Sessions Judge, Ramanathapuram arising out of FIR bearing Crime No. 1/2015. He was accordingly taken into judicial custody and was confined at the Puzhal Prison, Chennai.
9. It may be mentioned here that the appellant has throughout maintained that he is in no way connected with the said accused named “Sri” mentioned in the FIR. The appellant has always been known by and identified himself as “Ranjan” son of Mr. Gunabalasingam. In support of his contention, the appellant has placed reliance on his passport and various other documents.
10. As per allegations set out in FIR No. 1/2015 registered at Q Branch police station, Trichy, the police received secret information in the month of May, 2015 that a conspiracy was being hatched between Krishnakumar (accused No.1/A-1), Subhaskaran (accused No. 4/A-4), Sri (accused No. 5/A-5) and Kumaran (accused No. 6/A-6), along with two others, to rejuvenate the banned Liberation Tigers

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of Tamil Eelam⁵ organisation. The said conspiracy was allegedly hatched at Arasan Bakery, KK Nagar, Trichy.

11. It is alleged that, in furtherance of the said conspiracy, “Sri” (A-5) handed over 75 cyanide capsules and 60 grams of chemical GPS-4 used for making cyanide to Krishnakumar (A-1), with specific directions to proceed to Sri Lanka by ferry and hand over the same to one “Kavi”, a Sri Lankan national, so as to re-organise the LTTE cadres and to eliminate rival Tamil leaders.
12. Acting on the said tip off, the Q Branch police conducted a vehicle search on 20th July, 2015 at 20:30 hours at the Utchipuli Bus Stand on the Ramanathapuram-Rameshwaram Main Road. A Tata Indica car bearing Registration No. TN-07-BK-3574 was searched, wherein Krishnakumar (A-1), Sasikumar (accused No. 2/A-2) and Rajendran (accused No. 3/A-3) were found present. The following articles were seized from the said accused persons: 75 cyanide capsules; 60 grams of chemical GPS-4; 6 mobile phones; Indian currency amounting to Rs.46,200/-; Sri Lankan currency amounting to Rs.19,300/-; vehicle documents; and passport and other documents.
13. Upon interrogation, it was found that the recovered articles and currency were intended to be illegally smuggled out to Sri Lanka for reviving the banned terrorist organisation LTTE. On the basis of the confession of Krishnakumar (A-1), the involvement of Subhaskaran (A-4), Sri (A-5) and Kumaran (A-6) in the criminal conspiracy came to light. Subhaskaran (A-4), was thereupon arrested on 25th July, 2015, from whose possession a route map, a list containing names of certain Sri Lankan leaders, a SIM card, a pen drive, a cell phone and a bag were recovered. In a follow-up search made at A-4’s house in Chennai on 26th July, 2015, a hard disk, a SIM card and other documents were seized.
14. Q Branch completed the investigation by collecting the incriminating materials and chemical analysis reports, obtaining requisite sanction and examining a number of witnesses. Thereafter, a Final Report under Section 173(2) of the Code of Criminal Procedure, 1973⁶ was filed before the learned Principal Sessions Judge, Ramanathapuram, showing “Sri” (A-5) and Kumaran (A-6) as absconding accused. The

5 For short “LTTE”

6 For short “CrPC”

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learned trial Judge took the said Final Report on file as S.C. No. 7 of 2016.

15. On an application in Cr.M.P. No. 467 of 2016, the case was split up by order dated 15th February, 2016 against the absconding accused Nos. 5 and 6, and was re-numbered as S.C. No. 15 of 2016. Thereafter, trial was conducted in the said case against A-1, A-2, A-3 and A-4. After conclusion of trial, they were convicted for the charged offences *vide* judgment dated 28th April, 2018.
16. Kumaran (A-6) was arrested on 25th October, 2016, and a separate trial was conducted against him in S.C. No. 15 of 2016, wherein learned trial Court *vide* order dated 30th September, 2021, convicted him only for offence punishable under section 10(a)(iv) of the UAP Act and acquitted him for the remaining charges.
17. S.C. No. 15 of 2016 was further split up against “Sri” (A-5) by order dated 18th January, 2018, and was re-numbered as S.C. No. 2 of 2018.
18. Thereafter, the Q Branch Officers executed a non-bailable warrant issued against the absconding accused “Sri” (A-5) by arresting the appellant on 16th December, 2021. After his arrest, Q Branch Officers conducted searches at the appellant’s rental house at Awaiyar Street, Subramaniapuram, Trichy on 4th January, 2022 and 15th January, 2022, and recovered certain suspected objects and documents which were exhibited during the trial.
19. At the trial, the prosecution examined 39 witnesses and exhibited 102 documents to prove its case. The appellant was questioned under Section 313 CrPC and upon being confronted with the circumstances appearing against him in the prosecution evidence, he denied the same and claimed to be innocent. A specific plea was taken by the appellant that he was not the accused known by the name “Sri” (A-5) and that it was a case of mistaken identity. However, no evidence was led in defence. Trial Court *vide* judgment dated 18th July, 2024 proceeded to convict the appellant for the charged offences and sentenced him as noted *supra*.
20. Being aggrieved, the appellant preferred criminal appeal before the High Court. The learned Single Judge dismissed the appeal and confirmed the conviction of the appellant *vide* impugned judgment dated 3rd April, 2025, which is subject matter of challenge in this appeal by special leave.

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21. It is pertinent to note that, after hearing the counsel for the parties and considering that the appellant had undergone incarceration for a period short of one year of total sentence of 5 years, this Court *vide* order dated 1st December, 2025, suspended the sentence and directed his release on bail, subject to conditions to be imposed by the trial Court. Subsequently, when the appellant approached the trial court for bail, the Court, *vide* order dated 16th December 2025, granted bail with the stipulation that he be lodged in the Special Camp at Trichy in terms of G.O. (ID) No. 649 dated 11th December 2025 issued by the Government of Tamil Nadu. The appellant has assailed the said G.O. by bringing the same on record. However, we have heard the final arguments on the appeal itself.

Submissions on behalf of the appellant:

22. Learned counsel appearing for the appellant advanced the following submissions.
23. That it is a case of false implication by assigning identity of a different individual upon the appellant.
24. That the appellant was never known by the name “Sri”, and there is no evidence to support the prosecution theory that the appellant answered to the name “Sri” as an alias in addition to his actual name “Ranjan”, as duly recorded in his passport, visa and other undisputed contemporaneous documents. It was submitted that the prosecution has come out with a categorical plea that pursuant to initial investigation, it came to light that the suspect identified as “Sri” being the prime accused in Crime No. 1/2015 had gone absconding. Learned counsel urged that the fact remains, that the appellant had all along continued to reside at his known address, *i.e.*, Avvayar Street, Subramaniapuram, Trichy, Tamil Nadu, which was well within the knowledge of the authorities. The appellant and his family members were registered initially with P.S. Shankar Nagar, Chennai and later with P.S. K.K. Nagar, Trichy. Not only this, but the appellant was also continuously and actively pursuing the grant of a Swiss visa in order to travel to Switzerland to join his wife and child who had already been granted asylum and citizenship in that country.
25. That the witnesses on whose evidence the prosecution heavily relied, namely Balachandran (PW-8) and Kumar @ Dharma Kumar

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(PW-9), were themselves Sri Lankan citizens illegally staying in India on the basis of fabricated documents. It was urged that no reliance could have been placed on the testimony of such witnesses, who admitted in their testimony that they were staying in India on the strength of forged documents. It was further urged that the theory of the appellant being known as “Sri” alias “Ranjan” was, for the first time, introduced during the evidence of Mr. Balachandran (PW-8) when he was examined in S.C. No. 2/2018.

26. He referred to the excerpts from the evidence of Balachandran (PW-8) and Kumar @ Dharma Kumar (PW-9) to urge that the evidence of the said witnesses is totally unreliable, and their own conduct is so suspicious that they ought to have been prosecuted under the relevant provisions of the Foreigners Act, 1946 and the Passport Act, 1967.
27. Relevant excerpts from the deposition of Balachandran (PW-8) and Kumar @ Dharma Kumar (PW-9) referred by learned counsel are extracted hereinbelow for ready reference:-

“Deposition of Mr. Balachandran (PW-8)”

Examination-in-chief

I am working as a driver. I know the accused Sri alias Ranjan alias Rajan alias Pugazh alias Pugazhavan. He is also from Sri Lanka. I came to India from Sri Lanka in 1990 as a refugee and later registered as an external refugee and resided in Trichy, and sold fancy products for my livelihood.....

I got acquainted with the accused Krishnakumar alias Kanthan through the above Dharmakumar. Since he also requested Dharmakumar for a house for rent, Dharmakumar brought him to my house and let him stay in my house. Krishnakumar and I would share and pay the rent. When Krishnakumar and I stayed together in my house, we used to talk at night. While talking like that, Krishnakumar would tell me about the L.T.T.E. and his work in it. He also said that lie was making arrangements to revive the movement with his L.T.T.E. friends, Sri alias Ranjan alias Rajan and Subashkaran alias Prabha, Murugan alias Kumaran, and Shiva....

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Krishnakumar told me and Dharmakumar that the name of the person who came was Sri and that his aliases were Ranjan, Rajan, Pugazh, Pugazhavan, and that he also worked for the L.T.T.E. movement. Then they were both talking about reviving the movement. At that time, Sri alias Ranjan took out cyanide vials, cyanide powder packet, GPS Devices, and cellphones from the bag he had brought and handed them over to Krishnakumar. The present accused left after telling him to take those items to Sri Lanka and give them to a person named Kavi.....

On the morning of 05.01.2022, the investigating officer of this case called me, and I came to Arasan Bakery in Trichy at 10:30 a.m. There, in front of Arasan Bakery, they showed me the present accused Sri alias Ranjan and started investigating me. I informed him the fact that one day in May 2015, when the witness Dharmakumar, the accused krishnakumar, and I were talking at home, the present accused came to ray house and handed over the above-mentioned case properties to the accused Krishnakumar....

Cross-Examination

I am a witness in all 3 cases related to the case under crime number 1/2015 related to this case. **The police recorded the statement I gave in this crime number. It is true that in my statement, I have stated that I came to India from Sri Lanka with my family in 1990 by an illegal boat. It is true that as a family, we stayed in Tirunelveli, and I am still living in Tirunelveli. It is true that I have rented a house at door number 5, Ranga Nagar first main road, K.K. Nagar in Trichy and I am the only one staying there. PW-1 Dharmakumar was the one who rented a house for me. Dharmakumar and I are already acquainted in Sri Lanka.....**

I have also obtained an Indian voter identity card. I have an account in KVB Bank in my name. I have an Aadhar card and a PAN card in my name. My entire family has Aadhar cards. I have not obtained Indian citizenship till date....

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When Krishnakumar was staying with me, he would talk to me about the L.T.T.E. activities. He even invited me to join the movement. I refused, but I did not give any information about it to the police. It is true that helping people from a banned movement is a crime. It is false to state that I am also a criminal in this case because I gave shelter to the accused Krishnakumar and helped him. It is false to state that I am giving false testimony as requested because the police threatened to include me as an accused in this case.....

I have stated during the investigation that the case properties given to Krishnakumar were given in May 2015 by Sri. If stated that Krishnakumar was arrested on 27.02.2015 and therefore the case properties were in Krishnakumar's possession for about 2 months, I am not aware of that. I know that those case properties are going to be taken to Sri Lanka. But it is true that I did not inform the police about it.....

It is true that in the previous cases, I had mentioned only the name Sri in the statement obtained from me by the police. In the statement that was given by me to the police. I have mentioned the names Sri alias Ranjan alias Rajan alias Pugazh, Pugazhavan, after arresting the accused. I identified the present accused as Sri after him being arrested by the police. It is false to state that if the police had arrested a different person and shown him to me, I would have still identified him as Sri. The Q Branch police did not conduct any identification parade.....

It is true that there were no documents about Sri in the case properties seized from Krishnakumar. It is true that, similarly, there were no documents about Ranjan. I have not given a statement anywhere that Krishnakumar told me the name Ranjan. It is false to state that the present accused Ranjan has been living in Trichy from 2012 to 2021, and if in fact he was Sri, I would have identified him earlier.....

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It is false to state that I am giving false testimony under threat from the police, fearing that they would register a case against me.”

“Deposition of Mr. Kumar alias Dharmakumar (PW-9)

Examination-in-chief

I know the present accused, Sri alias Ranjan alias Pugazh alias Pughazhavan. He is also Sri Lankan. I came to India from Sri Lanka in 2009 on a passport. After coming to India, after registering as an external refugee, I am residing in Trichy with my family....

When I was in Sri Lanka, I worked for the L.T.T.E. movement....

When we all met, the accused Krishnakumar would often talk about the L.T.T.E. movement. One day, when Krishnakumar was talking to me, he said that the present accused, Murugan alias Kumaran and Prabha alias Subashkaran, had gathered in Trichy and discussed attacking the traitors who were responsible for destroying the L.T.T.E. movement, and that I should cooperate with them. I said that I was not interested in that. I also said that they should not take any coordination measures. Then, I don't remember the date, but one morning in the first week of May 2015, I went to the house where Krishnakumar was staying. **At that time, when I, Krishnakumar, and Balachandran were talking, a friend of Krishnakumar came there. At that time, Krishnakumar introduced the person as Sri alias Ranjan alias Rajan alias Pugazhavan, and told us that he had worked in the L.T.T.E. movement. They were both discussing reviving the movement. At that time, the present accused, Sri alias Ranjan, took the cyanide bottles, cyanide packet, GPS equipment, and cell phones that he had brought with him and handed them over to Krishnakumar. The present accused left after telling him to take all those items to Sri Lanka and hand them over to Kavi from the movement. I came to know that on 21.07.2015, the Inspector of the Trichy Q Branch informed that my friend Krishnakumar**

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alias Kanthan, was arrested in Ramanathapuram district while he was planning to go to Sri Lanka with the above-mentioned case properties and was traveling in a car and a case was registered in Ramanathapuram and therefore the house where Krishnakumar was staying should be searched and after conducting a search in the presence of witnesses, some documents including a laptop were seized. I was questioned in this regard on 23.07.2015 by the Additional Superintendent of Police of the Q Branch. **Then, on 05.01.2022, being summoned by the investigating officer of this case, I came to Arasan Bakery in Trichy at 10:30 a.m. The present accused was with the police at Arasan Bakery. The police questioned me by showing the present accused. Then I told him that in the first week of May 2015, the present accused had come to Krishnakumar's house and handed over the above-mentioned case properties and also identified him as Sri.**

Cross-Examination

I am from Sri Lanka. My mother and two sisters are in France. **It is true that my brother Chandrakumar and I received weapons training in the L.T.T.E. movement during 1994-1996. It is true that between 1996 and 1998, my brother and I participated along with L.T.T.E. in the fight against Sri Lanka in Mullaitheevu, Kilinochchi, and Mullivaikkal.....**

The three of us would meet often and chat. It is true that in the statement given by me to the police, I have stated that I have refused Krishnakumar's request to revive the L.T.T.E. movement. **It is true that I did not inform the police about it. I have a driving License, PAN card, and Aadhaar card in my name. I am working as a water can dealer and I am not paying any GST. It is false to state that I am conducting business here without obtaining Indian citizenship, obtaining documents illegally, and doing business without paying GST. I did not give the above details in the police statement. It is true that on 16.06.2015, my younger brother**

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Chandrakumar came to my house under the name of Raghupathi Shankar using a fake passport. The police told me that it was wrong to give shelter to someone who came with a fake passport. It is true that my younger brother was staying with me during the period when a person named Sri handed over the case properties to Krishnakumar at Balachandran's house. It is false to state that I am introducing a new person named Sri just to hide my brother's involvement in the L.T.T.E.....

It is true that I did not inform the police even though I knew that the case properties were given to Krishnakumar in May 2015 and that Krishnakumar were in possession of the items. It is true that in the previous case, SC No. 15/2016., when I was testifying as PW-8, I had testified that I did not see what was in the bag given by the person named Sri. It is true that in the other 2 cases where I have testified, I had mentioned only one name, Sri, and did not mention the name Ranjan anywhere. It is true that I have mentioned Ranjan, Rajan, Pugazh, and Pugazhavan only in this case. It is true that I identified the present accused in that way after he was arrested by the police. It is false to state that before the present accused was arrested, neither I nor Balachandran informed the police that Ranjan was residing in Tiruchirappalli. It is false to state that if the police had shown me some other person, I would have identified him as Sri out of fear of the police....

It is true that I did not give a confession statement that the first accused Krishnakumar mentioned the name Ranjan to me.....

It is false to state that my brother and I are involved in this case crime number 1/2015, and therefore my statements are not acceptable. It is not false to state that I am giving evidence in support of this case under threat from the police because I was in the L.T.T.E., and my brother came to India on a fake passport, and since I know about the

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illegal transfer of the assets to Krishnakumar and because
I knew that they were going to be taken to Sri Lanka.”

(Emphasis supplied)

28. From the aforesaid excerpts, learned counsel highlighted the following infirmities, contradictions and suspicious features in the evidence of both the witnesses:
- i. The witnesses admitted that they were residing in India and had procured various identity document including Aadhar card, Pan card, etc., despite not having lawful citizenship status.
 - ii. They were doing business in India and had continuously provided refuge/shelter to Krishnakumar (A-1), the main accused who was arrested in this case in 2015.
 - iii. Even though, they saw Krishnakumar (A-1) indulging in talks about the revival of LTTE movement in their own presence, they did not inform the police about it.
 - iv. **Significantly, none of the witnesses in their statements to the police or in their previous depositions in earlier trials of other accused stated that the accused “Sri” (A-5) whom they were referring to was also known by the name “Ranjan” and that this fact has been told to them by Krishnakumar (A-1). This version has been introduced for the first time in the present trial.**
 - v. **The identification of the accused was done only while he was in police custody and no Test Identification Parade⁷ was held.**
29. Learned counsel further referred to the evidence of the Investigating Officer, Mr. Pandian (PW-29) and particularly the following excerpts therefrom: -

“Examination-in-chief

On 16.12.2021 at 11:00 am, when I was in our branch office, as per the order of the head office, the arrest warrant of the accused Sri was executed by the Trichy Branch Inspector Mr. Victor and Sub-Inspector Feroz Khan who

⁷ For short, “TIP”.

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was assisted him, came to my office and produced the accused Sri of this case along with a separate report.....

At 11.30 am, the accused Sri, who was produced before me by executing the arrest warrant, was interrogated and he voluntarily came forward without any threat or inducement and stated that I was in the second phase of security detail of the leader Prabhakaran of the Liberation Tigers of Tamil Eelam and that citing the excellence of my work, he gave me the name Sri in the movement. My real name is Ranjan, and I surrendered to the Sri Lankan army in the 2009 battle between the LTTE and the Sri Lankan army in Mullivaikkal and was released in 2012, and came to Trichy and stayed, and at that time, as per the request of Gugan, who had worked with me and is currently in Switzerland, to reunite the LTTE and fight against the Sri Lankan army and establishing Tamil Eelam.

Cross-Examination

I got to know about the previous investigation of this case by perusing the file.....

If asked whether an identification parade since PW8, 9 has identified Rajan as Sri, identification parade will only be conducted through Court only if the witness says that it was a stranger who can be identified when seen. It is false to state that the above PW8 and 9 did not identify the accused.....

It is true that only the name Sri has been mentioned in the previous cases and investigations and Ranjan's name has not been mentioned. If the name Ranjan or Sri was not mentioned in the documents marked from Ex.P-6 to 75 through PW19 filed in this case regarding Ranjan, the explanation is that Sri is a name given to him in the LTTE movement to honour him, and that name will only be known to his close relatives, friends and the members of the movement.....

Ex. P-64 shows that the name of Ranjan has been registered at the Shankar Nagar Police Station in Chennai. Also, it is true that he has removed his

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registration at the Shankar Nagar police station in Ex. P-65 and 66 and registered his name as a refugee at the police station in K.K. Nagar, Trichy. It is true that none of my previous officers arrested Ranjan by mentioning his name as Sri. It is true that Ranjan has not obtained any identity card in his name issued by the Indian government to identify himself as an Indian citizen. But he has obtained an Indian driving license. It is true that in the documents filed by me from Ex.P-24 to 60, apart from the identity card issued in Sri Lanka, the name Ranjan, his signature, the address of Ranjan were not mentioned.....

It is true that Ranjan's name or signature is not mentioned anywhere in the documents claimed to have been written by him, but it was brought up to my knowledge during my investigation that since those documents are confidential, they would not usually sign them. It is false to state that if this document was actually written by Ranjan in his own handwriting, we would have sent it to a handwriting expert and got it verified, and since it was not written by Ranjan, no such effort was taken. It is true that Ranjan's wife and son are living in Switzerland, and a letter was sent from the Swiss Embassy on 14.07.2021 asking Ranjan to come and live with his family, and the same has been filed in this case as Ex-P-58. It is false to state that Ranjan is living alone due to the delay in the procedure of issuing visa in his name, and therefore we have included him as an accused in this case....."

(Emphasis Supplied)

30. Learned counsel referred to the above excerpts to contend that the I.O. has candidly admitted that, prior to the arrest of the appellant in the year 2021, there existed no contemporaneous documentary or oral evidence to establish that the appellant was known by or answered to the name "Sri" as an alias of "Ranjan". Further, no TIP was conducted after the appellant's arrest, despite the fact that none of the witnesses examined during investigation had identified "Ranjan" as being the alias of "Sri".

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31. On this basis, learned counsel urged that the involvement of the appellant in this case is totally unjustified, based purely on conjectures and surmises and the appellant has been made to undergo imprisonment of nearly four years without there being any evidence to connect him with the crime.
32. Learned counsel contended that the reliance placed by the prosecution on call detail records (CDRs) is wholly misplaced. It was pointed out that the neighbour of appellant, Indu (PW-17), who assisted the appellant in procuring SIM cards, has categorically deposed that the said SIM cards were obtained only in the year 2020 and were used by the appellant during the period 2020-2021, *i.e.*, until his arrest. In such circumstances, the said CDRs cannot have any nexus with an offence allegedly committed in the year 2015 and are, therefore, wholly irrelevant to the prosecution case.
33. Learned counsel further contended that the appellant had been granted the status of a Non-Camp Refugee, along with his wife and minor child, upon their arrival in India in the year 2009 by the Government of India and the State of Tamil Nadu, and that the said status continues to subsist. Consequently, there was no requirement for the appellant to renew his passport or extend the validity of his visa. It was thus urged that the invocation of the provisions of the Passport Act, 1967 and the Foreigners Act, 1946 against the appellant is wholly misconceived and unsustainable in law.
34. He further submitted, in the present case, even though the appellant has served out a substantial part of the sentence awarded by the trial Court and even after order dated 1st December, 2025 passed by this Court directing his release on bail, he is still not being released and continues to be illegally detained at a Special Camp in Trichy.
35. Learned counsel, thus, urged that the appellant deserves to be honorably acquitted and further direction ought to be given that he should be permitted to pursue his case for relocation to Switzerland in terms of the visa granted to him, the process of which stood halted on account of his false implication in the present case.

Submissions on behalf of the respondent

36. *Per contra*, learned counsel appearing for the respondent, vehemently and fervently opposed the submissions advanced by the learned counsel for the appellant. He urged that the appellant was clearly

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found involved in activities aimed at revival of the banned organisation LTTE.

37. He submitted that the appellant had conspired with the convicted accused Krishnakumar (A-1) and had provided him with cyanide capsules and other poisonous chemicals to be carried to Sri Lanka so that the persons who were responsible for the defeat of LTTE could be eliminated.
38. He urged that the discrepancies sought to be highlighted by the learned counsel for the appellant in the evidence of the prosecution witnesses are trivial in nature, immaterial, and such as are bound to occur in the testimony of truthful witnesses, looking to the long interval of time after which they were examined.
39. Learned counsel submitted that, since the testimonies of the witnesses Balachandran (PW-8) and Kumar @ Dharma Kumar (PW-9) were recorded after a delay of almost seven years, such discrepancies are naturally bound to occur. He, therefore, urged that the appellant does not deserve any indulgence by this Court. He further submitted that the since appellant has already served out substantial portion of the sentence awarded by the trial Court, the present appeal itself has, to a large extent, lost its efficacy.

Discussion

40. We have given our thoughtful consideration to the submissions advanced at the bar and have perused the material available on record. We have also sifted through the original record and the evidence of the prosecution witnesses.
41. The moot question that arises for consideration before this Court is whether the appellant has been implicated in this case on the basis of mistaken identity.
42. The key reasons assigned by the trial Court and the High Court to hold that the absconding accused “Sri” (A-5) and the appellant, “Ranjan” were one and the same are noted hereinbelow: -
 - i. Both, Balachandran (PW-8) and Kumar @ Dharma Kumar (PW-9) deposed that when the appellant visited Krishnakumar’s (A-1) house in May 2015, A-1 introduced him as “Sri” alias “Ranjan” alias “Rajan” alias “Pugazh” alias “Pugazhavan” and stated that he had worked in the LTTE movement. PW-8 further deposed

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that the accused handed over cyanide bottles, a cyanide packet, and GPS equipment to Krishnakumar (A-1) and directed him to carry the same to Sri Lanka and hand them over to “Kavi,” which was corroborated by PW-9 in material particulars. On this basis, the trial Court concluded that “Ranjan” and “Sri” referred to one and the same person, *i.e.*, the present appellant.

- ii. Treated evidence of the appellant’s landlady, Rasamalar (PW-25), and his neighbours, Indu (PW-17) and Latha (PW-18) as corroborative of the prosecution’s case regarding the identity and presence of the appellant at the relevant address, thereby lending support to the prosecution version that the appellant was identifiable to persons in his vicinity as the individual named in the FIR.
 - iii. The High Court accepted the prosecution’s explanation that “Sri” was not a conventional name but an honorific conferred upon the appellant by an LTTE leader in recognition of his services. It was further noted that the appellant’s photograph was affixed on his Sri Lankan passport (P.M.O. 61) bearing the name “Ranjan,” which, according to the courts, established his identity. On this basis, the High Court concluded that the appellant, having been actively associated with LTTE, had adopted the name “Ranjan” to conceal his identity after the organisation was banned and disbanded.
 - iv. With regard to contention of the defence that the name “Ranjan” did not appear in the earlier depositions of PW-8 and PW-9 in S.C. No. 7 of 2016 and S.C. No. 15 of 2016, the High Court rejected the said contention by relying on the decision of this Court in ***Abuthagir v. State***⁸, holding that mere belated disclosure of a particular fact by a witness is not, by itself, a ground to discard such testimony, provided the evidence is otherwise cogent and credible.
43. We are of the firm opinion that the Courts below erred in holding that the appellant-Ranjan is the same as the absconding accused “Sri” (A-5), and the conviction based on this flawed identification cannot be sustained in the eyes of the law.

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44. It is an admitted fact that the star prosecution witnesses, Balachandran (PW-8) and Kumar @ Dharma Kumar (PW-9), are the only two witnesses, who have identified the appellant as the accused “Sri”, who allegedly handed over the cyanide capsules and poisonous substances to Krishnakumar (A-1) in the year 2015 for purported activities related to the revival of LTTE and for targeting those whom the accused believed to be responsible for the downfall of LTTE.
45. At the very outset, it is significant to note that both these witnesses were residing in India as refugees and had procured identity documents such as Aadhaar cards, PAN cards and Indian voter identity cards. This is borne out by the admissions made by Balachandran (PW-8) and Kumar @ Dharma Kumar (PW-9) themselves in cross-examination referred to *supra*. PW-8 admitted that he held a KVB bank account, a voter identity card, an Aadhaar card and a PAN card in his name and that all his family members also held Aadhaar cards, while simultaneously conceding that he had not been granted Indian citizenship till date. PW-9 similarly admitted to possessing a driving licence, a PAN card and an Aadhaar card in his name. It is wholly inconceivable as to why no action was taken by the investigating agency against them, despite material clearly indicating that they had created documents projecting themselves as Indian citizens, even though they did not possess such status. This aspect, in itself, casts a serious doubt on the manner in which the investigation has proceeded.
46. Further, both these witnesses, not only consciously provided shelter to Krishnakumar (A-1), but even after allegedly witnessing the handing over of poisonous substances by the accused “Sri” (A-5) to Krishnakumar (A-1), they chose to remain completely silent. Not only did they fail to inform the police about such a grave and serious incident which forms the very backbone of the prosecution case, but they also continued to harbour and support Krishnakumar (A-1) for a prolonged period, thereby rendering their conduct highly unnatural and suspicious. As a matter of fact, there was ample material to prosecute these witnesses in this very case.
47. What assumes considerable significance is that neither of these two witnesses, in their statements recorded by the police nor in their depositions in the earlier trials (S.C. No. 7 of 2016 and S.C. No. 15 of 2016), ever stated that the person referred to as “Sri” was also known by the name “Ranjan,” or that he was the present appellant

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residing in Trichy. This crucial assertion has surfaced only at a much later stage, thereby seriously denting the credibility of their version and creating substantial doubt regarding the identity of the appellant.

48. A careful scrutiny of the evidence reveals glaring contradictions and material improvements in the testimonies of these witnesses. Both witnesses admitted in their cross-examinations that in the earlier trials that they had not mentioned the name “Ranjan” at all, and that the identification of the appellant in that capacity was made only after his arrest and that too during police custody. The belated introduction of this name, years after the alleged incident, renders their testimonies highly suspect. Their silence in earlier proceedings, followed by this subsequent disclosure, constitutes a material improvement rather than a mere lapse of memory.
49. In this backdrop, the reliance placed by the High Court on **Abuthagir** (*supra*) is clearly misplaced. The principle laid down in **Abuthagir** (*supra*) pertains to delay in examination of witnesses during investigation and cannot be extended to a situation where there is a substantive and material improvement in testimony after earlier depositions were conspicuously silent on the very same aspect. Such improvements have debilitating effect on the credibility of the deposition made by the witnesses and cannot be brushed aside as inconsequential.
50. The reliance placed by the Courts below on the evidence of appellant’s landlady, Rasamalar (PW-25) and his neighbours Indu (PW-17) and Latha (PW-18) is equally misconceived and is based on a clear misreading of their depositions. While the Courts below have treated these witnesses as corroborating the prosecution case on identity, a careful and holistic reading of their evidence reveals quite the contrary, each of them, in fact, undermines the very foundation of the prosecution’s case that the appellant was known as “Sri”.
51. The landlady, Rasamalar (PW-25), in her examination-in-chief categorically stated that there was no resident by the name “Sri” in her apartment. More importantly, in her cross-examination, she unequivocally deposed that she knew the appellant only by the name “Ranjan”. She further stated that she herself had come to India out of fear of the LTTE and that the appellant too had come with his family under similar circumstances. She also clarified that had she known of any connection of the appellant with the LTTE, she would

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not have rented out the premises to him. Additionally, she confirmed that the appellant had duly registered himself as a refugee at the K.K. Nagar Police Station, Trichy, where she herself was registered. Testimony of this witness properly appreciated, does not support the prosecution case; rather, it clearly establishes that the appellant was known only as “Ranjan”, and that no person by the name “Sri” was residing in her premises on rent.

52. The evidence of Indu (PW-17) and Latha (PW-18), who were immediate neighbours residing in close proximity to the appellant, is on the same lines. Neither of these witnesses stated that they knew the appellant by the name “Sri”. On the contrary, their testimony reflects ordinary neighbourly interaction. PW-17 had assisted the appellant in obtaining SIM cards, and both PW-17 and PW-18 permitted the appellant to receive money sent by his wife from Switzerland through their bank accounts, as he did not have one owing to his refugee status. These circumstances are entirely innocuous and indicative of a normal domestic association, and do not, in any manner, support the prosecution’s case regarding identity or alleged involvement in unlawful activities.
53. In these circumstances, far from corroborating the prosecution case, the evidence of PW-17, PW-18, and PW-25 runs contrary to the prosecution’s theory and, in fact, clearly establishes that the appellant was known only as “Ranjan” and had nothing to do with the alleged absconding accused “Sri”.
54. We find from the record that there is a complete absence of reliable oral or documentary evidence linking the appellant to the accused “Sri” (A-5). The Investigating Officer (PW-29) himself admitted that only the name “Sri” appears in the earlier proceedings and cases, and that the name “Ranjan” does not find mention anywhere in the investigation records. Not a single official record, whether the FIR, Chargesheet, or any other police document, reflects the name “Ranjan” in conjunction with the absconding accused “Sri” prior to the appellant’s arrest. In the absence of any such evidence, the highly belated introduction of the name “Ranjan” as alias of “Sri” post-arrest constitutes a material improvement that seriously undermines the credibility of the prosecution’s case.
55. In order to appreciate the importance of proper identification and the consequences of failure on the part of the prosecution to establish

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identity through reliable evidence, it would be apposite to refer to the observations of this Court in ***Vishwanatha v. State of Karnataka***⁹, wherein the issue of doubtful identity in the absence of corroborative material was directly considered. This Court observed as follows: -

“16. Coming back to the facts and circumstances of the present case, it is an admitted fact that Ravikumar (Accused No.1, now deceased) was known to the eyewitnesses and was also related to the complainant. Hence, there was no requirement of TIP as regard to Ravikumar (accused no.1). But the case of appellant-Vishwananth stands on a different footing. He was a total stranger to the two eye witnesses i.e. PW-1 and PW-2. The name ‘Vishwanath’ came to their knowledge, only after Ravikumar (Accused no. 1) called his co-accused, by name exhorting him to run. In a case where the identity of the accused is not known and TIP has not been conducted, the court has to see if there was any description of the accused either in the FIR or in any of the statement of witness recorded during the investigation. There is none in the present case. The identification of an accused in court is acceptable without a prior TIP and absence of TIP may not be fatal for the prosecution. It would depend on facts of each case. In the case at hand, though the appellant was identified in court by PW-1 and PW-2, the Trial Court did not attach much weight to it, as no identification proceedings were conducted, and the Court found it unsafe to acknowledge the identity merely on the basis of identification in the Court. In the present case, where there are six persons by the name of ‘Vishwanatha’ in the locality and where this Court has doubts on the presence of the two star witnesses PW-1 and PW-2 (who have identified the accused), we are of the opinion that the identity of the present appellant remained in doubt.

17. Another fact which casts a doubt on the identity of the present appellant, is that there is no description

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in the FIR of ‘Vishwanatha’ except that his name is mentioned. He then becomes the first of the two to be arrested by the police. Learned counsel of the appellant would submit that there were six persons by the name of ‘Vishwanantha’ in Kudupu village at the relevant point of time, a fact which was placed by the defence during trial, which has not been confronted. In such a situation, it was the duty of the prosecution to show as to how and on what basis, the appellant came to be apprehended by the police. The Sub-Inspector, PS-Mangalore Rural (PW-19), who apprehended the appellant, had also failed to explain how he came to apprehend the appellant without any information regarding his description. A perusal of the testimony of the Sub-Inspector/PW-19 indicates that there is not even a whisper as to what formed the basis of the appellant’s arrest. He was cross-examined and what was gathered from his cross-examination is that the appellant was arrested in absence of any independent witnesses and without preparing any arrest memo. All these facts combined together cast a doubt on the identity of the appellant. Thus, it is not safe to convict the appellant solely only on the basis of the testimony of PW1 and PW2.”

(Emphasis supplied)

56. Applying the aforesaid principles to the present case, the position is even more damning to the prosecution case. Here too, the identity of the appellant rests solely on the belated and improved testimonies of PW-8 and PW-9, who admittedly did not disclose the name “Ranjan” in earlier proceedings and introduced it only after the appellant’s arrest. There is no contemporaneous description, no documentary linkage, and no independent corroboration connecting the appellant with the alleged absconding accused “Sri” (A-5). Much like in *Vishwanatha* (*supra*), the absence of reliable identification material and the failure of the prosecution to establish how the appellant came to be implicated in the case by linking him as “Sri” using an alias name renders the case on identity wholly doubtful, making it unsafe to sustain the conviction.

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57. Apart from the inconsistencies in the testimonies of the witnesses, the prosecution's case is further weakened by the documented and lawful conduct of the appellant during the period he is alleged to have been absconding. While the prosecution seeks to connect the identity of the absconding accused "Sri" (A-5) with the appellant-Ranjan on the basis of belated disclosures, the actual facts relating to the appellant's life in Trichy present a completely different picture.
58. The appellant was continuously and openly residing in Trichy and had duly registered himself as a refugee with the K.K. Nagar Police Station, Trichy, a fact also confirmed by appellant's landlady (PW-25). It is the prosecution's own case that the absconding accused "Sri" (A-5) was being sought to be arrested under a non-bailable warrant and was being actively searched for since the filing of the final report in S.C. No. 7 of 2016. Despite this, for more than five years, the investigating agency failed to trace or apprehend the said accused, even though, as per their own case, he was residing openly at a known and registered address under the alias name "Ranjan". The total lack of effort on the part of the investigating officers to trace and apprehend the absconding accused "Sri" (A-5), or to establish any credible link between "Sri" and the appellant-Ranjan during this entire period, itself creates a grave doubt regarding the *bona fides* of the prosecution's case.
59. The conduct of the appellant during the relevant period also merits consideration. Not only the appellant was residing openly at his known address, but he was simultaneously engaging with the Switzerland Embassy at New Delhi and local authorities for obtaining a police clearance certificate in order to travel to Switzerland to join his wife and son. The letter dated 14th July, 2021 issued by the Switzerland Embassy (Ex. P-58) is a contemporaneous official record establishing this fact. A person who is an absconding accused in a serious UAPA matter would not dare to apply to a foreign embassy for a visa and seek a police clearance certificate from the very police station in whose jurisdiction he admittedly resided under a false identity. This conduct is wholly inconsistent with the prosecution's case and is entirely consistent with the conduct of an innocent person going about his routine life.
60. Undeniably, the entire case of the prosecution on the question of identity rests solely on the oral testimony of Balachandran (PW-8)

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and Kumar @ Dharma Kumar (PW-9), whose version, as already discussed above, is completely unreliable.

61. *Prima facie*, it appears that Balachandran (PW-8) and Kumar @ Dharma Kumar (PW-9), who had themselves brought their relatives from Sri Lanka under false identities and were under the scrutiny of the investigating agency, were, by way of a bargain, prevailed upon to implicate the appellant in the present case as the absconding accused “Sri” (A-5), just in order to give a closure to the case. It is, therefore, clearly a case where the appellant has been falsely implicated by being assigned the identity of another person, namely, the so-called absconding accused “Sri” (A-5). The investigating agency has not placed on record any material to demonstrate the steps taken by it to locate, apprehend, and bring the said absconding accused to trial. Such inaction and indolence on the part of the investigating agency casts a serious doubt on the *bona fides* of its conduct.

Conclusion

62. As a result of the discussion made hereinabove, we are of the firm opinion that the appellant has been falsely implicated in this case without there being any evidence to connect him with the crime.
63. Accordingly, the judgment dated 18th July, 2024 passed by the trial Court and impugned judgment dated 3rd April, 2025 passed by the High Court are hereby set aside.
64. The appeal merits acceptance and is hereby allowed.
65. The appellant is acquitted of the charges and shall be released from the Special Camp, Trichy forthwith. He shall be at liberty to pursue his request for relocation/movement to Switzerland, in accordance with the law.
66. Pending application(s), if any, shall stand disposed of.

Result of the case: Appeal allowed.

Parvinder Singh
v.
Directorate of Enforcement

(Criminal Appeal No. 2678 of 2026)

19 May 2026

[M.M. Sundresh* and Nongmeikapam Kotiswar Singh, JJ.]

Issue for Consideration

The present appeal has been preferred against the judgment dated 19.05.2025 passed by the High Court wherein, an issue with respect to the scope and applicability of the first proviso to s.223(1) of the Bharatiya Nagarik Suraksha Sanhita, 2023 (BNSS) had arisen, while dealing with a case where the prosecution complaint under the Prevention of Money Laundering Act, 2002 (PMLA) had been filed prior to the date of commencement of the BNSS.

Headnotes[†]

Bharatiya Nagarik Suraksha Sanhita, 2023 – ss.2(1)(k), 4, 5, 210, First proviso to s.223(1), 531 – Prevention of Money Laundering Act, 2002 – ss.43, 44, 46, 65 – An ECIR was registered by the respondent against the appellant on 24.07.2023, pursuant to which he was arrested on 27.04.2024 – Thereafter, a prosecution complaint was duly filed by the respondent on 24.06.2024 – The date fixed for hearing on cognizance was 02.07.2024 – The erstwhile Code of Criminal Procedure, 1973 (CrPC), was replaced by the BNSS with effect from 01.07.2024 – When the case came up for hearing on 02.07.2024, the Special Court took cognizance of the offence – An application for recall of the order dated 02.07.2024 was filed alleging that the mandate of s.223 of the BNSS, with specific reference to the first proviso to sub-section (1) was not complied and appellant was not given an opportunity of hearing before the Special Court while taking cognizance – The said application was dismissed – Aggrieved, the appellant filed two criminal revisions, in one of the Criminal Revision challenging the cognizance order dated 02.07.2024, the High Court, *vide* the impugned judgment dated 19.05.2025, held that the provisions of s.223 of the BNSS will not have any application to the

* Author

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instant case as the proceedings under the PMLA were initiated against the appellant much prior to the commencement of the BNSS – Correctness:

Held: Though the complaint under the PMLA was filed earlier, the cognizance was only taken subsequently, on 02.07.2024, by which time the BNSS had come into force – Admittedly, the appellant has not been heard at the time of taking cognizance – The mandate of a legislation which ensures the right of an accused to a fair trial, whose liberty is at stake, cannot be dispensed with – Thus, the contention of the ASG that prejudice caused due to non-hearing at the stage of cognizance will have to be shown by the accused cannot be accepted, as it is not a mere irregularity that would attract either s.506 or 511 of the BNSS, but is an illegality that would vitiate the very proceedings – The views expressed by the High Court are, therefore, liable to be set aside – Non-compliance with the first proviso to s.223(1) of the BNSS vitiates the very order taking cognizance, and the same cannot be sustained in the eyes of the law – In fact, the appellant has, at the earliest point in time, filed the application for recall of the order taking cognizance by placing reliance upon the said proviso – Had the Special Court allowed it, the trial would have proceeded further – Suffice it to state that the appellant cannot be faulted for any delay that has occasioned – The impugned judgment of the High Court dated 19.05.2025 and the order taking cognizance by the Special Court dated 02.07.2024 stand set aside – The Special Court is directed to afford an opportunity of hearing to the appellant by proceeding from the stage of taking cognizance. [Paras 37, 38, 40]

Bharatiya Nagarik Suraksha Sanhita, 2023 – ss. 223 to 228 – Code of Criminal Procedure, 1973 – ss.200 to 205 – Whether ss.200 to 205 of the CrPC (now ss.223 to 228 of the BNSS) would be applicable to proceedings under the PMLA:

Held: Yes – ss.200 to 205 of the CrPC (now ss.223 to 228 of the BNSS) would be applicable to proceedings under the PMLA. [Para 33]

Bharatiya Nagarik Suraksha Sanhita, 2023 – s.2(1)(k) – Inquiry, when commences:

Held: A mere ministerial act cannot be termed as an “inquiry” u/s.2(1)(k) of the BNSS – Taking cognizance is nothing but an

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application of judicial mind – So long as the application of the judicial mind is not exercised, an inquiry cannot commence – It is the judicial notice of an offence by the Court which is relevant – While doing so, it is presumed that the Court would take note of the complaint along with the materials placed before it. [Para 34]

Bharatiya Nagarik Suraksha Sanhita, 2023 – First proviso to s.223(1) – Proviso is substantive in nature:

Held: Though Chapter XVI of the BNSS lays down the procedural law dealing with complaints made to a Magistrate, the aforesaid proviso is substantive in nature, as it does not merely regulate the manner in which the proceedings are to be conducted, rather it confers a right upon the accused to be heard before taking cognizance which forms a part of the right of an accused to a fair trial enshrined u/Art.21 of the Constitution of India, 1950 – Further, the word “shall” occurring in the said proviso has to be construed to be mandatory in nature, which enures to the benefit of an accused – Resultantly, cognizance of an offence taken by a Court without due compliance of the aforestated proviso would be *void ab initio*. [Para 27]

Bharatiya Nagarik Suraksha Sanhita, 2023 – s.531(2)(a) – Objective of:

Held: s.531(2)(a) of the BNSS has a laudable objective behind it which saves the proceedings initiated under the CrPC, prior to the commencement of the BNSS – It is meant to give a prospective application to the provisions of the BNSS – In other words, once a proceeding such as an appeal, application, investigation, inquiry or trial is initiated under the CrPC, then the same must meet its logical conclusion under the CrPC itself – Thus, the object of the said provision is to avoid piecemeal application of the CrPC *vis-à-vis* the BNSS. [Para 28]

Case Law Cited

Tarsem Lal v. ED [2024] 6 SCR 864 : (2024) 7 SCC 61; *Kushal Kumar Agarwal v. Directorate of Enforcement* [2025] 5 SCR 730 : 2025 SCC OnLine SC 1221; *Yash Tuteja & Ors. v. Union of India* [2024] 4 SCR 591 : (2024) 8 SCC 465 – relied on.

Hardeep Singh v. State of Punjab [2014] 2 SCR 1 : (2014) 3 SCC 92 – referred to.

Parvinder Singh v. Directorate of Enforcement**List of Acts**

Bharatiya Nagarik Suraksha Sanhita, 2023; Prevention of Money Laundering Act, 2002; Code of Criminal Procedure, 1973; Constitution of India.

List of Keywords

First proviso to s. 223(1) of Bharatiya Nagarik Suraksha Sanhita, 2023; Section 531(2)(a) of BNSS; Art. 21 of the Constitution of India; Mandatory statutory safeguard; Right to a fair trial; Non-compliance; Pre-cognizance hearing; Taking cognizance; Opportunity of being heard.

Case Arising From

CRIMINAL APPELLATE JURISDICTION: Criminal Appeal No(s). 2678 of 2026

From the Judgment and Order dated 19.05.2025 of the High Court of Uttarakhand at Nainital in CRR No. 218 of 2025

Appearances for Parties

Advs. for the Appellant(s):

Sidharth Aggarwal, Sr. Adv., Ayush Kaushik, Ms. Shubhangni Jain, Sahil Dhingra, Karan Dhalla, Abhay Pratap Singh.

Advs. for the Respondent(s):

Suryaprakash V. Raju, A.S.G., Zoheb Hussain, Annam Venkatesh, Samrat Goswami, Arvind Kumar Sharma, Sai Shashank, Rohan Wadhwa, Vittal B, Ayush Anand, Monu Kumar.

Judgment / Order of the Supreme Court**Judgment**

M.M. Sundresh, J.

1. Leave granted.
2. The present appeal has been preferred against the judgment dated 19.05.2025 passed by the High Court of Uttarakhand wherein, an issue with respect to the scope and applicability of the first proviso to Section 223(1) of the Bharatiya Nagarik Suraksha Sanhita, 2023 (hereinafter referred to as the “**BNSS**”) had arisen, while dealing

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with a case where the prosecution complaint under the Prevention of Money Laundering Act, 2002 (hereinafter referred to as the “PMLA”) had been filed prior to the date of commencement of the BNSS.

Brief Facts:

3. An ECIR was registered by the respondent against the appellant being ECIR/DNSZO/04/2023 on 24.07.2023, pursuant to which he was arrested on 27.04.2024. Within two months from the date of the arrest, a prosecution complaint was duly filed by the respondent on 24.06.2024, invoking Sections 44 and 45 of the PMLA for the offences under Section 3 read with Section 4 of the PMLA before the designated Special Court. On the very same day, the Special Court issued a direction to register the complaint so filed as a miscellaneous case and, thus, fixed it for hearing on cognizance on 28.06.2024.
4. When the case came up for hearing on the said date, it was once again fixed for hearing on cognizance on 02.07.2024 since the Presiding Officer was on recess. On behalf of the respondent, the learned Special Public Prosecutor had appeared, and the appellant was produced from judicial custody through video conferencing. Within a few days thereafter, the erstwhile Code of Criminal Procedure, 1973, (hereinafter referred to as the “CrPC”) was replaced by the BNSS with effect from 01.07.2024. When the case came up for hearing on 02.07.2024, the Special Court took cognizance of the offence in the presence of the learned Special Public Prosecutor and the legal advisor who had appeared on behalf of the respondent, and the appellant who was once again produced in judicial custody from the district jail. The miscellaneous case registered earlier was re-registered as Special Sessions Trial No. 28 of 2024.
5. The following is the conclusion arrived at by the Special Court upon taking cognizance:

“6....From the perusal of the complaint, it is clear that in the present case, sufficient material is available to take cognizance of Section 3 read with Section 4 of the Prevention of Money Laundering Act against the accused Parvinder Singh. Accordingly, cognizance is taken of Section 3 read with Section 4 of the Prevention of Money Laundering Act against the accused Parvinder Singh.”

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6. An application for recall of the order dated 02.07.2024 was filed before the learned Special Court on 24.12.2024, *inter alia*, alleging that the mandate of Section 223 of the BNSS, with specific reference to the first proviso to sub-section (1) had not been complied with, as the appellant was not given an opportunity of hearing before the Special Court while taking cognizance. The said application was dismissed by the Special Court, *vide* order dated 22.03.2025, holding that the filing of the application was merely a dilatory tactic employed by the appellant and that once cognizance had been taken, the same Court cannot reconsider it. Further, the Special Court, *vide* the said order, also framed the charges against the appellant under Section 3 read with Section 4 of the PMLA and put up the case for recording of prosecution evidence on 05.04.2025.
7. Aggrieved, the appellant preferred a criminal revision before the High Court in CRLR No. 183/2025 challenging the order dated 22.03.2025, dismissing the recall application. Yet another criminal revision in CRLR No. 218/2025 was filed challenging the cognizance order dated 02.07.2024.
8. The High Court, *vide* the impugned judgment dated 19.05.2025, has been pleased to hold that the provisions of Section 223 of the BNSS will not have any application to the instant case as the proceedings under the PMLA were initiated against the appellant much prior to the commencement of the BNSS. Accordingly, the criminal revision filed in CRLR No. 218/2025 has been dismissed by placing reliance upon Section 531(2)(a) of the BNSS, which saves criminal proceedings initiated prior to the commencement of the BNSS to continue under the provisions of the erstwhile CrPC. On the same day, the criminal revision filed in CRLR No. 183/2025 was partly allowed by the High Court by quashing the order dated 22.03.2025 to the extent of the charges framed and remanded the matter to the Special Court for fresh hearing on the issue of framing of charges.

SUBMISSIONS ON BEHALF OF THE APPELLANT:

9. The learned Senior Counsel appearing for the appellant submitted that the appellant has, admittedly, not been heard by the Special Court at the time of taking cognizance. It was further submitted that Sections 200 to 205 of the CrPC, which have been reiterated under Sections 223 to 228 of the BNSS, are applicable to the case at hand. Thus, there is no inconsistency between the said provisions

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of the BNSS and that of the PMLA and, hence, the appellant is entitled to be heard at the time of taking cognizance, as provided under the first proviso to Section 223(1) of the BNSS. A similar view has already been taken by this Court in the case of **Kushal Kumar Agarwal v. Directorate of Enforcement, 2025 SCC OnLine SC 1221**, by placing reliance upon two earlier decisions of this Court in the cases of **Yash Tuteja & Ors. v. Union of India, (2024) 8 SCC 465**, and **Tarsem Lal v. ED, (2024) 7 SCC 61**.

10. Furthermore, the mere fact that the Special Court had directed the prosecution complaint filed by the respondent to be numbered and, thereafter, put up the case for taking cognizance, would not amount to an “inquiry” as defined under Section 2(1)(k) of the BNSS and, therefore, Section 531(2)(a) of the BNSS has no application to the instant case.

SUBMISSIONS ON BEHALF OF THE RESPONDENT

11. Mr. S.V. Raju, the learned Additional Solicitor General (ASG) appearing for the respondent, submitted that the PMLA is a stand-alone enactment and, therefore, the provisions of the BNSS do not have any application to the proceedings under PMLA. There is no question of committal involved in the procedure envisaged under the PMLA and, therefore, the Special Court, being a court of original jurisdiction having a distinct object behind it, cannot be made to follow the general criminal procedure contemplated under the BNSS. In any case, Chapters XIV to XVII of the BNSS do not have any application to the proceedings under the PMLA. In light of the aforesaid submission, the learned ASG further contended that the decision rendered by this Court in **Kushal Kumar Agarwal (supra)**, as relied upon by the learned Senior Counsel appearing for the appellant, has to be reconsidered.
12. Without prejudice to his earlier contentions, it is submitted that there is no dispute that the complaint under the PMLA was filed prior to the commencement of the BNSS, and the learned Special Court had, in fact, passed orders prior to the commencement of the BNSS. Thus, the High Court has rightly taken note of Section 531(2)(a) of the BNSS as an inquiry had indeed been initiated by the Special Court prior to the commencement of the BNSS. He also submitted that, in view of the law as laid down by this Court in **Hardeep Singh vs. State of Punjab, (2014) 3 SCC 92**, it has to be held that an inquiry

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had already commenced prior to the commencement of the BNSS and, hence, the provisions of the CrPC shall be applicable.

13. In any case, the appellant has not shown any prejudice caused to him due to the Special Court having taken cognizance without hearing him. Hence, the impugned order ought not to be interfered with, and the appeal deserves to be dismissed.
14. Before we go into the issues raised by the learned Senior Counsel and the learned ASG, we shall now have a look at the relevant provisions.

DISCUSSION ON RELEVANT LEGAL PROVISIONS

(i) THE PREVENTION OF MONEY LAUNDERING ACT, 2002

Section 43 of the PMLA

“43. Special Courts.—(1) The Central Government, in consultation with the Chief Justice of the High Court, shall, for trial of offence punishable under section 4, by notification, designate, one or more Courts of Session as Special Court or Special Courts for such area or areas or for such case or class or group of cases as may be specified in the notification.

Explanation.—In this sub-section, “High Court” means the High Court of the State in which a Sessions Court designated as Special Court was functioning immediately before such designation.

(2) While trying an offence under this Act, a Special Court shall also try an offence, other than an offence referred to in sub-section (1), with which the accused may, under the Code of Criminal Procedure, 1973 (2 of 1974), be charged at the same trial.”

(emphasis supplied)

15. Section 43 of the PMLA defines a Special Court as a Court of Session which has been designated by way of a notification issued by the Central Government in consultation with the Chief Justice of the respective High Court. Any Trial Court other than a Court of Session cannot function as a Special Court.

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Section 44 of the PMLA

“44. Offences triable by Special Courts.—

(1) Notwithstanding anything contained in the Code of Criminal Procedure, 1973 (2 of 1974),—

- (a) an offence punishable under Section 4 and any scheduled offence connected to the offence under that section shall be triable by the Special Court constituted for the area in which the offence has been committed:

Provided that the Special Court, trying a scheduled offence before the commencement of this Act, shall continue to try such scheduled offence; or

- (b) a Special Court may, upon a complaint made by an authority authorised in this behalf under this Act take cognizance of offence under Section 3, without the accused being committed to it for trial:

Provided that after conclusion of investigation, if no offence of money-laundering is made out requiring filing of such complaint, the said authority shall submit a closure report before the Special Court; or

- (c) if the court which has taken cognizance of the scheduled offence is other than the Special Court which has taken cognizance of the complaint of the offence of money-laundering under sub-clause (b), it shall, on an application by the authority authorised to file a complaint under this Act, commit the case relating to the scheduled offence to the Special Court and the Special Court shall, on receipt of such case proceed to deal with it from the stage at which it is committed.
- (d) a Special Court while trying the scheduled offence or the offence of money-laundering shall hold trial in accordance with the provisions of the Code of Criminal Procedure, 1973 (2 of 1974), as it applies to a trial before a Court of Session.

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Explanation.—For the removal of doubts, it is clarified that,—

- (i) the jurisdiction of the Special Court while dealing with the offence under this Act, during investigation, enquiry or trial under this Act, shall not be dependent upon any orders passed in respect of the scheduled offence, and the trial of both sets of offences by the same court shall not be construed as joint trial;
- (ii) the complaint shall be deemed to include any subsequent complaint in respect of further investigation that may be conducted to bring any further evidence, oral or documentary, against any accused person involved in respect of the offence, for which complaint has already been filed, whether named in the original complaint or not.

(2) Nothing contained in this section shall be deemed to affect the special powers of the High Court regarding bail under section 439 of the Code of Criminal Procedure, 1973 (2 of 1974) and the High Court may exercise such powers including the power under clause (b) of sub-section (1) of that section as if the reference to “Magistrate” in that section includes also a reference to a “Special Court” designated under Section 43.”

(emphasis supplied)

16. Section 44(1)(b) of the PMLA empowers the authority to file a complaint before the Special Court without the accused being committed to it for trial. Under the proviso to Section 44(1)(b) of the PMLA, it is well open to the authority to submit a closure report before the Special Court if no offence of money laundering is made out upon conclusion of investigation. As per Section 44(1)(c) of the PMLA, it is open to the authority who filed the complaint to seek committal of a case relating to a Scheduled Offence, which is pending before a competent Court, to the Special Court by way of an application. If and when such an application is filed, the Court dealing with the Scheduled Offence has to commit the same to the Special Court, which shall thereafter proceed to deal with it from the stage at which it was committed. Section 44(1)(d) of the PMLA makes the procedure

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under the CrPC, which has now been replaced by the procedure under the BNSS pursuant to the repeal, applicable to a trial before the Special Court as if it were a Court of Session.

Section 46 of the PMLA

“46. Application of Code of Criminal Procedure, 1973 to proceedings before Special Court.—(1) Save as otherwise provided in the Act, the provisions of the Code of Criminal Procedure, 1973 (2 of 1974) (including the provisions as to bails or bonds), shall apply to the proceedings before a Special Court and for the purposes of the said provisions, the Special Court shall be deemed to be a Court of Session and the persons conducting the prosecution before the Special Court, shall be deemed to be a Public Prosecutor:

Provided that the Central Government may also appoint for any case or class or group of cases a Special Public Prosecutor.

(2) A person shall not be qualified to be appointed as a Public Prosecutor or a Special Public Prosecutor under this section unless he has been in practice as an advocate for not less than seven years, under the Union or a State, requiring special knowledge of law.

(3) Every person appointed as a Public Prosecutor or a Special Public Prosecutor under this section shall be deemed to be a Public Prosecutor within the meaning of clause (u) of Section 2 of the Code of Criminal Procedure, 1973 (2 of 1974) and the provisions of that Code shall have effect accordingly.”

(emphasis supplied)

17. Section 46 of the PMLA treats the Special Court to be deemed to be a Court of Session, wherein, the provisions of the CrPC (now BNSS) shall apply to the proceedings under the PMLA, save as otherwise provided under the PMLA. In other words, the procedural framework governing the proceedings before a Court of Session stands extended to the Special Court under the PMLA.

Parvinder Singh v. Directorate of Enforcement**Section 65 of the PMLA**

“65. Code of Criminal Procedure, 1973 to apply.— The provisions of the Code of Criminal Procedure, 1973 (2 of 1974) shall apply, insofar as they are not inconsistent with the provisions of this Act, to arrest, search and seizure, attachment, confiscation, investigation, prosecution and all other proceedings under this Act.”

(emphasis supplied)

18. Section 65 of the PMLA makes the provisions of the CrPC (now BNSS) applicable to proceedings under the PMLA, provided that they are not inconsistent with the provisions of the PMLA. It acknowledges the overriding effect of the PMLA while also facilitating the application of the other provisions contained in the CrPC (now BNSS).

Section 71 of the PMLA

“71. Act to have overriding effect.— The provisions of this Act shall have effect notwithstanding anything inconsistent therewith contained in any other law for the time being in force.”

“(emphasis supplied)

19. Section 71 of the PMLA places the provisions of the PMLA on a higher pedestal *vis-à-vis* any other law operating in the same field. Therefore, in the event of any inconsistency that may arise between the provisions of the PMLA on the one hand and those contained in any other statute, the former, being a special statute, would prevail, as expressly provided under Section 71 of the PMLA.

(ii) BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

20. The BNSS is an improved version of the erstwhile CrPC. This is a procedural Code designed to act as a guiding framework to all the stakeholders in the criminal justice system. While retaining several provisions contained in the earlier statute, a conscious endeavour has been made to make the BNSS citizen-centric, while facilitating the investigating agencies and the Courts.

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Section 2(1)(k) of the BNSS

“2. Definitions.—(1) In this Sanhita, unless the context otherwise requires,—

(k) “inquiry” means every inquiry, other than a trial, conducted under this Sanhita by a Magistrate or Court;”

(emphasis supplied)

21. Section 2(1)(k) of the BNSS, 2023 defines an “inquiry”. An exhaustive and inclusive definition of the said term has been provided by stating that it would mean every inquiry other than a trial conducted under the BNSS by a Magistrate or a Court. However, it is pertinent to note that an inquiry is a judicial act, as against an administrative one, requiring application of judicial mind which must be reflected through the recording made by a Court. Hence, it is a positive and conscious act done by a Magistrate or a Court.

Section 4 of the BNSS

“4. Trial of offences under Bharatiya Nyaya Sanhita, 2023 and other laws.— (1) All offences under the Bharatiya Nyaya Sanhita, 2023 shall be investigated, inquired into, tried, and otherwise dealt with according to the provisions hereinafter contained.

(2) All offences under any other law shall be investigated, inquired into, tried, and otherwise dealt with according to the same provisions, but subject to any enactment for the time being in force regulating the manner or place of investigating, inquiring into, trying or otherwise dealing with such offences.”

(emphasis supplied)

Section 5 of the BNSS, 2023

“5. Saving.— Nothing contained in this Sanhita shall, in the absence of a specific provision to the contrary, affect any special or local law for the time being in force, or any special jurisdiction or power conferred,

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or any special form of procedure prescribed, by any other law for the time being in force.”

(emphasis supplied)

22. Similar to the provisions contained under the PMLA, Section 4(2) of the BNSS makes the provisions of the BNSS subject to any other enactment governing the field while dealing with offences under any law apart from those under the Bharatiya Nyaya Sanhita, 2023.
23. Section 5 of the BNSS extends protection to a special or local law, only in the absence of a specific provision to the contrary under the BNSS overriding such special or local law.

Section 210 of the BNSS, 2023

“210. Cognizance of offences by Magistrate.—

(1) Subject to the provisions of this Chapter, any Magistrate of the first class, and any Magistrate of the second class specially empowered in this behalf under sub-section (2), may take cognizance of any offence—

- (a) **upon receiving a complaint of facts, including any complaint filed by a person authorised under any special law, which constitutes such offence;**
- (b) upon a police report (submitted in any mode including electronic mode) of such facts;
- (c) upon information received from any person other than a police officer, or upon his own knowledge, that such offence has been committed.

(2) The Chief Judicial Magistrate may empower any Magistrate of the second class to take cognizance under sub-section (1) of such offences as are within his competence to inquire into or try.”

(emphasis supplied)

Section 213 of the BNSS, 2023

“213. Cognizance of offences by Court of Session.— Except as otherwise expressly provided by this

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Sanhita or by any other law for the time being in force, no Court of Session shall take cognizance of any offence as a Court of original jurisdiction unless the case has been committed to it by a Magistrate under this Sanhita. ”

(emphasis supplied)

24. Section 210 of the BNSS deals with cognizance of offences by a Magistrate. Section 210(1)(a) of the BNSS empowers the Magistrate to take cognizance of offences in complaint cases, including complaints which may be filed by an authorised person under any special law.
25. Section 213 of the BNSS bars a Court of Session from directly taking cognizance of an offence, unless the case has been committed to it by the Magistrate. However, it also makes it clear that the said bar shall not apply in case of a contrary provision existing under the BNSS or any other law.

Section 223 of the BNSS, 2023

“223. Examination of complainant.— (1) A Magistrate having jurisdiction while taking cognizance of an offence on complaint shall examine upon oath the complainant and the witnesses present, if any, and the substance of such examination shall be reduced to writing and shall be signed by the complainant and the witnesses, and also by the Magistrate:

Provided that no cognizance of an offence shall be taken by the Magistrate without giving the accused an opportunity of being heard:

Provided further that when the complaint is made in writing, the Magistrate need not examine the complainant and the witnesses—

- (a) if a public servant acting or purporting to act in the discharge of his official duties or a Court has made the complaint; or
- (b) if the Magistrate makes over the case for inquiry or trial to another Magistrate under Section 212:

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Provided also that if the Magistrate makes over the case to another Magistrate under Section 212 after examining the complainant and the witnesses, the latter Magistrate need not re-examine them.

(2) A Magistrate shall not take cognizance on a complaint against a public servant for any offence alleged to have been committed in course of the discharge of his official functions or duties unless—

- (a) such public servant is given an opportunity to make assertions as to the situation that led to the incident so alleged; and
- (b) a report containing facts and circumstances of the incident from the officer superior to such public servant is received.”

(emphasis supplied)

- 26. Section 223 of the BNSS deals with the examination of a complainant. The first proviso to Section 223(1) of the BNSS prohibits the Magistrate from taking cognizance of an offence, unless the accused is given an opportunity of being heard.
- 27. Though Chapter XVI of the BNSS lays down the procedural law dealing with complaints made to a Magistrate, we hold that the aforesaid proviso is substantive in nature, as it does not merely regulate the manner in which the proceedings are to be conducted, rather it confers a right upon the accused to be heard before taking cognizance which forms a part of the right of an accused to a fair trial enshrined under Article 21 of the Constitution of India, 1950. We further hold that the word “shall” occurring in the said proviso has to be construed to be mandatory in nature, which enures to the benefit of an accused. Resultantly, cognizance of an offence taken by a Court without due compliance of the aforestated proviso would be *void ab initio*.

Section 531 of the BNSS, 2023

“531. Repeal and savings.— (1) The Code of Criminal Procedure, 1973 (2 of 1974) is hereby repealed.

(2) Notwithstanding such repeal—

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(a) if, immediately before the date on which this Sanhita comes into force, there is any appeal, application, trial, inquiry or investigation pending, then, such appeal, application, trial, inquiry or investigation shall be disposed of, continued, held or made, as the case may be, in accordance with the provisions of the Code of Criminal Procedure, 1973 (2 of 1974), as in force immediately before such commencement (hereinafter referred to as the said Code), as if this Sanhita had not come into force;”

(emphasis supplied)

28. Section 531(2)(a) of the BNSS has a laudable objective behind it which saves the proceedings initiated under the CrPC, prior to the commencement of the BNSS. It is meant to give a prospective application to the provisions of the BNSS. In other words, once a proceeding such as an appeal, application, investigation, inquiry or trial is initiated under the CrPC, then the same must meet its logical conclusion under the CrPC itself. Thus, we hold that the object of the said provision is to avoid piecemeal application of the CrPC *vis-à-vis* the BNSS.
29. A substantive right conferred under the BNSS would definitely enure to the benefit of an accused against whom none of the proceedings envisaged under Section 531(2)(a) of the BNSS has been initiated. One has to see the nature of right. It is not a case of either a retrospective or retroactive application, rather it is a prospective one when a better right has been conferred under the BNSS.

LEGAL & FACTUAL ANALYSIS

30. The issue of application of the procedure pertaining to a complaint under the CrPC (now BNSS) to proceedings under the PMLA is no longer *res integra*, as has been elaborately dealt with by this Court in the decisions of **Tarsem Lal** (*supra*), **Yash Tuteja** (*supra*) and **Kushal Kumar Agarwal** (*supra*). Though we find that in the instant case the said issue has not been specifically raised either before the Trial Court or the High Court, we are willing to consider the same, being a pure question of law.

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31. The submission of the learned ASG that the earlier decision of this Court in **Kushal Kumar Agarwal (*supra*)** will have to be reconsidered and, therefore, be referred to a larger Bench cannot be countenanced. Taking away the applicability of the provisions governing a complaint under Sections 200 to 205 of the CrPC (now Sections 223 to 228 of the BNSS) to the proceedings under the PMLA, including the one that has a serious bearing not only on the right of the accused but also on the power of the Court, would lead to disastrous consequences. If the argument so made by the learned ASG is accepted, then the Special Court under the PMLA would have no jurisdiction to: dismiss a complaint despite an absolute lack of evidence, postpone the issuance of process, issue process or dispense with the appearance of an accused as provided under Sections 225 to 228 of the BNSS, respectively.
32. In such view of the matter, we are in absolute agreement with the decisions rendered by this Court in **Tarsem Lal (*supra*)**, **Yash Tuteja (*supra*)** and **Kushal Kumar Agarwal (*supra*)**, which we quote profitably.

Tarsem Lal v. Enforcement Directorate, (2024) 7 SCC 61

“17. After carefully perusing the provisions of PMLA, we find that there is no provision therein which is in any manner inconsistent with Section 205 CrPC. Hence, it will apply to a complaint under PMLA. A summons is issued on a complaint to ensure attendance of the accused before the criminal court. If an accused is in custody, no occasion arises for a court to dispense with the personal attendance of the accused. We may note here that Section 205 empowers the court to grant exemption only when a summons is issued. Sub-section (2) of Section 205 provides for enforcing the attendance of the accused before the court at the time of the trial. If the accused who appears pursuant to the summons issued on a complaint were deemed to be in custody, the lawmakers would not have provided for Section

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33. Now, we summarise our conclusions as under:

33.1. Once a complaint under Section 44(1)(b) PMLA is filed, it will be governed by Sections 200 to 205 CrPC as none of the said provisions are inconsistent with any of the provisions of PMLA;

33.2. If the accused was not arrested by ED till filing of the complaint, while taking cognizance on a complaint under Section 44(1)(b), as a normal rule, the court should issue a summons to the accused and not a warrant. Even in a case where the accused is on bail, a summons must be issued;

33.3. After a summons is issued under Section 204 CrPC on taking cognizance of the offence punishable under Section 4 PMLA on a complaint, if the accused appears before the Special Court pursuant to the summons, he shall not be treated as if he is in custody. Therefore, it is not necessary for him to apply for bail. However, the Special Court can direct the accused to furnish bond in terms of Section 88 CrPC;

33.4. In a case where the accused appears pursuant to a summons before the Special Court, on a sufficient cause being shown, the Special Court can grant exemption from personal appearance to the accused by exercising power under Section 205 CrPC;”

(emphasis supplied)

Yash Tuteja & Anr. v. Union of India, (2024) 8 SCC 465

“6. The only mode by which the cognizance of the offence under Section 3, punishable under Section 4 PMLA, can be taken by the Special Court is upon a complaint filed by the Authority authorised on this behalf. **Section 46 PMLA provides that the provisions of CrPC (including the provisions as to bails or bonds) shall apply to proceedings before a Special Court and for the purposes of CrPC provisions, the Special Court shall be deemed to be a Court of Sessions. However,**

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sub-section (1) of Section 46 starts with the words “save as otherwise provided in this Act”. Considering the provisions of Section 46(1) PMLA, save as otherwise provided in PMLA, the provisions of the Code of Criminal Procedure, 1973 (for short “CrPC”) shall apply to the proceedings before a Special Court. Therefore, once a complaint is filed before the Special Court, the provisions of Sections 200 to 204 CrPC will apply to the complaint. There is no provision in PMLA which overrides the provisions of Sections 200 to Sections 204 CrPC. Hence, the Special Court will have to apply its mind to the question of whether a prima facie case of a commission of an offence under Section 3 PMLA is made out in a complaint under Section 44(1) (b) PMLA. If the Special Court is of the view that no prima facie case of an offence under Section 3 PMLA is made out, it must exercise the power under Section 203 CrPC to dismiss the complaint. If a prima facie case is made out, the Special Court can take recourse to Section 204 CrPC.”

(emphasis supplied)

Kaushal Kumar Agarwal v. Directorate of Enforcement, 2025 SCC OnLine SC 1221.

“5. This Court has taken a consistent view that a complaint filed by the Enforcement Directorate under Section 44 (1) (b) of the PMLA will be governed by Sections 200 to 204 of the CrPC. This view has been taken by this Court in the cases of Yash Tuteja v. Union of India, (2024) 8 SCC 465, and Tarsem Lal v. Enforcement Directorate, (2024) 7 SCC 61. Therefore, the provisions of Chapter XVI, containing Sections 223 to 226, will also apply to a complaint under Section 44 of the PMLA. As the complaint has been filed after 1st July, 2024, Section 223 of the BNSS will apply to the present complaint.

6. The proviso to sub-section (1) of Section 223 puts an embargo on the power of the Court to take cognizance

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by providing that no cognizance of an offence shall be taken by the Magistrate without giving the accused an opportunity of being heard.

7. In this case, admittedly, an opportunity of being heard was not given by the learned Special Judge to the appellant before taking cognizance of the offence on the complaint. Only on that ground, the impugned order dated 20th April, 2024, will have to be set aside.”

(emphasis supplied)

33. Accordingly, we have no hesitation in holding that Sections 200 to 205 of the CrPC (now Sections 223 to 228 of the BNSS) would be applicable to proceedings under the PMLA.
34. A mere ministerial act cannot be termed as an “inquiry” under Section 2(1)(k) of the BNSS. Taking cognizance is nothing but an application of judicial mind. So long as the application of the judicial mind is not exercised, an inquiry cannot commence. It is the judicial notice of an offence by the Court which is relevant. While doing so, it is presumed that the Court would take note of the complaint along with the materials placed before it.
35. The learned ASG placed reliance upon the decision of this Court in **Hardeep Singh (*supra*)** to contend that in the facts of the instant case, the inquiry had been initiated upon filing of the prosecution complaint on 24.06.2024 which is, admittedly, prior to the commencement of the BNSS on 01.07.2024. We find that the said decision actually militates against the submission made by him, and would only quote the following paragraphs in the aforesaid decision:

“**26.** In *Raghubans Dubey v. State of Bihar*, AIR 1967 SC 1167, this Court held: (AIR p. 1169, para 9)

“9. ... once cognizance has been taken by the Magistrate, he takes cognizance of an offence and not the offenders; once he takes cognizance of an offence it is his duty to find out who the offenders really are and once he comes to the conclusion that apart from the persons sent up by the police some other persons are involved, it is his duty to proceed against those persons. The summoning of the additional accused is part of the proceeding initiated by his taking cognizance of an offence.”

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27. The stage of inquiry commences, insofar as the court is concerned, with the filing of the charge-sheet and the consideration of the material collected by the prosecution, that is mentioned in the charge-sheet for the purpose of trying the accused. This has to be understood in terms of Section 2(g) CrPC, which defines an inquiry as follows:

“2. (g) ‘inquiry’ means every inquiry, other than a trial, conducted under this Code by a Magistrate or court.”

28. In *State of U.P. v. Lakshmi Brahman*, (1983) 2 SCC 372, this Court held that from the stage of filing of charge-sheet to ensuring the compliance with the provision of Section 207 CrPC, the court is only at the stage of inquiry and no trial can be said to have commenced. The above view has been held to be per incuriam in *Raj Kishore Prasad v. State of Bihar*, (1996) 4 SCC 495, wherein this Court while observing that Section 319(1) CrPC operates in an ongoing inquiry into, or trial of, an offence, held that at the stage of Section 209 CrPC, the court is neither at the stage of inquiry nor at the stage of trial. Even at the stage of ensuring compliance with Sections 207 and 208 CrPC, it cannot be said that the court is at the stage of inquiry because there is no judicial application of mind and all that the Magistrate is required to do is to make the case ready to be heard by the Court of Session.”

(emphasis supplied)

36. As rightly held by this Court in **Hardeep Singh** (*supra*), even the stage of ensuring compliance with Sections 207 to 209 of the CrPC, 1973 cannot be termed as an inquiry because there is no application of judicial mind. In the facts of the instant case, the direction issued by the Special Court, *vide* order dated 24.06.2024, to number the complaint and, thereafter, post the matter on a future date for hearing on cognizance would certainly not come within the purview of an “inquiry” under Section 2(1)(k) of the BNSS. In such view of the matter, the aforestated contention raised by the learned ASG falls to the ground.

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37. As already discussed, though the complaint under the PMLA was filed earlier, the cognizance was only taken subsequently, on 02.07.2024, by which time the BNSS had come into force. Admittedly, the appellant has not been heard at the time of taking cognizance. The mandate of a legislation which ensures the right of an accused to a fair trial, whose liberty is at stake, cannot be dispensed with. Thus, the contention of the learned ASG that prejudice caused due to non-hearing at the stage of cognizance will have to be shown by the accused cannot be accepted, as it is not a mere irregularity that would attract either Section 506 or 511 of the BNSS, but is an illegality that would vitiate the very proceedings.
38. Based on the above discussion, the views expressed by the High Court are, therefore, liable to be set aside. We do find that the allegations against the appellant are quite serious. However, non-compliance with the first proviso to Section 223(1) of the BNSS vitiates the very order taking cognizance, and the same cannot be sustained in the eyes of the law. In fact, the appellant has, at the earliest point in time, filed the application for recall of the order taking cognizance by placing reliance upon the said proviso. Had the Special Court allowed it, the trial would have proceeded further. Suffice it to state that the appellant cannot be faulted for any delay that has occasioned.
39. For the foregoing reasons, the impugned judgment of the High Court dated 19.05.2025 and the order taking cognizance by the Special Court dated 02.07.2024 stand set aside.
40. The Special Court is directed to afford an opportunity of hearing to the appellant by proceeding from the stage of taking cognizance. The aforesaid exercise must be completed within a period of 8 weeks from the date of receipt of a copy of this judgment.
41. The appeal stands allowed, accordingly.
42. Pending application(s), if any, shall stand disposed of.

Result of the case: Appeal allowed.

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v.
Jitendra Singh & Ors.

(Civil Appeal No. 8054 of 2026)

21 May 2026

[Pamidighantam Sri Narasimha and Alok Aradhe,* JJ]

Issue for Consideration

Issue arose as regards the exercise of power by the Visitor-President of India, who appointed the First Registrar of the University, could grant approval for termination of the services the First Registrar.

Headnotes[†]

Rajiv Gandhi National Aviation University Act, 2013 – s.46(b) – Transitional provisions – Rajiv Gandhi National Aviation University, First Statute, 2016 – Statute No.28(1) – Removal of employees of University – President of India, being the Visitor of the University approved the appointment of the First Registrar – First Registrar joined the services of the University – During the period of probation, his services terminated – First Registrar filed writ petition seeking quashing of the termination order – Single Judge directed his reinstatement with all consequential benefits – Division Bench found the termination order to be stigmatic and remitted the matter to the University, to proceed afresh – First Registrar filed SLP which was dismissed – First Registrar reinstated in service and on the very same day placed under suspension in contemplation of disciplinary proceedings – Subsequently, Memorandum of Charges served upon him – Enquiry report that the charges against him stood proved – Enquiry report forwarded to the Secretary of Ministry of Civil Aviation who then submitted the proposal for approval of the Visitor, who accorded approval to the same – Thereafter, the order terminating the services of the First Registrar conveyed – Writ petition by First Registrar challenging the same, and during the pendency thereof, advertisement issued for filling up the post of Registrar of the University – First Registrar filed another writ petition seeking quashing of the fresh advertisement –

* Author

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Single Judge held that the services of the First Registrar had never been extended beyond the initial period of probation of one year, thus, only entitled to one month's notice prior to termination, and the appellants directed to pay one month's salary to the First Registrar – Division Bench held that the entire action against the First Registrar had been undertaken by the officers of MOCA, which had no role to play under the Act or the Statutes, that the Visitor had no role in disciplinary proceedings concerning officers and employees of the University, thus, the entire action taken against the First Registrar was without jurisdiction, and quashed the order passed by the Single Judge, the order issued by the Deputy Secretary, MOCA, and the First Registrar was entitled to back wages/salary – Correctness:

Held: s.46(b) and Statute No.28(1) must, be read in the light of s.16 of the General Clauses Act, 1897, which provides that where, by any Central Act or Regulation, a power to make appointment is conferred, then, unless a different intention appears, the authority having power to make appointment shall also have power to suspend or dismiss any person so appointed in exercise of that power – Thus, the appointing authority necessarily possesses the power to terminate the services of the employee appointed by it – Pursuant to the remand, an Enquiry Committee was constituted – Memorandum of Charges was served on the First Registrar and Enquiry Report was submitted – Visitor granted approval for termination of services of First Registrar, which was communicated to him – Tenure of the First Registrar u/s.46(b) was three years *i.e.*, from 01.03.2019 till 28.02.2022 – Thus, in terms of Statute No.28(1), the services of the First Registrar were terminated by the Visitor who was also the appointing authority of the First Registrar – Action terminating services of the First Registrar appears to be in consonance with Statute No. 28(1) – Exercise of power by the Visitor appears to be just and proper – Thus the finding recorded by the Division Bench of the High Court that the Visitor had no role in the disciplinary proceedings against the First Registrar of University, cannot be concurred with – Having regard to the peculiar facts and circumstances of the case, namely, the expiry of period of appointment of the First Registrar and the repeated rounds of litigation between the parties, no inclination to interfere with the operative directions issued by the High Court. [Paras 25-29]

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Case Law Cited

Britnell v. Secretary of State for Social Security [1991] 2 All ER 726 – referred to.

Books and Periodicals Cited

Thornton on Legislative Drafting 3rd ed.; (1987), p.319 – referred to.

List of Acts

Rajiv Gandhi National Aviation University Act, 2013; Rajiv Gandhi National Aviation University, First Statute, 2016; General Clauses Act, 1897.

List of Keywords

Exercise of power by Visitor-President of India; Appointment of the First Registrar of the University; Termination of the services of the First Registrar; Transitional provisions; Removal of employees of University; Memorandum of Charges; Enquiry report; Charges pertaining to indiscipline, gross insubordination, unprofessional conduct and obstruction of public servants in discharge of official duties; Secretary of Ministry of Civil Aviation; Approval of the Visitor-President of India.

Case Arising From

CIVIL APPELLATE JURISDICTION: Civil Appeal No. 8054 of 2026

From the Judgment and Order dated 22.05.2024 of the High Court of Judicature at Allahabad, Lucknow Bench in SA No. 236 of 2023.

With

Civil Appeal No. 8055 of 2026

Appearances for Parties

Advs. for the Appellant(s):

Satya Darshi Sanjay, A.S.G., Ms. Aishwarya Bhati, Sr. Adv., Sudarshan Lamba, Akshay Amritanshu, Shaurya R Rai, Satvika Thakur, Jagdish Chandra Solanki, Raghav Sharma, Ms. Anjana Gosain, Bhakti Vardhan Singh, Ms. Poornima Singh, Narendra Pandey, J. Tarun Kumar, Sauvik Singh, Ankit Khatri.

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Advs. for the Respondent(s):

P.S. Patwalia, Anupam Lal Das, Sr. Advs., Kartikeya Singh, Ms. Akshita Nigam, Ms. Gayatri Gokula Krishnan, Kaushlendra Dutt Pandey, Anirudh Singh.

Judgment / Order of the Supreme Court**Judgment**

Alok Aradhe, J.

1. Leave granted.
2. These appeals assail the order dated 22.05.2024 passed by the Division Bench of the High Court of Judicature at Allahabad, Lucknow Bench ("the High Court"), whereby the appeal preferred by respondent No.1 (hereinafter referred to as "the First Registrar") was allowed and the order dated 25.04.2023, passed by the learned Single Judge, as well as the order dated 27.04.2022 passed by the Deputy Secretary, Ministry of Civil Aviation, Government of India, were set aside.

FACTS

3. The relevant facts giving rise to the filing of the present appeals are set out hereinbelow.
4. The Rajiv Gandhi National Aviation University Act, 2013 ("the Act"), was enacted to establish and incorporate a National Aviation University for facilitating and promoting aviation studies and achieving excellence in the fields of aviation management, policy, science and technology, *inter alia*. Pursuant thereto, the Rajiv Gandhi National Aviation University ("the University") was established under the provisions of the Act.
5. In exercise of the powers under Section 27(1) of the Act, the Central Government on 07.03.2016, framed the Rajiv Gandhi National Aviation University, First Statute, 2016 ("the Statutes"). The President of India, being the Visitor of the University, on 28.02.2019, conveyed approval for the appointment of the First Registrar. Thereafter, on 01.03.2019, the Vice Chancellor issued an offer of appointment to the First Registrar, appointing him on probation for a period of one year. On 08.04.2019, the First Registrar assumed charge as Registrar of the University.

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6. During the period of probation, the services of the First Registrar were terminated by order dated 08/09.01.2020 and he was paid one month's salary in lieu of notice. The First Registrar thereafter instituted two writ petitions challenging the order of termination, as well as the advertisement issued for filling up the post of Registrar. The aforesaid writ petitions were withdrawn on 13.01.2021 with liberty to file fresh petitions.
7. Thereafter, the First Registrar filed a writ petition on 22.01.2021 seeking quashing of the order of termination dated 08/09.01.2020 and the advertisement dated 04.05.2020 issued for filling up the post of Registrar. The learned Single Judge by an order dated 17.09.2021, directed the appellants to reinstate the First Registrar to the post of Registrar of the University with all consequential benefits, in terms of the appointment letter dated 01.03.2019. Accordingly, the writ petition was allowed.
8. The appellants challenged the aforesaid order before the Division Bench. By an order dated 17.12.2021, the Division Bench, *inter alia*, held that the order terminating the services of the First Registrar during probation was *ex facie* stigmatic and the matter was remitted to the University to proceed afresh in accordance with law and to pass an appropriate order within a period of two months. It was further directed that the entitlement of the First Registrar to back wages would abide by the outcome of the further action to be taken by the University. The order dated 17.09.2021, passed by the learned Single Judge, was modified to the aforesaid extent and the appeal was partly allowed.
9. The First Registrar challenged the order dated 17.12.2021 before this Court, by filing a Special Leave Petition, which came to be dismissed on 04.02.2022, with liberty to the First Registrar to raise all pleas and contentions before the competent authority by way of representation.
10. On 31.12.2021, the First Registrar was reinstated in service. On the very same day, he was placed under suspension in contemplation of disciplinary proceedings. Subsequently, on 22.02.2022, a Memorandum of Charges was served upon him.
11. An Enquiry Committee comprising three members was constituted on 25.02.2022, which submitted its Report on 23.03.2022. In the enquiry report, the charges pertaining to indiscipline, gross

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insubordination, unprofessional conduct and obstruction of public servants in discharge of official duties were held to be proved. On 29.03.2022, the enquiry report was forwarded to the Secretary of Ministry of Civil Aviation (“MOCA”), who in turn submitted the proposal for approval of the Visitor, who accorded the approval to the same on 20.04.2022. Thereafter, by communication dated 27.04.2022, the Deputy Secretary, MOCA conveyed the order terminating the services of the First Registrar.

12. The First Registrar challenged the aforesaid order of termination before the High Court by filing a writ petition. During the pendency of the said writ petition, an advertisement was issued for filling up the post of Registrar of the University. Consequently, the First Registrar instituted another writ petition seeking quashing of the fresh advertisement.
13. The learned Single Judge, by an order dated 25.04.2023, *inter alia*, held that the services of the First Registrar had never been extended beyond the initial period of probation of one year and, therefore, he was only entitled to one month’s notice prior to termination. Accordingly, the writ petition was disposed of with a direction to the appellants to pay one month’s salary to the First Registrar.
14. Aggrieved thereby, the First Registrar preferred an intra-court appeal. The Division Bench of the High Court, by the impugned order dated 22.05.2024, observed that the entire action against the First Registrar had been undertaken by the officers of MOCA, which had no role to play under the Act or the Statutes. It was held that the Visitor had no role in disciplinary proceedings concerning officers and employees of the University. Consequently, the Division Bench held that the entire action taken against the First Registrar was without jurisdiction. Accordingly, the order dated 25.04.2023 passed by the learned Single Judge, as well as the order dated 27.04.2022 issued by the Deputy Secretary, MOCA, were quashed. The First Registrar was also held entitled to back wages/salary up to 07.04.2022 and the appeal was allowed. Being aggrieved, the University as well as the Union of India have preferred these appeals.

SUBMISSIONS

15. Learned senior counsel appearing for the University, submitted that the High Court erred in holding that while the appointment of the

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First Registrar was made by the University, the disciplinary action could not be undertaken by the Visitor. It was contended that the First Registrar was admittedly the “First Registrar” of the University and, therefore, his appointment was governed by the transitional provisions contained in Section 46 of the Act. It was further submitted that the Hon’ble President of India, being the Visitor of the University, had conveyed approval for the appointment of the First Registrar and, therefore, disciplinary action was rightly taken with the approval of the Visitor.

16. It was urged that Clause 7 of the Statutes applies only to regular appointments made by the University and not to the appointment of the First Registrar. It is submitted that the High Court failed to take note of Section 46 of the Act and erroneously concluded that the Visitor lacked jurisdiction to take action against the First Registrar.
17. It was contended that, pursuant to the liberty granted by the Division Bench of the High Court, which was upheld by this Court, the earlier order of termination had been revisited and a fresh order had thereafter been passed in accordance with law. It was argued that the High Court erred in granting back wages to the First Registrar in the absence of any specific challenge to the order denying the same. It was, therefore, submitted that the impugned order deserved to be set aside.
18. Learned Additional Solicitor General appearing for the Union of India, while adopting the submissions advanced on behalf of the University, submitted that the Executive Council of the University was constituted on 07.03.2016 and held its first meeting on 19.12.2017. Inviting our attention to the proviso to Section 20(1) of the Act, it was submitted that until the constitution of the first Executive Council, the Steering Committee of MOCA was required to function as the interim Executive Council. It was, therefore, contended that the Visitor was competent to take action against the First Registrar.
19. *Per contra*, learned senior counsel appearing for the First Registrar submitted that the Visitor is empowered to appoint the Vice Chancellor but cannot exercise disciplinary authority on the recommendation of MOCA, which has no statutory role in disciplinary proceedings concerning employees of the University. It was argued that the First Registrar was an employee of the University and not of MOCA

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and, therefore, no disciplinary action could have been initiated or undertaken by MOCA. It was accordingly urged that the appeals deserved to be dismissed.

ANALYSIS

20. We have considered the rival submissions advanced on behalf of the parties and have perused the record. From perusal of Section 2(b), (l) and (x), Section 9(1), 9(2) to 9(12), Section 12, Section 14 and Section 20 of the Act, the following conclusions can be deduced:
 - (i) “academic staff” means such categories of staff as are designated as academic staff by the Ordinances. [Section 2(b)]
 - (ii) ‘employee’ means any person appointed by the University and includes the teachers and other staff of the University. [(Section 2(l)]
 - (iii) Teachers of the University means Professors, Associate Professors, Assistant Professors, Readers, Senior Lecturers, Lecturers and such other persons as may be appointed or recognised for imparting instruction or conducting research in the University or in any college or institution maintained by the University. [Section 2(x)]
 - (iv) The President of India is the Visitor of the University and has the powers enumerated in Section 9(2) to Section 9(12) of the Act. [Section 9]
 - (v) The Registrar has to be appointed by the Executive Council and has such powers and duties which may be prescribed by the Statutes. [Section 14]
 - (vi) The Executive Council is the principal Executive Body of the University and till the First Executive Council is formed, the Steering Committee of MOCA shall function as an interim Executive Council. (Section 20)
21. Section 46 of the Act contains transitional provisions. The relevant extract of Section 46 reads as under: -

“46. Transitional provisions.—

Notwithstanding anything contained in this Act and the Statutes,—

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(a) the first Chancellor and the first Vice-Chancellor shall be appointed by the Visitor in such manner and on such conditions as may be deemed fit and each of the said officers shall hold office for such term, not exceeding five years, as may be specified by the Visitor;

(b) the first Registrar and the first Finance Officer shall be appointed by the Visitor on the recommendation of the Vice-Chancellor and each of the said officers shall hold office for a term of three years.”

22. Statute No. 28 deals with the removal of employees of the University. The relevant extract of Statute No.28 is extracted below: -

“28. Removal of employees of University. —

(1) Where there is an allegation of misconduct against a teacher, a member of the academic staff or other employee of the University, the Vice-Chancellor, in the case of the teacher or member of the academic staff, and the authority competent to appoint (here after in this Statute referred to as the appointing authority) in the case of other employee, may, by order in writing, place such teacher, member of the academic staff or other employee, as the case may be, under suspension and shall forthwith report to the Executive Council the circumstances in which the order was made:

Provided that the Executive Council may, if it is of the opinion, that the circumstances of the case do not warrant the suspension of the teacher or the member of the academic staff, revoke such order.

(2) Notwithstanding anything contained in the terms of the contract of appointment or of any other terms and conditions of service of the employees, the Executive Council in respect of teachers and other academic staff, and the appointing authority, in respect of other employees, shall have the power to remove a teacher or a member of the academic staff or other employee, as the case may be, on grounds of misconduct.

(3) Save as aforesaid, the Executive Council, or as the case may be the appointing authority, shall not be entitled

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to remove any teacher, member of the academic staff or other employee except for a good cause and after giving three months' notice or on payment of three months' salary in lieu thereof.

(4) No teacher, member of the academic staff or other employee shall be removed under clause (2) or clause (3) unless he has been given a reasonable opportunity of showing cause against the action proposed to be taken in regard to him.”

Thus, where there is an allegation of misconduct against a teacher, a member of the academic staff, or other employee of the University, the Vice-Chancellor, in the case of teacher and member of the academic staff, and the appointing authority in the case of other employee, may, by order in writing, place such teacher, member of the academic staff or other employee, as the case may be, under suspension and shall have the power to remove on the ground of misconduct.

23. The necessity for transitional provision may arise either due to change in law, whether the change in law is caused by new law, or by repeal and substitution or modification of law. Section 46 of the Act is, undoubtedly, a transitional provision. The function of a transitional provision is to make special provision for the application of legislation to the circumstances which exist at the time when the legislation comes into force¹. One feature of a transitional provision is that its operation is expected to be temporary, in that it becomes spent when all the past circumstances with which it is designed to deal have been dealt with, while the primary legislation continues to deal indefinitely with the new circumstances which arise after its passage². The power under Section 46(b) of the Act, exhausts itself when it is exercised by making an appointment.
24. Statute No.28(1) provides that power of removal of a teacher, a member of academic staff or other employee of the University, the Vice-Chancellor, on the ground of misconduct, is conferred upon the appointing authority. The appointing authority for the post of Registrar

¹ Thornton on Legislative Drafting 3rd ed.; (1987), p.319

² Britnell v. Secretary of State for Social Security; [1991] 2 All ER 726

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is the Executive Council, which has power to take an action for removal of the Registrar on the ground of misconduct.

25. However, the present case stands on a distinct footing, as, we are concerned with the First Registrar and not the Regular Registrar. Section 46(b) and Statute No.28(1) must, therefore, be read in the light of Section 16 of the General Clauses Act, 1897, which provides that where, by any Central Act or Regulation, a power to make appointment is conferred, then, unless a different intention appears, the authority having power to make appointment shall also have power to suspend or dismiss any person so appointed in exercise of that power. Thus, the appointing authority necessarily possesses the power to terminate the services of the employee appointed by it.
26. In the instant case, the First Registrar was appointed on 01.03.2019 and joined the services of the University on 08.04.2019. During the period of probation, by an order dated 08/09.01.2020, his services were terminated. The First Registrar challenged the order of termination in a writ petition. By an order dated 17.09.2021, the learned Single Judge directed the appellants to reinstate the First Registrar to the Post of Registrar with all consequential benefits in terms of appointment letter 01.03.2019. Thereafter, the Division Bench of the High Court by an order dated 17.12.2021 found the order of termination to be stigmatic and remitted the matter to the University, to proceed afresh. The aforesaid order of the Division Bench has attained finality as Special Leave Petition preferred by the First Registrar was dismissed. It is noteworthy that in the aforesaid round of litigation, the First Registrar did not take the plea that Visitor lacked authority to terminate his services.
27. Pursuant to the remand, an Enquiry Committee was constituted. A Memorandum of Charges dated 22.02.2022 was served on the First Registrar and an Enquiry Report was submitted on 29.03.2022. The Visitor granted approval for termination of services of First Registrar on 20.04.2022, which was communicated to him on 27.04.2022. The tenure of the First Registrar under Section 46(b) of the Act was three years i.e., from 01.03.2019 till 28.02.2022. Therefore, in terms of Statute No.28(1), the services of the First Registrar were terminated by the Visitor who was also the appointing authority of the First Registrar. The action terminating services of the First Registrar appears to be in consonance with Statute No. 28(1).

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CONCLUSION

28. In the facts and circumstances of the present case, the exercise of power by the Visitor appears to be just and proper. We are, therefore, unable to concur with the finding recorded by the Division Bench of the High Court in its judgment dated 22.05.2024 that the Visitor had no role in the disciplinary proceedings against the First Registrar of University.
29. However, having regard to the peculiar facts and circumstances of the case, namely, the expiry of period of appointment of the First Registrar and the repeated rounds of litigation between the parties, we are not inclined to interfere with the operative directions issued by the High Court.
30. Accordingly, the appeals are disposed of in the aforesaid terms. There shall be no order as to costs.

Result of the case: Appeals disposed of.

[†]Headnotes prepared by: Nidhi Jain

**Parvathi Nairthi (Dead) and Ors.
v.
Laxmi Nairthy (Dead) Through Lrs. and Ors.**

(Civil Appeal No. 6859 of 2014)

21 May 2026

[Ujjal Bhuyan and Vijay Bishnoi,* JJ.]

Issue for Consideration

Whether there are sufficient grounds that warrant interference with the concurrent findings of the facts of all the Courts upholding validity of the Will.

Headnotes[†]

Will – Validity of Will – Exclusion of natural heirs – One BSN-testator executed his last Will dated 15.05.1983 bequeathing all the plaint schedule properties in the favour of his only sister L, who is the plaintiff and respondent no. 1 herein, and cancelled the POA executed in favour of his brother-in-law – Testator passed away on 30.11.1983 – After the death of the testator, an application was made by his wife, being appellant no.1, before the Tehsildar, Udupi for the transfer of her husband’s properties in her favour – Mutation order was passed in favour of appellant no.1 – On 22.11.1990, L instituted a civil suit on the basis of the Will executed by the testator – The suit was filed seeking a declaration that the plaintiff is the absolute owner of the plaint schedule properties under the Will – The wife and children of the testator, namely appellant nos.1 to 3 and respondent nos.2 to 4, filed a written statement and contended that the Will is false and fabricated – Trial Court allowed the suit of the plaintiff and declared plaintiff as owner of the plaint schedule property as per the Will – First Appellate Court affirmed the findings of the trial Court – Aggrieved, wife and children of the testator preferred a second appeal before the High Court, which was dismissed – Correctness:

Held: After a careful perusal of the relevant material on record and applying the settled proposition of law, it is evident that the Will was duly executed by the testator voluntarily out of his free will in a sound state of mind and the same stands proved through the testimony of one of the attesting witnesses, PW2 by the Trial Court – This witness

* Author

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categorically stated that the testator executed the Will in question in his presence, and that both he and the testator signed the Will in the presence of each other – Plaintiff had already given a representation before the Tehsildar, Udupi *vide* notice dated 10.02.1984 to mutate her name, and the said notice was received by the concerned authorities as evidenced by the postal certificate – As regards the contention of the appellants that they had obtained mutation entries in the year 1984, it is well settled that such mutation entries do not confer title and it is effected merely for fiscal purposes, namely, to enable the State to realize tax from the person whose name is recorded in the revenue records – It is trite to state that when the validity of a Will is to be determined, the overall terms of a Will, the intention of the testator and the surrounding circumstances have also to be seen – Mere exclusion of the natural heirs from the property of the testator, by itself, cannot be construed as a suspicious circumstance so as to invalidate a Will outrightly – A testator is legally entitled to dispose of his property according to his own wishes, and unless the exclusion is accompanied by suspicious circumstances affecting the genuineness or due execution of a Will, such exclusion alone does not render a Will invalid – Thus, this Court is of the considered view that the exclusion of the natural heirs cannot be sufficient to vitiate the Will in question, particularly when the Will clearly specifies that the testator has not done any injustice to his wife, children, or other relatives, and that he has given enough to his wife and children who are residing at Bombay – The concurrent findings of all the Courts have rightly given a well-reasoned decision upholding the validity of the Will and the same does not warrant interference of this Court. [Paras 30, 31, 34, 39]

Case Law Cited

Indu Bala Bose & Ors. v. Manindra Chandra Bose & Anr. [1982] 1 SCR 1188 : (1982) 1 SCC 20; *Ishwardeo Narain Singh v. Kamta Devi and Others* (1953) 1 SCC 295; *Meena Pradhan and Others v. Kamla Pradhan and Another*, 2023 SCC OnLine SC 1198 – relied on.

H. Venkatachala Iyengar v. B.N. Thimmajamma and Others [1959] Supp. 1 SCR 426 : 1958 SCC OnLine SC 31; *Bhagwan Kaur v. Kartar Kaur and Others* (1994) 5 SCC 135; *Janki Narayan Bhoir v. Narayan Namdeo Kadam* [2002] Supp. 5 SCR 175 : (2003) 2 SCC 91; *Yumnam Ongbi Tampha Ibema Devi v. Yumnam Joykumar Singh and Others* [2009] 4 SCR 157 : (2009) 4 SCC 780; *Shivakumar and Others v. Sharanabasappa and Others* [2020] 6

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SCR 666 : (2021) 11 SCC 277; *Balwant Singh and Another v. Daulat Singh (Dead) By Lrs. and Others* (1997) 7 SCC 137; *Rabindra Nath Mukherjee and Another v. Panchanan Banerjee (Dead) by Lrs. and Others* (1995) 4 SCC 459; *Ram Piari v. Bhagwant and Ors.* [1990] 1 SCR 813 : (1990) 3 SCC 364; *G. Amalorpavam and Others v. R. C. Diocese of Madurai and Others* [2006] 2 SCR 899 : (2006) 3 SCC 224; *Ayaaubkhan Noorkhan Pathan v. State of Maharashtra and Others* [2012] 10 SCR 994 : (2013) 4 SCC 465 – referred to.

List of Acts

Code of Civil Procedure, 1908; Evidence Act, 1872.

List of Keywords

Will; Suspicious Circumstances; Exclusion of Natural Heirs; Attesting Witness; Forgery and Fraud; Concurrent Findings of Fact.

Case Arising From

CIVIL APPELLATE JURISDICTION: Civil Appeal No. 6859 of 2014
From the Judgment and Order dated 15.11.2012 of the High Court of Karnataka at Bengaluru in SA No. 1970 of 2012.

Appearances for Parties

Advs. for the Appellant(s):

Ms. Meenakshi Arora, Sr. Adv., Shiv Vinayak Gupta, Ms. Anushka Rawal, Ms. Himani Singh, C. Tanay Chaube, Mrs. Bina Gupta.

Advs. for the Respondent(s):

Vinay Navare, Sr. Adv., Ms. Madhusmita Bora, Pawan Kishore Singh, Dipankar Singh, Ms. Pavithra V.

Judgment / Order of the Supreme Court

Judgment

Vijay Bishnoi, J.

1. The present appeal has been preferred by the Appellants challenging the Final Judgment and Order dated 15.11.2012 (hereinafter referred to as “**Impugned Judgment**”) passed by the High Court of Karnataka

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at Bangalore (hereinafter referred to as “**the High Court**”) in **Regular Second Appeal No. 1970 of 2012**, by which the High Court dismissed the appeal preferred by the Appellants herein and thereby affirmed the judgments and orders passed by the Trial Court as well as the First Appellate Court.

FACTUAL MATRIX

2. The brief facts are that one B. Sheena Nairi was a Permanent Resident of Bombay and was working as a Chartered Accountant at five big reputed companies. Besides owning a residential flat in Bombay, he owned substantial other immovable properties situated at Brahmavar and Chanthar Village, Udupi Taluk, Karnataka, consisting primarily of agricultural lands and ancestral properties.
3. B. Sheena Nairi had two sisters and two brothers, namely, Akkanni Nairi (elder sister), Laxmi Nairthy (younger sister), B. Jagannatha Nairi (elder brother), and B. Lakshmana Nairi (younger brother). B. Sheena Nairi had lost his elder sister, and after her demise, he took care of her two daughters and performed their marriages.
4. B. Sheena Nairi was married to Parvathi Nairthi (Appellant No. 1), and they had five children, namely, Prabhakar Nairi (Appellant No. 2), Jayanth Nairi (Appellant No. 3), Leela Prabhu (Respondent No. 2), Sundara Nairi (Respondent No. 3), and Usha Nairi (Respondent No. 4) herein. For the management of certain properties, B. Sheena Nairi had executed a Power of Attorney (hereinafter referred to as “**the POA**”) in favour of his brother-in-law Krishnayya Nairi on 30.04.1960 and 08.04.1961.
5. B. Sheena Nairi executed his last Will dated 15.05.1983 (hereinafter referred to as “**the Will**”) bequeathing all the plaint schedule properties in the favour of his only sister Laxmi Nairthy, who is the Plaintiff and Respondent No. 1 herein, and cancelled the POA executed in favour of his brother-in-law. B. Sheena Nairi (hereinafter referred to as “**the testator**”) passed away on 30.11.1983, at the age of 69 years, due to heart attack in Delhi.
6. After the death of the testator, an application was made by his wife, being Appellant No. 1, before the Tehsildar, Udupi for the transfer of her husband’s properties in her favour. The Tehsildar, Udupi, vide order dated 01.02.1984, issued notice under the Karnataka Land Revenue Act, 1964 and called for the objections with respect to

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the said properties. Subsequently, the Tehsildar, Udupi, vide order dated 06.04.1984, passed mutation order transferring the properties in favour of Appellant No. 1.

7. On 22.11.1990, Laxmi Nairthy, being the Plaintiff and Respondent No. 1, instituted a civil suit bearing **O.S. No. 186 of 1990** before the Court of the Additional Civil Judge (Senior Division), Udupi (hereinafter referred to as the “**Trial Court**”) on the basis of the Will executed by the testator. The suit was filed seeking a declaration that the Plaintiff is the absolute owner of the plaint schedule properties under the Will; a decree of perpetual injunction restraining the wife and children of the testator from interfering with her peaceful possession of Item Nos. 1 to 3 of plaint schedule properties; recovery of possession of Schedule Item Nos. 4 to 12 of the plaint schedule properties, which had been given to Krishnayya Nairi under the Power of Attorney; mesne profits; and compensation till the delivery of possession.
8. The wife and children of the testator, namely Appellant Nos. 1 to 3 and Respondent Nos. 2 to 4, filed a written statement and contended that the Will is false and fabricated; that the testator has never executed any such Will; and that the signature affixed on the said Will does not belong to him. It was further contended that after the death of the testator, the said Will was created by his brothers, namely, B. Jagannatha Nairi and Lakshmana Nairi, in collusion with each other and that the plaint schedule properties were never in possession of the Plaintiff and the testator had never revoked the POA executed in favour of Krishnayya Nairi.

JUDGMENT OF THE TRIAL COURT

9. The Trial Court, vide Judgment and Decree dated 16.12.2008, **allowed the suit of the Plaintiff** and declared that the Plaintiff is the owner of the plaint schedule property as per the Will and ordered to handover the possession of Schedule Item Nos. 4 to 12 of the plaint schedule property to the Plaintiff and opened enquiry under Order XX Rule 12 of the Code of Civil Procedure (hereinafter referred to as “**CPC**”) for mesne profits. The Trial Court held that:-
 - a. The Plaintiff produced her brother B. Jagannatha Nairi-PW2, who was one of the attesting witnesses to the Will. PW2 categorically deposed that the testator, being his brother, had executed the Will in his presence and that the signature appearing on the Will

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belonged to the testator. However, the wife and children of the testator, except filing the written statement, had not produced any witness and had not appeared for cross-examination in order to prove their allegations. On their behalf, only the POA holder appeared and had given his evidence which was doubtful. Also, the wife and the children had not specifically cross-examined the Plaintiff and B. Jagannatha Nairi-PW2 to prove the Will as fraudulent.

- b. With regard to the dispute concerning signature of the testator on the Will, it was held that the signature in the POA executed by the testator was accepted by the wife and children of the testator and when that accepted signature was compared with the signatures appeared on every page of the Will, it appeared to be the same, observing sufficient coordination in the writing, the placement of dots in the signature and the formation of underline, thereby concluding that the signatures were made by the same person.
 - c. Further, it was also held that the testator, during his lifetime, executed the POA in respect to Schedule Item Nos. 4 to 12 of the plaint schedule property in favour of Krishnayya Nairi through licence authority in 1961. However, the said POA was revoked after the death of the testator and Krishnayya Nairi had the possession of the said property as a licensee only. Except accepting the possession of the schedule property, Krishnayya Nairi had not denied the ownership of the property of the testator and had not prayed for any authority or ownership and so, the Plaintiff was entitled to recover the possession of Schedule Item Nos. 4 to 12 as per the Will.
 - d. However, it was observed that due to non-production of any reliable documents or any complaint lodged by the Plaintiff before the police regarding the alleged illegal interference of the wife and children of the testator, and in view of the fact that no eye witnesses were produced to prove the said incident, no case was made out for grant of a stay order in favour of the Plaintiff.
10. Aggrieved by the Judgment and Decree dated 16.12.2008, the wife and children of the testator preferred an appeal bearing **R.A. No. 4 of 2009** before the District & Sessions Judge at Udupi. However, the said appeal was transferred to the Fast Track Court, Udupi

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(hereinafter referred to as “**the First Appellate Court**”) for disposal in accordance with law.

JUDGMENT OF THE FIRST APPELLATE COURT

11. The First Appellate Court, vide Judgment and Decree dated 06.08.2012, **dismissed the appeal** and affirmed the findings of the Trial Court. The First Appellate Court observed that the Plaintiff had already given her representation without any delay to the Tehsildar, Udupi on 10.02.1984 which disclosed all relevant facts including execution of the Will in her favour. Further, the wife and children of the testator, despite being the best persons to deny the plaint, had not stepped into the witness box to deny the contents of the plaint. Furthermore, the First Appellate Court relied upon the evidence of B. Jagannatha Nairi and inferred that the testator and the attesting witness had signed the Will in the presence of each other. Moreover, it was held that the Trial Court had rightly compared the disputed signature of the testator on the Will with the admitted signature on the POA, and since the Trial Court itself possesses such power, there was no necessity of a handwriting expert. Accordingly, the First Appellate Court concluded that no interference with the findings of the Trial Court was warranted.
12. Aggrieved by the Judgment and Decree dated 06.08.2012, the wife and children of the testator preferred a second appeal bearing **R.S.A No. 1970 of 2012** before the High Court of Karnataka.

IMPUGNED JUDGMENT

13. The High Court, vide Final Judgment and Order dated 15.11.2012, **dismissed the second appeal**. The High Court held that it was not the case of the Appellants that the First Appellate Court had failed to consider any particular ground or point urged by the Appellants. It was further observed that the First Appellate Court, in order to confirm the judgment of the Trial Court, had given detailed reasoning on each of the grounds canvassed in the appeal, though the points for consideration may not have been properly formulated. Therefore, the High Court held that merely on the technical grounds that the points formulated by the First Appellate Court were not in conformity with Order XLI Rule 31 of CPC, the findings of the First Appellate Court could not be set aside. With regard to the contention that the

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wife and the children of the testator had been excluded from the properties of the testator without any reason, the High Court held that the Will itself clearly recited that the testator had already given sufficient properties to his wife and children. However, for reasons best known to them, the wife and children of the testator did not enter the witness box and failed to furnish any particulars regarding the movable or immovable properties or cash allegedly given to them by the testator. Even the evidence of B. Jagannatha Nairi had not been seriously challenged by the Appellants and that it was not difficult for the Appellants to summon another attester to the Will, if he had not attested the Will. Therefore, the High Court held that no substantial question of law arose for consideration in the appeal and accordingly, the appeal was dismissed.

14. Being aggrieved by the Impugned Judgment, the Appellants are before us.

SUBMISSIONS ON BEHALF OF THE APPELLANTS

15. Ms. Meenakshi Arora, learned Senior Counsel, appearing on behalf of the Appellants submitted that the suit was filed by the Plaintiff after 7 years of execution of the Will and 6 years after mutation and conversion of the land in favour of the Appellants, for which no explanation was given by the Plaintiff. Even no explanation was given as to why the testator would make a Will only for the lands and not for other assets, in favour of the Plaintiff, to the exclusion of his own wife and children.
16. Further, the learned Senior Counsel submitted that the Respondent No. 1 never objected to the mutation taking place in favour of the Appellants before the Tehsildar, Udupi in 1984 and no copy of the Will was produced at that time. No explanation was also given to the document filed by the Plaintiff showing practice of signatures of the testator.
17. Furthermore, the learned Senior Counsel also submitted that the testimony of B. Jagannatha Nairi, the attesting witness in the Will, stated the place of death of the testator to be Bombay and that he did not know about the contents of the Will.
18. Moreover, it is submitted that the Impugned Judgment categorically stated that the points of consideration framed by the First Appellate

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Court were “*general*” in nature and thereafter, erroneously arrived at the conclusion that all the Courts had scrutinised the entire evidence and facts on record, treating the same as “*mere technicalities*”. Thus, the First Appellate Court failed to comply with Order XLI Rule 31 of CPC.

SUBMISSIONS ON BEHALF OF THE RESPONDENTS

19. Mr. Vinay Navare, learned Senior Counsel appearing on behalf of the Respondents submitted that once specific allegations of forgery or fraud were made in respect of the Will and the Plaintiff had duly proved the execution of the Will, the burden shifted on the Appellants to prove their plea of forgery. However, the Appellants never asked for sending the Will for examination by a handwriting expert nor chose to examine any expert witness and thus, the specific plea of forgery was not even attempted to be proved.
20. The learned Senior Counsel also submitted that the proceedings throughout were initiated by Ganesha @ Ganapayya Nairi, namely Respondent No. 5, whereas the legal heirs of the testator, namely his wife and children, remained passive throughout the proceedings. This is evident from the fact that the written statement was signed, verified and affirmed solely by Respondent No. 5; only Respondent No. 5 was examined as DW1; and the application for stay before the First Appellate Court was verified and affirmed by Respondent No. 5 alone. It is submitted that the same was for protecting his interest in the property as the testator had given possession of the property to the father of Respondent No. 5 as the POA holder and he was enjoying the possession. But the real beneficiaries of succession, namely the wife and children of the testator, did not enter the witness box either to prove the plea of forgery or to deny the execution of the Will.
21. Further, the learned Senior Counsel submitted that Mohammad Saheb, one of the attestors of the Will, filed an affidavit on 20.12.1990, which was even prior to the filing of the written statement by the Appellants on 18.02.1991. Therefore, the First Appellate Court rightly observed that, when the Trial Court had not issued any notice to him, the question arose as to how he came to know about the pendency of the suit and for what reason he had filed the said affidavit.
22. Furthermore, it is also submitted that, sometime after the death of the testator, the Plaintiff made an application dated 10.02.1984 to

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the Tehsildar, Udupi requesting him to change the patta of the plaint schedule properties in her name in the mutation register. Copies of the said application were also forwarded to the Secretary, Bramhavara, Udupi Taluk, the Assistant Commissioner, Kundapura, and the Revenue Inspector, Bramhavara. However, the Plaintiff came to know that Krishnayya Nairi had managed to get the names of the wife and children of the testator entered in the records of rights in respect of the plaint properties without issuing any notice to the Plaintiff or conducting any enquiry. It is submitted that only in October, 1990, when Krishnayya Nairi along with his son, Ganesha @ Ganapayya Nairi, attempted to threaten the Plaintiff and cut the standing crops, the Plaintiff was constrained to file the suit. Therefore, there was no delay in producing the Will before the Trial Court.

23. Additionally, it is submitted that the testator, in the Will itself, specifically stated that *"I am doing no injustice to my wife and children or other relatives...I have given enough and more to my wife and children who are residing at Bombay"* and thus, the wife and children had already been provided with sufficient properties.
24. Moreover, it is submitted that in the cross-examination of B. Jagannatha Nairi, being the only living attesting witness to the Will, he specifically stated that his brother's daughter came to his house and took his signature on a paper, the contents of which were not informed to him and thus, the affidavit of B. Jagannatha Nairi relied upon by the Appellants is a self-created affidavit by the Appellants and thus, cannot be relied upon.

ANALYSIS

25. We have heard both the learned Senior Counsel appearing on behalf of the parties and have perused the relevant material placed on record.
26. The issue that arises for our consideration is whether there are sufficient grounds that warrant interference with the concurrent findings of the facts of all the Courts upholding validity of the Will.

Principles for the Validity and Execution of a Will

27. Before advertng to the facts of the case, it is pertinent to refer to the relevant provisions governing the validity and execution of a Will. Section 68 of the Indian Evidence Act, 1872 reads as follow-

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“Section 68- Proof of Execution of document required by law to be attested- If a document is required by law to be attested, it shall not be used as evidence until one attesting witness at least has been called for the purpose of proving its execution, if there be an attesting witness alive, and subject to the process of the Court and capable of giving evidence: xxx”

28. It has been categorically stated in the case of **Meena Pradhan and Others v. Kamla Pradhan and Another**¹ that-

“9. A Will is an instrument of testamentary disposition of property. It is a legally acknowledged mode of bequeathing a testator’s property during his lifetime to be acted upon on his/her death and carries with it an element of sanctity. It speaks from the death of the testator. Since the testator/testatrix, at the time of testing the document for its validity, would not be available for deposing as to the circumstances in which the will came to be executed, stringent requisites for the proof thereof have been statutorily enjoined to rule out the possibility of any manipulation.”

29. With regard to the principles pertaining to the validity and execution of a Will, reliance is placed on the judgments passed by 3 Judges Bench and 2 Judges Bench of this Court in **H. Venkatachala Iyengar v. B.N. Thimmajamma And Others**², **Bhagwan Kaur v. Kartar Kaur And Others**³, **Janki Narayan Bhoir v. Narayan Namdeo Kadam**⁴, **Yumnam Ongbi Tampha Ibema Devi v. Yumnam Joykumar Singh And Others**⁵, and **Shivakumar And Others v. Sharanabasappa And Others**⁶, from which the following principles required for proving the validity and execution of a Will may be deduced:

“10.1. The court has to consider two aspects : firstly, that the will is executed by the testator, and secondly, that it was the last will executed by him;

¹ 2023 SCC OnLine SC 1198.

² 1958 SCC OnLine SC 31.

³ (1994) 5 SCC 135.

⁴ (2003) 2 SCC 91.

⁵ (2009) 4 SCC 780.

⁶ (2021) 11 SCC 277.

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10.2. *It is not required to be proved with mathematical accuracy, but the test of satisfaction of the prudent mind has to be applied.*

10.3. *A will is required to fulfil all the formalities required under Section 63 of the Succession Act, that is to say:*

(a) The testator shall sign or affix his mark to the will or it shall be signed by some other person in his presence and by his direction and the said signature or affixation shall show that it was intended to give effect to the writing as a will;

(b) It is mandatory to get it attested by two or more witnesses, though no particular form of attestation is necessary;

(c) Each of the attesting witnesses must have seen the testator sign or affix his mark to the will or has seen some other person sign the will, in the presence and by the direction of the testator, or has received from the testator a personal acknowledgment of such signatures;

(d) Each of the attesting witnesses shall sign the will in the presence of the testator, however, the presence of all witnesses at the same time is not required;

10.4. *For the purpose of proving the execution of the will, at least one of the attesting witnesses, who is alive, subject to the process of court, and capable of giving evidence, shall be examined;*

10.5. *The attesting witness should speak not only about the testator's signatures but also that each of the witnesses had signed the will in the presence of the testator;*

10.6. *If one attesting witness can prove the execution of the will, the examination of other attesting witnesses can be dispensed with;*

10.7. *Where one attesting witness examined to prove the will fails to prove its due execution, then the other available attesting witness has to be called to supplement his evidence;*

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10.8. *Whenever there exists any suspicion as to the execution of the will, it is the responsibility of the propounder to remove all legitimate suspicions before it can be accepted as the testator's last will. In such cases, the initial onus on the propounder becomes heavier.*

10.9. *The test of judicial conscience has been evolved for dealing with those cases where the execution of the will is surrounded by suspicious circumstances. It requires to consider factors such as awareness of the testator as to the content as well as the consequences, nature and effect of the dispositions in the will; sound, certain and disposing state of mind and memory of the testator at the time of execution; testator executed the will while acting on his own free will;*

10.10. *One who alleges fraud, fabrication, undue influence et cetera has to prove the same. However, even in the absence of such allegations, if there are circumstances giving rise to doubt, then it becomes the duty of the propounder to dispel such suspicious circumstances by giving a cogent and convincing explanation.*

10.11. *Suspicious circumstances must be "real, germane and valid" and not merely "the fantasy of the doubting mind [Shivakumar v. Sharanabasappa, (2021) 11 SCC 277] ". Whether a particular feature would qualify as "suspicious" would depend on the facts and circumstances of each case. Any circumstance raising suspicion legitimate in nature would qualify as a suspicious circumstance, for example, a shaky signature, a feeble mind, an unfair and unjust disposition of property, the propounder himself taking a leading part in the making of the will under which he receives a substantial benefit, etc."*

30. Coming back to the present factual matrix, after a careful perusal of the relevant material on record and applying the settled proposition of law, it is evident that the Will was duly executed by the testator voluntarily out of his free will in a sound state of mind and the same stands proved through the testimony of one of the attesting witnesses, namely B. Jagannatha Nairi, who was examined as PW2 by the Trial Court. This witness categorically stated that the testator executed the

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Will in question in his presence, and that both he and the testator signed the Will in the presence of each other.

Claim of Title Based on a Will

31. The contention of the Appellants that there was an unexplained delay of 7 years in producing the Will after the death of the testator is liable to be rejected. The said contention has been considered by all the Courts, which concurrently held that the Plaintiff had already given a representation before the Tehsildar, Udupi vide notice dated 10.02.1984 to mutate her name, and the said notice was received by the concerned authorities as evidenced by the postal certificate. Although, there was no material which disclosed that the Plaintiff had produced the copy of the Will before the concerned authority, but the said notice itself disclosed all relevant facts, including the execution of the Will in favour of the Plaintiff, without any delay. All the Courts have duly examined the said issue thoroughly and have recorded concurrent findings and thus, we are also in conformity with the same. As regards the contention of the Appellants that they had obtained mutation entries in the year 1984, it is well settled that such mutation entries do not confer title and it is effected merely for fiscal purposes, namely, to enable the State to realize tax from the person whose name is recorded in the revenue records, as held in **Balwant Singh And Another v. Daulat Singh (Dead) By LRs. And Others**⁷. Also, the contention that the Will is unregistered has no significant bearing on its validity, as this Court in the case of **Ishwardeo Narain Singh v. Kamta Devi And Others**⁸ has clearly held that:-

“6. ... There is nothing in law which requires the registration of a will and wills are in a majority of cases not registered at all. To draw any inference against the genuineness of the will on the ground of its non-registration appears to us to be wholly unwarranted.”

Scope of Suspicious Circumstances to Vitiating a Will

32. The contention of the Appellants that the Appellants, being the natural heirs of the testator, have been outrightly excluded without any

⁷ (1997) 7 SCC 137.

⁸ (1953) 1 SCC 295.

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reason and that such exclusion constitutes a suspicious circumstance surrounding the execution of the Will is legally untenable. It is well-established that mere deprivation of natural heirs, by itself, may not amount to a suspicious circumstance because the whole idea behind the execution of a Will is to interfere with the normal line of succession, as categorically held in **Rabindra Nath Mukherjee and Another v. Panchanan Banerjee (Dead) by LRs and Others**⁹. However, in the case of **Ram Piari v. Bhagwant and Ors.**¹⁰, this Court also held that prudence requires reason for denying the benefit of inheritance to natural heirs and an absence of it, though not invalidating the Will in all cases, shrouds the disposition with suspicious as it does not give inkling to the mind of the testator to enable the Court to judge that disposition was a voluntary act.

33. This brings us to the next issue i.e., what are the suspicious circumstances which may vitiate the disposition of a Will. In **Indu Bala Bose & Ors. v. Manindra Chandra Bose & Anr.**¹¹, this Court held that-

“8. Needless to say that any and every circumstance is not a “suspicious” circumstance. A circumstance would be “suspicious” when it is not normal or is not normally expected in a normal situation or is not expected of a normal person.”

34. With regard to the prudence to be drawn while determining the suspicious circumstances, all the Courts have unambiguously opined that the Will in question was validly executed. It is trite to state that when the validity of a Will is to be determined, the overall terms of a Will, the intention of the testator and the surrounding circumstances have also to be seen. Mere exclusion of the natural heirs from the property of the testator, by itself, cannot be construed as a suspicious circumstance so as to invalidate a Will outrightly. A testator is legally entitled to dispose of his property according to his own wishes, and unless the exclusion is accompanied by suspicious circumstances affecting the genuineness or due execution of a Will, such exclusion alone does not render a Will invalid. Thus, we are of the considered

9 (1995) 4 SCC 459.

10 (1990) 3 SCC 364.

11 (1982) 1 SCC 20.

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view that the exclusion of the natural heirs cannot be sufficient to vitiate the Will in question, particularly when the Will clearly specifies that the testator has not done any injustice to his wife, children, or other relatives, and that he has given enough to his wife and children who are residing at Bombay.

Compliance of Order XLI Rule 31 of CPC

35. The contention of the Appellants that the First Appellate Court, while deciding the first appeal, has not complied with Order XLI Rule 31 of CPC is hereby rejected. Rule 31 reads thus-

“Rule 31. Contents, date and signature of judgment-
The judgment of the Appellate Court shall be in writing and shall state-

(a) the points for determination;

(b) the decision thereon;

(c) the reasons for the decision; and

(d) where the decree appealed from is reversed or varied, the relief to which the appellant is entitled,

and shall at the time that it is pronounced be signed and dated by the Judge or by the Judges concurring therein.”

36. This Court in ***G. Amalorpavam And Others v. R. C. Diocese of Madurai and Others***¹² also held that:-

“9. The question whether in a particular case there has been substantial compliance with the provisions of Order 41 Rule 31 CPC has to be determined on the nature of the judgment delivered in each case. Non-compliance with the provisions may not vitiate the judgment and make it wholly void, and may be ignored if there has been substantial compliance with it and the second appellate court is in a position to ascertain the findings of the lower appellate court. It is no doubt desirable that the appellate court should comply with all the requirements of Order 41 Rule 31 CPC. But if it is possible to make out from

¹² (2006) 3 SCC 224.

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the judgment that there is substantial compliance with the said requirements and that justice has not thereby suffered, that would be sufficient. Where the appellate court has considered the entire evidence on record and discussed the same in detail, come to any conclusion and its findings are supported by reasons even though the point has not been framed by the appellate court there is substantial compliance with the provisions of Order 41 Rule 31 CPC and the judgment is not in any manner vitiated by the absence of a point of determination. Where there is an honest endeavour on the part of the lower appellate court to consider the controversy between the parties and there is proper appraisal of the respective cases and weighing and balancing of the evidence, facts and the other considerations appearing on both sides is clearly manifest by the perusal of the judgment of the lower appellate court, it would be a valid judgment even though it does not contain the points for determination. The object of the rule in making it incumbent upon the appellate court to frame points for determination and to cite reasons for the decision is to focus attention of the court on the rival contentions which arise for determination and also to provide litigant parties opportunity in understanding the ground upon which the decision is founded with a view to enable them to know the basis of the decision and if so considered appropriate and so advised to avail the remedy of second appeal conferred by Section 100 CPC."

37. In view of the above position of law, we are of the view that mere non-compliance with Order XLI Rule 31 of CPC may not vitiate the judgment and make it wholly void and may be ignored if there has been substantial compliance with it and the rule should not be interpreted technically to compromise substantial justice. The findings in the decision passed by the First Appellate Court have properly scrutinised the evidence on record, even if the points of consideration are general, and thus, the same does not suffer from any illegality.

Evidentiary Value of Affidavits

38. The contention of the Appellants that the affidavits of both the attesting witnesses to the Will, denying that they had signed the same,

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render the Will invalid is unsustainable. In this regard, this Court in ***Ayaubkhan Noorkhan Pathan v. State of Maharashtra and Others***¹³ has categorically held that an affidavit is not an “evidence” within the meaning of Section 3 of the Indian Evidence Act, 1872 and the same can be used as “evidence” only if, for sufficient reasons, the Court passes an order under Order XIX of CPC and thus, the filing of an affidavit cannot be regarded as sufficient evidence for any Court or Tribunal, on the basis of which it can come to a conclusion as regards a particular fact situation. However, in a case where the deponent is available for cross-examination, and opportunity is given to the other side to cross-examine him, the same can be relied upon. In the present case, it is also important to note that those affidavits were filed even prior to the filing of the written statement, and the same has been rightly dealt by all the Courts, which questioned as to how the witnesses came to know about the enquiry regarding the validity of the Will despite no notice having been issued by the Court calling upon them to submit such affidavits. Thus, in view of the same, the affidavits filed by the attesting witnesses to the Will cannot be relied upon.

CONCLUSION

39. Therefore, we are of the opinion that the concurrent findings of all the Courts have rightly given a well-reasoned decision upholding the validity of the Will and the same does not warrant interference of this Court.
40. For the aforesaid reasons, we affirm the Impugned Judgment and hence, the present appeal is dismissed.
41. Pending application(s), if any, shall stand disposed of. No order as to costs.

Result of the case: Appeal dismissed.

[†]Headnotes prepared by: Ankit Gyan

Sukhendu Bhattacharjee and Others

v.

The State of Assam and Others

(Civil Appeal No. 4514 of 2025)

21 May 2026

[Vikram Nath and Sandeep Mehta,* JJ.]

Issue for Consideration

Whether the appellants can be denied the benefit of regularization solely on the ground that they were not appointed against sanctioned posts and that the decision in *Umadevi* case prohibits such regularization.

Headnotes[†]

Service Law – Regularization – Denial of, on the ground that initial appointment was not against sanctioned posts, despite having rendered continuous service for decades and regularization of similarly situated workers – Impermissibility – Appellants engaged as Muster Roll workers under various departments of the Government of Assam prior to 01.04.1993 had rendered long and continuous service extending over decades, and were identically placed as the 30,000 workers whose services were regularized pursuant to the Cabinet decision dtd.22.07.2005 to regularize Work Charged and Muster Roll workers engaged prior to 01.04.1993 – However, due to administrative lapses and clerical omissions on the part of the State, several eligible workers, including the appellants, were left out of the exercise – Multiple writ petitions filed before High Court, Single Judge directed regularization along with consequential benefits in favour of the appellants – Order set aside by Division Bench *inter alia* holding that since the appellants were not appointed against duly sanctioned vacant posts therefore, did not satisfy the requirements of the exception carved out in *Umadevi* case – Interference with:

Held: Impugned judgment unsustainable – Engaging workers on muster rolls was a consistently employed policy of the State which continued for prolonged period of time – Appellants were not engaged for sporadic or seasonal purposes but were taken on

* Author

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muster rolls and have rendered continuous service for decades in departments performing regular governmental functions – State having engaged the appellants prior to 01.04.1993, utilised their services continuously for decades and itself acknowledged the magnitude of the issue and framed a Cabinet policy to regularize similarly situated workers, acting upon it in respect of nearly 30,000 employees – In such circumstances, to deny consideration to the fraction of remaining eligible workers including the appellants, by taking shelter under a rigid or technical reading of *Umadevi* would defeat the very principles of fairness and non-arbitrariness – In absence of any cogent distinction or reasoned decision justifying such exclusion, the action of the State is manifestly arbitrary – It is inconsistent with its obligation to function as a model employer and does not withstand scrutiny u/Art.14 of the Constitution – The contention of the State that the appellants cannot be granted regularization on the ground that they were not initially appointed against duly sanctioned posts, rejected – Impugned judgment set aside and that of the Single Judge is affirmed – Directions issued – Constitution of India – Art.14. [Paras 77-79]

Constitution – Art.14 – Standards of fairness and accountability expected of the State and its instrumentalities – Refusal to regularize the eligible workers who stood on the same footing/ identically placed as those 30,000 workers whose services were regularized by policy decision in 2005, violation of Art.14:

Held: Equals must be treated equally, and if persons similarly placed are treated differently without a rational basis, it would amount to a violation of Art.14 of the Constitution – If two sets of employees stand on the same footing in terms of date of engagement, nature of duties, length of service and eligibility under a declared policy, the State cannot extend a benefit to one large group and deny it to the smaller group without demonstrating a valid distinction – Equality does not allow selective or partial implementation of a policy – Once a policy decision is taken to benefit a defined class, it must be applied uniformly to all who satisfy the prescribed conditions – State itself framed a policy in 2005 to regularize Work Charged and Muster Roll workers engaged prior to 01.04.1993 – Pursuant to the aforesaid policy decision, approximately 30,000 workers were regularized – Appellants belong to that very category – They were engaged prior to the cut-off date and have rendered long and continuous service in the same manner as those who were

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regularized – There is no distinguishing feature shown which separates them from the beneficiaries of the 2005 decision – Once the State chose to regularize such a large body of workers forming one identifiable class, it was under a constitutional obligation to treat all eligible members of that class alike – The remaining workers who were left out, though otherwise eligible, cannot be excluded and denied the same benefit – Moreover, the exclusion of the appellants from being granted the benefit of the 2005 decision is not attributable to the appellants but is rather predicated in the actions of the State machinery which, on account of inadvertent errors or clerical mistakes, did not include the appellants in the list of beneficiary covered by the said government decision – Once the State confers a benefit upon a particular class, it cannot arbitrarily deny the same benefit to others who are identically situated – Thus, the State, having regularized nearly 30,000 workers under its own policy decision, could not refuse to regularize the remaining eligible workers who stood on the same footing – To do so amounts to treating equals unequally, which is impermissible u/Art.14 of the Constitution. [Paras 60, 61, 63]

Service Law – Regularization – Long and continuous service, a relevant consideration – State cannot rely upon the mere form of engagement to deny fair and equitable treatment to employees who served for long years – Division Bench set aside the order of the Single Judge thus, reversing the direction of regularization and consequential benefits granted in favour of the appellants *inter alia* holding that since the appellants were not appointed against duly sanctioned vacant posts therefore, did not satisfy the requirements of the exception carved out in *Umadevi* case:

Held: In the facts of the present case, reliance placed by the Division Bench on *Umadevi* and *M.L. Kesari* was misplaced – Paragraph 53 of *Umadevi* carved out a limited exception for those employees who had worked for more than ten years in duly sanctioned posts without the protection of Court orders – However, the appellants were not seeking regularization on the basis of that one-time exception – Their claim was rooted in the Cabinet decision dtd.22.07.2005, by which the State consciously decided to regularize the services of Work Charged and Muster Roll workers engaged prior to 01.04.1993, and pursuant to which nearly 30,000 similarly situated employees were in fact regularized

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by creation of posts – Appellants claimed parity with that very class and sought equal treatment u/Art.14 – Therefore, the issue is not one of invoking the limited exception carved out in *Umadevi*, but of ensuring that employees who stand on the same footing are treated alike – State cannot rely upon the mere form of engagement to deny fair and equitable treatment to employees who have served it for long years – *Umadevi* cannot be invoked as a blanket barrier to justify prolonged and continued engagements of a temporary or *ad hoc* nature, especially where the employees have been discharging essential and recurring functions of the State – The distinction between “illegal” and “irregular” appointments must be kept in view, long and continuous service is a relevant consideration, and the State, as a model employer, is under a constitutional obligation to act with fairness, consistency and reasonableness – The practice of retaining employees for decades under deceptively titled designations, while simultaneously extracting regular work integral to the administration, has been disapproved consistently – Constitution of India – Art.14. [Paras 59, 76]

Constitution of India – Art.14 – Doctrine of legitimate expectation – Rooted in the principles of fairness and non-arbitrariness u/Art.14 – Role of State as a model employer:

Held: Once the Cabinet had taken a considered decision and acted upon it for a large number of employees, it was incumbent upon the State to act in furtherance thereof fully, and not to introduce measures that undermine or circumvent it – State which is expected to act as a model employer cannot be permitted to resile from, or seek shelter against its own decisions through subsequent executive decisions – To allow such a course would be contrary to principles of administrative fairness, consistency, and good governance – The 2012 O.M. appears to have been designed in a manner that effectively defeats and dilutes the very object and purpose of the Cabinet decision – State as a model employer is under a higher constitutional obligation to ensure that its actions are just, reasonable and non-arbitrary – Constantly giving undertakings before a constitutional Court and thereafter resiling from them does not comport with the standards expected of a model employer – An undertaking recorded by a Court is not a casual statement, but is a solemn representation on the basis of which judicial orders are passed – The State cannot approbate and reprobate – Repeated undertakings given by the State before

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the High Court, coupled with the earlier implementation of the Cabinet decision in favour of nearly 30,000 similarly situated workers, gave rise to a legitimate expectation in the minds of the appellants who were deprived of the benefits of the policy – In the maze of administrative deficiencies, they were entitled to expect that the policy decision would be implemented in a fair, complete and non-discriminatory manner, and that their cases would also be considered as part of the same exercise – Though legitimate expectation does not create a vested right, it is firmly rooted in the principles of fairness and non-arbitrariness that flows from Art.14 – State's own policy decision and subsequent undertakings before the High Court constituted clear representations that the cases of the left-out workers would be duly considered – State could not thereafter retract from its earlier position in a selective or inconsistent manner. [Paras 66-68, 70]

Undertakings, given in Court – Significance:

Held: An undertaking recorded by a Court is not a casual statement, but is a solemn representation on the basis of which judicial orders are passed – State cannot approbate and reprobate – It cannot, on the one hand, secure time and indulgence from the Court on the assurance that a policy will be implemented and, on the other, avoid implementation by citing precedents that were already in existence at the time the undertakings were furnished. [Para 67]

Policy Decisions/Executive Decisions – Implementation of – Role of Courts – Confined to judicial review, Courts do not grant prior approval to executive decisions – Regularization, an executive function and falls within the domain of policy and administration:

Held: Single Judge rightly held that there was no requirement for the State to seek permission of the Court to implement its own policy decision – Any solution to the issue of regularization must be undertaken by the State as a policy measure – Regularization, where permissible in law, is an executive function – It falls within the domain of policy and administration – Courts do not grant prior approval to executive decisions – The role of the Court is confined to judicial review, that is, to examine whether a policy or action is constitutionally valid, fair and reasonable – It is not for the Court to authorise the executive to exercise powers which already vest in it – In the present case, seeking permission in the manner done

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by the State amounted, in effect, to a surrender of its executive authority – The executive cannot abdicate its responsibility by placing the burden upon the Court to approve or disapprove the implementation of its own policy – Course adopted by the State was neither necessary nor justified – Service Law – Regularization. [Paras 71, 72]

Service Law – Writ Proceedings – Recording adverse finding without hearing – Impermissibility – In Civil Appeal No. 4519 of 2025; Civil Appeal No. 4520 of 2025, neither the appellant-association nor its members were impleaded as parties in the writ proceedings culminating in the impugned judgment – Grievance of the appellant confined to the limited facet of the impugned judgment insofar as it treated Work Charged employees at par with Muster Roll and Casual workers, without an independent examination of their distinct legal and factual status:

Held: No adverse finding ought to be recorded against a class of persons without hearing them, more particularly when the *lis* affects the monetary rights of the group of employees – Impugned judgment, to the limited extent, cannot be sustained – Impugned judgment passed by the Division Bench has already been set aside in Civil Appeal No. 4514 of 2025 hence, the observations contained therein shall not operate to prejudice or foreclose the independent claims of Work Charged employees, if any – Work Charged employees shall be treated as a distinct class, and their entitlement to pension and other post-retiral benefits shall not be adversely affected by the observations made in the impugned judgment. [Paras 95, 96]

Service Law – Denial of pensionary benefits – In Civil Appeal No. 4523 of 2025, writ petition was filed by the appellants-Muster Roll workers who were paid grade pay, dearness allowance, medical allowance and other service benefits in a manner similar to regular employees, but were denied pensionary benefits – Dismissed by High Court on the ground that the issue stood concluded by an earlier Division Bench decision in *State of Assam v. Upen Das* (impugned judgment in Civil Appeal No. 4514 of 2025 and Civil Appeal No. 4519 of 2020), holding that the appellants were not entitled to pensionary benefits – Challenge to:

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Held: Since the judgment passed in *Upen Das* which was relied by the Division Bench has been set aside in Civil Appeal No. 4514 of 2025, the impugned judgment cannot be sustained and is accordingly set aside – Appellants at liberty to agitate their claims for pensionary benefits before the appropriate authority/forum in accordance with law and the applicable policy framework. [Paras 104, 105]

Case Law Cited

Secretary, State of Karnataka v. Umadevi [2006] 3 SCR 953 : (2006) 4 SCC 1; *State of Karnataka & Others v. M.L. Kesari & Others* [2010] 9 SCR 543 : (2010) 9 SCC 247 – held not applicable.

Jaggo v. Union of India [2024] 12 SCR 1235 : 2024 SCC Online SC 3826; *Shripal v. Nagar Nigam* [2025] 1 SCR 1427 : 2025 SCC Online SC 221; *Dharam Singh v. State of Uttar Pradesh* [2025] 8 SCRT 1026 : 2025 SCC OnLine SC 1735; *Azam Jahi Mill Workers Association v. National Textile Corporation Ltd.* [2021] 11 SCR 321 : (2022) 17 SCC 797; *Pawan Kumar and Others v. Union of India and Others*, 2026 INSC 156; *Bhola Nath v. State of Jharkhand and Others*, 2026 INSC 99; *National Buildings Construction Corporation v. S. Raghunathan* [1998] 1 Supp. SCR 156 : (1998) 7 SCC 66 – relied on.

State of Assam v. Upen Das, 2017 SCC OnLine Gau 360 – disapproved.

Jitendra Kalita & Ors. v. State of Assam & Ors., 2006 (2) GLT 654; *Ramani Deka and Others v. State of Assam and Others*, W.P. (C) No. 1271 of 2006 – referred to.

List of Acts

Constitution of India.

List of Keywords

Regularization; Work Charged workers; Muster Roll workers; Work Charged employees; Regularization of Work Charged workers; Regularization of Muster Roll workers; Denial of regularization; Appointment not against duly sanctioned posts; Not duly sanctioned posts; Not appointed against sanctioned posts; Initial appointment; Not engaged for sporadic or seasonal purposes; Rendered continuous service for decades; Performed regular governmental

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functions; Long and continuous service; Work of permanent and essential nature; Identically situated; Persons similarly placed; Similarly situated workers; Two sets of employees; On same footing; Long years of service; Unequal and arbitrary treatment; Casual workers; Engagement prior to cut-off date; Engaged prior to cut-off date; One identifiable class; Inadvertent errors; Clerical mistakes; Differential treatment discriminatory; Same relief; Excluded employees; Standards of fairness and accountability; Legitimate expectation; Not vested right; Principles of fairness; Non-arbitrariness; Article 14 of the Constitution; Equals to be treated equally; Cabinet policy; Create supernumerary posts; Ferry services; Prolonged and continued engagements; Temporary or ad hoc nature; Essential and recurring functions; Administrative deficiencies; Administrative lapses; Clerical omissions; Policy Decisions; Executive Decisions; Domain of policy; Policy measure; Executive function; Abdication of responsibility by Executive; Adverse finding without hearing; Workers and field supervisors; Maintenance of official works; Development of public roads; Sub divisions of State of Assam; Policy for regularization.

Case Arising From

CIVIL APPELLATE JURISDICTION: Civil Appeal No. 4514 of 2025

From the Judgment and Order dated 08.06.2017 of the Gauhati High Court in WA No. 45 of 2014

With

Civil Appeal No(s). 4516, 4515, 4517, 4518, 4519, 4520 and 4523 of 2025

Appearances for Parties

Advs. for the Appellant(s):

Ms. Anitha Shenoy, B K Sharma, Manish Goswami, Sr. Advs., Siddhartha Jha, Kartik Jha, Ms. Nitika Sud, Avijit Roy, Ms. Srishti Agnihotri, Ms. Sadhana Madhavan, Ms. Kavana Rao, D. P. Singh, Ms. Anchal Kanthed, Ms. Sanjana Grace Thomas, Seema Sharma, Utkarsh Kumar, Somiran Sharma, Dr. Mrs. Vipin Gupta, R B Phookan, Ms. Neha Tandon, Gautam Talukdar, Ms. Tapasya Kakaty, Nilim Sharma, Subhra Jyoti Sharma, Gaurav Shukla, Rameshwar Prasad Goyal.

Sukhendu Bhattacharjee and Others v. The State of Assam and Others*Advs. for the Respondent(s):*

Chinmoy Pradip Sharma, Sr. A.A.G., Jaideep Gupta, B.K Sharma, Sr. Advs., Ankit Roy, Ms. Nimisha Menon, Irfan Hasieb, Vijay Deora, Aditya Agarwal, Ms. Mrinalini Ramesh, Ms. Diksha Rai, Ms. Nimisha Menon, Piyush Vyas, Ms. Purvat Wali, Riddhi Bose, Mrs. Rishi Agarwal, Mrs. Racheeta Chawla, Mrs. Sampriti Baksi, Bharadwaj S., Manish Raghav, Nitin Jain, Ms. Anisa Jain, Ms. Sangita Tahbildar, Lokesh Sharma, Brijesh Kumar Tamber, Kaushik Choudhury, Saksham Garg, Jyotirmoy Chatterjee, Nilim Sarma.

Judgment / Order of the Supreme Court**Judgment**

Mehta, J.

Civil Appeal No. 4514 of 2025; Civil Appeal No. 4516 of 2025; Civil Appeal No. 4515 of 2025; Civil Appeal No. 4517 of 2025 and Civil Appeal No. 4518 of 2025

1. Delay condoned in filing application for setting aside of abatement. Abatement is set aside. Delay condoned in filing application(s) for substitution. Application(s) for substitution is/are allowed. Applications for impleadment are dismissed.
2. In matters concerning long-standing administrative arrangements, particularly where the State and its instrumentalities, over time, continue to utilize the services of certain categories of workers in the discharge of its functions, Courts are often required to examine whether executive action conforms to constitutional standards of fairness and consistency. The exercise of public power cannot be divorced from practical realities created by sustained governmental reliance on such workers. Where governmental authorities derive the benefit of prolonged service and thereafter adopt positions that appear inconsistent with earlier policies or representations, the scrutiny of the Court is directed not merely at the outcome, but at the manner in which discretion has been exercised. The touchstone remains whether the action of the State is reasoned, non-arbitrary and in harmony with the constitutional mandate. It is within this broader constitutional perspective that the present issues fall for consideration.

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3. The instant batch of appeals takes exception to common judgment and order dated 8th June, 2017 passed by Division Bench of the Gauhati High Court¹ in Writ Appeal No. 45 of 2014, whereby the Division Bench of the High Court, set aside the judgment and order dated 20th December, 2013 passed by the learned Single Judge, thereby reversing the direction of regularization and consequential benefits granted in favour of the appellants.
4. Since these appeals arise out of a common impugned judgment and involve identical questions of law and fact, the same are being heard together and disposed of by this common judgment.
5. Civil Appeal No. 4514 of 2025 is treated as the lead matter and reference to facts and issues is being made therefrom for the purpose of adjudication of the instant batch of appeals.

Brief Facts: -

6. In view of the growing requirement of manpower, including workers and field supervisors, for construction, maintenance of official works, and development of public roads across different subdivisions of the State of Assam, the State Government had been engaging Muster Roll workers since the year 1980. Consequently, a large number of persons, including the appellants herein were engaged as Muster Roll workers under various departments of the Government of Assam.
7. On 23rd September, 1983 the Government of Assam took a Cabinet decision to the effect that all Muster Roll workers, working in different departments of the State of Assam, who had completed 15 years of service or more, would be regularized as Grade-IV employees. The manner in which the said Cabinet decision was proposed to be implemented, remained unclear, save and except that the Chief Secretary to the Government of Assam, by communication dated 15th March, 1984 informed the General Secretary of the PWD Employees Union that Muster Roll workers of the Public Works Department and other Engineering Departments, who had completed 15 years of continuous service, were to be regularized with effect from 1st August, 1984.

1 Hereinafter, referred to as "High Court".

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8. By the very same communication, it was further conveyed that Work Charged employees of the Engineering Departments, who had completed 5 years of continuous service, were to be brought under the regular establishment. However, admittedly, no scheme or guidelines were framed laying down a structured procedure for execution of the Cabinet decision dated 23rd September, 1983.
9. The position remained uncertain till 1995, when the then Chief Secretary addressed a communication *vide* Memo No. ABP 176/91/ Pt-1/188 dated 20th April, 1995² to all Commissioners and Secretaries of the Government of Assam, recording that despite the earlier decision of the State Government to regularize Work Charged and Muster Roll workers, no meaningful action had been taken towards such regularization. The aforesaid communication is reproduced hereinbelow for ready reference:-

“GOVERNMENT OF ASSAM
DEPARTMENT OF PERSONNEL:::PERSONNEL (B)
DISPUR, GUWAHATI

No. ABP. 176/91/Pt. I/188

Dated Dispur, the 20th April, 1995

From:- Shri Arunadoy Bhattacharjya, IAS

Chief Secretary to the Government of Assam

To:- All Commissioner and Secretaries/Secretaries to the Government of Assam

Sub:- REGULARIZATION OF SERVICES OF
WORKCHARGED AND MUSTER- ROLL WORKERS

Ref:- This Department's letter No. ABP 64/90/13, dated
24-4-1990

Sir,

I am directed to say that for regularization of services of Work Charged and Muster Roll Workers state Government have issued instruction from time to time to all concerned. It has, however, been brought to the notice of the state Government by Sodou Asom Karmachari Parishad that

² Hereinafter, referred to as “1995 O.M.”.

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in spite of State Government's instruction, no action for regularization of services of such workers has been taken by the certain departments besides, it has also been represented that such workers are also not getting their wages regularly. It is therefore, reiterated that all concerned Department for early regularization of the services of such workers who were engaged in service prior to 01.04.1993 and also to take steps for payment of their wages regularly.

Further, while taking steps regularization of the services of Work-Charged and Muster Roll Workers, the Department concerned must ensure with proper justification on evidence that only the case of these workers who were entertained before 01.04.1993 are considered for regularization in consultation with Finance Department. It has also been decided that in case of any violation of the Government direction of manipulation action will be taken against the officer concerned for such violation or manipulation of records

Yours faithfully
Sd/-

Chief Secretary to the Government of Assam

Memo No. ABP 176/91/pt. I/188-A, Dated Dispur, the 20th April, 1995

Copy forwarded to: -

The Finance EC (II) Department with reference to their letter No. EC (III) 24/92/37, dated 30-5-94. They are requested to take necessary steps for payment of wages to Muster Roll and Work Charged who were appointed before 01.04.1993 regularly.

By order
Sd/-

Joint Secretary to the Government of Assam,
Personnel (B) Department."

10. Accordingly, all concerned departments were directed to initiate necessary steps, in consultation with the Finance Department, for early regularization of Work Charged and Muster Roll workers who had been engaged prior to 1st April, 1993.

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11. The aforesaid Office Memorandum was followed by another Office Memorandum dated 11th October, 1995 whereby strict instructions were issued to the State Government officials to not engage any further Work Charged or Muster Roll workers after 1st April, 1993.
12. A further clarification dated 13th October, 1995 was issued by the State Government stating that the 1995 O.M. would operate only in respect of such Work Charged/Muster Roll workers who had not been discharged or terminated on or before 20th April, 1995.
13. On the strength of the 1995 O.M., several writ petitions came to be instituted before the High Court seeking regularization on the ground that the writ petitioners therein had been engaged prior to 1st April, 1993 and had rendered long years of service. The High Court *vide* common order dated 23rd September, 1998, while directing regularization of those engaged prior to 1st April, 1993 held that the persons engaged after the said date did not have any legally enforceable right to claim regularization.
14. Subsequent to the 1995 O.M., the Under Secretary to the Government of Assam, Personnel (B) Department issued a circular dated 29th August, 1998 reiterating the decision of the Government to regularize the services of the Muster Roll/Work Charged/Casual workers and to take immediate steps for regularization. The said circular is reproduced hereinbelow for ready reference:-

“
GOVERNMENT OF ASSAM
DEPARTMENT OF PERSONNEL:::PERSONNEL (B)
DISPUR, GUWAHATI

No. ABP. 30/98/10

Dated Dispur, the 29th August, 1998

From:- Shri G.N. Saikia

Under Secretary to the Government of Assam

Personnel (B) Department

To:- (1) All Commissioner and Secretaries to the Government of Assam.

(2) All Secretaries to the Government of Assam

(3) Deputy Commissioners

(4) Sub-Divisional Officers

(5) Heads of Department

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Sub:- REGULARIZATION OF SERVICES OF WORK-CHARGED AND MUSTER- ROLL WORKERS AND RETENTION PERMANENCY OF POSTS/OFFICES

Sir,

I am directed to forward herewith an extract of minutes of discussion held on 10-7-98 between Commissioner and Secretary, personnel and Assam state Employees' Federation, Guwahati and to say that Government in Personnel (B) Department issued an instruction to all concerned for regularization of Work Charged persons and M.R. workers engaged prior to 01.04.1993. But it has been observed that many of these Administrative Departments as well as Heads of Departments have not taken steps for regularization of those work charged persons and M.R. Workers engaged prior to 01.04.1993. In terms of the discussion, it is again impressed upon to all concerned that the work Charged persons and M.R. Workers who were engaged prior to 01.04.1993 should be regularized immediately as per instructions contained in this Department letter No. ABP. 176/91/pt.1/ 213, dated 13.10.1995. Action taken thereon may please be intimated expeditiously. As regards decision taken at para-8 of the minutes, necessary steps may be taken by the concerned Administrative Departments and Heads of Departments for retention / permanency of posts /offices expeditiously, in terms of existing Government instructions in this regard. Action taken position on this may please be furnished early.

Yours faithfully

Sd/-

Under Secretary to the Government of Assam
Personnel (B) Department."

15. The Commissioner and Secretary to the Government of Assam, Personnel Department issued another circular dated 3rd November, 2000 whereby all the Principal Secretaries, Commissioner, Secretaries of Government of Assam and all the Departmental heads were requested to implement the Government policy on priority basis with reference to the seniority of the Work Charged and Muster Roll workers, taking into consideration the length of continuous

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engagement for regularization of their services. The said circular is reproduced hereinbelow for ready reference:-

“
GOVERNMENT OF ASSAM
DEPARTMENT OF PERSONNEL:::PERSONNEL (B)
DISPUR, GUWAHATI

No. ABP. 30/98/144

Dated Dispur, the 3rd November, 2000

From:- Dr. B.K. Gohain, IAS

Commissioner and Secretary to the Government of
Assam, Personnel Department.

To:- (1) All Principal Secretary/Commissioner and
Secretaries, Government of Assam.

(2) All Deputy Commissioner

(3) All Heads of Departments

Sub:- REGULARIZATION OF SERVICES OF WORK-
CHARGED AND MUSTER-ROLL WORKERS

Ref:- This Department's letter No. ABP. 176/91/pt. I/188,
dated 20.04.1995 and No. ABP. 122/96/143 dated
05.10.1999

Sir,

I am directed to say that for regularization of services of Work Charged persons and Muster Roll Workers, State Government in personnel Department have been issuing instructions from time to time to all concerned, as above, to regularizes the Work Charged persons and Muster Roll Workers who were engaged prior to 01.04.1993. It has come to the notice of the Government that certain Departments have not given due attention in implementation the clear cut Government policy in this regard. Either there have been no attempt to regularize the existing work charged persons and Muster Roll workers or the Junior Level workers at the cost of seniors in violation of the Government direction. You are, therefore, requested to implement the Government policy on priority basis with reference to the seniority of work Charged persons and Muster Roll workers taking

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into consideration the length of continuous engagement, while moving the Finance Department for regularization of such workers engaged prior to 01.04.1993 subject to clearance of SLEC positively.

Yours faithfully

Sd/-

Commissioner and Secretary to the
Government of Assam (II)
Personnel Department.”

16. In the meantime, in relation to the Transport Department, a selection process was undertaken for filling up Grade-III posts, wherein conflicting orders came to be passed by the High Court with one set directing regularization of ad-hoc/casual workers appointed prior to 1st April, 1993, and another set directing appointment of the selected candidates strictly as per the merit list. Owing to these conflicting views, the issue regarding legality and validity of the 1995 O.M. was referred to a Full Bench of the High Court in the case of ***Jitendra Kalita & Ors. v. State of Assam & Ors***³.
17. While the adjudication in ***Jitendra Kalita*** (*supra*) was still pending, the State Cabinet on 22nd July, 2005 reiterated the decision to regularize the services of Work Charged and Muster Roll workers who were engaged prior to 1st April, 1993 and pursuant thereto, an order came to be issued by the competent authority with the concurrence of the Finance Department for creation of over 30,000 posts against which such regularizations were proposed to be effected. The said communication dated 22nd July, 2005 issued by the State Cabinet is reproduced hereinbelow for ready reference:

“

GOVERNMENT OF ASSAM
FINANCE (EC-II) DEPARTMENT
DISPUR

NO. FEC(II)1/2005/66

Dated Dispur, the 22nd July, 2005

From: Shri D.N. Saikia, IAS,
Commissioner & Secretary to the Government of Assam,
Finance Department, Dispur.

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To: The Commissioner & Secretary/ Secretary to the Government of Assam.

- (1) Agriculture Department, Dispur.
- (2) Animal Husbandry & Veterinary (Veterinary), Department, Dispur.
- (3) Animal Husbandry & Veterinary (Dairy Development) Department, Dispur.
- (4) Water Resources Department, Chandmari, Guwahati-3.
- (5) Transport (IWT) Department, Dispur.
- (6) Irrigation Department, Chandmari, Guwahati-3.
- (7) Public Health Engineering Department, Hengerabari, Guwahati.
- (8) Soil Conservation department, Dispur.
- (9) Handloom, Textile and Sericulture (Sericulture) Department, Dispur.
- (10) Public Works Department, Dispur

Sub: Regularization of the services of Work Charged/ Muster Roll Workers of different Government Departments engaged prior to 01.04.1993- approval thereof

Sir,

I am directed to say that the Cabinet in its meeting held on 22nd July, 2005 has decided to regularize the services of Work charged/Muster Roll Workers of different State Government Departments, who were engaged prior to 01.04.1993 and are in continuous service without interruption/ break irrespective of their length of services. Consequent upon the aforesaid decision of the Cabinet, Finance Department, subject to availability of non-plan fund under proper head of account during 2005-06, concur to the creation of 5892 (Five thousand Eight hundred and Ninety two) numbers of different Work Charged Grade posts and 25,069 (Twenty-five thousand and sixty nine) numbers of different Grade-IV posts for the period up to 28.02.2006 with effect from 22.07.2005 as per detailed

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particulars furnished by you Department, for regularization of the services of 5892 (Five thousand Eight hundred and Ninety two) numbers of different categories of Work Charged workers and 25,069 (Twenty-five thousand and sixty nine) numbers of Muster Roll who were engaged prior to 01.04.1993 and are continuous service without interruption/ break irrespective of their length workers respectively, of services, as detailed below.

.....

The services of those workers whose names were forwarded by the Department but could not be considered of for regularization are detailed at Annexure 'A'.

For the purpose of regularization, the following guidelines should be strictly adhered to:-

1. For regularization of the services of Work Charged workers, concerned Administrative Department will create posts in the same grade that the respective incumbents have been holding as work-charged workers prior to their regularization and for regularization of the services of Muster Roll workers, only the Grade-IV posts (specifying the name of Grade-IV Posts) will be created.
2. The scale of pay against each post should be indicated
3. Specifically as per scale of pay prescribed in the relevant R.O.P. Rules. For regularization of 6 (Six) numbers of Work Charged workers and 42 (forty two) nos. of Muster Roll workers in P.W.D. 1 (one) number of Muster Roll Worker in Water Resources department and 12 (Twelve) numbers of Muster Roll Number in Handloom Textile and Sericulture Sericulture) Department, who had been engaged prior to 01.04.1993 and had either attained the age of superannuation or expired after rendering continuous services, the respective Administrative Departments will create supernumerary posts in appropriate grade (in respect of Work Charged workers) or in Grade-IV (in respect of Must Roll Workers) for 1 (One) day only immediately receding the date of superannuation/ death (as the case may be).

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4. In respect of work Charged/ Muster Roll workers who have already expired, orders regularizing their services will be issued by the respective Appointing Authorities on obtaining death certificates from the competent Authority.
5. The posts are personal to respective Work Charged/ Muster Roll workers and will be abolished as soon as the incumbents relinquish the posts in any manner.
6. The posts will not be filled up by persons other than those Work Charged/ Muster Roll workers for whom the posts have been created.
7. There will be no change in the approved list of Work Charged/ Muster Roll workers. A copy of the list received from your Department since approved and duly authenticated by the Finance Department, is enclosed.
8. Discrepancy if found in the lists of 5892 numbers of Work charged workers and 25069 numbers of Muster Roll Workers may be referred to the respective Control Branch of Finance Department.
9. The ban on fresh engagement of Work Charged/ Muster Roll workers and workers of similar nature with effect from 01.04.1993 shall continue. Any deviation of this shall be dealt with seriously under the relevant provisions of the Assam Fiscal Responsibility and Budget Management Act, 2005.
10. Before issuing sanction regularizing the services of Work Charged/ Muster Roll workers on the strength of this concurrence, the Department will ensure that services of no Work Charged/ Muster Roll workers engaged on or after 01.04.1993 are regularized.
11. For retention of the posts so created, concerned Administrative Department will move respective Control Branch of Finance Department with names of incumbents every year till relinquishment of these personal posts by the concerned incumbents. These posts, in no case, will be retained by the Department as per provisions of the Delegation of Financial Power Rules.

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12. The concerned Administrative Departments will issue sanction for creation of the post as approved, as per following draft model sanctions enclosed.

Draft Model Sanction No. I (Annexure 'B')	Regarding sanction to the creation of posts for regularizing services of Work Charged/Muster Roll Workers who are still continuing.
Draft Model Sanction No. II (Annexure 'C')	Regarding sanction to the creation of supernumerary posts for retired/expired Work charged/ Muster Roll Workers.

13. The concerned appointing authority while issuing order of appointment for the purpose of regularization of the services of Work Charged/ Muster Roll workers, as approved, will attach a copy of sanctioning letter (creating posts) issued by the concerned Administrative Department in this regard with the appointment order/ letter and shall invariably forward copy of the appointment order/ letter to the concerned Treasury Officer along with others. Also, in the appointment order/ letter, date of engagement and date of retirement should be indicated specifically along with others.

I am to request you kindly to take immediate action for regularizing the services of 5892 (Five thousand Eight hundred and ninety two) numbers of work Charged workers and 25,069 (Twenty Five thousand and sixty nine) numbers of Muster Roll workers on the strength of above concurrence of Finance Department.

I am further to add that this regularization process should be completed as early as possible and not later than 3 (three) months from 22.07.2005 as per Decision of the Cabinet.

This issues with the approval of Finance (SIU) Department vide their U.O. No. FSI/110/05, dated 22.08.2005.

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Yours faithfully,

D.N. Saikia

Commissioner & Secretary to the Govt. of Assam,
Finance Department

Memo NO. FEC. (II)1/2005/66-A,

Dated Dispur, the 22nd July, 2005”

18. During the course of proceedings in ***Jitendra Kalita*** (*supra*), the Chief Secretary to Government of Assam filed an affidavit dated 14th November, 2005 informing the Court about the Cabinet decision dated 22nd July, 2005.
19. The Full Bench *vide* order dated 17th May, 2006 passed in ***Jitendra Kalita*** (*supra*) held that the 1995 O.M. did not reflect a valid policy decision of the State for regularization of Work Charged and Muster Roll workers. While the Full Bench did not disturb those who had already been regularized on humanitarian considerations, however, it declared that there would be no further regularization in terms of the 1995 O.M.
20. It is pertinent to note that the Full Bench did not express any opinion regarding the validity or implementation of the State Cabinet decision dated 22nd July, 2005.
21. A subsequent communication dated 22nd August, 2005 issued by the Finance (EC-II) Department and the Office Memorandum dated 31st July, 2010 issued by the Pension and Public Grievances Department would indicate that the State Government created 5,892 Work Charged grade posts and 25,069 Grade-IV posts for Muster Roll workers, and thereafter approximately 30,000 Work Charged and Muster Roll workers were regularized.
22. It needs to be noted that a large number of Work Charged and Muster Roll workers, though placed at par to those persons whose services were regularized pursuant to the Cabinet decision dated 22nd July, 2005, were left out of the regularization process. Such exclusion was primarily attributed to clerical lapses, including errors in the spelling of names and/or inadvertent omission from the lists of eligible workers, which led to the filing of a barrage of writ petitions before the High Court. The core grievance raised in these writ petitions was that, despite engagement prior to the cut-off date of 1st April, 1993 and long and continuous service, in many cases exceeding twenty-five

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years, the benefit of regularization was denied to the employees while it was extended to other similarly placed workers.

23. One such batch of petitions came to be considered by the High Court in W.P. (C) No. 1271 of 2006, titled ***Ramani Deka and Others v. State of Assam and Others***, wherein the petitioners, who were engaged as Work Charged/ Muster Roll workers prior to 1st April, 1993, sought regularization on the strength of the Cabinet decision dated 22nd July, 2005, contending that they had been unjustly excluded despite fulfilling the prescribed criteria.
24. In the course of proceedings in ***Ramani Deka*** (*supra*), the State Government submitted before the High Court that on the basis of information collated from 29 departments, approximately 3,720 Work Charged, Muster Roll and other similarly placed workers engaged prior to 1st April, 1993 were still in service and were eligible for regularization. It was further stated that, after due examination, the State Government would frame a policy for regularization of services of such workers within a period of three months. Accepting the stand taken by the State, the High Court, *vide* order dated 6th September, 2010, directed that consequential action be taken and completed within the stipulated time frame.
25. In a similar writ petition being W.P. (C) No. 24 of 2007, which pertained to regularization of Muster Roll workers, the Chief Secretary to the Government of Assam, during the course of proceedings, filed an affidavit dated 10th December, 2010 in the High Court submitting that the State Government had formulated a draft policy for regularization of services of Work Charged and Muster Roll workers who had been engaged prior to 1st April, 1993 and were left out from the regularization process earlier, by appointing them against posts to be created purely personal to them. The affidavit further stated that similar enabling provisions had been incorporated in the draft policy to extend the benefit of regularization to other categories of temporary workers (other than Work Charged/Muster Roll) who had also been engaged prior to 1st April, 1993.
26. Parallely, in another writ petition being W.P. (C) (Taken up) No. 24 of 2007, wherein the High Court was examining issues relating to prison conditions in the State of Assam, including adequacy of staffing and allied matters, a Division Bench, *vide* order dated 30th July, 2010, directed the State Government to frame a policy for regularization

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of casual workers in terms of the Full Bench decision in ***Jitendra Kalita*** (*supra*). In the aforesaid proceedings, learned Additional Advocate General appearing for the State of Assam submitted that such a policy would be framed within eight weeks. Subsequently, on 1st November, 2010, the learned Additional Advocate General submitted that an undertaking had already been given by the State in the matter of ***Ramani Deka*** (*supra*) to frame a policy within three months. In view of the said undertaking, the Division Bench observed that no further steps were required to be taken pursuant to the order dated 30th July, 2010.

27. When ***Ramani Deka*** (*supra*) was taken up for hearing on 14th December, 2011, it was submitted on behalf of the Finance Department that the matter of regularization was under active consideration in coordination with the Departments of Health, Public Works, Directorate of Zoology and Mining, Water Resources and others, and that the outcome of such deliberations was likely to be favorable to the writ petitioners.
28. However, notwithstanding the aforesaid undertakings given before the High Court, the State thereafter filed a miscellaneous application⁴ in W.P. (C) (Taken up) No. 24 of 2007 seeking leave of the High Court to implement its policy for regularization, contending that the judgment of this Court in ***Secretary, State of Karnataka vs. Umadevi***⁵ had created a legal embargo on such regularization. A Division Bench of the High Court, *vide* order dated 27th March, 2012, declined to grant the said prayer, observing that if the State was unable to regularize casual workers in accordance with the law laid down by the Hon'ble Supreme Court, the High Court could not issue directions to adopt a policy which might be in violation of the said judgment.
29. Immediately following the order dated 27th March, 2012 the Finance (EC-II) Department, Government of Assam issued Office Memorandum dated 16th June, 2012⁶, whereby it was decided that no further regularization of services of Work Charged, Muster Roll or similarly placed workers would be undertaken by the State

4 M.C. No. 597/2012

5 (2006) 4 SCC 1

6 Hereinafter referred to as "2012 O.M."

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Government, even if such workers had been engaged prior to 1st April, 1993 and had rendered continuous service without break. It was further decided that no regularization would be granted by creating *ex post facto* supernumerary posts in respect of those Work Charged or Muster Roll workers who had been engaged prior to 1st April, 1993 but had either died or attained the age of superannuation after rendering continuous and uninterrupted service.

30. Several writ petitions, including those filed by the appellants, assailing the validity of the 2012 O.M. came up for consideration before the learned Single Judge.
31. The learned Single Judge *vide* judgment dated 20th December, 2013 allowed the writ petitions and thereby quashed the 2012 O.M. and resultantly directed regularization along with consequential benefits to the eligible workers whose engagement was prior to 1st April, 1993. Some of the key observations made by learned Single Judge while allowing the writ petitions are summarized hereinbelow:-
 - i. Work-charged and Muster Roll workers constitute a recognised and permissible mode of engagement under the Assam Financial Rules and the PWD Code. Such engagement, though not against sanctioned posts and not intended to be indefinite, cannot *ipso facto* be treated as illegal, void, or *non-est*. It would be an over-simplification to contend that all such engagements were without any authority of law, and therefore cannot be excluded from consideration of regularization merely on the ground that they were outside the regular stream of employment.
 - ii. The Constitution Bench judgment in ***Umadevi*** (*supra*) bars Courts, post 10th April, 2006 (date of judgment in ***Umadevi***), from issuing directions for regularization of temporary, ad-hoc, daily-wage or casual workers, save and except the limited exception carved out in paragraph 53. As explained in ***State of Karnataka & Others v. M.L. Kesari & Others***⁷, employees who had completed ten years of continuous service as on 10th April, 2006 without the protection of interim Court orders and who possessed the requisite qualifications, remain entitled to consideration under a one-time regularization exercise.

⁷ (2010) 9 SCC 247.

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- iii. Prior to the pronouncement in *Umadevi (supra)*, the State of Assam had taken a conscious Cabinet policy decision on 22nd July, 2005 to regularize Work Charged and Muster Roll workers engaged prior to 1st April, 1993. Acting upon this decision, approximately 30,000 similarly situated workers were regularized by creation of equivalent Grade-IV posts. The said Cabinet decision has never been challenged and was not interdicted or nullified by *Umadevi (supra)*.
- iv. The writ petitioners were admittedly covered by the Cabinet decision dated 22nd July, 2005 but were excluded from regularization due to oversight, inadvertence, or clerical lapses on the part of the State. Such workers cannot be made to suffer for the State's failure to conduct the regularization exercise in a full, fair, and comprehensive manner, particularly when identically placed workers were granted the benefit.
- v. Through affidavits and statements made by the Chief Secretary and other senior officers, the State unequivocally undertook before the Court to regularize the services of the left-out eligible workers. Judicial directions were issued on the basis of such undertakings. Thus, the State was bound by these commitments and could not subsequently resile from its position by taking shelter of *Umadevi (supra)* or by issuing the 2012 O.M.
- vi. *Umadevi (supra)* does not denude the executive of its constitutional power to frame and implement a policy decision for regularization. The State's contention that Court's permission was required to implement a Cabinet decision is legally misconceived and amounted to an unwarranted surrender of executive authority.
- vii. Neither *Umadevi (supra)* nor *Jitendra Kalita (supra)* bars the State from granting pension or family pension to long-serving Work Charged/Muster Roll workers who retired or died in harness. The long-standing practice of creating a supernumerary post personal to the incumbent even for one day, solely to confer pensionary and terminal benefits, is statutorily supported by the proviso to Rule 31 of the Assam Services (Pension) Rules, 1969. Pension being a valuable right and a facet of socio-economic justice in a welfare State, denial of such benefit after decades of continuous service is arbitrary, unjust, and constitutionally impermissible.

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32. Accordingly, the learned Single Judge directed the State to take follow-up steps for regularization of eligible Work Charged and Muster Roll workers in terms of the Cabinet decision dated 22nd July, 2005 and the earlier undertakings given to the Court.
33. Aggrieved by the judgment and order dated 20th December, 2013 passed by the learned Single Judge, the State of Assam preferred an intra Court appeal being Writ Appeal No. 45 of 2014, before the Division Bench of the High Court.
34. The Division Bench *vide* impugned judgment dated 8th June, 2017 allowed the writ appeal and set aside the order of the learned Single Judge. Some of the key observations made by the Division Bench in the impugned judgment are summarized hereinbelow:-
 - i. None of the writ petitioners were appointed against, or were working on, duly sanctioned vacant posts. Their engagement as Muster Roll, Work Charged or Casual workers was *de hors* the regular cadre. In view of **Umadevi** (*supra*), regularization is impermissible where employees are not working against sanctioned posts, except within the narrow exception.
 - ii. Exception under paragraph 53 of **Umadevi** (*supra*), as explained in **M.L. Kesari** (*supra*) applies only to irregular and not illegal appointments of duly qualified persons working against sanctioned posts for more than ten years without any Court's protection. Since the writ petitioners were never appointed against sanctioned posts, they did not satisfy the threshold condition for invoking the one-time regularization exception.
 - iii. Although the State had taken a Cabinet decision on 22nd July, 2005 and regularized about 30,000 similarly placed workers, post 10th, April 2006 [date of judgment in **Umadevi** (*supra*)], the State could not continue or extend regularization by creating posts, as that would amount to bypassing the constitutional requirement of public employment. The Cabinet decision could not be enforced contrary to binding constitutional law.
35. The aforesaid judgment and order dated 8th June, 2017 passed by the Division Bench is subject matter of challenge in the present batch of appeals.

Sukhendu Bhattacharjee and Others v. The State of Assam and Others**Submissions on behalf of the appellants**

36. Shri Manish Goswami and Ms. Anitha Shenoy, learned senior counsel representing the appellants strenuously contended that the action of the State in denying regularization to the appellants, despite extending identical benefit to approximately 30,000 similarly placed Work Charged and Muster Roll workers, is manifestly arbitrary and violative of Article 14 of the Constitution. It was contended that admittedly the appellants were engaged prior to 1st April, 1993 and had rendered long and continuous service extending over decades, and were identically placed as those nearly 30,000 workers whose services were regularized pursuant to the Cabinet decision dated 22nd July, 2005. Learned senior counsel urged that the appellants, for no fault of theirs, ought not to be made to suffer for clerical errors, inadvertent omissions, administrative lapses or apathy on the part of the State.
37. Shri Goswami further submitted that the State, having given a clear and unequivocal undertaking before the High Court, could not thereafter be permitted to resile from the same. In the proceedings in ***Ramani Deka*** (*supra*) and connected matters, categorical statements were made on behalf of the State, through the Chief Secretary, that a policy for regularization of eligible Muster Roll and Work Charged workers engaged prior to 1st April, 1993 was under active consideration and would be implemented within a stipulated time frame. Acting on such representations, the High Court issued directions calling for consequential action. It was urged that an undertaking given to a constitutional Court is a binding commitment, and the State cannot subsequently take a contrary stand by citing inapplicable legal dispositions which were pre-existing at the time when the undertaking was furnished. It was further urged that the issuance of the 2012 O.M., seeking to completely rule out any further regularization, was arbitrary and legally unsustainable, as it marked a clear departure from the stand earlier taken by the State before the High Court and had the effect of undermining the very basis on which the judicial directions had been passed. To this extent, the State's action is hit by the principle of approbate and reprobate.
38. Learned senior counsel submitted that the judgment in ***Umadevi*** (*supra*) does not impose an absolute embargo on regularization in all cases. Reliance was placed on paragraph 53 of ***Umadevi*** (*supra*) to

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contend that an exception has been expressly carved out in respect of employees who have rendered long years of continuous service. It was further submitted that the appellants do not seek judicial mandate for regularization contrary to the constitutional scheme, but only seek implementation of an existing executive policy, namely the Cabinet decision dated 22nd July, 2005, which was taken prior to the decision in **Umadevi** (*supra*) and was in fact acted upon by the State in respect of a substantial section of the workforce. The prayer made by the appellants is imbibed in the letter and spirit of Article 14 of the Constitution and the stand of the State Government in opposing such prayer is arbitrary and totally divergent to its own stance in the earlier litigation pertaining to similarly placed employees.

39. Learned senior counsel placed reliance on the judgment of **M.L. Kesari** (*supra*), to submit that the “one-time measure” contemplated in **Umadevi** (*supra*) cannot be treated as exhausted merely because the State undertook a partial or incomplete exercise. It was contended that **M.L. Kesari** (*supra*) clearly held that employees who were otherwise entitled to consideration but were left out due to oversight or administrative reasons do not lose their right to be considered for regularization. According to the learned senior counsel, the State itself had admitted before the High Court that several of eligible workers engaged prior to 1st April, 1993 were left out of the regularization exercise owing to clerical errors in the spelling of names and therefore denial of consideration to the appellants defeats the very object underlying paragraph 53 of **Umadevi** (*supra*)._
40. Further reliance was placed by learned senior counsel on recent judgments of this Court in **Jaggo v. Union of India**⁸, **Shripal v. Nagar Nigam**⁹ and **Dharam Singh v. State of Uttar Pradesh**¹⁰, to contend that the State cannot be permitted to take advantage of its own inaction or failure. It was urged that where workers have been allowed to continue in service for long years and the State has consistently utilized their labour, it would be inequitable and unjust to deny them the benefit of regularization on hyper technical or procedural grounds. It was thus, submitted that long and continuous

8 2024 SCC Online SC 3826.

9 2025 SCC Online SC 221.

10 2025 SCC OnLine SC 1735.

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service under the State is a relevant consideration which cannot be brushed aside mechanically.

41. Based on the aforesaid submissions, learned senior counsel prayed that the instant appeals deserve to be allowed, the impugned judgment and order dated 8th June, 2017 passed by the Division Bench be set aside, and the appellants be granted the benefit of regularization in terms of the Cabinet decision dated 22nd July, 2005, along with all consequential benefits.

Submissions on behalf of the respondents

42. *Per contra*, Shri Jaideep Gupta, learned senior counsel appearing for respondent No.1-State of Assam vehemently and fervently opposed the submissions advanced by the counsel for the appellants and supported the impugned judgment dated 8th June, 2017 passed by the Division Bench to the hilt.
43. Shri Gupta, contended that the appellants, admittedly engaged as Muster Roll/Work Charged/Casual workers, were never appointed against duly sanctioned posts nor were they employed through any selection process recognized by law, and therefore do not acquire any enforceable right to seek regularization. Reliance placed by the appellants on the Cabinet decision dated 22nd July, 2005 was branded to be misconceived, as executive instructions or Cabinet decisions cannot override the constitutional scheme under Articles 14 and 16 of the Constitution, particularly after the authoritative pronouncement of the Constitution Bench in ***Umadevi*** (*supra*).
44. It was submitted that the Constitution Bench in ***Umadevi*** (*supra*) has categorically held that Courts cannot issue directions for regularization of employees appointed *de hors* sanctioned posts or without following the prescribed recruitment procedure, and that any such direction would amount to perpetuating illegality and defeating equality of opportunity in public employment.
45. Learned senior counsel, emphasized that the exception carved out in paragraph 53 of ***Umadevi*** (*supra*) is a narrowly tailored one, applicable only to irregular (and not illegal) appointments of duly qualified persons working against sanctioned vacant posts for ten years or more without the protection of Court orders. According to the State, the appellants' engagement squarely falls in the category

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of illegal appointments, as they were neither appointed against sanctioned posts nor through any recognized process, and hence the exception is wholly inapplicable.

46. Learned senior counsel further submitted that the reliance placed on ***M.L. Kesari (supra)*** is also misplaced. It was contended that ***M.L. Kesari (supra)*** does not dilute or expand the ratio of ***Umadevi (supra)***, but merely clarifies the manner of implementation of paragraph 53 thereof. The benefit of ***M.L. Kesari (supra)*** can accrue only to those workers who otherwise satisfy the foundational requirements laid down in ***Umadevi (supra)***, namely engagement against sanctioned posts and possession of requisite qualifications. In the absence of these essential preconditions, the appellants cannot claim consideration for regularization under the guise of a continuing one-time exercise.
47. On the plea of discrimination and violation of Article 14 of the Constitution, Shri Gupta submitted that the principle of equality is a positive concept and cannot be invoked to perpetuate an illegality. It was submitted that the fact that some similarly placed workers may have been regularized in the past does not confer a legal right on others to claim parity, particularly when such past regularizations cannot be continued in view of the binding dictum of ***Umadevi (supra)***.
48. With respect to the appellants' reliance on undertakings given by the State before the High Court, learned senior counsel submitted that no undertaking contrary to law can bind the State. Any statement or assurance made before the Court must necessarily be read subject to constitutional limitations and binding judicial precedents. Once ***Umadevi (supra)*** had laid down an express prohibition against regularization of employees appointed *de hors* sanctioned posts, the State was legally precluded from implementing any policy or undertaking that would run contrary thereto. The filing of the Miscellaneous Application in 2012 and the subsequent issuance of the 2012 O.M. were thus defended as *bona fide* steps taken by the State to bring its actions in conformity with constitutional mandates, rather than acts of arbitrariness.
49. Learned senior counsel submitted that the judgments of this Court in ***Jaggo (supra)***, ***Shripal (supra)*** and ***Dharam Singh (supra)***, relied by the counsel for the appellants are distinguishable as those decisions were rendered in materially different factual and legal scenarios, where appointments were either traceable to statutory provisions,

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sanctioned posts, or identifiable lapses on the part of the State which were absent in the present case. It was further submitted that none of those judgments dilute the binding force of *Umadevi* (*supra*) or permit regularization of employees appointed illegally and *de hors* the constitutional scheme.

50. Shri Gupta urged that Courts cannot direct the creation of posts, including limited tenure supernumerary posts or the formulation of regularization schemes, as such matters fall squarely within the executive domain and involve policy choices with significant financial and administrative implications. It was further urged that any direction to create posts for the purpose of accommodating the appellants would amount to judicial encroachment into executive functions.
51. Learned senior counsel contended that granting regularization to the appellants would entail a serious and unforeseen financial burden on the State exchequer and, if extended beyond the present appellants, would open the floodgates for similar claims by hundreds of others, thereby unsettling the entire framework of public employment in the State.
52. Shri Gupta fervently urged that the instant appeals do not merit acceptance; the impugned judgment dated 8th June, 2017 be affirmed; and no directions for regularization or consequential benefits be issued in favour of the appellants.

Discussion

53. We have heard and considered the submissions advanced by learned counsel for the parties and have gone through the impugned judgment and the material placed on record.
54. There is no dispute that the appellants had been engaged as Work Charged/Muster Roll workers much prior to 1st April, 1993 and had continuously discharged their duties over a prolonged period of time. Their position is, in no manner, distinguishable from those Work Charged/Muster Roll workers whose services were regularized pursuant to the Cabinet decision dated 22nd July, 2005. The appellants were left out from the exercise of regularization owing to inadvertent mistakes, clerical errors and administrative discrepancies on the part of the State. Hence, the appellants cannot be faulted for denial of the benefits flowing from the aforesaid Cabinet decision under which nearly 30,000 similarly situated workers were regularized. The core

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question, therefore, which arises for consideration is whether, in the aforesaid circumstances, the appellants can be denied the benefit of regularization solely on the ground that they were not appointed against sanctioned posts and that the decision in *Umadevi (supra)* prohibits such regularization.

55. The key reason assigned by the Division Bench in overturning the judgment of the learned Single Judge was that the employees were not appointed against duly sanctioned vacant posts and, therefore, did not satisfy the requirements of the exception carved out in paragraph 53 of *Umadevi (supra)*. The Division Bench held that regularization is permissible only in cases of irregular (and not illegal) appointments of duly qualified persons working against sanctioned vacant posts for ten years or more without the protection of Court orders. Since, according to the State, none of the respondents therein were appointed against sanctioned posts, the benefit of the one-time measure contemplated in *Umadevi (supra)*, and explained in *M.L. Kesari (supra)*, was held to be inapplicable to them.
56. Paragraph 53 of *Umadevi (supra)* would be relevant for consideration of the *lis* and the same is reproduced hereinbelow:-

“53. One aspect needs to be clarified. There may be cases where irregular appointments (not illegal appointments) as explained in *S.V. Narayanappa (supra)*, *R.N. Nanjundappa (supra)*, and *B.N. Nagarajan (supra)*, and referred to in paragraph 15 above, of duly qualified persons in duly sanctioned vacant posts might have been made and the employees have continued to work for ten years or more but without the intervention of orders of Courts or of tribunals. The question of regularization of the services of such employees may have to be considered on merits in the light of the principles settled by this Court in the cases above referred to and in the light of this judgment. **In that context, the Union of India, the State Governments, and their instrumentalities should take steps to regularize as a one time measure, the services of such irregularly appointed, who have worked for ten years or more in duly sanctioned posts but not under cover of orders of the Courts or of tribunals and should further ensure that regular recruitments are undertaken to fill those**

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vacant sanctioned posts that require to be filled up, in cases where temporary employees or daily wagers are being now employed. The process must be set in motion within six months from this date. We also clarify that regularization, if any already made, but not subjudice, need not be reopened based on this judgment, but there should be no further bypassing of the constitutional requirement and regularizing or making permanent, those not duly appointed as per the constitutional scheme.”

(Emphasis supplied)

57. The one-time exception as carved out in paragraph 53 of *Umadevi* (*supra*) was further elaborated and explained in *M.L. Kesari* (*supra*) wherein this Court observed as follows: -

“9. The term ‘one-time measure’ has to be understood in its proper perspective. This would normally mean that after the decision in *Umadevi*, each department or each instrumentality should undertake a one-time exercise and prepare a list of all casual, daily-wage or ad hoc employees who have been working for more than ten years without the intervention of Courts and tribunals and subject them to a process verification as to whether they are working against vacant posts and possess the requisite qualification for the post and if so, regularize their services.

10. At the end of six months from the date of decision in *Umadevi*, cases of several daily-wage/ad-hoc/casual employees were still pending before Courts. Consequently, several departments and instrumentalities did not commence the one-time regularization process. On the other hand, some Government departments or instrumentalities undertook the one-time exercise excluding several employees from consideration either on the ground that their cases were pending in Courts or due to sheer oversight. In such circumstances, the employees who were entitled to be considered in terms of Para 53 of the decision in *Umadevi*, will not lose their right to be considered for regularization,

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merely because the one-time exercise was completed without considering their cases, or because the six month period mentioned in para 53 of *Umadevi* has expired. The one-time exercise should consider all daily-wage/adhoc/those employees who had put in 10 years of continuous service as on 10.4.2006 without availing the protection of any interim orders of Courts or tribunals. If any employer had held the one-time exercise in terms of para 53 of *Umadevi*, but did not consider the cases of some employees who were entitled to the benefit of para 53 of *Umadevi*, the employer concerned should consider their cases also, as a continuation of the one-time exercise. The one time exercise will be concluded only when all the employees who are entitled to be considered in terms of Para 53 of *Umadevi*, are so considered.

11. The object behind the said direction in para 53 of *Umadevi* is two- fold. First is to ensure that those who have put in more than ten years of continuous service without the protection of any interim orders of Courts or tribunals, before the date of decision in *Umadevi* was rendered, are considered for regularization in view of their long service. Second is to ensure that the departments/instrumentalities do not perpetuate the practice of employing persons on daily-wage/ad-hoc/casual for long periods and then periodically regularize them on the ground that they have served for more than ten years, thereby defeating the constitutional or statutory provisions relating to recruitment and appointment. The true effect of the direction is that all persons who have worked for more than ten years as on 10.4.2006 (the date of decision in *Umadevi*) without the protection of any interim order of any Court or tribunal, in vacant posts, possessing the requisite qualification, are entitled to be considered for regularization. The fact that the employer has not undertaken such exercise of regularization within six months of the decision in *Umadevi* or that such exercise was undertaken only in regard to a limited few, will not disentitle such employees, the right to

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be considered for regularization in terms of the above directions in *Umadevi* as a one-time measure.”

(Emphasis supplied)

58. What can be deduced from paragraph 53 of *Umadevi (supra)*, as clarified in *M.L. Kesari (supra)*, is that the Union of India and the State Governments were directed to undertake a one-time exercise to regularize employees who had worked for ten years or more in duly sanctioned posts, without the protection of Court or tribunal orders. This direction was to be implemented after the decision in *Umadevi (supra)*, i.e., after 10th April, 2006. The exception carved out in paragraph 53 was therefore intended to operate prospectively and within the framework laid down therein.
59. In our considered view, the reliance placed by the Division Bench on *Umadevi (supra)* and *M.L. Kesari (supra)* was misplaced in the facts of the present case. Paragraph 53 of *Umadevi (supra)* carved out a limited exception for those employees who had worked for more than ten years in duly sanctioned posts without the protection of Court orders. However, the appellants were not seeking regularization on the basis of that one-time exception. Their claim is rooted in the Cabinet decision dated 22nd July, 2005, by which the State consciously decided to regularize the services of Work Charged and Muster Roll workers engaged prior to 1st April, 1993, and pursuant to which nearly 30,000 similarly situated employees were in fact regularized by creation of posts. The appellants claimed parity with that very class and sought equal treatment under Article 14 of the Constitution. The issue, therefore, is not one of invoking the limited exception carved out in *Umadevi (supra)*, but of ensuring that employees who stand on the same footing are treated alike.
60. It is a settled principle that equals must be treated equally, and if persons similarly placed are treated differently without a rational basis, it would amount to a violation of Article 14 of the Constitution¹¹. If two sets of employees stand on the same footing in terms of date of engagement, nature of duties, length of service and eligibility under a declared policy, the State cannot extend a benefit to one large group and deny it to the smaller group without demonstrating a valid

11 Azam Jahi Mill Workers Association v. National Textile Corporation Ltd., (2022) 17 SCC 797.

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distinction. Equality does not allow selective or partial implementation of a policy. Once a policy decision is taken to benefit a defined class, it must be applied uniformly to all who satisfy the prescribed conditions.

61. In the present case, the State itself framed a policy in 2005 to regularize Work Charged and Muster Roll workers engaged prior to 1st April, 1993. Pursuant to the aforesaid policy decision, approximately 30,000 workers were regularized. The appellants belong to that very category. They were engaged prior to the cut-off date and have rendered long and continuous service in the same manner as those who were regularized. There is no distinguishing feature shown which separates them from the beneficiaries of the 2005 decision. Once the State chose to regularize such a large body of workers forming one identifiable class, it was under a constitutional obligation to treat all eligible members of that class alike. The remaining workers who were left out, though otherwise eligible, cannot be excluded and denied the same benefit. It is crucial to note that the exclusion of the appellants from being granted the benefit of the 2005 decision is not attributable to the appellants but is rather predicated in the actions of the State machinery which, on account of inadvertent errors or clerical mistakes, did not include the appellants in the list of beneficiary covered by the said government decision.
62. Recently, in ***Pawan Kumar and Others v. Union of India and Others***¹² this Court considered a similar situation wherein certain employees had been regularized but others, though similarly placed, were left out. This Court held that such differential treatment was discriminatory and accordingly granted the same relief to the excluded employees.
63. Once the State confers a benefit upon a particular class, it cannot arbitrarily deny the same benefit to others who are identically situated. Applying the principle in the present case, the State, having regularized nearly 30,000 workers under its own policy decision, could not refuse to regularize the remaining eligible workers who stood on the same footing. To do so amounts to treating equals unequally, which is impermissible under Article 14 of the Constitution.
64. The present appeals could have been allowed on the basis of discussion made hereinabove, as the unequal and arbitrary treatment

12 2026 INSC 156.

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meted out to the appellants is apparent on the face of the record. However, the facts and circumstances of the present case necessitate certain observations regarding the manner in which the State has handled the issue of regularization. The way in which assurances were extended, policies were formulated and partially implemented, and thereafter altered, warrants closer scrutiny so as to ensure adherence to the standards of fairness and accountability expected of the State and its instrumentalities.

65. It is not in dispute that nearly 30,000 workers were regularized pursuant to the Cabinet decision dated 22nd July, 2005. However, as noted above, due to administrative lapses and clerical omissions on the part of the State, several eligible workers, including the appellants, were left out of the exercise. This led to the filing of multiple writ petitions before the High Court. In those proceedings, particularly in **Ramani Deka** (*supra*) and connected matters, the State, through affidavits sworn by the Chief Secretary and other senior officers, expressly acknowledged that a substantial number of workers engaged prior to 1st April, 1993 had been left out in the exercise of regularization. The Court was informed that the Government was actively considering their cases and that an appropriate policy would be framed within a stipulated period, with the outcome likely to be in favour of such workers. Acting upon these categorical representations, the High Court passed an order requiring the State to take consequential steps.
66. In this backdrop, the subsequent filing of a Miscellaneous Application seeking nod from the High Court to implement the very policy under consideration, on the ground that the law laid down in **Umadevi** (*supra*) created a legal embargo on such regularization, appears wholly unwarranted. It is not as though the State was unaware of the decision in **Umadevi** (*supra*) at the time it furnished undertakings before the High Court. The judgment in **Umadevi** (*supra*) had already been delivered in April 2006. The undertakings given by the State before the High Court, acknowledging the existence of a large number of left-out workers and committing to frame a policy for their regularization, were furnished much thereafter. This clearly indicates that the State was fully conscious of the decision in **Umadevi** (*supra*) and its implications at the time it made those representations. If the State genuinely apprehended any legal impediment arising from **Umadevi** (*supra*), it ought to have raised such concerns at the first

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instance. Instead, it continued to assure the Court that a policy for regularization of left-out workers was under active consideration. It was only in 2012 that the State sought leave of the Court, citing **Umadevi** (*supra*) as a hurdle. The 2012 O.M. appears to have been designed in a manner that effectively defeats and dilutes the very object and purpose of the Cabinet decision dated 22nd July, 2005. Once the Cabinet had taken a considered decision and acted upon it for a large number of employees, it was incumbent upon the State to act in furtherance thereof fully, and not to introduce measures that undermine or circumvent it. The State which is expected to act as a model employer cannot be permitted to resile from, or seek shelter against its own decisions through subsequent executive decisions. To allow such a course would be contrary to principles of administrative fairness, consistency, and good governance.

67. The conduct of the State must also be examined in light of its status as a model employer. The State is under a higher constitutional obligation to ensure that its actions are just, reasonable and non-arbitrary. Recently, this Court in **Bhola Nath v. State of Jharkhand and Others**¹³ reiterated that the State, as a model employer, bears a heightened constitutional obligation in the discharge of its functions. It must act with probity, fairness and candour, and cannot cloud the disputes involving its employees under narrow technical grounds divorced from their broader constitutional context. A model employer is expected to uphold the dignity of its employees more so who are at the lowest pedestal of the hierarchy and to avoid exploiting their vulnerability or precarious position. This obligation flows directly from the Constitution and is not discretionary. Constantly giving undertakings before a constitutional Court and thereafter resiling from them does not comport with the standards expected of a model employer. An undertaking recorded by a Court is not a casual statement, but is a solemn representation on the basis of which judicial orders are passed. The State cannot approbate and reprobate. It cannot, on the one hand, secure time and indulgence from the Court on the assurance that a policy will be implemented and, on the other, avoid implementation by citing precedents that were already in existence at the time the undertakings were furnished.

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68. The repeated undertakings given by the State before the High Court, coupled with the earlier implementation of the Cabinet decision in favour of nearly 30,000 similarly situated workers, clearly gave rise to a legitimate expectation in the minds of the appellants who were deprived of the benefits of the policy. In the maze of administrative deficiencies, they were entitled to expect that the policy decision would be implemented in a fair, complete and non-discriminatory manner, and that their cases would also be considered as part of the same exercise. Though legitimate expectation does not create a vested right, it is firmly rooted in the principles of fairness and non-arbitrariness that flows from Article 14 of the Constitution.
69. A three-judge bench of this Court in ***National Buildings Construction Corporation v. S. Raghunathan***¹⁴ explained the doctrine of legitimate expectation in the following terms:-

“The doctrine of “legitimate expectation” has its genesis in the field of administrative law. **The Government and its departments, in administering the affairs of the country, are expected to honour their statements of policy or intention and treat the citizens with full personal consideration without any iota of abuse of discretion. The policy statements cannot be disregarded unfairly or applied selectively. Unfairness in the form of unreasonableness is akin to violation of natural justice. It was in this context that the doctrine of “legitimate expectation” was evolved which has today become a source of substantive as well as procedural rights.** But claims based on “legitimate expectation” have been held to require reliance on representations and resulting detriment to the claimant in the same way as claims based on promissory estoppel.”

(Emphasis supplied)

70. The principle laid down in the aforesaid decision applies to the present case as well. The State’s own policy decision and subsequent undertakings before the High Court constituted clear representations that the cases of the left-out workers would be duly considered. The

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State could not thereafter retract from its earlier position in a selective or inconsistent manner.

71. Even otherwise, as correctly observed by the learned Single Judge, there was no requirement for the State to seek permission of the Court to implement its own policy decision. The Full Bench in ***Jitendra Kalita*** (*supra*) had itself observed that any solution to the issue of regularization must be undertaken by the State as a policy measure. Regularization, where permissible in law, is an executive function. It falls within the domain of policy and administration. Courts do not grant prior approval to executive decisions. The role of the Court is confined to judicial review, that is, to examine whether a policy or action is constitutionally valid, fair and reasonable. It is not for the Court to authorise the executive to exercise powers which already vest in it.
72. We find merit in the observation of the learned Single Judge that seeking permission in the manner done by the State amounted, in effect, to a surrender of its executive authority. The executive cannot abdicate its responsibility by placing the burden upon the Court to approve or disapprove the implementation of its own policy. Once a Cabinet decision had been taken and implemented in major proportions, and once undertakings had been given before a constitutional Court, the State was expected to act in furtherance of its intent expressly declared in the policy, subject of course to constitutional confines. The course adopted by the State, in the facts of the present case, was neither necessary nor justified.
73. As regards the contention of Shri Gupta that after the decision in ***Umadevi*** (*supra*) no regularization can be effected in respect of employees who were not appointed against duly sanctioned posts, we are unable to accept such a sweeping proposition in the facts of the present case. The submission proceeds on the premise that ***Umadevi*** (*supra*) lays down an absolute and inflexible embargo against all forms of regularization irrespective of the surrounding circumstances. Such an interpretation, in our considered view, does not reflect the true scope and ratio of the decision.
74. This Court in ***Jaggo*** (*supra*), deprecated the tendency of the State to take mechanical shelter under ***Umadevi*** (*supra*) to deny relief to employees who had been performing work of a permanent and essential nature for long years. This Court observed as follows: -

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“12. Despite being labelled as “part-time workers,” the appellants performed these essential tasks on a daily and continuous basis over extensive periods, ranging from over a decade to nearly two decades. Their engagement was not sporadic or temporary in nature; instead, it was recurrent, regular, and akin to the responsibilities typically associated with sanctioned posts. Moreover, the respondents did not engage any other personnel for these tasks during the appellants’ tenure, underscoring the indispensable nature of their work.

13. The claim by the respondents that these were not regular posts lacks merit, as the nature of the work performed by the appellants was perennial and fundamental to the functioning of the offices. The recurring nature of these duties necessitates their classification as regular posts, irrespective of how their initial engagements were labelled. It is also noteworthy that subsequent outsourcing of these same tasks to private agencies after the appellants’ termination demonstrates the inherent need for these services. This act of outsourcing, which effectively replaced one set of workers with another, further underscores that the work in question was neither temporary nor occasional.

19. It is evident from the foregoing that the appellants’ roles were not only essential but also indistinguishable from those of regular employees. Their sustained contributions over extended periods, coupled with absence of any adverse record, warrant equitable treatment and regularization of their services. Denial of this benefit, followed by their arbitrary termination, amounts to manifest injustice and must be rectified.

20. It is well established that the decision in Uma Devi (supra) does not intend to penalize employees who have rendered long years of service fulfilling ongoing and necessary functions of the State or its instrumentalities. The said judgment sought to prevent backdoor entries and illegal appointments that circumvent constitutional requirements. However, where appointments were not

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illegal but possibly “irregular,” and where employees had served continuously against the backdrop of sanctioned functions for a considerable period, the need for a fair and humane resolution becomes paramount. Prolonged, continuous, and unblemished service performing tasks inherently required on a regular basis can, over the time, transform what was initially ad-hoc or temporary into a scenario demanding fair regularization. In a recent judgment of this Court in *Vinod Kumar v. Union of India*, it was held that procedural formalities cannot be used to deny regularization of service to an employee whose appointment was termed “temporary” but has performed the same duties as performed by the regular employee over a considerable period in the capacity of the regular employee.

22. The pervasive misuse of temporary employment contracts, as exemplified in this case, reflects a broader systemic issue that adversely affects workers’ rights and job security. In the private sector, the rise of the gig economy has led to an increase in precarious employment arrangements, often characterized by lack of benefits, job security, and fair treatment. Such practices have been criticized for exploiting workers and undermining labour standards. Government institutions, entrusted with upholding the principles of fairness and justice, bear an even greater responsibility to avoid such exploitative employment practices. **When public sector entities engage in misuse of temporary contracts, it not only mirrors the detrimental trends observed in the gig economy but also sets a concerning precedent that can erode public trust in governmental operations.**

25. It is a disconcerting reality that temporary employees, particularly in government institutions, often face multifaceted forms of exploitation. While the foundational purpose of temporary contracts may have been to address short-term or seasonal needs, they have increasingly become a mechanism to evade long-term obligations owed to employees. These practices manifest in several ways:

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- **Misuse of “Temporary” Labels:** Employees engaged for work that is essential, recurring, and integral to the functioning of an institution are often labeled as “temporary” or “contractual,” even when their roles mirror those of regular employees. Such misclassification deprives workers of the dignity, security, and benefits that regular employees are entitled to, despite performing identical tasks.
- **Arbitrary Termination:** Temporary employees are frequently dismissed without cause or notice, as seen in the present case. This practice undermines the principles of natural justice and subjects workers to a state of constant insecurity, regardless of the quality or duration of their service. • **Lack of Career Progression:** Temporary employees often find themselves excluded from opportunities for skill development, promotions, or incremental pay raises. They remain stagnant in their roles, creating a systemic disparity between them and their regular counterparts, despite their contributions being equally significant.
- **Using Outsourcing as a Shield:** Institutions increasingly resort to outsourcing roles performed by temporary employees, effectively replacing one set of exploited workers with another. This practice not only perpetuates exploitation but also demonstrates a deliberate effort to bypass the obligation to offer regular employment.
- **Denial of Basic Rights and Benefits:** Temporary employees are often denied fundamental benefits such as pension, provident fund, health insurance, and paid leave, even when their tenure spans decades. This lack of social security subjects them and their families to undue hardship, especially in cases of illness, retirement, or unforeseen circumstances.

26. While the judgment in Uma Devi (supra) sought to curtail the practice of backdoor entries and ensure appointments adhered to constitutional principles, it is

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regrettable that its principles are often misinterpreted or misapplied to deny legitimate claims of long-serving employees. This judgment aimed to distinguish between “illegal” and “irregular” appointments. It categorically held that employees in irregular appointments, who were engaged in duly sanctioned posts and had served continuously for more than ten years, should be considered for regularization as a one-time measure. However, the laudable intent of the judgment is being subverted when institutions rely on its dicta to indiscriminately reject the claims of employees, even in cases where their appointments are not illegal, but merely lack adherence to procedural formalities. Government departments often cite the judgment in *Uma Devi* (supra) to argue that no vested right to regularization exists for temporary employees, overlooking the judgment’s explicit acknowledgment of cases where regularization is appropriate. This selective application distorts the judgment’s spirit and purpose, effectively weaponizing it against employees who have rendered indispensable services over decades.

27. In light of these considerations, in our opinion, it is imperative for government departments to lead by example in providing fair and stable employment. Engaging workers on a temporary basis for extended periods, especially when their roles are integral to the organization’s functioning, not only contravenes international labour standards but also exposes the organization to legal challenges and undermines employee morale. By ensuring fair employment practices, government institutions can reduce the burden of unnecessary litigation, promote job security, and uphold the principles of justice and fairness that they are meant to embody. This approach aligns with international standards and sets a positive precedent for the private sector to follow, thereby contributing to the overall betterment of labour practices in the country.

(Emphasis supplied)

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75. Recently, this Court in ***Bhola Nath*** (*supra*) while relying on the judgment of ***Jaggo*** (*supra*), ***Shripal*** (*supra*), and ***Dharam Singh*** (*supra*) observed as follows:-

“13.6. This Court has, on several occasions, deprecated the practice adopted by States of engaging employees under the nominal labels of “part-time”, “contractual” or “temporary” in perpetuity and thereby exploiting them by not regularizing their positions. In ***Jaggo v. Union of India***, this Court underscored that government departments must lead by example in ensuring fair and stable employment, and evolved the test of examining whether the duties performed by such temporary employees are integral to the day-to-day functioning of the organization.

13.7 In ***Shripal v. Nagar Nigam***, and ***Vinod Kumar v. Union of India***, this Court cautioned against a mechanical and blind reliance on ***Umadevi*** (*supra*) to deny regularization to temporary employees in the absence of statutory rules. It was held that *Umadevi* (*supra*) cannot be employed as a shield to legitimise exploitative engagements continued for years without undertaking regular recruitment. The Court further clarified that ***Umadevi*** itself draws a distinction between appointments that are “illegal” and those that are merely “irregular”, the latter being amenable to regularization upon fulfilment of the prescribed conditions.

13.8. In ***Dharam Singh v. State of U.P.***, this Court strongly deprecated the culture of “ad-hocism” adopted by States in their capacity as employers. The Court criticised the practice of outsourcing or informalizing recruitment as a means to evade regular employment obligations, observing that such measures perpetuate precarious working conditions while circumventing fair and lawful engagement practices.

13.9. The State must remain conscious that part-time employees, such as the appellants, constitute an integral part of the edifice upon which the machinery of the State continues to function. They are not

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merely ancillary to the system, but form essential components thereof. The equality mandate of our Constitution, therefore, requires that their service be reciprocated in a manner free from arbitrariness, ensuring that decisions of the State affecting the careers and livelihood of such part-time and contractual employees are guided by fairness and reason.”

(Emphasis supplied)

76. What emerges from the principles enunciated in the aforesaid decisions is that the State cannot rely upon the mere form of engagement to deny fair and equitable treatment to employees who have served it for long years. The consistent thread running through these judgments is that *Umadevi* (*supra*) cannot be invoked as a blanket barrier to justify prolonged and continued engagements of a temporary or ad hoc nature, especially where the employees have been discharging essential and recurring functions of the State. The Court has repeatedly emphasised that the distinction between “illegal” and “irregular” appointments must be kept in view, that long and continuous service is a relevant consideration, and that the State, as a model employer, is under a constitutional obligation to act with fairness, consistency and reasonableness. The practice of retaining employees for decades under deceptively titled designations, while simultaneously extracting regular work integral to the administration, has been disapproved consistently.
77. Applying these principles to the present case, it is evident that engaging workers on muster rolls was a consistently employed policy of the State which continued for prolonged period of time. The appellants were not engaged for sporadic or seasonal purposes but were taken on muster rolls and have rendered continuous service for decades in departments performing regular governmental functions. The State itself acknowledged the magnitude of the issue and framed a Cabinet policy to regularize similarly situated workers, acting upon it in respect of nearly 30,000 employees. In such circumstances, to deny consideration to the fraction of remaining eligible workers including the appellants, by taking shelter under a rigid reading of *Umadevi* (*supra*) would defeat the very principles of fairness and non-arbitrariness that this Court has consistently upheld.

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78. In the aforesaid backdrop, we are unable to accept the contention of the State that the appellants cannot be granted regularization on the ground that they were not initially appointed against duly sanctioned posts. The State, having engaged the appellants prior to 1st April, 1993, utilised their services continuously for decades, and having itself framed and implemented a Cabinet policy regularizing nearly 30,000 similarly situated workers, cannot now exclude the appellants by taking shelter behind a rigid or technical reading of *Umadevi (supra)*. In absence of any cogent distinction or reasoned decision justifying such exclusion, the action of the State is manifestly arbitrary. It is inconsistent with its obligation to function as a model employer and does not withstand scrutiny under Article 14 of the Constitution.

Conclusion

79. In view of the discussion made hereinabove, the impugned judgment dated 8th June, 2017 passed by the Division Bench cannot be sustained and is set aside and the judgment of the learned Single Judge dated 20th December, 2013 is affirmed.

Consequently, we pass the following directions:-

- I. The appellants shall be treated as regularised in service in terms of the Cabinet decision dated 22nd July, 2005 and from the date on which similarly placed 30,000 employees were given benefit of the said Cabinet decision.
- II. The State of Assam shall identify and verify the eligible appellants and, where necessary, create supernumerary posts to facilitate their regularization.
- III. Upon regularization, the appellants shall be entitled to all consequential benefits, including fixation of pay in the regular scale, continuity of service, and all applicable pensionary and post-retiral benefits in the same terms, as were extended to similarly situated 30,000 employees.
- IV. In case of retired appellants, they shall be granted notional regularization with consequential monetary benefits and arrears from the relevant date until their superannuation for the purpose of recalculating pension, gratuity, and terminal dues.
- V. In case of deceased appellants, arrears and other benefits shall be released to their legal heirs in accordance with law.

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- VI. The entire exercise, including the calculation and payment of all financial arrears, shall be completed within a period of one year from the date of this judgment.
- VII. We make it clear that the benefit of the above directions shall only be applicable to the appellants who were working in the departments of the State before the cut-off date prescribed in Cabinet decision dated 22nd July, 2005 *i.e.* before 1st April, 1993.
80. The appeals are allowed accordingly. No order as to costs.
81. Pending application(s), if any, shall stand disposed of.

Civil Appeal No. 4519 of 2025; Civil Appeal No. 4520 of 2025

82. The instant appeals have been preferred by All Assam Work Charge Employee Association¹⁵, a registered State-wide association representing the interests of Work Charged employees serving under various departments of the Government of Assam, assailing the judgment and order dated 8th June, 2017 passed by the Division Bench of the High Court in Writ Appeal No. 45 of 2014 whereby the Division Bench set aside the judgment and order dated 20th December, 2013 passed by the learned Single Judge, and reversed the direction of regularization, pensionary and other benefits passed in favour of Work Charged and Muster Roll employees.
83. The appellant-association is aggrieved by the impugned judgment to the limited extent that the Division Bench, while adjudicating upon the claims of Muster Roll and Casual workers, proceeded to treat Work Charged employees as forming part of the same class as Muster Roll workers and thereby foreclosed their entitlement to pension and other consequential benefits, without independently examining their distinct factual and legal position, and without the appellant-association or its members having been impleaded as parties or afforded an opportunity of being heard before the High Court. In particular, the appellants are aggrieved by the observations made by the Division Bench in paragraph 23 of the impugned judgment, which read as follows:-

“For these reasons, we are of the view that in the fact situation of the case, Muster Roll workers, **Work**

15 Hereinafter, referred to as “appellant-association”.

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Charged workers and Casual workers are not entitled for regularization of their services **with consequential benefits, such as, pension etc.**”

84. Aggrieved by the adverse findings recorded in the impugned judgment, the appellant-association preferred Review Petition No. 150 of 2019 before the High Court seeking reconsideration of the observations contained in the impugned judgment, particularly to the extent the same affected the rights of Work Charged employees who were not party to the proceedings. However, in view of the pendency of special leave petitions before this Court assailing the same impugned judgment, the High Court, *vide* order dated 27th July, 2023, permitted the appellant-association to withdraw the review petition. Thereafter, the appellant-association approached this Court by filing the present special leave petition along with an application for permission to file which was granted by this Court *vide* order dated 1st December, 2023.

Submissions

85. Shri Manish Goswami and Ms. Anitha Shenoy, learned senior counsel appearing for the appellant-association submitted that the appellant-association and its members were never impleaded as parties in the writ proceedings before the High Court which culminated in the impugned judgment, and consequently had no opportunity to present their case, particularly in relation to their entitlement to pension and other post-retiral benefits. It was submitted that the observations made in paragraph 23 of the impugned judgment, insofar as they relate to Work Charged employees, were rendered without hearing the affected class and without examining their distinct factual and legal position.
86. Learned senior counsel submitted that the claim of the Work Charged employees for pension and other post retiral benefits is based upon Office Memoranda issued by the Government of Assam, including O.M. No. FMP.48/83/40 dated 10th August, 1983; O.M. No PPG(P)196/92/35 dated 12th September, 1996; and O.M. No PPG(P) 196/92/61 dated and 6th September, 2003, which continue to remain in force and provide for grant of pensionary benefits to temporary Government employees who have rendered the prescribed period of continuous service. It was urged that these Office Memoranda were neither placed before nor considered by the High Court while rendering

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the impugned judgment. It was further urged that Work Charged employees are governed by applicable service rules and protections, including the Assam Services (Discipline and Appeal) Rules, 1964, Fundamental Rules and Supplementary Rules, and are extended service benefits such as grade pay, allowances, maintenance of service records, and deductions towards GPF and GIS.

87. Learned senior counsel contended that Work Charged employees constitute a distinct class of Government employees, and the High Court erred in treating them at par with Muster Roll and Casual workers without examining their separate legal status. It was submitted that the appellant-association seeks only a limited clarification that the observations contained in paragraph 23 of the impugned judgment shall not foreclose the independent remedies and entitlements of Work Charged employees under applicable rules and executive instructions.
88. Accordingly, learned senior counsel prayed that the impugned judgment be modified to the aforesaid limited extent, so as to permit Work Charged employees to pursue their claims for pension and other consequential benefits in accordance with law.
89. *Per contra*, Shri Jaideep Gupta, learned senior counsel appearing on behalf of the State of Assam submitted that the present appeals are not maintainable at the instance of the appellant-association as it had failed to disclose the identity, service particulars, or other relevant details of its alleged members, and in the absence of such foundational material, the claims made in the present proceedings remain unverified and unsubstantiated. Shri Gupta further submitted that the appellant-association was never a party to the writ proceedings before the High Court and had not independently instituted any writ petition raising its grievances. The issues and factual assertions now sought to be urged have not been adjudicated by any Court and without the benefit of pleadings or findings of the writ Court, the present appeals cannot be adjudicated for the first time in proceedings under Article 136 of the Constitution.
90. Learned senior counsel contended that no blanket directions or observations should be issued at the instance of the appellant-association, as the same would cause serious administrative and financial prejudice to the State. Accordingly, learned senior counsel prayed that the present appeals be dismissed and the impugned judgment be affirmed.

Sukhendu Bhattacharjee and Others v. The State of Assam and Others**Discussion**

91. Having heard learned senior counsel appearing for the parties and upon perusal of the material placed on record, it is evident that the grievance of the appellant–association is confined to a limited facet of the impugned judgment dated 8th June 2017 passed by the Division Bench of the High Court, insofar as it treats Work Charged employees at par with Muster Roll and Casual workers, without an independent examination of their distinct legal and factual status.
92. We may note that we have already set aside the impugned judgment in entirety while adjudicating the appeals of the Muster Roll and Casual workers in Civil Appeal No. 4514 of 2025.
93. It is not in dispute that neither the appellant–association nor its members were impleaded as parties in the writ proceedings culminating in the impugned judgment. Consequently, the Work Charged employees neither individually nor in representative capacity had an opportunity of being heard, particularly on the issue of their entitlement to pensionary and other consequential benefits. The observations made in paragraph 23 of the impugned judgment, to the extent they pertain to Work Charged employees were, thus, recorded without affording an opportunity to the affected class and without consideration of the relevant Office Memoranda and applicable service framework governing such employees.
94. Further, it is pertinent to note that there was no independent adjudication before the High Court concerning the distinct claims and service conditions of Work Charged employees and despite the absence of any specific pleadings or consideration on the issue, adverse observations came to be recorded against them.
95. In this backdrop and having regard to the settled principle that no adverse finding ought to be recorded against a class of persons without hearing them, more particularly when the *lis* affects the monetary rights of the group of employees, this Court is of the considered view that the impugned judgment, to the limited extent indicated above, cannot be sustained. We may reiterate that the impugned judgment dated 8th June 2017 passed by the Division Bench has already been set aside in Civil Appeal No. 4514 of 2025 and hence the observations contained therein shall not operate to prejudice or foreclose the independent claims of Work Charged employees, if any.

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Conclusion

96. Accordingly, it is clarified that Work Charged employees shall be treated as a distinct class, and their entitlement to pension and other post-retiral benefits shall not be adversely affected by the observations made in the impugned judgment.
97. The members of the appellant–association, if they so desire, shall be at liberty to agitate their claims for pensionary and other consequential benefits before the State Government. However, this order shall not be treated as conferring any specific right or entitlement on any such employee.
98. The appeals are disposed of accordingly. No order as to costs.
99. Pending application(s), if any, shall stand disposed of.

Civil Appeal No. 4523 of 2025

100. The instant appeal has been preferred assailing order dated 19th June, 2024 passed by the Division Bench of the High Court in Writ Appeal No. 197 of 2024 whereby the Division Bench, dismissed the writ appeal and affirmed the order dated 10th May, 2024 passed by the learned Single Judge holding the appellants ineligible for pensionary benefits.
101. The appellants herein are Muster Roll workers serving in different ferry services under the office of the Executive Engineer, IWT, Silchar, having been appointed between the years 1993 and 1995. They have been paid grade pay, dearness allowance, medical allowance and other service benefits in a manner similar to regular employees, but pensionary benefits have not been extended to them. In a meeting dated 22nd September, 2023 between the State authorities and the Sadou Assam Karmachari Parishad, it was resolved that a proposal for extending pensionary benefits to Muster Roll employees would be submitted by the Administrative Department to the Finance Department. However, no proposal including the names of the appellants were forwarded. The appellants submitted representations dated 8th January, 2024 and 22nd February, 2024, however, the same remained unanswered.
102. Aggrieved thereby, the appellants filed Writ Petition No. 1946 of 2024 seeking a direction to the administrative department to place the proposal before the Finance Department in terms of the decision

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taken on 22nd September, 2023. During the pendency of the writ petition, another meeting was held on 15th March, 2024, wherein it was decided that the State would favourably examine the case of casual, Muster Roll and minimum pay scale employees for coverage under the New Pension Scheme, subject to their willingness to contribute the prescribed premium. Notwithstanding these developments, the High Court dismissed the writ petition *vide* order dated 10th May, 2024 on the ground that the issue stood concluded by an earlier Division Bench decision in ***State of Assam v. Upen Das***¹⁶ (impugned judgment in Civil Appeal No. 4514 of 2025 and Civil Appeal No. 4519 of 2020), and consequently held that the appellants were not entitled to pensionary benefits.

103. The appellants preferred a writ appeal against the order of the learned Single Judge, which also came to be dismissed *vide* order dated 19th June, 2024, which is the subject matter of challenge in the present appeal.
104. Since the judgment dated 8th June, 2017 passed in ***Upen Das*** (*supra*), which was relied by the Division Bench has been set aside in Civil Appeal No. 4514 of 2025, the impugned judgment dated 19th June, 2024 cannot be sustained and is accordingly set aside.
105. The appellants shall be at liberty to agitate their claims for pensionary benefits before the appropriate authority/forum in accordance with law and the applicable policy framework.
106. The appeal is disposed of accordingly.
107. Pending applications, if any, shall stand disposed of.

Result of the case: Civil Appeal No(s). 4514, 4516, 4515, 4517 and 4518 of 2025, allowed; Civil Appeal No(s). 4519, 4520 and 4523 of 2025, disposed of.

[†]*Headnotes prepared by:* Divya Pandey

Papan Sarkar @ Pranab

v.

State of West Bengal

(Criminal Appeal No. 2507 of 2026)

22 May 2026

[Sanjay Kumar and K. Vinod Chandran,* JJ.]

Issue for Consideration

Whether the order of conviction by the Trial Court, affirmed by the High Court, based on the circumstances of the last seen together theory, extra-judicial confession, recovery of the objects used as weapons and a motorbike, seizures from the place of occurrence, oral testimonies and the serological report, ought to be reversed.

Headnotes[†]

Circumstantial Evidence – Complete chain of circumstances, when not established – Trial court found from the last seen together theory, extra-judicial confession, recovery of the objects used as weapons and a motorbike, the seizures carried out and the serology report, that a complete chain of circumstances was established to convict the accused persons with the crime of premeditated murder – Conviction confirmed by High Court – Interference with:

Held: What assumes significance in placing reliance on the last seen together theory is the gap between the time the accused and the deceased were seen together and the death having occurred – The proximity of the death having occurred within a short time after the accused and the deceased were seen together is most relevant, for the said fact to be taken as an incriminating circumstance against the accused – When the time gap is large then there could be intervening circumstances, which snaps the link and prevents an adverse inference against the accused merely for the reason that the accused does not put forth an explanation as to when he parted company with the deceased – In the present case, the time frame being quite large to term death as proximate, there can be no conviction based on the last seen together theory – Further, the exculpatory statement made by an accused absolving himself

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and accusing the co-accused, by its very nature is unreliable – It cannot be put against the other accused, for no cross examination being provided to them, of the one who made that statement – It cannot also incriminate the person who made the statement since there is no element of confession in the recital as spoken of by three witnesses, as against one – Extra-judicial confession by its very nature being a weak piece of evidence has not at all been proved in the present case – In any event, the statement is made when the two accused were detained by a mob, on the accusation of murder – Obviously, there is considerable pressure put on the detained persons, who could have spoken, on undue duress or under threat of violence – In fact, the records indicate that after arrest, when A1&2 were taken for medical examination, they had injuries on their body, which again cuts at the root of credibility of the statement made; which anyway has doubtful standing as a confession – Also, the recoveries are of no avail and do not form a clinching incriminating circumstance against the accused – Furthermore, the absence of motive, especially when the murder was brutal, is yet another aspect raising a reasonable doubt – In the totality of the circumstances, each having been examined, none of those projected having qualified as incriminating, links the accused to the murder – Order of conviction by the Trial Court and affirmed by the High Court, reversed. [Paras 6, 7, 10, 11, 17, 18]

Circumstantial Evidence – Evidence Act, 1872 – s.27 – Recoveries made, when do not qualify to be one u/s.27 – Recoveries, when do not form clinching incriminating circumstance – Recoveries made allegedly with the aid of the accused- the dead body was found in a field, an open space with free access to anybody; stone and glass piece are said to have been recovered from the place of occurrence itself, albeit with the aid of the accused:

Held: There are serious doubts about the recoveries having the status of a recovery u/s.27, Evidence Act, but it is assumed to be so – A stone, weighing 1-1.5 kg and a glass piece were said to have been recovered, on the showing of the accused, specifically A1 and A2 – The seizure list as seen from the records does not indicate the specific place from which it was recovered other than stating that it is ‘from the PO at the paddy land of JR’ – The State

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argued that though the paddy field had free access, it was thick with stalks and there could definitely be a concealment; the growth not borne out from the evidence – Though, it is not doubted that there could be concealment even in a public place or in a field with thick vegetation, but there is no statement recorded from the accused as to such a concealment having been effected and then the police having been led to the location and the material object recovered from the place of concealment – Recital in the seizure list is only that ‘on being shown and certified by accused 1 and 2’ – Concealment and its knowledge, revealed from the statement of the accused, is the crucial ingredient of s.27 which can lead to that being used in a criminal trial, any other confession to a police officer being excluded as self-incriminating – Moreover, recovery has no clarity and more importantly the accused pointing out the concealed objects or even their presence at the time was not deposed to by PW5 – There was no statement taken of the accused of a concealment and the recoveries made do not qualify to be one u/s.27 – The stains on the stone found at the place of occurrence and the serology report of it being human blood, hence, is of no consequence – More pertinently, the alleged weapons of assault were not shown to the Doctor to elicit his opinion as to whether the said objects could have caused the injuries found on the dead body – The recoveries are of no avail and do not form a clinching incriminating circumstance against the accused – The discrepancy noticed insofar as the recovery of the alleged weapons of assault, equally applies in the case of the seizure of the motorcycle also – Also, the motorcycle though handed over to PW1 on challan, the same was not produced before Court nor was its registration details proffered to indicate that it belongs to the deceased or PW1, as is the version of PW1 – PW1 was also not asked about the recovery of the motorcycle and handing over by the police. [Paras 12, 14-16]

Case Law Cited

State of Goa v. Sanjay Thakran and Another [2007] 3 SCR 507 : (2007) 3 SCC 755 – relied on.

List of Acts

Evidence Act, 1872.

Papan Sarkar @ Pranab v. State of West Bengal**List of Keywords**

Murder; Complete chain of circumstances not established; No incriminating circumstance; Premeditated murder; Brutal murder; Absence of motive; Reasonable doubt; Testimony does not inspire confidence; Accused not linked to the murder; Last seen together theory; No conviction on last seen together theory; Conviction cannot be based on last seen together theory; Large time gap; Time gap is large; Gap between the time the accused and the deceased were seen together; Intervening circumstances; Extra-judicial confession; Extra-judicial confession not proved; Weak piece of evidence; Recoveries of no avail; Recoveries do not form clinching incriminating circumstance; Discrepancy in recovery of alleged weapons of assault; Discrepancy in seizure of motorcycle; Recovery of motorcycle; Alleged weapons of assault; Recovery of objects; Seizures from place of occurrence; Serology report; Serological report; Human blood; Proximity of death; Incriminating circumstance; Postmortem report; Exculpatory statement unreliable; Accused absolving himself and accusing the co-accused; Accused detained by a mob; Statement made under undue duress; Pressure on the detained persons; Threat of violence; Concealment in a public place; Concealment in a field with thick vegetation; Concealment and its knowledge; Stains on the stone found; Absence of motive; Blood stains on the stone; Large time frame; Death not proximate; Order of conviction reversed.

Case Arising From

CRIMINAL APPELLATE JURISDICTION: Criminal Appeal No. 2507 of 2026

From the Judgment and Order dated 15.09.2025 of the High Court at Calcutta in CRA No. 8 of 2016.

With

Criminal Appeal No. 2508 of 2026

Appearances for Parties

Advs. for the Appellant(s):

Ms. Ashima Mandla, Ms. Mandakini Singh, Ayush Shrivastava.

Advs. for the Respondent(s):

Ms. Shraddha Chirania, Kunal Mimani.

Supreme Court Reports**Judgment / Order of the Supreme Court****Judgment****K. Vinod Chandran, J.**

The son of the *de-facto* complainant found missing from the evening of 31.10.2012, turned up dead on the next day in a field, head down with the legs sticking up from a ditch. His three companions of the previous day found drinking and roaming around were rounded up and arrayed as accused. The prosecution went to trial with the circumstances of the last seen together theory, extra-judicial confession, recovery of the objects used as weapons & a motorbike, seizures from the place of occurrence, oral testimonies and the serological report. The trial court convicted the accused and sentenced them, which was confirmed by the High Court. Two out of the three accused are before us in appeal i.e. the first and second accused, the third having not filed an appeal.

2. We have heard Ms. Ashima Mandla, learned Counsel appearing for the appellant and Ms. Shraddha Chirania, learned Counsel appearing for the respondent who also filed written notes of submissions.
3. Before the trial court, sixteen witnesses were examined and 40 exhibits were marked, which included documents. The trial court found from the last seen together theory, extra-judicial confession; both spoken of by more than one witness, testimony of PW-4 who spoke of A3 having come to her house on the very same night, the recovery of the objects used as weapons, the seizures carried out and the serology report, that a complete chain of circumstances was established to nail the accused with the crime of premeditated murder. The multiple depositions regarding the last seen together theory and the extra-judicial confessions corroborated each other. So did the extra-judicial confession of the murder having been committed in a field, corroborated by the recovery of the body from the field and the detection of alcohol in the stomach, corroborated the testimony of the deceased having been found drinking with the accused. The High Court too listed out the above circumstances to convict the accused.
4. We have to examine each of the circumstances as pointed out by the trial court and affirmed by the High Court. In the present appeal,

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PW1 is the *de-facto* complainant, the father of the deceased. The FIS was taken down as recited by PW1, by PW2. It was the testimony of PW1 that on the evening of 30.10.2012 at around 4 PM, the three accused came on a motorbike and his son accompanied them on another motorbike, belonging to PW1. When his son did not reach home by 8 o'Clock, he searched for him along with PW3 and PW8. He also spoke of PW4, the aunt of A3 having spoken of A3 having approached her on the same night. On the next day morning, he heard about the death of his son and the detention of A1 and A2 by villagers. The last seen together theory commences from PW1's testimony, of his son having gone with the three accused at about 4 PM and is taken forward, by the prosecution, through PW3, PW11 and PW14.

5. PW3 spoke of having seen the accused together with the deceased roaming at around 10 AM and at 5 PM, in his presence, PW1 having enquired about the deceased with his elder son. He spoke of having searched for the son of PW1 at the house of A1 and A3. A1 was not in his house and A3 is said to have gone with a truck. PW3 also spoke of A3 having come back at night with his father to enquire about the whereabouts of the deceased with PW1. The said statement is in contrast with the testimony of PW14 that A3 along with his father and another person came to PW1 on the same night and threatened him; not stated by PW1 itself. PW14 also spoke of having seen the accused and the deceased roaming around at 5 PM. PW3's testimony that he had seen the deceased with the accused at 10 AM is of no use since PW1 admits that his son was at home after that and he accompanied the accused only at 4 PM, after which PW14 had seen him at 5 PM, the dead body having been recovered on the next day morning.
6. One other crucial witness projected by the prosecution is PW11 who testified that she saw the four men drinking in the field behind the BDO office, on the evening of 30.10.2012 when she was returning from work. The trial court and the High Court laid emphasis on this testimony especially since the post mortem report indicated alcohol in the stomach of the deceased, which was held to have corroborated the testimony of PW11. However, a close reading of the cross-examination of PW11 raises grave suspicion about her testimony. She admitted in her cross-examination that the BDO office was open till evening and that the locality was thickly populated;

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reducing the chances of a drinking spree in public. The justification for her presence in the locality was that she was returning from work, but, she was unable to point out or specify the house in which she worked, the name of her employer or even the locality in which the house was situated. We cannot but opine that PW11's testimony does not inspire enough confidence to make it an incriminating circumstance to find the accused guilty of the offence alleged on the strength of the accused and the deceased having been seen together in the evening of 30.10.2012, that too drinking, in the field behind the BDO office. One other witness, PW13, put forth to speak on the four persons having come to the hotel in which he was employed at 6 pm, turned hostile.

7. Be that as it may, we have the evidence of PW1 and PW14, the first of whom spoke of the accused having taken the deceased from his house at 4 PM and PW14 having testified that the four persons together were seen roaming at around 5 PM. What assumes significance in placing reliance on the last seen together theory is the gap between the time they were seen together and the death having occurred. The proximity of the death having occurred within a short time after the accused and the deceased were seen together is most relevant, for the said fact to be taken as an incriminating circumstance against the accused. When the time gap is large then there could be intervening circumstances, which snaps the link and prevents an adverse inference against the accused merely for the reason that the accused does not put forth an explanation as to when he parted company with the deceased (***State of Goa v. Sanjay Thakran and Another***¹).
8. Immediately, we have to examine the postmortem report, which notices the time of autopsy as 31.10.2012 at 2.10 PM, the inquest having been at 10.15 AM, which report was proved in trial by the Doctor examined as PW10. The postmortem report indicates the loss of left eye with massive lacerations around both the left and right eyes, sharp cut injuries and massive lacerations on the face and even on the occipital bone on the posterior aspect of the skull as also burning of the right side of the face along with the right shoulder. No doubt the death was delivered in a brutal manner, and

1 (2007) 3 SCC 755

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the Doctor speaks of death having been caused due to the shock by reason of the wounds sustained and the resultant hemorrhage. The Doctor does not speak of any single injury having led to the death.

9. What is pertinent in considering the circumstance of last seen together is that the postmortem report indicates the time of death as *'24 hours not passed during examination after death of deceased'*. The time provided is very elastic and since PW14 stated that he saw the deceased along with the accused at 5 PM on the previous day, death could have happened at any time in the intervening night or in the morning, before the body was recovered at around 10 AM on 31.10.2012. The time frame being quite large to term death as proximate, there can be no conviction based on the last seen together theory in the present case. We have to hence, necessarily look at the other circumstances, which together, if found incriminating enough, the last seen together theory also would offer a link, though a weak one, in the chain of circumstances.
10. The next circumstance projected by the prosecution is the extra-judicial confession as spoken of by PW3, PW8, PW12 and PW14. As per their testimony, when PW1's son did not return even on the next day, there was a massive search carried out, and the villagers had detained A1 and A2. It is the testimony of PW8 that he assured A1 that the mob would not assault him upon which A1 confided to him that the three accused together murdered PW1's son. The testimony was that A1 told PW8 that, at first A3 hit the deceased and thereafter he insisted that A1 and A2 assault him and thus together they killed the deceased. It is pertinent that in cross-examination PW8 specifically stated that while A1 made the confession PW3 was present with him. PW3 on the other hand speaks not of a confession but an exculpatory statement made by A1 that it was A2 and A3 who killed the deceased. PW12 and PW14, two other witnesses who spoke of the extra-judicial confession also spoke in tandem with what PW3 stated. The exculpatory statement made absolving himself and accusing the co-accused, by its very nature is unreliable. It cannot be put against the other accused, for no cross examination being provided to them, of the one who made that statement. It cannot also incriminate the person who made the statement since there is no element of confession in the recital as spoken of by three witnesses, as against one.

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11. It is also of relevant import that PW8 specifically spoke of a mob having detained A1 and A2 and PW8 having taken A1 aside to speak to him, when he made the confession in the presence of PW3; thus again raising a suspicion of whether PW12 and PW14 were privy to the statement made by A1. The extra-judicial confession by its very nature being a weak piece of evidence has not at all been proved in the present case. In any event, the statement is made when the two accused were detained by a mob, on the accusation of murder. Obviously, there is considerable pressure put on the detained persons, who could have spoken, on undue duress or under threat of violence. In fact, the records indicate that after arrest, when A1&2 were taken for medical examination, they had injuries on their body, which again cuts at the root of credibility of the statement made; which anyway has doubtful standing as a confession.
12. Now we come to the recoveries made allegedly with the aid of the accused. The dead body was found in a field, an open space with free access to anybody. The stone and glass piece are said to have been recovered from the place of occurrence itself, albeit with the aid of the accused. We have serious doubts about the recoveries having the status of a recovery under Section 27 of the Indian Evidence Act, but for the time being we would assume it to be so. A stone, weighing 1-1.5 kg and a glass piece were said to have been recovered, on the showing of the accused, specifically A1 and A2. The seizure list as seen from the records does not indicate the specific place from which it was recovered other than stating that it is '*from the PO at the paddy land of Jogesh Roy*'. The learned State Counsel would argue that though the paddy field had free access, it was thick with stalks and there could definitely be a concealment; the growth not borne out from the evidence. We do not for a moment doubt that there could be concealment even in a public place or in a field with thick vegetation, but there is no statement recorded from the accused as to such a concealment having been effected and then the police having been led to the location and the material object recovered from the place of concealment. Recital in the seizure list is only that '*on being shown and certified by accused 1 and 2*'. Concealment and its knowledge, revealed from the statement of the accused, is the crucial ingredient of Section 27 which can lead to that being used in a criminal trial, any other confession to a police officer being excluded as self-incriminating.

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13. Further, the said recoveries are/ made on 02.11.2012 and the same was witnessed by PW5, the Pradhan who had come to the place of occurrence at the time of the recovery of body, on 31.10.2012 and at the time of recovery, on 02.11.2012. In fact, the testimony of PW5 is that the signature on the inquest report and the seizure report are his and it relates to one broken spectacles, one stone, one *gangee* and four pairs of sandals and one single sandal. It is not clear from the testimony of PW5 as to which were seized by the police on 31.10.2012 and what was recovered on 02.11.2012. The recovery thus has no clarity and more importantly the accused pointing out the concealed objects or even their presence at the time was not deposed to by PW5.
14. The recovery on 02.11.2012, as evidenced from the seizure report, was with respect to four items; the stone, a broken glass and two spectacles, one of which was broken, not testified to by PW5. The other objects were seized at the time of inquest from the place of occurrence from where the body was recovered. Yet again as we already observed there is no statement taken of the accused of a concealment and the recoveries made do not qualify to be one under Section 27. The stains on the stone found at the place of occurrence and the serology report of it being human blood, hence, is of no consequence.
15. We also have to observe that the seizure is said to have been made in the presence of both the accused without indicating as to who out of the two revealed the concealment. As a matter of fact, PW16, the Investigating Officer, testifies that both the accused A1 and A2 informed him that if they are taken to the place of occurrence they would recover the stone and broken glass with which the deceased was murdered and also the motorcycle of Samir; the last of which we will deal with a little later. Here we have to emphasize that PW5, the witness to the recovery, categorically stated that neither the stone nor the glass piece was produced in Court and hence not confronted to the witness. More pertinently the alleged weapons of assault were not shown to the Doctor to elicit his opinion as to whether the said objects could have caused the injuries found on the dead body. The recoveries are of no avail and do not form a clinching incriminating circumstance against the accused.
16. Yet another recovery is that of the motorcycle of the deceased. In fact, PW12 speaks of information received about the motorcycle

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having been kept in a house by A1 and A3 and recovered from there, prior to the arrest of the accused and in the course of the ongoing search, in the morning of 31.10.2012. PW9 is the house owner who spoke of three persons having come to his house to park the vehicle on 30.10.2012, however, he failed to identify the accused. The discrepancy noticed insofar as the recovery of the alleged weapons of assault, equally applies in the case of the seizure of the motorcycle also. Pertinent also is the fact that the motorcycle though handed over to PW1 on challan the same was not produced before Court nor was its registration details proffered to indicate that it belongs to the deceased or PW1, as is the version of PW1. PW1 was also not asked about the recovery of the motorcycle and handing over by the police.

17. One other incriminating circumstance was projected through PW4, the aunt of A3. PW4 was put in the box to speak of A3 having come to her on the night of 30.10.2012 to keep his bike in her house, having run out of petrol. There was nothing elicited from PW4 in her chief examination but for marking a statement recorded by the Magistrate. In cross examination she categorically stated that after the death of his son, PW1 had been frequently visiting her and threatening her with dire consequences if she does not depose falsely in the instant case. It was in re-examination that she was asked by the Prosecution about the statements made to the police, clearly impermissible. Even when she was asked the said questions, first she denied A3 having come to her house at night and then she admitted it. There can be no credence placed on such a witness or an incriminating circumstance found from her testimony. One other aspect is that there is no motive projected, which we are quite conscious is not imperative when the chain of circumstances is so complete as to establish only a hypothesis of guilt, without leaving any room for a hypothesis of innocence. In the present case, the absence of motive, especially when the murder was brutal, is yet another aspect raising a reasonable doubt.
18. In the totality of the circumstances, each having been examined by us, none of those projected having qualified as incriminating, linking the accused to the murder, we cannot but reverse the order of conviction handed down by the Trial Court and affirmed by the High Court. The appeals stand allowed and the appellants herein shall stand released forthwith if not already released as per our

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orders on the last day of hearing, unless they are required in any other case and if released, their bail bonds shall stand cancelled.

19. We place on record our appreciation for the meticulous preparation and adroit presentation of both the learned Counsel.
20. Before we leave the matter, we see that the appeals have been filed only by A1 and A2. A3 too has been languishing in jail along with A1 and A2 and for reasons best known has not chosen to file an appeal. In the circumstance of having acquitted the two accused, it is only proper that A3 also be provided assistance to file an appeal. We direct the Member Secretary, National Legal Services Authority to get in touch with the Member Secretary of the West Bengal State Legal Services Authority, who shall through the Secretary of the District/Taluk Legal Services Authority, having jurisdiction over the prison in which A3 is imprisoned, provide sufficient assistance to A3 and ensure that an appeal is filed before this Court from the impugned judgment. The same shall be done within a period of two months and the compliance be reported to us, for which purpose alone the matter is posted on 20th of July, 2026.
21. Pending application(s), if any, shall stand disposed of.

Result of the case: Appeals allowed.

[†]Headnotes prepared by: Divya Pandey

Gour Acharjee
v.
The State of Tripura & Ors.

(Criminal Appeal No. 1803 of 2014)

25 May 2026

[Prashant Kumar Mishra and K. V. Viswanathan,* JJ.]

Issue for Consideration

Whether, in a case of death occurring within the absolute privacy of a matrimonial home, the prosecution has established beyond reasonable doubt that the victim's death was a homicidal hanging staged by the appellant-husband after an assault—thereby shifting the burden of explaining the special facts to the husband—or whether it was a case of voluntary suicidal hanging as claimed by the appellant.

Headnotes[†]

Penal Code, 1860 – s.302 – Victim-deceased, wife of appellant, was subjected to dowry demand by her in-laws – She was tormented and tortured – Victim died within about fifteen months of marriage – The complainant received information that his daughter committed suicide by hanging herself – FIR was registered u/ss.498A, 304B and 34 – However, the trial Court framed charges u/ss.498A and 302 of IPC r/w s.34 – Trial Court convicted Appellant (A1), appellant's mother (A2), appellant's brother (A3) and acquitted appellant's father (A4) – The High Court confirmed the conviction of A1, however, acquitted A2 and A3 – A1 has filed this appeal against his conviction:

Held: The injuries found on the body of the deceased are not consistent with an ordinary case of suicidal hanging – The existence of ante mortem injuries on different parts of the body of deceased is not ordinarily capable of being self-inflicted – This fact substantially undermines the defence version of suicide – In the present case, the medical evidence indicates that the deceased has been subjected to violence prior to her death thereby negating the theory of voluntary suicidal act – There is

* Author

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no hesitation in confirming the finding of the trial Court and the High Court that the death was due to the head injury and that the deceased was put on hanging – Further, summary of other relevant prosecution witnesses give clear evidence to the effect that there was consistent torture of the deceased with regard to the demand for dowry especially for the motorcycle and cash – The medical opinion clearly points to simulated hanging or homicidal hanging – It is well settled that if an offence takes place inside the privacy of a house, though the initial burden to establish the case would be on the prosecution there will be a corresponding burden on the inmates of the house to give a cogent explanation as to how the victim succumbed – In the present case, PW-14 clearly states of the presence of the appellant when the body of the deceased was found hanging – When confronted with the circumstances u/s.313, Cr.P.C., the appellant did not choose to offer any explanation – The appellant did not endeavour to discharge the burden and to explain the injuries on the deceased by offering a plausible explanation – His defence that it was a case of suicide has been belied by the overwhelming medical evidence – Appellant directed to be taken in custody. [Paras 11-13, 25, 28, 31, 32]

Case Law Cited

Trimukh Maroti Kirkan v. State of Maharashtra [2006] Supp. 7 SCR 156 : (2006) 10 SCC 681 – referred to.

Books and Periodicals Cited

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List of Acts

Penal Code, 1860; Code of Criminal Procedure, 1973.

List of Keywords

Murder; Dowry death; Torment; Torture; Dowry; Harassment; Suicide; Homicide; Burden of proof; Privacy of home; Forced reconciliation; Ante-mortem injuries; Suicidal hanging; Staged suicidal hanging.

Supreme Court Reports**Case Arising From**

CRIMINAL APPELLATE JURISDICTION: Criminal Appeal No. 1803 of 2014

From the Judgment and Order dated 24.08.2012 of the Gauhati High Court in CRLA No. 58 of 2009

Appearances for Parties

Advs. for the Appellant(s):

Ms. Diksha Rai, Ms. Atiga Singh, Ms. Purvat Wali, Sagun Srivastava, Sourabh Dahiya, Abhishek Jaiswal.

Advs. for the Respondent(s):

Shuvodeep Roy, Deepayan Dutta, Saurabh Tripathi, Subhro Sanyal.

Judgment / Order of the Supreme Court**Judgment**

K.V. Viswanathan, J.

1. Could the life of young Soma Acharjee have been saved? Did the fear of societal opprobrium result in Soma being thrown to the wolves? These questions will remain hypothetical. Within a few days after her marriage, the deceased, Soma, was subjected to immense torture on account of demand for dowry. She repeatedly made entreaties to her parents to save her and even came to her parental home and stayed with them for a few days. However, every time she raised the issue, efforts were made only to effect a patch-up and send her back to the matrimonial home. Village elders were involved and even resolutions were passed after effecting a purported compromise. Soma's near and dear naively believed that somehow -somehow- the situation will turn for the good. A false sense of optimism engulfed them. Their hopes were betrayed when Soma met with a tragic end at her matrimonial home. Hopefully, the story of her life will be an eye-opener for many.
2. The present appeal calls in question the correctness of the judgment dated 24.08.2012 in Criminal Appeal (J) No. 58 of 2009 passed by the High Court of Gauhati, Agartala Bench. By the said judgment, the High Court confirmed the judgment of the Additional Sessions

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Judge, Sonamura, West Tripura, dated 03.06.2009 by which the appellant was sentenced to undergo rigorous imprisonment for life (and to pay a fine of Rs. 10,000/-) for offence punishable under Section 302 IPC and rigorous imprisonment for a period of 3 years for offence punishable under Section 498A of IPC. Appropriate default sentences were also imposed.

3. Along with the appellant (A1), appellant's mother Arati Acharjee (A2), appellant's brother Nitai Acharjee (A3) and Appellant's father Bimal Acharjee (A4) were tried together. Though the Trial Court acquitted A4, Bimal Acharjee, the father, it convicted the mother and brother along with the appellant. They have also since been acquitted by the High Court and the State is not in appeal.

BRIEF FACTS:-

4. The deceased is Soma Acharjee, wife of the appellant. She died on 16.06.2007. The prosecution was set in motion by a First Information Report lodged on the very same day at around 12:15 hours by PW-7 Swapan Acharjee, the father of the deceased. According to the FIR, about fifteen months ago, the deceased was given in marriage to the appellant. The deceased was subjected to dowry demand by her in-laws and was tormented and tortured. FIR states that the panchayat had to intervene and the daughter was taken back from the parental home to the matrimonial home on several occasions. The complainant avers that on 16.06.2007, he received information that his daughter committed suicide by way of hanging herself. Suspecting that the in-laws were responsible, he lodged the FIR which was registered for offences under Section 498A, 304B and 34 of IPC.
5. The Trial Court, however, framed charges against the accused under Section 498A and 302 of the IPC read with Section 34. At the Trial, the prosecution examined 15 witnesses and marked several exhibits. The accused were examined under Section 313 of Cr.P.C. No witness was examined by the defence.
6. We have heard Ms. Diksha Rai, learned counsel for the appellant and Mr. Shuvodeep Roy, learned counsel for the State. Both counsels very ably presented their respective points of view. They exhaustively took us through the records of the case. We have considered their submissions including the written submissions. We have also perused the original trial Court records.

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HOMICIDAL NATURE OF DEATH:-

7. The Trial Court and the High Court had no difficulty in concluding that the accused died a homicidal death. PW-13, Dr. Bhanu Bhusan Deb, who was posted as Medical Officer at Boxanagar Primary Health Centre conducted the postmortem on 16.06.2007. He was also examined at the Trial. We have perused the postmortem report and his deposition. PW-13 reiterated the contents of the post mortem report which was as follows:-

“On 16-06-08 (sic) I was posted as MO at Boxanagar PHC. On that day I conducted post mortem on the dead-body of Soma Acharjee as was identified by Pintu Kr. Sarkar and others. On physical examination of the dead-body I found the following injuries :

1. 1/2” X ‘1/2” small haemotomma over sternum (front middle portion of chest)

2. 1/2” X 1/2” sized small haemotomma over right angle of the mandible (right side of the face jaw)

3. 1/2” X 1/2” sized haemotomma over occipital area.

No typical ligature mark was seen. A flat depressed measuring 3” X 5” (U shaped) over left side of neck was found. No abrasion or acchimosi s on that area was seen.

There was depressed fracture of the scalp. **No cervical vertribae fracture was seen.** The details about the injuries- seen in the thoarax region, abdomen and muscles, bones and joints are mentioned in the report, at pages 2 & 3. More detail description about the external and internal injuries is mentioned in the report.

From the external and the internal injuries observed during the post mortem examination in my opinion, the cause of death was head injury caused by blunt weapon like hammer. This opinion is mainly based on the injury No.3 above mentioned, which resulted in congestion of the effected areas. The consequent depressed fracture of occipital area caused pita, dora, arachnoids of matter of that effected area getting

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congested. The brain tissue of the effected area was also congested.

The patient was later on put on hanging so it was a case of homicidal hanging. The basis of this conclusion is that there was no typical hanging ligature mark, on the left lateral side of neck where skin tissues were pressed with an area of 3" X 5" (U shaped) where no abrasion or acchimosi was seen. This was indicative of circulatory failure. There was no inflammatory sign seen. The person was dead and so called pressed area was below the thyroid cartilage. There was no congestion seen in conjunctiva, eye lids, face, nose, oropharynx, laryngo-pharinx and tongue which are generally seen in a case of hanging. Tongue was not also protruded. There was no vaginal discharge. No fecal matter was seen in the annus, which are generally seen in a typical hanging death case.

OPINION OF DOCTOR AS TO CAUSE OF DEATH

From the above findings, I am in the opinion that the lady was died due to head injury caused by blunt weapon like hammer and then she was put on hanging. So, this is a case of homicidal hanging."

(Emphasis supplied)

8. We are amply supported here by the literature on medical jurisprudence. In this case, the doctor (PW-13), has noticed injuries on the chest, jaw and on the head of the deceased. There was no typical ligature mark. Further, there was no abrasion or ecchymosis near the skin tissue on the left lateral side of the neck. No inflammatory sign was seen. No congestion was seen in conjunctiva, eyelids, face, nose, oropharynx, laryngopharynx and tongue. The tongue was not protruded. There was no vaginal discharge and no fecal matter was seen in the anus.
9. In Modi's *Medical Jurisprudence and Toxicology* [Twenty-third Edition], dealing with the characteristics of death by hanging, it is set out as under: -

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“However, one can safely say that death was due to hanging, if, in addition to the cord mark, there was dribbling of saliva from the angle of mouth, ecchymoses and slight abrasions around the ligature-mark, laceration of the intima of the carotid arteries with extravasation of blood within their walls and the post-mortem signs of asphyxia, besides if there are no evidence of a struggle, scratches and nail marks, fatal injuries or poisoning.”

10. Equally informative is Dr. *C.K. Parikh's Text Book of Medical Jurisprudence and Toxicology* [Fourth Edition]. The learned author dealing with the attributes of hanging and how it was not uncommon to kill a victim and suspend the person's body elucidates as under: -

“Whether death was due to hanging: It is not uncommon in India to kill a victim and then suspend his body (postmortem hanging) from a tree or rafter to mislead the relatives and the police. In such a case, a ligature mark is usually found. Therefore, when a person is found dead and his body suspended, no opinion can be given from the ligature mark alone. Death could be attributed to hanging if one finds (1) a ligature mark with petechial haemorrhages and ecchymoses into its substance (2) dribble-marks of saliva (3) tear of the intima of carotid arteries with extravasation of blood within their walls (4) congestion and haemorrhage in the lymph nodes above and below the ligature mark, and (5) absence of fatal injuries and poisoning.”

Again, dealing with injuries in the case of a person found hanging, the learned author sets out as follows: -

“Injuries: When injuries are present on bodies found hanging, several possibilities exist for their causation. They might be suicidal, such as cut throat, cuts of the wrists, etc. **They could also be homicidal, the individual having been beaten to death and then subsequently hanged to make it appear as a case of hanging.** The nature of the injuries will help in many cases. As for example, fractures of multiple ribs, several contusions all over the body, and rupture of viscera can only be homicidal. It should be

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remembered that accidental injuries may be sustained due to violent convulsions which may precede death when the body of the person may strike the nearby wall or furniture. Postmortem injuries such as fractured limbs or ribs may occur when the ligature is cut and the body falls from a height or during attempts at resuscitation.”

11. Significantly, the injuries found on the body of the deceased are not consistent with an ordinary case of suicidal hanging. The existence of ante mortem injuries on different parts of the body of deceased Soma is not ordinarily capable of being self-inflicted. This fact substantially undermines the defence version of suicide. As demonstrated earlier, treatises on medical jurisprudence recognised the fact that where signs of assault or struggle are found on a body, later discovered hanging, the possibility of a case of simulated hanging cannot be lightly disregarded. In the present case, the medical evidence indicates that the deceased has been subjected to violence prior to her death thereby negating the theory of voluntary suicidal act.
12. Hence, we have no hesitation in confirming the finding of the trial Court and the High Court that the death was due to the head injury and that the deceased was put on hanging.

SUMMARY OF OTHER RELEVANT PROSECUTION WITNESSES:-

13. Dhiraj Biswas (PW-1), who was the Upapradhan of South Kalamchura village speaks about the deceased having talked about the torture by her appellant-husband for the delay in the delivery of a motorcycle that was demanded by him. He also speaks about a compromise being effected and how she went back to the house of her husband after a resolution (Ex-1) was drawn up. He also speaks about the death of the deceased about 20 days after the said resolution. PW-1 deposed that upon hearing the news of the death, he immediately rushed to the house of the appellant and saw the dead body hanging.
14. Pintoo Kumar (PW-2), who was a neighbour speaks about how Swapan Acharjee (PW-7)-father of the deceased-Soma had come to him complaining of trouble between the deceased Soma and her husband-appellant. He also speaks about how he advised PW-7 to go to PW-1. He further reiterates the meeting and the resolution passed. PW-2 deposed that the deceased did not make any complaint

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against any other person except her husband – the appellant. This witness on the aspect of the discovery of the hammer stated that he was asked to sign a seizure list by Sub-inspector-Nirpati Bhushan Das. The witness was declared hostile. The witness in the cross-examination by the public prosecutor denied that deceased Soma informed him that all four accused persons tortured her and demanded motorcycle and money. He further denied that after motorcycle was given, the deceased informed him that the appellant tortured her.

15. Ranu Das (PW-5), speaks about the panchayat and the resolution passed as spoken to by PW-1. In the cross-examination, PW-5 submitted that, according to their understanding, the deceased and the appellant doubted each other about their character. PW-5, in cross-examination denied the suggestion that the deceased Soma did not inform in the meeting of the villagers about her husband torturing her. She further denied the suggestion that the parents of the deceased did not inform her that the deceased was being tortured by the appellant. Haripada Nama (PW-6), like PW-2, did not support the prosecution on the seizure of the hammer.
16. Swapan Acharjee (PW-7), the father of the deceased, deposed that after two months of the marriage, deceased Soma informed him that she was being tortured by her husband, mother-in-law and brother-in-law for delivery of the motorcycle immediately and for payment of cash amount; that he immediately sent the T.V. set and sought time for the delivery of the motorcycle; that after seven days, deceased Soma rang him up and informed that she was being assaulted and tortured by the husband, mother-in-law and brother-in-law for failure to deliver the motorcycle; that he conveyed that within seven days the appellant could come and take delivery of the motorcycle, and that he went to Agartala purchased a motorcycle and delivered it to the appellant. PW-7 further deposed that within four days, there was a phone call from the deceased informing him that she was being tortured for the cash amount. That on hearing this, he went to the house of the appellant and thereafter informed the matter to PW-5 and ultimately attended the meeting at the house of PW-1.
17. PW-7 further deposed that the meeting ended with Soma being advised to stay with the husband; that after two days, deceased Soma again called over phone and informed about the torture by the

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husband, mother-in-law and brother-in-law; that there was a further meeting in the house of PW-5; that again she was advised to stay with the husband; that within four days of the second meeting, the deceased rang up to say that the torture had become unbearable; that within a fortnight, a third meeting was held; that in this meeting also deceased Soma expressed her inability to stay in the house because of the prolonged torture by the appellant, brother-in-law and mother-in-law, and that he was helpless since he had met all demands.

18. PW-7 deposed that after 15 days the appellant went to the house of PW-7 with the deceased and left her there; that the deceased informed him that she was severely assaulted by her mother-in-law and brother-in-law in the absence of the husband. That he learnt from PW-5 that the appellant had disposed of the motorcycle and left for Bihar; that after about a month the appellant came to his house and asked the deceased to accompany him to Bihar; and that the appellant on being advised to think over the matter left alone.
19. PW-7 deposed that he contacted the Upapradhan and PW-2 with regard to the return of Soma; that again a meeting was held on 27.05.2007 which both families attended. That at the meeting, the deceased cried and complained of torture. That PW-2 took the initiative to settle the matter and asked the appellant and his brother to seek pardon and to promise that they would not torture Soma and that Bimal Acharjee and Arati were also advised to ensure that there was no torture. PW-7 deposed that the resolution of the meeting was reduced into writing and signatures of both sides were taken.
20. PW-7 stated that it was decided in the meeting that if there was further torture, the matter would be taken up as per law; that after the meeting, the deceased accompanied the accused to their house and that on 16.06.2007, the appellant informed him over phone that the deceased Soma had committed suicide by hanging. He deposed that thereafter he went to the Police Station and filed a complaint; that with the police he went to the house and found the dead body hanging from the roof in a room on the southern side and that as the body was being brought down he saw a black spot on the neck and another on the chest. PW-8, wife of PW-7 and mother of the deceased, also deposed on the same lines as her husband.

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21. PW-12-Titan Das is the neighbor of the appellant. He deposes to the effect that about a year and a half back, one morning around 7.00 AM, when he went to the house of the appellant to bring a pen he found the dead body of Soma hanging from the ceiling. He deposed that he cried and returned home and did not see anybody in the room. He was declared hostile and cross-examined with regard to his previous statement that he had seen the appellant lying on the bed and about how he asked the appellant to deliver the pen and, thereafter, on seeing the body of the deceased hanging he asked the appellant about it. He denied the suggestion. He admitted that he had come to the court with the accused persons. In cross-examination, he deposed that when he saw the deceased hanging, there was still life in her and she was moving her hands and legs.
22. PW-14 Jitendra Das is an important witness. A neighbour of the appellant, he deposed that about one and a half years back - two days before the death of the deceased, he had asked Soma whether she had taken food. She stated that her mother-in-law had not given her food and that she had taken food elsewhere; that the next evening, on return to his house he found the deceased sitting on the verandah and altercation with hue and cry was going on inside the house of the appellant and that even at 11.00 PM, the deceased was sitting on the verandah. That around 1.30 AM, he heard cries and that the following morning around 6.35 AM, he heard the cries of Soma - the deceased saying "*Ma... go*" twice. That after 3-4 minutes, he heard the cries of PW-12, Titan Das; that he came out and asked Titan Das as to what happened and Titan Das told him that Soma had committed suicide. The witness deposed that immediately he rushed to the appellant's room and found the appellant lying on the bed with face downwards on the pillow and the witness found the body of Soma hanging from the ceiling.
23. PW-14 further deposed that he did not see any stool or anything and he wondered how she could have hung herself. He thereafter deposed that the body was hanging with a piece of saree usually worn by the appellant's mother; that he called for appellant's parents from the northern side room and that police arrived about an hour later. During cross-examination, he was confronted with

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his statement about how the facts set out by him now were not part of the statement. However, he reiterated that he had stated the same to the police. He, however, admitted that he did not state to the police that he saw Soma's body hanging with the saree of appellant's mother.

24. Though in the cross-examination of PW-1 and PW-2, it was suggested that there was a boundary dispute between PW-14 and the appellant's family and the accused in 313 statement did refer to the same, we are not convinced that such a dispute would by itself constitute a sufficient motive to falsely implicate the appellant in a serious offence relating to the death of the deceased Soma. PW-14 denied the suggestion that he was deposing against the appellant due to previous enmity. PW-14 is a neighbour and his presence is natural and cannot be doubted.
25. There is clear evidence to the effect that there was consistent torture of the deceased with regard to the demand for dowry especially for the motorcycle and cash. Repeated panchayats have been held, as spoken to by the witnesses hereinabove. Even though on the same evidence, the three other accused have been acquitted and the State has not challenged the same in appeal, we are not inclined to acquit the appellant for the offence under Section 498A in the teeth of the direct overwhelming evidence against the appellant.

IS THE APPELLANT GUILTY OF MURDER:-

26. The further question is whether the appellant has been rightly found to be guilty for the offence under Section 302. We have already found that the doctor's evidence, namely, PW-13, Dr. Bhanu Bhushan Dev, and the post-mortem report (Exh.13) have been rightly accepted by the courts below to conclude the homicidal nature of the death. The trial Court acquitted A-4-Bimal Acharjee and the High Court had acquitted A-2 (Arati Acharjee) and A-3 (Nitai Acharjee) for the offence under Section 302.
27. While the trial Court acquitted A-4 since nothing emerged in evidence against the father-in-law, the High Court acquitted the mother-in-law and the brother-in-law on the ground that the two were not sharing the same dwelling hut though they were in the same compound.

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28. As far as A-1, the appellant is concerned, both the courts are categoric that it was the appellant who was in the dwelling unit with the deceased when she was found dead. The medical opinion clearly points to simulated hanging or homicidal hanging. It was the bounden duty of A-1 to put forward a reasonable and probable cause of her death and also to explain the injuries which the deceased sustained prior to her death.
29. It is well settled that if an offence takes place inside the privacy of a house, though the initial burden to establish the case would be on the prosecution there will be a corresponding burden on the inmates of the house to give a cogent explanation as to how the victim succumbed.
30. In the landmark judgment of ***Trimukh Maroti Kirkan vs. State of Maharashtra***, (2006) 10 SCC 681, this Court had the following telling observations to make: -

“13. The demand for dowry or money from the parents of the bride has shown a phenomenal increase in the last few years. Cases are frequently coming before the courts, where the husband or in-laws have gone to the extent of killing the bride if the demand is not met. These crimes are generally committed in complete secrecy inside the house and it becomes very difficult for the prosecution to lead evidence. No member of the family, even if he is a witness of the crime, would come forward to depose against another family member. The neighbours, whose evidence may be of some assistance, are generally reluctant to depose in court as they want to keep aloof and do not want to antagonise a neighbourhood family. The parents or other family members of the bride being away from the scene of commission of crime are not in a position to give direct evidence which may inculcate the real accused except regarding the demand of money or dowry and harassment caused to the bride. But, it does not mean that a crime committed in secrecy or inside the house should go unpunished.

14. If an offence takes place inside the privacy of a house and in such circumstances where the assailants have all the

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opportunity to plan and commit the offence at the time and in circumstances of their choice, it will be extremely difficult for the prosecution to lead evidence to establish the guilt of the accused if the strict principle of circumstantial evidence, as noticed above, is insisted upon by the courts. A judge does not preside over a criminal trial merely to see that no innocent man is punished. A judge also presides to see that a guilty man does not escape. Both are public duties. (See *Stirland v. Director of Public Prosecutions* [1944 AC 315 : (1944) 2 All ER 13 (HL)] — quoted with approval by Arijit Pasayat, J. in *State of Punjab v. Karnail Singh* [(2003) 11 SCC 271 : 2004 SCC (Cri) 135] .) The law does not enjoin a duty on the prosecution to lead evidence of such character which is almost impossible to be led or at any rate extremely difficult to be led. The duty on the prosecution is to lead such evidence which it is capable of leading, having regard to the facts and circumstances of the case. Here it is necessary to keep in mind Section 106 of the Evidence Act which says that when any fact is especially within the knowledge of any person, the burden of proving that fact is upon him. Illustration (b) appended to this section throws some light on the content and scope of this provision and it reads:

“(b) A is charged with travelling on a railway without ticket. The burden of proving that he had a ticket is on him.”

15. Where an offence like murder is committed in secrecy inside a house, the initial burden to establish the case would undoubtedly be upon the prosecution, but the nature and amount of evidence to be led by it to establish the charge cannot be of the same degree as is required in other cases of circumstantial evidence. **The burden would be of a comparatively lighter character. In view of Section 106 of the Evidence Act there will be a corresponding burden on the inmates of the house to give a cogent explanation as to how the crime was committed. The inmates of the house cannot get away by simply keeping quiet and offering no explanation on the supposed premise that the burden to establish**

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its case lies entirely upon the prosecution and there is no duty at all on an accused to offer any explanation.”

(Emphasis supplied)

Thereafter, in para 22, this Court emphatically laid down as under: -

“22. Where an accused is alleged to have committed the murder of his wife and the prosecution succeeds in leading evidence to show that shortly before the commission of crime they were seen together or the offence takes place in the dwelling home where the husband also normally resided, it has been consistently held that if the accused does not offer any explanation how the wife received injuries or offers an explanation which is found to be false, it is a strong circumstance which indicates that he is responsible for commission of the crime. In *Nika Ram v. State of H.P.* [(1972) 2 SCC 80 : 1972 SCC (Cri) 635 : AIR 1972 SC 2077] it was observed that the fact that the accused alone was with his wife in the house when she was murdered there with “khukhri” and the fact that the relations of the accused with her were strained would, in the absence of any cogent explanation by him, point to his guilt. In *Ganeshlal v. State of Maharashtra* [(1992) 3 SCC 106 : 1993 SCC (Cri) 435] the appellant was prosecuted for the murder of his wife which took place inside his house. It was observed that when the death had occurred in his custody, the appellant is under an obligation to give a plausible explanation for the cause of her death in his statement under Section 313 CrPC. The mere denial of the prosecution case coupled with absence of any explanation was held to be inconsistent with the innocence of the accused, but consistent with the hypothesis that the appellant is a prime accused in the commission of murder of his wife. In *State of U.P. v. Dr. Ravindra Prakash Mittal* [(1992) 3 SCC 300 : 1992 SCC (Cri) 642 : AIR 1992 SC 2045] the medical evidence disclosed that the wife died of strangulation during late night hours or early morning and her body was set on

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fire after sprinkling kerosene. The defence of the husband was that the wife had committed suicide by burning herself and that he was not at home at that time. The letters written by the wife to her relatives showed that the husband ill-treated her and their relations were strained and further the evidence showed that both of them were in one room in the night. It was held that the chain of circumstances was complete and it was the husband who committed the murder of his wife by strangulation and accordingly this Court reversed the judgment of the High Court acquitting the accused and convicted him under Section 302 IPC. In *State of T.N. v. Rajendran* [(1999) 8 SCC 679 : 2000 SCC (Cri) 40] the wife was found dead in a hut which had caught fire. The evidence showed that the accused and his wife were seen together in the hut at about 9.00 p.m. and the accused came out in the morning through the roof when the hut had caught fire. His explanation was that it was a case of accidental fire which resulted in the death of his wife and a daughter. The medical evidence showed that the wife died due to asphyxia as a result of strangulation and not on account of burn injuries. It was held that there cannot be any hesitation to come to the conclusion that it was the accused (husband) who was the perpetrator of the crime.”

(Emphasis Supplied)

31. In the present case, PW-14 clearly states of the presence of the appellant when the body of the deceased was found hanging. It was also early morning and it is believable that the appellant would be in the house. In any event, that fact is not denied by him because it was the appellant who informed PW-7, though he told PW-7 that the deceased had committed suicide. When confronted with the circumstances under Section 313, Cr.P.C., the appellant did not choose to offer any explanation. The appellant did not endeavour to discharge the burden and to explain the injuries on the deceased by offering a plausible explanation. His defence that it was a case of suicide has been belied by the overwhelming medical evidence. Even if we discount the aspect of discovery of the hammer that does not carry the case of the appellant any further.

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32. For the reasons stated above, the appeal stands dismissed. We have been informed that the appellant is absconding. Now that we have dismissed the appeal, steps should be taken immediately to trace the appellant and take him into custody. Let a copy of this judgment be sent to the Director General of Police, Tripura, who shall immediately constitute a team and take steps to apprehend the convict.

Result of the case: Appeal dismissed.

[†]Headnotes prepared by: Ankit Gyan

